

State vs . Pankaj Sehrawat And Ors. Page No.1 Of ... on 23 August, 2023

IN THE COURT OF MS. GEETANJLI GOEL,
ADDITIONAL SESSIONS JUDGE/
SPECIAL JUDGE (PC ACT OF 2008) CBI-24,
ROUSE AVENUE DISTRICT COURT, NEW DELHI

IN THE MATTER OF:

CNR No. DLCT11-000105-2023
S.C. No. 01/2023
CIS No. 02/23
FIR No. 10/2015
Police Station Special Cell
Under Sections 3/ 4 MCOC ACT, 174A
IPC

IN THE MATTER OF:

State

Versus

1. Pankaj Sehrawat @ Pankaj
S/o Shri Prem Singh Sehrawat
R/o House No.848, Pana Mojhan
Village Bawana, New Delhi-110039.

2. Neeraj Sehrawat @ Neetu @ Neeraj Bawania
S/o Shri Prem Singh Sehrawat
R/o H. No.848, Pana Mojhan
Village Bawana, New Delhi-110039.

3. Sunil Rathi (Discharged)
S/o Late Shri Yashpal Singh
R/o Village-Tikri, PS Doghat
District- Baghpat, U.P.

4. Naveen Dabas @ Bali
S/o Shri Narender Singh

State Vs. Pankaj Sehrawat and Ors.
R/o Village Sultanpur Dabas
New Delhi-110039.

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5. Naveen Huda @ Bhanja Vicky (Discharged)
S/o Shri Mehtab Singh
R/o H. No.725/34 Hari Singh Colony
Sunaria Chowk, Rohtak Haryana.

6. Deepak Dabas @ Deepa (Discharged)
S/o Late Shri Ved Pal Dabas
R/o H. No.4, Gali No. 9, Karan Vihar
Meerut Road, Karnal
Haryana

Permanent R/o H. No.93
Village Sultanpur Dabas
PS Bawana, Delhi.

7. Gurpreet Singh (Discharged)
S/o Shri Jaswinder Singh
H. No.0-33 New Mahavir Nagar
Tilak Nagar Extension
New Delhi-110018.

8. Rahul Dabas @ Kala
S/o Shri Narender Dabas
R/o House No.193
Village Sultanpur Dabas
Delhi-110039.

9. Amit Malik @ Bhura (Discharged)
S/o Shri Yashpal Singh
R/o Village Sarnavli, PS Fugana
District Shamli, U.P.

State Vs. Pankaj Sehrawat and Ors.
10. Rambeer Shokeen
S/o Shri Nawal Singh
R/o House No.151, Extension-4
Nangloi, Village Kamruddin Nagar
New Delhi-110041.

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Accused Persons

Date of Institution	10.09.2015
Received by Transfer on	30.01.2023
Judgment reserved on	03.08.2023
Judgment Pronounced on	23.08.2023

JUDGMENT

1. The case of the prosecution in brief is that an 'organized crime syndicate' was being run by accused Neeraj Sehrawat @ Neeraj Bawania @ Neetu (A2), along with his brother Pankaj Sehrawat (A1) and maternal uncle Rambeer Shokeen (A10) which indulged in extortion of money, extending threats for the purposes of extortion of money and land grabbing and was also involved in inflicting crimes/ offences including bodily injuries and murder to gain pecuniary benefits in the form of money or land or gaining undue economic and other advantage. Further, accused Rahul Dabas @ Kala (A8) and Naveen Dabas @ Bali @ Chhota @ Time Pass (A4) also got associated with the said 'organized crime syndicate'. It is alleged that all the said accused persons along with others, namely Amit Malik @ Bhura (A9), Sunil Rathi (A3) and Naveen Hooda @ Bhanja (A5) had engaged themselves as members of the crime syndicate and were doing State Vs. Pankaj Sehrawat and Ors. Page No.3 of 385 continuing unlawful activities in the form of organized crime i.e. extortion from wealthy persons of money and land grabbing.

2. It is further the case of the prosecution that prior to 20.02.2015 and in a period of ten years prior thereto, in Delhi and other places in the country, the accused Rambeer Shokeen harbored, concealed and organized concealment of Neeraj Sehrawat @ Neeraj Bawana by directing one Jasbir @ Goldy to accompany him to Kolkata where he concealed himself under a false identity by using Voter ID card of one Prashant Kaushik and stayed in Hotel Raj Palace, Kolkata using fake identity of Prashant Kaushik on the basis of manipulated Voter ID card of the said Prashant Kaushik, which he obtained under false pretext. The user of Voter ID card of Prashant Kaushik facilitated the stay and concealment of accused Neeraj Sehrawat @ Neeraj Bawana at various other hotels such as Hotel Jai Mahal, Hotel Savera, Udaipur and Hotel Juhu Residency, Mumbai. Further, accused Rambeer Shokeen provided accused Neeraj Sehrawat, kingpin of crime syndicate an HDFC debit card of one Jasbir @ Goldy which he had obtained from Jasbir @ Goldy and had deposited money in the said account of Jasbir @ Goldy which was used by the kingpin of the syndicate, namely, Neeraj Sehrawat @ Neeraj Bawana. Further, the accused Rambeer Shokeen received money from the crime syndicate in cash on various occasions and facilitated the encashment of cheques to the tune of Rs.15 lakhs for the crime syndicate through one Rakesh Jatav and for that purpose, had also instructed the concerned bank manager to release/ encash the said cheques which amount was also handed State Vs. Pankaj Sehrawat and Ors. Page No.4 of 385 over to accused Rambeer Shokeen by accused Pankaj Sehrawat. Further, accused Pankaj Sehrawat held money and property derived/ obtained from the commission of organized crime or which had been acquired through organized crime syndicate. Accused Rambeer Shokeen was found singly or jointly in possession of movable property as mentioned in the charge-sheet, which he could not satisfactorily account for and which was obtained/ acquired from out of the proceeds of organized crime committed by organized crime syndicate.

3. Once it came into knowledge that an organized crime syndicate was being run, a proposal under Section 23(1) of the Maharashtra Control of Organized Crime Act, 1999 (hereinafter referred to as the MCOC Act) as extended to Delhi was moved against the aforesaid accused persons by ACP Manishi Chandra. Approval was accorded by the Special Commissioner of Police for registration of FIR and investigation of the case under Sections 3 and 4 of MCOC Act vide order dated 20.02.2015 (Ex.PW73/A) against seven accused persons i.e. A1, A2, A3, A4, A5, A8 and A9. The present FIR bearing No.10/15 PS Special Cell was thereafter got registered. During investigation, accused

Gurpreet Singh and Naveen Hooda were also found involved as members of the organized crime syndicate and involved in organized crime. So, after investigation, a request was made by the Additional DCP Manishi Chandra to grant sanction under Section 23(2) of MCOC Act to proceed against 10 accused persons and sanction was accorded against 10 accused persons by the Special Commissioner of Police for offences punishable State Vs. Pankaj Sehrawat and Ors. Page No.5 of 385 under Section 3(4) of MCOC Act vide sanction order dated 09.09.2015 (Ex.PW73/B). Further sanction against the accused Rambeer Shokeen was accorded on 10.02.2017 for the offence under Section 3(4) of MCOC Act (Ex.PW67/A).

4. After completion of investigation and obtaining sanction, charge sheet was filed on which cognizance was taken by my Ld. Predecessor vide order dated 10.09.2015 for the offences under Sections 3 and 4 of MCOC Act. Supplementary charge sheets were also filed. Accused Rambeer Shokeen was initially declared proclaimed offender vide order dated 23.02.2019 of the Ld. ASJ- 03, Patiala House Courts, New Delhi. Vide order dated 28.10.2016, accused Sunil Rathi, Amit Malik @ Bhura, Naveen Hooda @ Bhanja Vicky, Deepak Dabas @ Deepa and Gurpreet Singh were discharged and charge was directed to be framed against the other accused persons which was framed vide order dated 22.11.2016 against the accused Rahul Dabas @ Kala, Naveen Dabas @ Bali, Neeraj Sehrawat @ Neeraj Bawana @ Neetu and Pankaj Sehrawat for the offences punishable under Section 3 of Maharashtra Control of Organized Crime Act, 1999. Subsequently, vide order dated 02.03.2021, accused Rambeer Shokeen was charged for the offences punishable under Sections 3(2)/ 3(3)/ 3(5)/ 4 of MCOC Act and under Section 174A IPC.

PROSECUTION EVIDENCE

5. Prosecution in support of its case examined 78 witnesses. PW1 Ms. Priya Mitra Kaushik, Retd. ACP deposed that on 26.05.2014, she issued an order regarding award of Rs.1 lakh for State Vs. Pankaj Sehrawat and Ors. Page No.6 of 385 giving information/ clue to trace out the highly desperate criminal Neeraj Bawania @ Neeraj S/o Shri Prem Singh, r/o house No.848, Panna Mauzan, PS Bawana, Delhi, who was involved in case FIR No.180/2012 dated 28.02.2014, under Sections 387/506 IPC, PS Samaypur Badli, Delhi, and evading from his arrest. He was also involved in sixteen other cases. The said order was passed on the directions of the Commissioner of Police. She proved the original order dated 26.05.2014 Ex.PW1/A.

6. PW2 Shri Sandeep Kumar Sehrawat deposed that he had one uncle (Tau) Baljeet Singh and two uncles (Chacha), namely, Hari Singh and Prem Singh. His uncle Prem Singh had two sons and one daughter and the sons are named Pankaj Sehrawat and Neeraj Sehrawat whom he identified. He denied having knowledge about the profession of accused Pankaj and Neeraj Sehrawat. He deposed that there are three maternal uncles (Mamas) of Pankaj and Neeraj, namely, Jagdev Shokeen, Sanjeev Shokeen and Rambeer Shokeen. He denied having any knowledge about the case. He denied that he ever went to any person at the instance of accused Neeraj and Pankaj. The Ld. Addl. PP sought permission to cross-examine the witness as he was stated to be not telling the truth. During cross-examination by Ld. Addl. PP, PW2 stated that he did not know if the accused Pankaj and Neeraj were involved in many criminal cases in Delhi and Haryana. He stated that police officials of Special Cell had made inquiries from him in this case and his statement was recorded. He did not

know if accused Neeraj and Pankaj along State Vs. Pankaj Sehrawat and Ors. Page No.7 of 385 with their accomplices had indulged in land grabbing in Delhi. He denied having knowledge if accused Neeraj and Pankaj used to extort money from factory owners and businessmen of Bawana area or if accused Neeraj and Pankaj used to give ill gotten money to their maternal uncle Rambeer Shokeen who was residing in Kamruddin Nagar and was ex-MLA from Mundka Legislative Assembly or they used to spend the said illegal money in his elections.

7. PW2 further denied the suggestion that in January, 2013 when accused Neeraj was in Tihar Jail, his brother Pankaj Sehrawat and Rakesh Babla, son of his maternal aunt (Mausi) told him about a plot measuring 600 sq. yds. situated at Khasra No.38/24, Village Shahbad Daulatpur, Shiv Vihar, Delhi or that the said plot was in the name of his maternal uncle (mausa) Shri Narain Singh or that someone had taken forcible possession of the plot or that Rakesh Babla had taken the possession of the said plot after putting bricks in the plot or that the owner of the said plot was threatened by them by taking the name of accused Neeraj Bawana, who got scared and agreed to compromise the matter or that his brother Sushil Sehrawat was also involved in the settlement and he had told him about the same. He further denied the suggestion that he had received Rs.1.10 crores cash and three cheques for Rs.8 lakhs, Rs.7 lakhs and Rs.5 lakhs in the name of Rakesh from the mediator/ property dealer Rajesh Bansal or that he had handed over all the three cheques to accused Pankaj and at the instruction of accused Neeraj Bawana, he went to Kamruddin Nagar and handed over Rs.1.10 crores State Vs. Pankaj Sehrawat and Ors. Page No.8 of 385 cash to his maternal uncle accused Rambeer Shokeen for elections.

8. PW2 further denied the suggestion that in January, 2015, on the instructions of accused Neeraj, he received Rs.2.50 lakhs as extortion money from one Kamaldeep Dabas @ Monu, resident of Barwala. He denied the suggestion that he had disclosed all the said facts to the police in his statement and he was confronted with the statement Ex.PW2/A wherein it was so recorded. He did not know the source of income of accused Neeraj and Pankaj or how their family members were meeting their daily expenses in their absence and volunteered he was not on visiting terms with the family of accused Neeraj and Pankaj. He stated that he was involved in only one criminal case and volunteered that he was acquitted in the said case. He was never arrested in any criminal case. He denied the suggestion that he was deliberately suppressing the true facts of the case as he was afraid of accused Neeraj and Pankaj as they are dreaded criminals and as he had been won over by the family members of accused Neeraj and Pankaj being closely related to them. During cross-examination, he admitted that the police had threatened to implicate him in the present case and that out of fear, he had given statement to the police and that there was no threat to him for making the statement which he had made in the Court on that day.

9. PW2, when recalled for examination after the apprehension of accused Rambeer Shokeen, deposed that he knew the accused Neeraj Sehrawat and Pankaj Sehrawat being State Vs. Pankaj Sehrawat and Ors. Page No.9 of 385 his first cousins. He denied having knowledge about their profession, business or employment. He deposed that Sushil Sehrawat is his real elder brother. He stated that in the year 2013, he had never mediated with regard to any property and accused Neeraj had never made any phone call to him with regard to either purchase or sale of a property. He never had any money dealing either with or on behalf of or on the instructions of the accused Neeraj or his

brother Pankaj. He was cross-examined by the Ld. Addl. PP for State as he was stated to be resiling from his earlier statement and similar suggestions were put to him as when he was examined in respect of the other accused persons and he denied the same. He was not cross-examined on behalf of the accused Rambeer Shokeen despite opportunity being given.

10. PW3 Shri Anil Kumar, UDC, Office of Electoral Registration Officer, Assembly Constituency-8, Mundka deposed that as per record, on 23.06.2015, a letter from Manishi Chandra, ACP, Special Cell, New Delhi Range was received in their office for verification of Voter ID card No.IPN2924296, issued in the name of Vipin, son of Rajinder r/o Village Nilothi, Nangloi, Delhi, date of issue 14.11.2013 and Voter ID card No.IPN2938362 issued in the name of Nitin, son of Tai Kumar r/o A-77, Block-A, Vikas Vihar, Nilothi Extension, Delhi, date of issue 14.11.2013. The said letter was addressed to the Electoral Registration Officer which is Ex.PW3/A. With the said letter, photostat copies of the Voter ID card were also sent to them for verification. After verification, it was found that Voter ID card No.IPN2924296 was issued in the name of Shri Navin Jha, son of State Vs. Pankaj Sehrawat and Ors. Page No.10 of 385 Shri Dinesh Jha, r/o 9, Village Nilothi, Nangloi and voter card No.IPN2938362 was issued in the name of Balwinder Kaur, wife of Shri Jaswinder Singh, r/o A-77, Block-A, Vikas Vihar, Nilothi Extension, New Delhi. Shri Vinod Kumar, the then AERO, AC- 08, Mundka had sent the reply. The same is Ex.PW3/B on which he identified the signatures of Shri Vinod Kumar, the then AERO, AC-08 as he had worked with him and seen him writing and signing during the course of his official duties. He had brought the record i.e. elector details of the said ID cards. The elector details of Navin Jha is Ex.PW3/C and elector details of Balwinder Kaur is Ex.PW3/D on which he identified the signatures of Shri Pritam Singh, AERO, AC-08, Mundka. Covering letter of Shri Pritam Singh is Ex.PW3/D. He identified his signatures on all the said memos as he was working with him and had seen him writing and signing. He also proved the certificate under Section 65B Indian Evidence Act, issued by Shri Pritam Singh, who was having lawful control over the use of computer as Ex.PW3/E. During cross-examination, he admitted that voter cards bearing No.IPN2038362 and IPN2924296 were not issued in his presence. He admitted that he had no personal knowledge about the said voter cards.

11. PW4 ASI Samay Singh deposed that on 08.07.2015, he was posted in PS Special Cell, New Range as Head Constable. On that day, he along with SI Sohan Lal took accused Gurpreet (since discharged) to CFSL, CBI, Lodhi Colony, CGO Complex, New Delhi for recording of sample voice. Expert of CFSL, CBI recorded the sample voice of accused Gurpreet. Expert of CFSL, State Vs. Pankaj Sehrawat and Ors. Page No.11 of 385 CBI handed over recording of sample voice of accused Gurpreet to SI Sohan Lal in a sealed envelope, sealed with the seal of 'SPL CELL NDR 37'. He proved the memo vide which sealed envelope containing sample voice of accused Gurpreet in micro SD card was taken into possession as Ex.PW4/A. He deposed that the seal was handed over to him after use and his statement was recorded by the IO of the case. During cross-examination, he stated that he remained seated outside the lab where the expert recorded the sample voice of accused Gurpreet. He did not remember as to who brought the SD card. He did not know as to what documents were taken by SI Sohan Lal to CFSL. The seal was deposited in General Store CFSL. He admitted that the facum of deposit of seal was not mentioned in his statement under Section 161 Cr.P.C. He admitted that SI Sohan Lal had not prepared any document regarding willingness of accused Gurpreet Singh in his presence. He was not given any document for taking to CFSL and he had only accompanied SI

Sohan Lal. Thus, nothing material had come out in his cross-examination. Even otherwise, the accused Gurpreet has already been discharged.

12. PW5 Shri Gurinder Pal Singh deposed that in the year 2008, he booked a flat bearing No.215, Tower-VIII, Alpine Residency, Ambala Road, Zirakpur, Tehsil Derabassi, District SAS Nagar, Mohali, Punjab. The possession of the flat was handed over to him in the year 2012. He had given the said flat to one Nitin Singh, resident of Village Niloithi, Nangloi, Delhi through a broker. He proved the rent agreement between him and State Vs. Pankaj Sehrawat and Ors. Page No.12 of 385 said Nitin Singh as Ex.PW5/A. He deposed that Nitin Singh was seen by him in police custody and he came to know about his original name as Amit Malik @ Bhura (since discharged). He deposed that Nitin Singh along with his colleague Vipin Singh (whose name he came to know as Sachin Khokar later on) had taken the said flat on rent at the rate of Rs.17000/- per month. The agreement was executed for the period 18.01.2015 to 17.12.2015 and the tenant stayed in his flat from 18.01.2015 to 23.03.2015. At the time of rent agreement, Amit Malik @ Bhura had given him a cheque bearing No.057141 for Rs.1 lakh as security which was signed by Amit Malik @ Bhura in the name of Nitin. He stated that Amit Malik @ Bhura had not paid the rent for three months i.e. Rs.51,000/- and electricity and water bill. The said persons vacated the said house without telling him. Amit Malik @ Bhura had provided him his mobile phone number as 9582354363. He deposed that in the month of April, 2015, he had presented the said cheque amounting to Rs.1 lakh before the bank, but it was dishonoured due to wrong account number. He handed over the rent agreement Ex.PW5/A and cheque Ex.PW5/B along with memo of the bank Ex.PW5/C to the police and the said documents were taken into possession vide seizure memo Ex.PW5/D. His statement was recorded by the IO of the case. PW5 was not cross-examined on behalf of the accused persons despite opportunity being given. It may be mentioned that PW3 had deposed about verification of Voter I Cards in the names of Vipin and Nitin which were found to be in names of other persons but nothing much turns on the same as Amit Malik @ Bhura has already been discharged in the present case and State Vs. Pankaj Sehrawat and Ors. Page No.13 of 385 Sachin Khokar was not an accused in this case.

13. Further, Ld. Counsel for accused Rambeer Shokeen had given a statement that he did not wish to recall PW1 to PW5 for recording their examination-in-chief further and he would adopt the examination-in-chief of PW1 to PW5 recorded earlier as well as the cross-examination conducted on behalf of other accused persons.

14. PW6 Sahil Shokeen identified the accused Neeraj and Pankaj as sons of his 'Bua' Mrs. Sudesh wife of Shri Prem Singh, r/o village Bawana. He deposed that he had an account No.605001011003493 in Vijaya Bank, Nangloi Branch and a debit card No.4213416050018905 was issued to him. On being called, he went to the office of Special Cell with his grandmother and father. At that time, he was studying in class 11 th in Daulat Ram Public Sr. Sec. School, Kamruddin Nagar. He deposed that police officials had asked him about the said debit card. He had given his debit card to his father Shri Jagdev Singh Shokeen. He denied having knowledge about any person by the name of Amit Malik @ Bhura. He had knowledge that the accused Pankaj and Neeraj were involved in criminal cases. He deposed that his statement was recorded by the police official of Special Cell. The photocopy of his account opening form is Mark PW6/A on which he identified his as well as

photograph of his father at points A and B respectively. He also identified his signatures on the account opening form and that of his father. He also identified the photocopy of his identity card of Shri Daulat Ram Public Sr. Sec. School, photocopy of his Aadhar Card, photocopy of their State Vs. Pankaj Sehrawat and Ors. Page No.14 of 385 Ration Card, photocopy of Election I. Card of his father as Mark PW6/B, Mark PW6/C, Mark PW6/D and Mark PW6/E respectively to be the same which were given at the time of opening of the account. During cross-examination, he stated that his father Shri Jagdev Singh Shokeen had expired in May, 2018. His father used to operate and handle his said account and he was operating the said account after the death of his father.

15. When he was recalled for examination in respect of the accused Rambeer Shokeen, PW6 deposed the same facts as stated earlier. He deposed that the debit card used to be in the possession of his father and he did not know as to who might have been using the same.

16. PW7 Smt. Shivani Sharma deposed that her husband was running a workshop of manufacturing lead in Kamruddin Nagar, Delhi. The owner of the said premises was Shri Jagdev Shokeen. She did not remember the exact month and year, however, it was about 4 - 5 years ago, when her husband had asked her to accompany him to a showroom of cars. However, she denied having knowledge about the place where she was taken. She deposed that a car was purchased by her husband. She had gone there with Shri Jagdev, owner of the premises where her husband was running the factory. After signing the documents, she came to her house. She denied having knowledge as to who was using the said vehicle. She did not remember if some other persons were accompanying Shri Jagdev Shokeen or not.

17. The Ld. Addl. PP sought permission to cross-examine her, State Vs. Pankaj Sehrawat and Ors. Page No.15 of 385 as she was not telling the truth which was allowed. During cross- examination by the Ld. Addl. PP, PW7 stated that police made inquiries from her and her statement was recorded by the police. She admitted that in September, 2014, her husband told her that his factory owner Shri Jagdev Shokeen wanted to purchase a car for his relative in her name on loan. She admitted that she had filed income tax return in the year 2013 -14. She admitted that she had signed the documents of the car and its loan documents. She admitted that she had gone to Moti Nagar to the showroom of the car in order to sign the loan documents and car delivery note. She admitted that Shri Jagdev Shokeen had also come to the said showroom. However, she did not know if some other persons were accompanying him. She denied the suggestion that she had seen Shri Jagdev Shokeen along with one of his relatives at the said showroom. She stated that she had never seen the said car. She did not know if the delivery of the car was taken by the relatives of Shri Jagdev Shokeen. She never used the said vehicle and she never sat in the said car.

18. PW7 further stated that she had given copies of her Aadhar Car, ITR for the year 2013 -14, photocopy of PAN card at the time of taking loan for the said vehicle. Photocopy of Aadhar card is Mark PW7/A bearing her signatures at point A; photocopy of ITR is Mark PW7/B; photocopy of her PAN card is Mark PW7/C; copy of delivery note of the said vehicle is Mark PW7/D; photocopy of cyber receipt is Mark PW7/E; copy of loan application form is Mark PW7/F; photocopy of IT of year 2012 - 13 is Mark PW7/G. She stated that she had never seen the said State Vs. Pankaj Sehrawat and Ors. Page No.16 of 385 vehicle with her husband. During cross-examination she admitted that Shri

Jagdev Shokeen had never asked her husband to purchase the vehicle for use of any of his relatives.

19. When PW7 was recalled for her examination in respect of the accused Rambeer Shokeen, she deposed that in the year 2005, she had purchased a car in her name in cash. However, she did not remember the model or the manufacturer of that car. She deposed that she along with her husband, Jagdev Shokeen and some other persons, whom she did not know, had gone to the showroom to purchase that car. She did not know whether she had ever been assessed to income tax and volunteered that all the said matters were looked after by her husband. She deposed that on the day they had gone to the showroom, they received the delivery of the car. Sometimes, Jagdev Shokeen used to drive that vehicle for his own use and at present the said car was probably in police custody. She did not know what had happened with that vehicle. She had not made any complaint to the police alleging that her vehicle had been stolen or had been missing. Copy of her PAN card is Mark PW7/H. She did not know whether any installment of the loan on the said vehicle was ever paid or not and volunteered her husband might be knowing about it. She did not know the registration number of the car. She was also cross-examined by the Ld. Addl. PP. However, she was not cross-examined on behalf of the accused Rambeer Shokeen despite opportunity being given.

20. PW8 Shri Ranjan Kumar deposed that he was running a factory and was in the business of manufacturing raw material of State Vs. Pankaj Sehrawat and Ors. Page No.17 of 385 battery. He had taken the premises for running the factory from Shri Jagdev Shokeen on rent in Kamruddin Nagar. He used to pay Rs.15,000/- per month to Shri Jagdev Shokeen for the rent. At present he was paying Rs.20,000/- per month for rent. About 4

- 5 years prior, he purchased a car make Etios Liva from Moti Nagar in the name of his wife. His wife furnished the documents there. The said vehicle was taken on loan. His wife executed the loan documents. He stated that he was using the said vehicle. He along with his wife had gone to the showroom. He purchased the said vehicle and he was paying the installments of the said car. Police made inquiries from him. He stated that his statement was never recorded by the police. However, his statement was recorded by one Judge Saheb and he proved his statement under Section 164 Cr.P.C. as Ex.PW8/A.

21. The Ld. Additional PP requested for permission to put questions to the witness as he was not telling the truth which was allowed and during cross-examination by the Ld. Additional PP he stated that police made inquiries from him with regard to the said car. He did not remember if his statement was recorded by the police. He admitted that he was paying Rs.12,000/- per month for the rent to Shri Jagdev Shokeen. He denied the suggestion that in September 2014, Shri Jagdev Shokeen had asked him to purchase a new car either in his name or in the name of his wife Shivani or that when he asked from Shri Jagdev Shokeen the purpose of purchasing the car, he told him that his nephew Pankaj needed a car in the name of other person. He stated that he did not know the accused Pankaj, present in the Court or if the State Vs. Pankaj Sehrawat and Ors. Page No.18 of 385 accused Pankaj was the nephew of Shri Jagdev Shokeen or that he used to come frequently there to meet Shri Jagdev Shokeen and others. He denied the suggestion that he promised Shri Jagdev Shokeen that he would purchase a new car in the name of his wife for him or that he had stated all the said facts to the police in his statement. He was confronted with the statement Ex.PW8/B

wherein it was so recorded.

22. PW8 further admitted that he and his wife had a joint account in HDFC Bank, Bhera Enclave, Paschim Vihar, New Delhi. He admitted that his wife filed income tax return of about Rs.2 lakhs. He denied the suggestion that he had given required documents of his wife i.e. income tax return, photos, Aadhar Card, PAN Card etc. for obtaining loan for purchasing a car for the accused Pankaj or that he along with his wife, accused Pankaj and one other person had visited the showroom in the name and style of 'Car Unlimited' situated at 69/3A, opposite Movements Mall, towards Patel Nagar, Moti Nagar, New Delhi, along with income tax return, Aadhar Card, PAN card, HDFC bank cheque book and volunteered that he along with his wife had gone there. He denied the suggestion that the accused Pankaj had already selected a car make Etios Liva or that he had stated all the said facts to the police in his statement. He was confronted with the statement Ex.PW8/B wherein it was so recorded. He admitted that his wife completed all the formalities. He admitted that it took 2 - 3 days in sanctioning of the loan. He denied the suggestion that after sanctioning of the loan, accused Pankaj and his friend had visited the showroom and got delivery of the car State Vs. Pankaj Sehrawat and Ors. Page No.19 of 385 bearing registration No.DL-8CAF- 9780 or that he had seen the said car with Pankaj after 3 - 4 days of the delivery or that during Delhi Assembly elections in February, 2015, the said car was used by accused Pankaj in the elections or that after purchasing the said car, he was paying only Rs.1,000/- as rent to Shri Jagdev Shokeen as he was also paying Rs.11,005/- per month as installment for purchasing the said vehicle for accused Pankaj or that he had stated all the said facts to the police in his statement. He was confronted with the statement Ex.PW8/B wherein it was so recorded.

23. PW8 further denied the suggestion that he had expressed his inability regarding the whereabouts of the car or that he had taken the said car on loan for accused Pankaj at the instance of his factory owner Shri Jagdev Shokeen or that he had stated all the said facts to the police in his statement. He was confronted with the statement Ex.PW8/B wherein it was so recorded. He stated that he did not know if the accused Pankaj and his brother Neeraj are desperate criminals. He denied the suggestion that he was deposing falsely under fear of the accused persons or that he had stated all the said facts in his statement. He admitted that his statement was recorded by the Ld. Magistrate on 24.04.2015 and that he had stated before the Ld. Magistrate that one vehicle was impounded from the possession of accused Neeraj Bawania and the said car was registered in the name of his wife Shivani Sharma. He admitted that he had stated before the Ld. Magistrate that he had taken the space for his business from Shri Jagdev Shokeen in Kamruddin Nagar, Nangloi. He denied the suggestion State Vs. Pankaj Sehrawat and Ors. Page No.20 of 385 that he had stated before the Ld. Magistrate that he had purchased a car make Etios Liva at the instance of Shri Jagdev Shokeen for use of his nephew and money was given by Shri Jagdev Shokeen. He was confronted with the statement Ex.PW8/A wherein it was so recorded. He admitted that he had stated before the Ld. Magistrate that his wife had only signed the documents and the car was purchased in or about September, 2014 from Moti Nagar and he had also accompanied his wife. He denied the suggestion that he had stated before the Ld. Magistrate that he along with his wife Shivani, Shri Jagdev Shokeen, accused Pankaj and one another boy had gone to purchase the vehicle and volunteered accused Pankaj had not gone with them. He denied the suggestion that he had not stated before the Ld. Magistrate that he had purchased the said car at the instance of Shri Jagdev Shokeen or that he

had stated the said facts before the Ld. Magistrate. He was confronted with the statement Ex.PW8/A wherein it was so recorded. He did not remember, if he had stated before the Ld. Magistrate that the installments of the car used to be adjusted from the rent of the shed which was taken by him from Shri Jagdev Shokeen. He did not remember, if he had stated before the Ld. Magistrate that the car was used by Shri Jagdev Shokeen. He was confronted with the statement Ex.PW8/A wherein it was so recorded.

24. PW8 further stated that he had visited only once in the showroom situated at Moti Nagar for purchasing the car. He had himself taken delivery of the car. He had not brought any proof showing that he took delivery of the said vehicle. He could not State Vs. Pankaj Sehrawat and Ors. Page No.21 of 385 produce the delivery note of the said vehicle. He admitted that he was called in Special Cell, Lodhi Colony, in the year 2015. However, he did not remember the date and month. He admitted that on the same day, his statement was recorded by the Ld. M.M. He did not remember if he was having his vehicle in August, 2015. He stated that his vehicle was also being used by his landlord Shri Jagdev Shokeen. He did not know if in August, 2015, one criminal Sunil Rathi along with other criminals namely Sunil Chaudhary and others were roaming in the said vehicle in Dehradun or that during the checking, they fired on police party. He did not know if the said persons were apprehended there with his car. He stated that he had never given the said vehicle to the said criminals. He stated that he had never met with the accused Neeraj and Pankaj, present in the Court. He never handed over his said vehicle to the said persons. The car was taken by Shri Jagdev Shokeen for a maximum period of 10 - 15 days. He did not know the whereabouts of his vehicle from April, 2015 to August, 2015. He did not know if the said vehicle was recovered in Dehradun. He admitted that the said vehicle was not with him from the time when he was called by the Special Cell. He never lodged any complaint regarding theft or missing of the said vehicle. About 15 days prior to calling him by the officials of Special Cell, he had given his vehicle to Shri Jagdev Shokeen. He could not comment why he had not registered any complaint regarding the said vehicle. He stated that he was not having any rent receipt of the shed after September, 2014. He could not produce any document like Toll Plaza slip, insurance claim, parking slip, showing that he was using the said car. He denied State Vs. Pankaj Sehrawat and Ors. Page No.22 of 385 the suggestion that he could not produce any document showing that he was using the said car as the same was used by accused Pankaj or that he had purchased the said car at the instance of Shri Jagdev Shokeen for his nephew Pankaj or that he was suppressing the true facts of the case in order to save the accused persons as he was under fear or that he had stated all the said facts before the police as well as before the Ld. Magistrate. He was not cross-examined on behalf of the accused persons except accused Pankaj Sehrawat despite opportunity being given and during cross-examination he admitted that till date neither he nor any of his family members received any threat. He could not produce any document as the same were in the car. He stated that the documents of the car used to remain in the car. He did not know any person in the name of Sunil Rathi.

25. PW8 was recalled for examination in respect of the accused Rambeer Shokeen and he stated that in the year 2015, he had purchased a car Etios Liva in the name of his wife. It was purchased on the request of his landlord who stated that he needed a vehicle for his own use. He had purchased that vehicle on loan. The loan was in the name of his wife. The vehicle, its color, make and model were decided by Jagdev Shokeen. He, his wife, Jagdev Shokeen and two more persons, whom he did not

know, had gone to take the delivery of the vehicle. The same day he handed over the vehicle to Jagdev Shokeen. The showroom was situated in Moti Nagar but he did not remember its name. He had never used that vehicle. He stated that he used to repay the loan in installments and the amount of installment was adjusted State Vs. Pankaj Sehrawat and Ors. Page No.23 of 385 in the rent which was to be paid to Jagdev Shokeen. He did not remember the month or year but one year in the summer season, Crime Branch officials came to his house and informed him that his vehicle had been seized from one goon (badmash). They did not tell him wherefrom that vehicle was seized. He did not know who else apart from Jagdev Shokeen was using that vehicle. The registration number of that vehicle was DL-8C AF 9780. He stated that police had recorded his statement and his statement was also recorded by a Magistrate. He stated that Jagdev Shokeen had stated that he needed the vehicle for the use of his family. He had not given him a particular name of the person for whom he required the vehicle. PW8 was cross-examined by the Ld. Additional PP for State and he denied the suggestions that were put to him though he stated that sometimes, he had seen the vehicle parked in his factory. He admitted that the accused Pankaj used to come to his factory and he knew him. He was not cross-examined on behalf of the accused Rambeer Shokeen despite opportunity being given.

26. PW9 Shri Kamaldeep Dabas @ Monu deposed that he was running a restaurant under the name and style of 'Badshah Restaurant' at Punjabi Bagh. In the year 2014 - 15, he was running a Bar under the name and style of 'BNB Shooters' at Rajouri Garden, New Delhi. He stated that no one demanded money from him. He was running his business peacefully. He had come to the Court where his statement was recorded by one Judge Saheb and he proved his statement recorded under Section 164 Cr.P.C. as Ex.PW9/A. State Vs. Pankaj Sehrawat and Ors. Page No.24 of 385

27. The Ld. Additional PP requested for permission to put questions to the witness as he was not telling the truth which was allowed and during cross-examination by the Ld. Additional PP, PW9 denied the suggestion that in January, 2015, gang members of accused Neeraj had come to his club 'BNB Shooters' and they told him that Neeraj had demanded half share of the income of the club or that he asked them to get his meeting fixed with Neeraj or that the members of Neeraj and Pankaj gang took him to the office of Rambeer Shokeen, MLA, situated at Kamruddin Nagar or that he met the accused Neeraj Bawania, whom he identified or that the accused Neeraj Bawania threatened him to give half share of income of the club to him or that he had requested again and again to accused Neeraj, on which the accused Neeraj asked him to give Rs.2.5 lakhs in order to get rid of the said matter or that he asked him to grant him 2 - 3 days for arranging the money. He denied the suggestion that Neeraj told him that after three days, Sandeep Sehrawat, son of his uncle (Tau) would come to his village and he should hand over the money to him or that Sandeep Sehrawat came to his village and he handed over Rs.2.5 lakhs to him for handing over the same to the accused Neeraj or that he could not make complaint due to their fear or that he had stated all the said facts to the police in his statement. He was confronted with the statement Ex.PW9/B wherein it was so recorded. He denied the suggestion that he had stated the said facts to the police or that he was suppressing the true facts of the case as he was under fear.

28. PW9 admitted that he had stated before the Ld. Magistrate State Vs. Pankaj Sehrawat and Ors. Page No.25 of 385 that he had given Rs.2.5 lakhs to the accused Neeraj Bawania in January, 2015 as

he was forcibly demanding half share of income of the club 'BNB Bar'. He admitted that he had stated before the Ld. Magistrate that on his request, accused Neeraj had agreed to take Rs.2.5 lakhs in order to leave the forcible share. He admitted that he had stated before the Ld. Magistrate that one person of accused Neeraj had taken the amount from him and after that he was not harassed by the accused Neeraj. He admitted that he had given the said statement before the Ld. Magistrate willingly and voluntarily. He was not cross-examined on behalf of the accused Pankaj Sehrawat despite opportunity being given. During cross- examination on behalf of the remaining accused persons, he stated that he had never received any threat from anyone. No person had approached him to depose before the Court. He admitted that he was never asked by anyone to depose before the Court. On that day, he was narrating the true facts and deposing voluntarily. He admitted that he was called by the Special Cell officials in their office and that after his visit to the Special Cell, his statement was recorded by the Ld. Magistrate.

29. PW9 was also recalled for examination in respect of the accused Rambeer Shokeen and he stated that he had never received any threats for demand of extortion money in the year 2015. He was cross-examined by the Ld. Additional PP for State and he denied the suggestions that were put to him though he admitted his statement recorded under Section 164 Cr.P.C. which is Ex.PW9/A and that the said statement was given by him voluntarily, without any threat, coercion or pressure. He was not State Vs. Pankaj Sehrawat and Ors. Page No.26 of 385 cross-examined on behalf of the accused Rambeer Shokeen despite opportunity being given.

30. PW10 Ajay Thakur deposed that for the past two months he had been working as GM Sale in Shree Durga Auto Mobile at 68/3 Najafgarh Road, Moti Nagar. Earlier Mr. Praveen Gara was working as GM Sale in the said firm. For one month, he had worked with him and he had seen him writing and signing during his ordinary course of duty and therefore, he could identify his signatures. He had brought the copy of registration No.DL10CT 0917 a Scorpio Mahindra SUV copy of which is Ex.PW10/1. He had also brought the copy of receipt of registration tax paid on the said vehicle which is Ex.PW10/2; copy of sale certificate i.e. Form No.21 is Ex.PW10/3; copy of invoice is Ex.PW10/4; copy of insurance cover note is Ex.PW10/5; copy of delivery receipt is Ex.PW10/6; copy of delivery order of finance from Indusind Bank is Ex.PW10/7; copy of payment credit advice is Ex.PW10/8; copy of receipt of payment made by the buyer is Ex.PW10/9; copy of PAN card and Aadhaar Card submitted by the buyer are Ex.PW10/10 and Ex.PW10/11 respectively.

31. PW10 deposed that the said vehicle was purchased by Shri Pankaj Sehrawat S/o Shri Prem Chand on 26.06.2014. The buyer had made a down payment in cash. It was paid in two installments of Rs.4,15,900/- and Rs.10,000/- There was a bank finance of Rs.6,92,930/-. Apart from that two more payments were made in cash of Rs.14,000/- and Rs.968/-. The copy of the ledger of their firm bearing his signatures is Ex.PW10/12. He had also brought the copy of registration No.DL4CNB8763 Scorpio State Vs. Pankaj Sehrawat and Ors. Page No.27 of 385 SUV the copy of which is Ex.PW10/13. He had also brought the copy of receipt of registration tax paid on the said vehicle which is Ex.PW10/14; copy of sale certificate i.e. Form No.21 bearing his signatures is Ex.PW10/15; copy of invoice is Ex.PW10/16; copy of insurance cover note is Ex.PW10/17; copy of delivery receipt is Ex.PW10/18; copy of demand draft from Vijaya Bank is Ex.PW10/19; copy of receipt of payment is Ex.PW10/20; copy of receipt of payment made by the buyer is Ex.PW10/21;

copy of PAN card and Election I Card submitted by the buyer are Ex.PW10/22 and Ex.PW10/23 respectively. He stated that the said vehicle was purchased by Shri Pankaj Sehrawat S/o Shri Prem Chand on 06.02.2013. The buyer had made a down payment in cash. It was paid in two installments of Rs.12,500/- and Rs.10,000/-. There was a bank finance of Rs.10,63,368/-. The copy of the ledger of their firm bearing his signatures is Ex.PW10/24. He had also seen the copies of the documents on record which bore the signatures of Shri Praveen Gara which are collectively Ex.PW10/25 (running into 31 pages). He was not cross-examined on behalf of the accused persons despite opportunity being given.

32. PW11 Shri Gulshan Batra deposed that he was running a sweet shop by the name of Hira Lal Halwai at Bawana main chowk. He had never received any threat or demand either in person or through telephone. The Ld. Additional PP requested for permission to put questions to the witness as he was not telling the truth which was allowed and during cross-examination by the Ld. Additional PP, he denied the suggestion that in February State Vs. Pankaj Sehrawat and Ors. Page No.28 of 385 2012, he had received a telephone call on his mobile No.9810883539 from one person who stated that his name was Bali or that he asked him to arrange for Rs.5 lakhs within three days and on his failure he threatened to blow his shop. He was confronted with the statement Mark PW11/A wherein it was so recorded. He was not cross-examined on behalf of the accused persons despite opportunity being given.

33. PW11 was recalled for examination in respect of the accused Rambeer Shokeen and he stated that he had never made any complaint to the police and had never received any threats from anyone. His statement was recorded by the police during the investigation of the case and he had stated the same what he had stated that day. He was cross-examined by the Ld. Additional PP for State as he was stated to be resiling from his earlier statement and during cross-examination by the Ld. Addl. PP, he denied the suggestions that were put to him. He was not cross- examined on behalf of the accused Rambeer Shokeen despite opportunity being given.

34. PW12 Shri Rajesh Bansal deposed that he was a property dealer by profession. He knew Rakesh S/o Dayanand since his childhood. In January, 2013 Rakesh along with one Pinta came to his office at C-1/106, Sector-11, Rohini. He did not remember the exact particulars of the plot but Rakesh informed him that there was a plot which belonged to one of his relatives and he wanted to sell it. The plot was measuring about 600 sq. yds and was situated in an area called Shiv Vihar. He went with them and saw that plot and thereafter, he informed some local property dealer State Vs. Pankaj Sehrawat and Ors. Page No.29 of 385 that the said plot was available for sale. The local property dealers found some buyers and a meeting between sellers and buyers was held in January or February, 2013 in his office. The buyers were brought to his office by one Sanjay Rana and Joginder Thakaran. The buyers agreed to buy that plot. He did not remember the total consideration amount but at that time around Rs.20 lakhs to Rs.25 lakhs in cash were given as earnest money and one cheque of Rs.5 lakhs was also given towards earnest money. The entire consideration amount was to be paid within four to five months. A few months later, Sanjay Rana and Joginder came to his office with buyers Chand Ram, Vijay Kumar and Rakesh. From the seller side, Rakesh, Pinta, father of Pinta namely Bhagwan Dass and father-in-law of Rakesh namely Satyanarayan came to his office. He did not remember the exact amount but some amount in cash and some in cheque was handed

over. One Rakesh @ Babla had also come to his office but he did not know him personally. PW12 stated that he had come to Patiala House Court where his statement was recorded by the Ld. Judge and he proved his statement under Section 164 Cr.P.C. which is Ex.PW12/1. He stated that he had also come to Patiala House Court for a second time where his statement was recorded by the Ld. Judge and he proved the statement under Section 164 Cr.P.C. as Ex.PW12/2.

35. The Ld. Additional PP requested for permission to put leading questions to the witness regarding details of the deal which was allowed and he stated that he did not remember and therefore could not admit whether Khasra number of that plot State Vs. Pankaj Sehrawat and Ors. Page No.30 of 385 was 38/24 but he admitted that the said plot was in Village Daulatpur, Shiv Vihar. He was never informed by the seller that there was a dispute regarding that plot with one Rakesh @ Babla r/o Khedi, Jasaur, District Jhajar, Haryana or that the said dispute had since ended. He did not remember whether the exact amount agreed for the sale of that plot was Rs.2.2 crores. The Ld. Additional PP requested for permission to put questions to the witness as he was not telling the truth which was allowed and during cross-examination by the Ld. Additional PP he denied the suggestion that the Khasra number of that plot was 38/24 or that the seller had told him that there was a dispute with one Rakesh @ Babla which had since been settled or that the sale consideration of that plot was agreed at Rs.2.2 crores or that when the sale was finally effected, Rs.1.7 crores were given in cash and three cheques, two cheques of Rs.7 lakhs and Rs.8 lakhs drawn on Karur Vysya Bank Ltd. from account number 4104135000003214 from the account of Vijay having number 000111 and 000112 and the third cheque of Rs.5 lakhs bearing number 003792 drawn on account number 20366407114 of Allahabad Bank in the name of Rakesh Kumar were also handed over. He denied the suggestion that out of the said amount, Rs.1.1 crores in cash and three cheques were given to Rakesh @ Babla and Sandeep @ Bablu or that remaining Rs.60 lakhs were given to Satyanarayan and Bhagwan Dass or that Rakesh Babla and Pankaj Bawania had come to his office to find out about the sale price of that plot and he volunteered that Rakesh Babla would come with three or four persons but he did not personally know any of them. He was confronted with the statement Mark State Vs. Pankaj Sehrawat and Ors. Page No.31 of 385 PW12/A wherein the said facts were recorded. He admitted that for execution of sale documents, a GPA was executed which was attested by Notary Med Singh. He stated that he could identify the persons who used to come to his office with regard to the deal of the plot and he was shown the accused Pankaj Sehrawat but he stated that the said man had never come to his office and not dealt with him and he denied the suggestion that he was deliberately not identifying the accused Pankaj Sehrawat. He was not cross-examined on behalf of the accused persons despite opportunity being given.

36. PW12 was recalled for examination in respect of the accused Rambeer Shokeen and he had deposed to the same effect as deposed earlier and he was also cross-examined by the Ld. Additional PP for State as he was stated to be resiling from his earlier statement and during cross-examination he had stated that police had recorded his statement though he denied the suggestions that were put to him. He admitted that out of the consideration amount, some amount was paid in cash and some through cheques. He also admitted that his statement was recorded by the Ld. Magistrate which is Ex.PW12/1 and that the said statement was given by him voluntarily and without any threat, coercion or pressure. He was not cross-examined on behalf of the accused Rambeer Shokeen despite opportunity being given.

37. PW13 Shri Rakesh Chikara deposed that he was working as ASI in Delhi Police. Shri Satyanarayan is his father- in-law. In January 2013, he had received a phone call from his State Vs. Pankaj Sehrawat and Ors. Page No.32 of 385 father-in-law who told him that he along with one Shri Bhagwan Dass owned a plot measuring 600 square yards in Shiv Vihar, Shahbad Daultpur. He further told him that some persons had put bricks in that plot in order to possess it. He requested him to go and have a look. He along with Pinta who was the son of Bhagwan Dass went to that plot. He found that bricks had been unloaded in that plot. They returned and two to three days later, he along with Pinta and Ravinder who was the grandson of his father-in-law again went to that plot. At that plot, they met one Rakesh from Jasaur Khedi, Haryana. He told him that the actual owner of that plot was his father who had purchased it around 20 to 25 years ago. He also showed his purported chain of documents. They compared the chain of documents which he had and which his father-in-law had. In the chain of documents of his father-in-law, the execution by one of the landowners was missing and the documents of Rakesh were found to be in order. Thereafter, a settlement was arrived at that the plot may be sold jointly and out of the sale consideration, amount for 400 square yards of land would be received by Rakesh and of 200 square yards would be received by his father-in-law and his partner.

38. PW13 stated that he approached Rajesh Bansal, a property dealer of his village to find buyers for that plot. In February 2013, he told him that he had found buyers for that plot. He, Rakesh of Jasaur Khedi and Pinta went to the office of Rajesh Bansal. At his office, they met Sanjay Rana and Joginder. The sale consideration of the plot was agreed at around Rs.2 crores though he did not remember the exact amount. 2-3 days later, an State Vs. Pankaj Sehrawat and Ors. Page No.33 of 385 agreement to sell was executed. Pursuant to that agreement, Rs.30 lakhs was paid as earnest money. Out of the said amount, Rs.25 lakhs was paid in cash and Rs.5 lakhs was given through cheque. He received Rs.5 lakhs in cash on behalf of his father-in- law. Pinta received the cheque on behalf of his father and the remaining amount of Rs.20 lakhs was received by Rakesh. Final payment was to be made within 4 months. Somewhere in June, 2013, they again went to the office of Rajesh Bansal. On that day, he, his father-in-law, Ravinder, Pinta, Rakesh alias Babla and Bhagwan Dass had gone to the office of Rajesh Bansal. From the buyer's side, Chand Ram and two more persons had come. The entire remaining amount was paid on that day. Some of it was in cash and some through cheque. Of the consideration amount, his father-in-law had received Rs.30 lakhs as his share and transfer documents were executed and notarized and were executed by Bhagwan Dass, Satyanarayan and Rakesh alias Babla. He did not know anything else about the case and he had nothing more to add. He stated that he had come to Patiala House Court where his statement was recorded by the Ld. Judge and he proved the statement under Section 164 Cr.P.C. as Ex.PW13/1.

39. The Ld. Additional PP requested for permission to put questions to the witness as he was not telling the truth which was allowed and during cross-examination by the Ld. Additional PP he stated that it was possible that the said plot was having Khasra number 38/24. He denied the suggestion that when he met Rakesh @ Babla at the said plot, he said to him that he was present at that plot on behalf of Neeraj Bawania and Rambeer State Vs. Pankaj Sehrawat and Ors. Page No.34 of 385 Shokeen who was his maternal uncle and volunteered he had only told him that Neeraj Bawania was the son of his Mausi. He denied the suggestion that when he saw the documents of Rakesh @ Babla they were found to be fake. He admitted that when he told his father-in-law that the name of Neeraj

Bawania was cropping up in the plot dispute, he said that in that case they should not get into any entangle or legal action and asked him to somehow settle the dispute out of court. He denied the suggestion that out of fear of Neeraj Bawania and Rambeer Shokeen, his father-in-law agreed for the settlement about which he had stated in his examination in chief or that Rakesh @ Babla had threatened to kill him if they did not agree to the settlement as per the terms given by him. He could not admit or deny whether the documents of sale were only executed by Satyanarayan and Bhagwan Dass or that he had stated to the police in his statement under Section 161 Cr.P.C. and in his statement under Section 164 Cr.P.C. that the documents for sale of that plot were executed by Satyanarayan and Bhagwan Dass. He was confronted with the statement under Section 161 Cr.P.C. Mark PW13/A and the statement under Section 164 Cr.P.C. Ex.PW13/1 wherein the said fact was recorded. He was not cross-examined on behalf of the accused persons despite opportunity being given.

40. PW13 was recalled for examination in respect of the accused Rambeer Shokeen and he deposed the same facts as stated by him earlier. He was also cross-examined by the Ld. Additional PP for State as he was stated to be resiling from his earlier statement and he denied the suggestions that were put to State Vs. Pankaj Sehrawat and Ors. Page No.35 of 385 him. He admitted that when they had met Rakesh @ Babla for the first time, he had stated that Neeraj Bawania was the son of his Mausi. He admitted that on being asked by his father-in-law, he got the settlement done between him and Rakesh @ Babla. He admitted that the property was sold for an amount of Rs.2.20 crores. He admitted that he had stated that the activities of Neeraj Bawana and his gang were known to him as he was in police and knowing that they were desperate criminals, he had apprehension that they could harm the family of his father-in-law or his partner. He admitted that the statement Ex.PW13/1 was given by him voluntarily and without any threat, coercion and pressure. He was not cross-examined on behalf of the accused Rambeer Shokeen despite opportunity being given.

41. PW14 ACP Govind Sharma deposed that on 01.12.2016, he was posted as ACP in Special Cell, New Delhi Range. On that day, accused Rambeer Shokeen was already in custody of Special Cell in FIR No.65/2016. As he was wanted in this case, he interrogated the accused and arrested him in this case. He proved the arrest memo dated 01.12.2016 as Ex.PW14/1. He recorded the statements of formal witnesses and thereafter, filed the supplementary charge-sheet in this case against Rambeer Shokeen. He was not cross-examined on behalf of the accused persons except Rambeer Shokeen despite opportunity being given. During cross-examination on behalf of the accused Rambeer Shokeen, PW14 stated that on the day of arrest of the accused, he was the IO of the case. He had remained the IO for around one month. The IO before him was Shri Manishi State Vs. Pankaj Sehrawat and Ors. Page No.36 of 385 Chandra. He did not exactly remember but he had probably handed over the investigation to Insp. Hriday Bhushan. He had recorded the reasons for the arrest of the accused in the case diary. He had not got any instructions from any senior officer for arrest in this case. As such, nothing material had come out in the cross-examination of PW14 and he had mainly stated about the arrest of the accused Rambeer Shokeen in the present case on 1.12.2016.

42. PW15 Shri Rajnish Khanna deposed that in the year 2015, he was posted at HDFC Bank, A Block Janak Puri and was working as Assistant Vice President. He had seen the notice dated 14.05.2015 which was received in their bank and is Ex.PW15/1. They had been asked to give CCTV footage of

01.01.2015 of two ATMs of their bank in Kolkata having ID number S1ANCC71 and S1AWSIo4. He accordingly directed the concerned person at Kolkata office to provide the footage. On receipt of the footage in CDs, he gave the sealed envelope containing the CDs to Special Cell vide letter dated 29.05.2015 which he proved as Ex.PW15/2. Along with the CDs, he had also handed over a certificate under Section 65B Evidence Act which he proved as Ex.PW15/3. He had also handed over the printouts of screenshots of CCTV footage to the police which he proved as Ex.PW15/4 to Ex.PW15/12 and the envelope in which he had handed over the CDs received from Kolkata to Delhi Police as Ex.PW15/13. He stated that he had asked for the CCTV footage for the period as had been asked in the letter Ex.PW15/1. During cross- examination on behalf of the accused Rambeer Shokeen, PW15 State Vs. Pankaj Sehrawat and Ors. Page No.37 of 385 did not remember whether he had received the CDs in a sealed envelope or whether it was in open condition. He had also received the photograph/ screenshots of CCTV footage. He had never been to Kolkata. He had never played the CDs which had been received from Kolkata. He stated that he had met the police officials only once. During cross-examination on behalf of the other accused persons except accused Pankaj Sehrawat, he stated that the footage captured in CCTV of the ATMs located in Kolkata was stored in servers in Kolkata. He did not know under whose control the said servers were but they must be under the control of the branch looking after them; they were not under his control.

43. PW16 ASI Bichhu Singh deposed that on 27.11.2016, he was posted in Special Cell, NFC, New Delhi. On that day, he had received an information that SI Vikram Dahiya had apprehended Rambeer Shokeen with one illegal weapon and he was asked to come to Yuva Shakti School, Rama Vihar wherefrom, as per the information, the accused had been apprehended. On reaching there, SI Vikram produced accused Rambeer Shokeen before him. He also produced one sealed pulanda which according to him contained a 9 mm pistol which was recovered from the accused Rambeer Shokeen. He also gave him carbon copy of the tehrir which he had prepared, seizure memo of the pistol and two cartridges and sketch of the pistol. He was informed that the pulanda also had two cartridges. He interrogated the accused Rambeer Shokeen, recorded his statement and thereafter arrested him in this case, again said, he had arrested him in FIR State Vs. Pankaj Sehrawat and Ors. Page No.38 of 385 No.65/2016. Thereafter, he brought the accused to the Special Cell Office. On 24.01.2017, he had filed charge sheet of FIR No.65/2016 and he proved the certified copy of the same as Ex.PW16/1. On 07.12.2016, he had handed over the sketch of the pistol, disclosure statement of accused Rambeer Shokeen and seizure memo to ACP Govind Sharma of Special Cell. He identified the accused Rambeer Shokeen. He was not cross- examined on behalf of the accused persons except accused Rambeer Shokeen. His cross-examination was deferred but thereafter vide order dated 05.05.2022 it was directed that he need not be recalled for further cross-examination.

44. PW17 Subhash Chandra Dhingra @ Pinta deposed that around 10-12 years prior, he was running a dairy. His father had a plot measuring approximately 600 square yards at Shahbad Daulatpur. His father and his partner owned 300 square yards each. They had given that plot to a Carpenter who used to keep his material in that plot. One day, his father told him that he and his partner had sold that plot. He was never involved in the deal in which that plot was sold. He had never received any threats regarding that plot. He did not know whether anybody had tried to take forcible possession of that plot. He did not know about the sale price of that plot or how much money in total was received by his father but he knew about a cheque of Rs.5 lakhs which was received by his father. He

did not know if anybody else had also received money from the sale proceeds of that plot.

45. The Ld. Addl. PP for State requested for permission to cross-examine the witness as he was stated to be resiling from his State Vs. Pankaj Sehrawat and Ors. Page No.39 of 385 earlier statement which was allowed and during cross- examination by the Ld. Addl. PP, PW17 stated that police had made inquiries from him and recorded his statement. He denied the suggestion that he had told the police that in January 2013, he had received a phone call from Rakesh Babla r/o Jasoor Khedi, Jhajjar who claimed that their plot at Shahbad Daulatpur in fact belonged to him or that if they visited that plot, there would be unpleasant consequences or that he had stated to the police that Pankaj had also threatened him during the same phone call claiming that he was the brother of Neeraj Bawania or that he threatened him that in case they contested their claim, he would kill him (plot ke mamle me aaya toh jaan se maar dunga) or that he had stated to the police that Rakesh Babla had also told him that they had unloaded bricks on that plot and that from then on, the said plot belonged to them or that he had stated to the police that he had told Satyanarayan, his father's partner and his father about the threatening phone calls he had received from Rakesh Babla and Pankaj. He denied the suggestion that he had gone to that plot with Satyanarayan and Bhagwan Dass where they met Rakesh Babla who showed them some documents claiming ownership of that plot or that he had threatened them by using the name of Neeraj Bawania and Rambeer Shokeen, or that he claimed that he was a cousin of Neeraj Bawania. He denied the suggestion that out of fear, they agreed to a compromise whereby it was agreed that the plot would be sold of which 60% of the proceeds would go to Neeraj Bawania gang and 40% would be given to his father and his partner.

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46. PW17 further denied the suggestion that he had stated to the police that the said plot was sold for a consideration of Rs.2.20 crores or that he had stated to the police that from the seller side he on behalf of his father, Satyanarayan and Rakesh Chikara for Satyanarayan and Rakesh Babla had approached the property dealer for the sale of that plot. He denied the suggestion that he had stated to the police that after the GPA of that plot, he and his father returned home or that the sale price for 100 square yards which was given to his father as his share was kept by Satyanarayan or that after a few days, Rakesh Chikara came to their house and gave Rs.27 lakhs to his father or that in total, they had received Rs.32 lakhs from the sale of that plot. He was confronted with the statement Ex.PW17/1 wherein all the said facts were recorded. He denied the suggestion that he had not disclosed the true facts because of the fear of the accused persons. During cross-examination, he stated that he did not have any acquaintance with Neeraj or Pankaj Sehrawat. He admitted that none of the said persons had ever threatened him. He stated that he never had any conversation with any person named Rakesh Babla. His father had never told him that he had sold the said plot under somebody's pressure. He stated that his father was happy with the deal. He stated that his father had since expired. He was residing separately from his father. He stated that on that day, he had deposed the true facts. He had stated the same facts to the police which he had stated in the Court. He never had any interaction with Rambeer Shokeen. In connection to the present case, he had met the police only twice when he was summoned to their Lodhi Road office. His father and his partner had never State Vs. Pankaj Sehrawat and Ors. Page No.41 of 385 complained to him about any force being used in the deal of the plot.

47. PW18 Sachin Goel deposed that he was in the business of money transfer under his own name. He operated on a platform namely M-rupee which is backed by TATA. The process is that a customer could walk into his shop, give him his mobile number and account number and give the amount to be transferred in cash. On receipt of cash and the said information, after deducting his commission, he remitted the amount into the given account. In the month of March 2015, one person named Ashish approached him in his shop. He wanted to transfer Rs.50,500/- in one account. The account in which the money was to be transferred was in the name of Jasbir Singh and was held with HDFC Bank. He gave him Rs.51,000/- and he transferred Rs.50,550/- in the account of Jasbir as had been instructed by Ashish. He had transferred the said money from his personal account of OBC number 03285011000455, Branch : GT Karnal Road, Azadpur and not through M-rupee platform. He had received a notice to join investigation of the case and he had gone to police station at Lodhi Road. He was shown a register which he stated that he used to maintain in his usual course of business wherein the entries of transactions done by him were made. The register is Ex.PW18/1. The entry of the transaction conducted at the request of Ashish whereby an amount of Rs.50,550/- was transferred to the HDFC account of Jasbir is at point A on page 44. The mobile number reflected against the entry was of the client Ashish. On being reminded that the full State Vs. Pankaj Sehrawat and Ors. Page No.42 of 385 name of the said person was Ashish Nain, he recalled and stated that it was correct. He proved the seizure memo through which the register Ex.PW18/1 was seized as Ex.PW18/2.

48. PW19 Shri Hans Raj Goel deposed that he was having a hardware shop in Village Bawana and in the year 2012 also he was in the same business. He stated that in the year 2012 he had not received any threat of any kind from anyone. He denied having made the statement under Section 161 Cr.P.C. He was cross-examined by the Ld. Addl. PP for State as he was stated to be resiling from his earlier statement and he admitted that on 02.04.2015, he was called to the office of Special Cell and his statement was recorded. He denied the suggestion that he had stated in his statement under Section 161 Cr.P.C. that in January, 2012, on a Tuesday, at around 6:30 p.m. he had received a call on his mobile No.9212470517 or that the caller on the other side stated that he was Bali and he had asked him "bhai se jakar mil liyo". He denied the suggestion that he had stated that before he could say anything Bali repeated "Neeraj Bhai se jakar Mil Liyo"

and then disconnected the phone or that he had stated that on reaching home he informed about the said incident to his father who told him that next morning they would go to the house of Bir Singh Sehrawat who was the elder brother of father of Neeraj namely, Prem Singh Sehrawat or that on the next day, he and his father went to the house of Bir Singh who sent his son Sushil to call Neeraj from his house or that after some time Sushil returned and said that Neeraj was not at home or that thereafter, Bir Singh told them to return home and said that he would talk to Neeraj State Vs. Pankaj Sehrawat and Ors. Page No.43 of 385 and if there was anything to be done he would inform and that thereafter, they returned home. He was confronted with the statement Mark PW19/A. He was not cross-examined on behalf of the accused persons despite opportunity being given.

49. PW20 ASI Chanderhas deposed that on 23.02.2015, he was posted at PS Special Cell as Duty Officer and his duty hours were from 4 p.m. to 12 midnight. On that day at about 5:15 p.m., ACP Manishi Chandra handed over to him the rukka for registration of an FIR on the basis of which he got the FIR recorded through the computer operator. After the registration of FIR, DD No.7A was recorded in the Kayami register. After the registration of the FIR, the investigation was assigned to ACP Manishi Chandra and copy of FIR and rukka in original were handed over to him. The FIR is Ex.PW20/1 and he also proved his endorsements on the rukka which is Ex.PW20/2. Copy of the Kayami register entry No.7 dated 23.02.2015 reflecting registration of FIR is Ex.PW20/3 (OSR). He was not cross- examined on behalf of the accused persons except accused Pankaj Sehrawat despite opportunity being given. During cross- examination by the Ld. Counsel for the accused Pankaj Sehrawat, PW20 stated that the copy of the FIR was sent to the concerned Magistrate/ Judge on the same evening. Entry No.10 reflected that the copy of FIR was sent to senior officers and the senior officers included the concerned Judge. Entry No.10 is Ex.PW20/4. He denied the suggestion that entry Ex.PW20/4 was only to the extent that the copy of FIR was sent to the senior officers of police as it did not specially mention that the copy of State Vs. Pankaj Sehrawat and Ors. Page No.44 of 385 the FIR was sent to the concerned Magistrate. Thus, PW20 had mainly deposed about getting the FIR recorded through a computer operator.

50. PW21 Shri Jaspal Singh deposed that in the year 2015, he was working as a Show Room Manager in Satman Automobiles, Okhla. During that period, he had received a notice from the IO of the case to produce certain documents related to a vehicle which was sold by their company. He did not remember the number of that vehicle. He had seen the notice under Section 91 Cr.P.C. dated 14.05.2015 which had been served upon him by the IO and vide the said notice, he was asked to provide the documents/ details of vehicle bearing No.DL 1 CP 1772. The notice is Mark PW21/A. The undated reply to the notice Mark PW21/A bearing his signatures and seal of his company is Ex.PW21/1. Vide Ex.PW21/1, he had supplied the details as mentioned in the letter. The documents annexed with the said letter are Mark PW21/B (colly) (from pages 657 to 679). He stated that the said vehicle was purchased by one Pankaj Sehrawat and as per invoice at page No.675, the vehicle was purchased for an amount of Rs.7,68,975/- and upon the same accessories worth Rs.12,500/- were also installed. As per their record, out of this amount, an amount of Rs.7,58,975/- was financed by Vijaya Bank, Nangloi Branch. He was not cross- examined on behalf of the accused persons despite opportunity being given.

51. PW22 Shri Rajbir deposed that he had friendship with one Karambir Sehrawat but later on around 2010, he had State Vs. Pankaj Sehrawat and Ors. Page No.45 of 385 disassociated himself from him. Karambir had many plots in the village. There had been no incident of any criminal or threatening nature against him or at the time when he was with Karambir. He had never lodged any complaint with PS Bawana regarding any incident of firing upon him. He was cross-examined by the Ld. Addl.

PP for State as he was stated to be resiling from his earlier statement and he admitted that police had met him regarding the investigation of the case though he denied that his statement was recorded by the police. He denied the suggestion that he had stated to the police that in the year 2010, in the month of February, he was present with one Karambir at his plot when Pankaj Sehrawat along with his 40-50 associates came to the plot and fired upon them or that regarding the said incident he had lodged an FIR No.29/10 PS Bawana or that he had so stated to the police. He denied the suggestion that he had stated to the police that at that time Neeraj was in jail and his brother Pankaj was looking after his affairs and running his gang. He was confronted with the statement Mark PW22/A wherein it was so recorded. He was not cross-examined on behalf of the accused persons despite opportunity being given.

52. PW23 Shri Raj Jain deposed that in the year 2015, he was in the business of Real Estate. He also used to have a factory making iron metal sheets. The factory was situated in Bawana Industrial Area. In the year 2015, he was the President of Bawana Chamber of Industries. He is still the President of Bawana Chamber of Industries. At that time and even today, there were around 5000 big and small factories in Bawana Industrial area.

State Vs. Pankaj Sehrawat and Ors. Page No.46 of 385 He stated that he had never been approached by anyone for any protection money to be paid personally or on behalf of the Bawana Chamber of Industries. He had never paid any protection money to anyone. He did not remember the year but around 5-7 years ago, prior to demonetization he was called to Special Cell PS at Lodhi Estate. The Ld. Addl. PP for State requested for permission to cross-examine the witness as he was stated to be resiling from his earlier statement which was allowed and during cross-examination he stated that the police had not recorded his statement. He denied the suggestion that the police had recorded his statement. He admitted that he had stated that there were around 17000 factories in Bawana Industrial Area. He denied the suggestion that he had stated to the police that in October 2011, 2-3 boys who looked like wrestlers had come to his office or that they called him aside and stated that they were the people of Neeraj Bawania and that he should collect Rs.5000/- from each factory and pay the said money to them as protection money or that he told the said boys that the factory owners would not pay money like this and upon hearing this, those boys gave him two days' time to pay Rs.10,00,000/- or that on his repeated requests they asked him to pay Rs.5 lakhs by the evening. He denied the suggestion that he had stated to the police that the same evening he had paid Rs.5 lakhs to those boys. He was confronted with the statement Mark PW23/A wherein the said facts were recorded. He was not cross-examined on behalf of the accused persons despite opportunity being given.

53. PW24 Shri Deepanshu Aggarwal deposed that in the State Vs. Pankaj Sehrawat and Ors. Page No.47 of 385 year 2014, he was working as Sales Manager Carz Unlimited, a company dealing in used cars and a direct selling agent of HDFC Bank.

In the year 2015, he had received a notice from Special Cell regarding the sale of a Toyota Etios Liva Vehicle. He reached the Special Cell office with the relevant documents of the sale of the vehicle and handed over those documents to the concerned officers which are Mark PW7/D i.e. the delivery note of vehicle bearing engine No.IND1382934, Toyota Etios Liva which he proved as Ex.PW24/1. He had also seen the document Mark PW7/E, which is the challan for tax payment of the said vehicle which bore his signatures and is Ex.PW24/2; Mark PW7/G, which is Income Tax Return of the purchaser which was provided to them by the purchaser at the time of purchase of the vehicle and is Ex.PW24/3; Mark PW7/F, which is the copy of the loan application form of the said vehicle and is Ex.PW24/4; Mark PW7/H, which is the copy of the PAN card of the purchaser which was supplied by the purchaser at the time of purchase of the vehicle and is Ex.PW24/5 and the copy of retail invoice of the said vehicle which is Ex.PW24/6. He stated that first day, he was approached by one Pankaj Sehrawat who was accompanied by one more person, whose name he did not know. They were interested in buying a used car but later on they decided to buy a new car. Thereafter, he arranged a call from Grace Toyota to Pankaj Sehrawat in order to start the process of buying the car. On the same day he handed over the loan application form and informed him about the documents which would be required. Same day, he returned with the loan application form and the required documents. The loan application was signed by one Ms. State Vs. Pankaj Sehrawat and Ors. Page No.48 of 385 Shivani and the documents also pertained to her. After 2-3 days, he informed him that Ms. Shivani's application had been approved and he should come with the relevant documents. Thereafter, 2-3 days later, Ms. Shivani along with her husband and probably with Pankaj Sehrawat came to their office and signed the loan disbursement agreement. Thereafter, they disbursed the loan directly to the agency i.e. Grace Toyota. By the evening, the vehicle reached their place and the vehicle was delivered. He did not remember whether he was present at the time of delivery or not. He stated that he could identify the accused Pankaj Sehrawat if shown to him but his identity was not disputed. He was not cross-examined on behalf of the accused persons except accused Pankaj Sehrawat despite opportunity being given.

54. PW25 Inspector Shiv Raj deposed that on 02.06.2015, one Bhagwan Dass Dhingra came to the office of Special Cell and gave a complaint. The said complaint was marked to him. After receiving the complaint, he had made inquiry from him and he told that he owned a plot measuring 600 sq. yards in Shiv Vihar, Shahbad, Daulatpur and under threats, he had to sell that plot and from the sale amount he had to pay 60% to the representative of gangster Neeraj and he along with the co-owner, had to accept that they would only take 40% of the sale amount. He prepared a rukka and thereafter got the FIR No.42/15 dated 05.06.2015 registered through the duty officer. After registration of the FIR, investigation was marked to him and the copy the said FIR is Ex.PW25/A. He was not cross-examined on behalf of the accused persons despite opportunity being given.

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55. PW26 Shri Sumit Sehrawat deposed that in the year 2012, he was doing an internship with the Chartered Accountant namely, Shri Suresh Malik. He knew Pankaj Sehrawat. He was from his village and a neighbour. He had prepared and filed his Income Tax Return for the assessment years 2011-12, 2012-13 and 2013-14. Pankaj Sehrawat had told him that he was a property dealer and he wanted to file his Income Tax Returns. He did not know and therefore he could not admit or deny whether at the relevant time Pankaj Sehrawat was in fact working as a property dealer or not. He had seen the bank statements of Pankaj Sehrawat in order to verify the claim of income made by him. The entire income shown by Pankaj Sehrawat was not reflected in his bank statement and he stated that some of it was received by him as commission in cash. On a Court question being put to him if he could produce the tax returns which he had filed, he stated that he had brought the copies of acknowledgement of income tax returns for the assessment years 2011-12, 2012-13 and 2013-14. The same are Mark PW26/A, PW26/B and PW26/C. He could not tell how much of the income reflected in the said returns could be verified in banking transactions and how much was stated to be income in cash as commission. Before filing the income tax returns, Pankaj Sehrawat had informed him that he wanted to take a vehicle on loan and for that purpose the bank required income tax returns and thus he wanted to file income tax returns. Before filing the said returns or at the time when he approached him, Pankaj Sehrawat had stated that he had a source of income as commission from property dealing and he had stated nothing else.

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56. The Ld. Addl. PP for State requested for permission to cross-examine the witness as he was stated to be resiling from his earlier statement which was allowed and during cross- examination PW26 admitted that he was called to PS Special Cell at Lodhi Estate and was interrogated regarding the investigation of the case. He denied the suggestion that he had stated to the police that in the year 2012 accused asked him to prepare forged income tax returns for the year 2012-13 as he wanted to take a loan or that he refused to accept the said request or that thereafter he asked him to prepare the returns by showing him working as a property dealer and volunteered it was for the first time only that he told him that he was working as a property dealer. He was confronted with the statement Mark PW26/D wherein it was so recorded. He denied that he had stated to the police that he knew that accused Pankaj was not a property dealer and volunteered he did not know whether he was into the business of property dealing or not therefore, he could not have stated that he was in the business of property dealing. He was confronted with the statement Mark PW26/D wherein it was so recorded. He was not cross-examined on behalf of the accused persons except accused Pankaj Sehrawat despite opportunity being given and during cross-examination on behalf of the accused Pankaj Sehrawat, he stated that the Income Tax Department did not send any notice or raise any objection on the returns of Pankaj Sehrawat as had been filed by him. During his questioning at the office of Special Cell, Pankaj Sehrawat was never brought before him to ask him about his

source of income.

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57. PW27 Insp. Yogesh deposed that on 10.05.2015, he was posted at PS Special Cell. One Kamaldeep Dabas came to the PS and gave him a statement that he was running a club by the name of BNB Shooters Bar at Rajouri Garden. He said that in January, 2015 some boys claiming to be members of Neeraj Bawana Gang approached him and asked him to give 50% share of that bar to Neeraj Bawana. He asked them for a meeting with Neeraj Bawana. He was then taken to the office of accused Rambeer Shokeen where he met the accused Neeraj Bawana who raised the same demand but on his repeated requests, he asked for and accepted Rs.2.5 lakhs. Upon his statement, he made his endorsements and got FIR No.35/2015 of PS Special Cell registered. The investigation of that case was marked to him and after completion of investigation he had filed the charge sheet. He proved the copy of FIR No.35/15 as Ex.PW27/1. During cross-examination he denied the suggestion that a false FIR was registered against accused Neeraj or that after the registration of the present FIR, FIR No.35/15 was registered in order to create false evidence against the accused Rambeer Shokeen.

58. PW28 Shri Rahul Bhattacharyya, Manager Operations/ concerned Manager, Base Group of Hotels Private Limited 'Senses', Kolkata deposed that he had been asked by his management to come and depose in place of Sambudha Banerjee who had left the services of the Hotel. However, he could identify his handwriting and signature as he had seen him signing and writing during the ordinary course of his duty. As per the record, one Vikas Kumar had checked in their hotel on State Vs. Pankaj Sehrawat and Ors. Page No.52 of 385 14.03.2015. He stayed at their hotel from 14.03.0215 till 18.03.2015. During his stay, the total bill raised for the said customer was Rs.15,938/-. As his identity proof, he had submitted copy of his driving licence. He had seen the notice under Section 91 Cr.P.C dated 18.04.2015 addressed to Sambudha Banerjee, the earlier Manager of their hotel. The said notice had the signature of Mr. Banerjee as acknowledgement of receipt. The notice is Ex.PW 28/1. In response to the notice Ex.PW28/1 Mr. Banerjee had sent the reply which is Ex.PW 28/2. The guest registration form pertaining to the said customer namely, Vikas Kumar duly attested by Mr. Sambudha Banerjee is Ex.PW28/3. The attested copy of the bill raised upon the customer having the signature of Mr. Sambudha Banerjee is Ex.PW28/4. The copy of the driving licence of customer Vikas Kumar as had been submitted to their hotel duly attested and signed by Mr. Sambudha Banerjee is Ex.PW28/5. The certificate under Section 65B of the Indian Evidence Act issued by Mr. Sambudha Banerjee is Ex.PW28/6. He was not cross-examined on behalf of the accused Pankaj Sehrawat and accused Rambeer Shokeen despite opportunity being given. During cross- examination on behalf of the other accused persons, he stated that he had no personal knowledge about the facts of the case and he could not tell the date on which the said documents were supplied to the police. He denied the suggestion that the registration form bearing serial No.205 Ex.PW28/3 was a

manipulated document or that document Ex.PW28/5 was never submitted by the guest.

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59. PW29 Shri Rajender Prashad deposed that he was the Reception Incharge at Hotel Amar, Chandigarh. On 14.01.2015, one Neeraj Kumar and Vipin had checked into their hotel. They had stayed for only one day and had checked out on 15.01.2015. As a proof of identity, copy of driving licence of Neeraj Kumar was submitted. The hotel had received a notice under Section 91 Cr.P.C for supply of documents. He had seen the said notice and as an acknowledgement of receipt, he had signed the same and the notice is Ex.PW29/1. He had replied to the said notice vide reply dated 15.05.2015 which he proved as Ex.PW29/2. Along with the reply Ex.PW29/2, he had supplied the photocopy of the guest register which is Ex.PW29/3 (OSR). The entry pertaining to the said guests was at serial No.1085. Copy of the driving licence as had been handed over by him to the police is Ex.PW29/4. The computerized copy of bill which was raised for the said customers is Mark PW29/A. He was not cross-examined on behalf of the accused persons despite opportunity being given.

60. PW30 ASI Mahesh deposed that in the year 2015 he was posted as Ct. in Special Cell. On 10.07.2015, IO ACP Manishi Chandra instructed him to collect the exhibits of the case from the malkhana and deposit them in FSL. He had collected two diaries and 36 loose sheets from the malkhana and deposited them at FSL Rohini. The acknowledgement of the deposition of the exhibits in the FSL is Ex.PW30/1. He stated that during the period the exhibits remained in his possession they were not tampered with. He was not cross-examined on behalf of the State Vs. Pankaj Sehrawat and Ors. Page No.54 of 385 accused persons despite opportunity being given.

61. PW31 Shri Jasbir Singh @ Goldy deposed that from the year 2007 till 2020, he was into the business of trading in juttis. He did not know anybody named Rambeer Shokeen. He did not know who was elected the MLA from Mundka constituency in the year 2014. He had never attended any political rally. He did not know Neeraj Sehrawat @ Neeraj Bawania. However, around 6 or 7 years prior he was in Kolkata in regard to his business where he met one Shakti who had purchased some pairs of juttis from him. Later, he proposed to him that they could share a room and divide the rent amongst themselves. He agreed to the same and they stayed in a hotel near Chorangi Market. There were three people who stayed in that room i.e. him, Shakti and his cousin, whom he later came to know was Neeraj Sehrawat although he was staying in the hotel by using a different name. Prior to meeting Shakti in Kolkata, he did not know either Shakti or Neeraj. They stayed in that hotel for 15 days or more. The room was booked in his name. Once Shakti told him that his money was finished and said that if he could get some money transferred into his account, he agreed for the same and then gave him his debit card of HDFC bank to use it for withdrawal of

money. 2-3 days later after withdrawing his money, he returned his debit card to him. He had also taken an apartment on rent in Kolkata. However, the tenancy did not materialize and neither him nor anybody on his behalf ever stayed in that apartment. He had decided to take an apartment on rent as he wanted to shift his family to Kolkata. He had paid around Rs.15,000/- to Rs.20,000/-

State Vs. Pankaj Sehrawat and Ors. Page No.55 of 385 as advance for the said apartment. He stated that during the investigation of the case, he was produced before a Judge but he did not remember whether he had recorded his statement or not. He identified his signatures on the statement recorded under Section 164 Cr.P.C as Ex.PW31/1 but after going through the same, he stated that he had not given any such statement to the Ld. Magistrate. He stated that he had stated whatever he had been instructed by the police to state before the Ld. Magistrate though he admitted that he had given the statement to the Ld. Magistrate.

62. The Ld. Addl. PP for State requested for permission to cross-examine the witness as he was stated to be resiling from his earlier statement which was allowed and during cross examination PW31 stated that he did not know anybody by the name of Rashid Khan or Guddu. He denied the suggestion that Rashid Khan @ Guddu was a very good friend of his and in the year 2013 he had introduced him to Rambeer Shokeen R/o Kamruddin Nagar or that thereafter he started attending election meetings of Rambeer Shokeen or that Rambeer Shokeen had won that election from Mundka constituency or that he was into the business of properties and because of the victory of Rambeer Shokeen, his business got a big boost or that in February 2014, he had met Neeraj Bawania in the office of Rambeer Shokeen or that thereafter, he started regularly meeting with him or that thereafter, Rambeer Shokeen instructed him to go to Kolkata with Neeraj as Neeraj who was on parole, wanted to jump parole and flee the country or that thereafter, they went to Kolkata in a Mahindra Scorpio which was arranged by Rambeer Shokeen or State Vs. Pankaj Sehrawat and Ors. Page No.56 of 385 that after reaching Kolkata, Neeraj asked him to find an agent who could get a passport prepared on false ID or that thereafter he introduced Neeraj to one Manu who was having an old travel agency or that Manu agreed to arrange a passport for Rs.70,000/- or that Neeraj Bawania paid the said amount to Manu or that thereafter, Manu got some documents prepared through Maqbul and with the said documents passport application was submitted or that they stayed in different hotels in Kolkata for one month. He denied the suggestion that he had given his HDFC ATM card to Rambeer Shokeen or that later on he had seen his debit card in the hands of Neeraj Bawania and when he asked him about the said card, he said that he had been given the said card by Rambeer Shokeen for his expenses or that Rambeer Shokeen would deposit money in his account and Neeraj would use this card and withdraw the money for his use. He denied the suggestion that the apartment in Kolkata was taken on rent on being asked by Neeraj or that the payment of Rs.21,000/- for the said flat was also made by Neeraj or that he had stated the said facts to the police in his statement under Section 161 Cr.P.C and similar facts to the

Ld. Magistrate in his statement under Section 164 Cr.P.C. He was confronted with the statement under Section 161 Cr.P.C Mark PW31/A and the statement under Section 164 Cr.P.C Ex.PW31/1. However, he admitted that whenever they would go out in Kolkata in night for dinner or at pubs or parties, Neeraj would foot the bill. He stated that he did not know, therefore he could not admit or deny that during the said period Neeraj was in touch with Rambeer Shokeen through Whatsapp.

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63. During further cross-examination by the Ld. Addl. PP, PW31 stated that he had seen the debit card/ATM card bearing No.4363030405443805 of HDFC bank belonging to him which was the same card that he had given to Shakti and is Ex.Article P-1. He denied the suggestion that he had given the said card to Rambeer Shokeen, who in turn had given it to Neeraj. He denied the suggestion that Shakti had not returned the said card to him as stated by him or that it was recovered from the possession of Neeraj Bawania and volunteered he had been called to the PS for his statement where they had taken the said card from him. He denied the suggestion that the said ATM card was recovered at the time of arrest of Neeraj in FIR No.30/15 of PS Special cell or that was why he was lying that it was taken by police from him when he was called for his statement at Special Cell as his statement was recorded much later than the arrest of accused Neeraj Bawania. He had seen a print-out of a photograph in which the same person who was staying with him and is Shakti and who was the brother of Shakti are seen. The photograph is Ex.PW31/2. At that time, he did not know his real name. At present he knew his name as Neeraj. He denied the suggestion that he had deposed falsely before the Court and retracted from his previous statement under the fear and pressure of the accused. He identified the accused Rambeer Shokeen. He was not cross- examined on behalf of the accused persons despite opportunity being given.

64. PW32 Shri Randeep Singh Chandok deposed that he was a property dealer and he had his office at Behala Chowrasta, State Vs. Pankaj Sehrawat and Ors. Page No.58 of 385 Kolkata. On 01.03.2015, he received a phone call from one Jasbir Singh who said that he wanted to rent a flat. He told him that they had a property at Behala Chowrasta and would he be interested in taking a flat in that area and he answered in the affirmative. He gave him the address of the building where the property was situated. He reached that building. He showed him the flat. He also introduced him to the mother of the owner of the flat. He liked the flat and then a rent agreement was executed between him and the owner of the property namely, Shri Ajit Jaiswal. He gave an advance of Rs.10,000/- and the requisite documents for identification. He then said that he would come after 3-4 days to pay the remaining money and collect the keys of the flat but he did not turn up. After around 10-15 days, he called on his number but his phone was switched off. A few days later, officers from Delhi Police visited him and the owner and told them that the said persons had criminal background. In his presence, the police had seized the rent agreement from the

owner. The seizure memo of the rent agreement is Ex.PW32/1. He was not cross-examined on behalf of the accused persons despite opportunity being given.

65. PW33 Shri D. Bhuiya deposed that in the year 2015 he was working as Senior Supervisor in Regional Passport Office, Kolkata. He had received a notice from the police which was dated 16.04.2015 and the police had demanded certified copy of the application form of Suraj Singh S/o Prem Singh R/o Bahirsorva Mongla, Bardwan, 713101 and relevant documents submitted with the application. He received the said notice on State Vs. Pankaj Sehrawat and Ors. Page No.59 of 385 24.04.2015 and replied to it vide his letter dated 27.04.2015 which he proved as Ex.PW33/1. He informed that from the computer system, record of Suraj Singh S/o Prem Singh date of birth 05.08.1988 was fetched and it was having file No.CA2067660837714 dated 06.05.2014 and on account of adverse police report the passport was not issued. Along with the letter, he had sent the relevant documents and the scanned copy of the passport application duly certified by him. The passport application form of Suraj running into three pages is Ex.PW33/2; copy of the affidavit submitted by Suraj at the time of applying for the passport duly certified by him is Ex.PW33/3. Copy of the passbook/bank statement of Suraj as had been submitted to their office was duly certified by him and bore his signatures and stamp. In reference to Ex.PW33/2, another application was filed which was duly certified by him and was having his signatures and stamp and the same is Ex.PW33/4. He was not cross- examined on behalf of the accused Pankaj Sehrawat despite opportunity being given. During cross-examination on behalf of the other accused persons, he stated that the supporting documents to the passport application were submitted by the applicant personally and their scanned copy was kept on record. All the documents which he had submitted were the printouts taken from the system. He had no personal knowledge of the facts of the case. He denied the suggestion that he had not submitted the correct and true documents before the police or that no such application was moved in their office.

66. PW34 Shri Komal Sharma deposed that from the year State Vs. Pankaj Sehrawat and Ors. Page No.60 of 385 2007 till 2016 he was working as Property Dealer. He knew Rambeer Shokeen as his village was near his house. He did not remember the year but initially the wife of the accused Rambeer Shokeen had contested in the election of municipal corporation and had won. Thereafter, Rambeer Shokeen had also contested for the assembly seat of Mundka constituency. He had also won that election. He had supported both Rambeer Shokeen and his wife in that election. He had not extended any monetary help in that election. He had also not given any loan to them. He stated that Pankaj Sehrawat is the maternal nephew of Rambeer Shokeen. He had seen him during the election of Rambeer Shokeen. He had never personally met Pankaj Sehrawat and he had never visited his place. He had never received any threat either from Rambeer Shokeen or Pankaj Sehrawat.

67. The Ld. Addl. PP for State requested for permission to cross-examine the witness as he was stated to be resiling from his earlier statement which was allowed and during cross- examination PW34 stated that police had called him for investigation of the case and made inquiries from him but had not recorded any statement. He denied the suggestion that police had recorded his statement on 24.04.2015 and had read it over to him or that during the election of municipal corporation which was contested by his wife, Rambeer Shokeen had taken a loan of Rs.2.5 lakhs from him, promising to return it in a week but he did not return the money or that he had stated so to the police in his statement under Section 161 Cr.P.C. He denied the suggestion that later Rambeer Shokeen stopped receiving his calls or that State Vs. Pankaj Sehrawat and Ors. Page No.61 of 385 one day he went to his office and asked for his money but he refused to return the money or that thereafter he stopped talking to him or that in the year 2015 during the assembly elections, Rambeer Shokeen sought his support over the telephone but he disconnected the phone after stating that he had by then joined BJP or that thereafter Rambeer Shokeen sent his people for forcing him to support him but he refused or that one day Pankaj came to his office, he was accompanied by many people and he threatened him either to leave Delhi or face dire consequences or that despite the same he continued to support the BJP candidate Master Azad Singh. He denied the suggestion that thereafter, supporters/ criminals linked with Rambeer Shokeen told him that Rambeer would sort him out after the elections or that thereafter, people belonging to Rambeer started sending messages to him to support Rambeer and gave money to him or that once more Pankaj had come to his office and threatened him to support. He was confronted with the statement Mark PW34/A wherein the said facts were recorded. He stated that he was not aware whether on 14.03.2015 Pankaj Sehrawat and his mother were apprehended at the airport. He admitted that his number was and is 9818137555. He denied the suggestion that on 14.03.2015 he had received a message on his mobile No.9818137555 which was to the effect - 'main Neeraj hu, maa or bhai Pankaj ko airport par police ne pakad liya hai, madad karo' or that he replied - 'Dekhata hu' and disconnected the phone or that on 15.03.2015 one Jagdev, maternal uncle of Neeraj called him and asked him to go to Tihar Jail to give clothes to Pankaj's mother but he denied or that in the first week of April 2015 Neeraj State Vs. Pankaj Sehrawat and Ors. Page No.62 of 385 messaged him over his phone and demanded money but he denied or that he then messaged him to sell a Scorpio car of Pankaj but he again denied. He was confronted with Mark PW34/A wherein the said facts were recorded. He was not cross- examined on behalf of the accused persons despite opportunity being given.

68. PW35 Shri Vijender Singh deposed that on 10.07.2015, he was posted as Senior Scientific Officer (Documents) FSL, Rohini. From the office of Addl. DCP, Special Cell, New Delhi, some questioned documents i.e. red enclosed writings/signatures marked Q1 to Q14 and Q1/1 in a diary marked volume VI; Q15 and Q16 in an organizer diary marked volume V2; Q17 and Q17/1 on a guest registration card of Juhu Residency Boutique Hotel dated 23.01.2015; Q18, Q18/1 and Q18/2 on a form of Hotel Jai Mahal; Q19 and Q19/1 on a form 'F' Rule (10 and 14), Narayana; Q20 on

a bill of Hotel Shree Narayan, dated 31.03.2015; Q21 and Q21/1 on a guest registration card of Hotel Prem Palace; Q22 and Q22/1 on a guest registration form of SENSES; Q23, Q24 and Q26 to Q28 on an account opening form of Bank of India; Q25 on a deposit slip of Bank of India, dated 12.04.2014; Q29 on a Xerox copy of an Election ID card and Q30 on an IRC issued against/ damaged RC as well as specimen writing/ signatures i.e. Mark S1 to S20 of Shri Neeraj Sehrawat were received in FSL Rohini vide memorandum No.4470/SO/ACP/NDR Lodhi Colony New Delhi dated 10.07.2015, in case FIR No.10/15 dated 23.02.2015 under Sections 3/4 of MCOCA PS Special Cell, Lodhi Colony. The State Vs. Pankaj Sehrawat and Ors. Page No.63 of 385 documents were marked to him for examination and reporting. All the documents were carefully and scientifically examined and he was of the opinion that:

"(1) The red enclosed writing/signatures stamp and mark Q18, Q20, Q21, Q19/1 and Q22/1 and specimen writings/signatures similarly stamped and marked S1 to S8 and S11 to S25 were all written by one and the same person.

(2) On comparison of questioned writings in red enclosed portion marked Q15 and Q16 with the specimen writings in the red enclosed portions marked S1 to S8 and S11 to S25, similarities are observed in formation of some of the letters such as formation of letters 'g', 'j' 'd' etc. However, all the features as occurring in the questioned writings could not be similarly accounted for from the available specimen writings. As such it has not been possible to express a definite opinion on red enclosed writings stamped and marked Q15 and Q16 in comparison with red enclosed writings similarly stamped and marked S1 to S8 and S11 to S25 in the absence of some more standard writings.

(3) It has not been possible to express any opinion on rest of the items on the basis of material at hand and in the absence of standard writings/signatures. However, further attempt can be made if some more specimen writings containing similar letters and their combinations as occurring in the questioned writings as well as some admitted genuine writings/signatures preferably of contemporary period of the person/s concerned are supplied to this laboratory for examination."

69. The case exhibits as well as case report were sealed with the seal of DOC, FSL and handed over to the concerned authorized messenger. His report dated 27.11.2015 bearing FSL No.2015/D-4566 is Ex.PW35/1. PW35 further deposed that on 09.12.2015, he was posted as Senior Scientific Officer (Documents) FSL, Rohini. From the office of Addl. DCP, Special State Vs. Pankaj Sehrawat and Ors. Page No.64 of 385 Cell, New Delhi, some questioned documents i.e. red enclosed writings/signatures marked Q1 to Q14 and Q1/1 in a diary marked volume VI; Q15 and Q16 in an organizer diary marked volume V2; Q17 and Q17/1 on a guest registration card of Juhu Residency Boutique Hotel dated 23.01.2015; Q18, Q18/1 and Q18/2 on a form of Hotel Jai Mahal; Q19 and Q19/1 on a form 'F' Rule (10 and 14), Narayana; Q20 on a bill of Hotel Shree Narayan, dated 31.03.2015; Q21 and Q21/1 on a guest registration card of Hotel Prem Palace; Q22 and Q22/1 on a guest registration form of SENSES; Q23, Q24 and Q26 to Q28 on an account opening form of Bank

of India; Q25 on a deposit slip of Bank of India dated 12.04.2014; Q29 on a Xerox copy of an Election ID card and Q30 on a IRC issued against/ damaged RC as well as specimen writing/ signatures i.e. Mark S1 to S44 of Shri Neeraj Sehrawat were received in FSL Rohini vide memorandum No.9235/SO/ACP/NDR Lodhi Colony New Delhi dated 09.12.2015 in case FIR No.10/15 dated 23.02.2015 under Sections 3/4 of MCOCA PS Special Cell, Lodhi Colony. The documents were marked to him for examination and reporting. All the documents were carefully and scientifically examined and he was of the opinion that:

"(1) The red enclosed writing/signatures stamp and mark Q1 to Q10, Q12, Q14 to Q16, Q22, Q24, Q26, Q28 to Q30 and specimen writings/signatures similarly stamped and marked S1 to S8 and S11 to S44 were all written by one and the same person.

(2) It has not been possible to express any opinion on rest of the items on the basis of material at hand."

70. PW35 stated that the case exhibits as well as case report State Vs. Pankaj Sehrawat and Ors. Page No.65 of 385 were sealed with the seal of DOC, FSL and handed over to the concerned authorized messenger. His report dated 15.01.2016 bearing FSL No.FSL 2015/D-7933 is Ex.PW35/2. He stated that the questioned documents Q1 to Q14 were bound in a diary and each page bore his stamp and are collectively exhibited as Ex.PW35/3. Questioned documents Q15 and Q16 were also a part of a diary and are collectively Ex.PW35/4. Questioned documents Q17 to Q30 are collectively Ex.PW35/5. The specimen and signature S1 to S44 running into 44 pages are collectively Ex.PW35/6. During cross-examination he denied the suggestion that he did not examine the signature/ hand-writing and gave his report at the behest of police.

71. PW36 Shri Joydeep Das, Sub Divisional Controller, Food and Supplies, Burdwan Khady Bhawan, Burdwan, West Bengal deposed that on 23.04.2015 their department had received a notice from the police. In response to the said notice, the then Sub Divisional Controller, Food and Supplies namely, Shri Jayanta Kumar Roy had issued the letter dated 23.04.2015. As per the original ration card register from 24.11.2010 to 15.09.2011, after 01.03.2011, no ration card was issued by their office till 19.05.2011 and therefore no ration card bearing No.FF211736, Folio No.349 in the name of Suraj Singh could have been issued on 27.04.2011. The copy of the relevant page of the register is Ex.PW36/1 (OSR). During cross-examination he denied the suggestion that he had not brought the correct record.

72. PW37 Ms. Sawmya Swaraj, Branch Operations Manager, Karur Vysya Bank, Janakpuri deposed that in the year State Vs. Pankaj Sehrawat and Ors. Page No.66 of 385 2015 she was posted as Assistant Manager, East of Kailash Branch, Sant Nagar, Delhi. On 18.05.2015, she had received notice under Section 91 Cr.P.C. from the police which she proved as Ex.PW37/1. After seeing the said notice, she had given statement of account No.4104135000003214 of Vijay Kumar which is Ex.PW37/2. She had also handed over certificate under Section 65B Indian Evidence Act regarding the correctness and genuineness of the said statement which she proved as Ex.PW37/3. She was not cross-examined on behalf of the accused persons despite opportunity being given.

73. PW38 Shri Mandeep Sharma, Manager, Hotel Vikramaditya, Indore Road, Ujjain, MP deposed that in the year 2015 he was working as Manager at Hotel Prem Palace, Madhav Club Road, Ujjain. On 18.04.2015, he had received a notice under Section 91 Cr.P.C from ACP Shri Manishi Chandra which is Ex.PW38/1. On 18.04.2015, he had given the reply of the notice which he proved as Ex.PW38/2. He had provided the photocopy of Guest registration card dated 31.12.2014 which is Mark PW38/A. The bills No.638 and 647 of amount Rs.1305/- and Rs.4785/- are Ex.PW38/3 and Ex.PW38/4. He had also given the photocopy of ID which was submitted by the customer and the same is Mark PW38/B. He had also given certificate under Section 65B of Indian Evidence Act which he proved as Ex.PW38/5. He was not cross-examined on behalf of the accused persons despite opportunity being given.

74. PW39 Shri Rajeev Ranjan, Nodal Officer, Tata Teleservices Ltd. deposed that on 15.09.2015, in reference to State Vs. Pankaj Sehrawat and Ors. Page No.67 of 385 letter No.7137 dated 05.09.2015, he had submitted the recharge details of mobile No.9210439969, 9210586509, 9266121312 and 9268259500. The reply/ submission of recharge of said mobile phones is Ex.PW39/1 and recharge details of mobile No.9266121312 and 9268259500 are Ex.PW39/2. No recharge details were found of mobile No.9210439969 and 9210586509. He was not cross-examined on behalf of the accused persons despite opportunity being given.

75. PW40 Shri Sikander Maan deposed that in the year 2013-14 he had L-1 license in Haryana to run liquor shop. Said L-1 license was in the name of his brother Dalbir Singh Maan. In the month of December, 2013 they had 12 liquor shops in Bahadurgarh. They had deputed salesmen in liquor shops of Bahadurgarh. During the investigation of the case he was inquired regarding the acquaintance/ knowledge about a person by name Rajiv Kala R/o Village Asoda by him or his brother. He told the police that they did not know any person by the name Rajiv Kala. In December 2013, he was knowing Shri Braham Prakash Panditji of Village Sultanpur Dabas as his nephew was into wrestling in Chhattarsal Stadium with him. He received a call of Shri Braham Prakash Panditji who told him that since he had liquor shops in Bahadurgarh, one person Deepak @ Deepa (since discharged) wanted liquor. Said Deepak @ Deepa met him along with Rs.3 lakhs as he wanted to have liquor bottles from their liquor shop for sending to Delhi. He refused to send liquor bottles from Bahadurgarh to Delhi as he told him that he had got licence of liquor shop for selling liquor only in Haryana.

State Vs. Pankaj Sehrawat and Ors. Page No.68 of 385 Thereupon, the said Deepak @ Deepa told him that his boys would take the liquor for taking it to Delhi, in small quantity. For that purpose, he gave him Rs.3 lakhs. For 10-15 days during the month of December 2013 to January 2014, boys of said Deepak @ Deepa kept on taking boxes of liquor bottles from their liquor shop for taking that to Delhi for total value of Rs.1.5 lakhs. He stated that he was not aware as to for which purpose the liquor bottles were used when the same were taken to Delhi. He had heard the name of accused Neeraj Bawana. However, he had no connection or concern with him. He had given his statement to the police. He was not cross-examined on behalf of the accused persons despite opportunity being given.

76. PW41 Shri Ashish Nain deposed that he was working as HC in Delhi Police and residing at Village and Post Jatkhori, PS Kanjhawala, Delhi. The name of his sister is Arti who had got married with Neeraj Sehrawat R/o Village Bawana. He joined the investigation of the present case. He was not aware if his brother-in-law Neeraj Sehrawat was arrested in the present case. No one had called him in the area of Kamruddin Nagar, Nangloi. He had stated to the IO of the present case regarding receiving of OTP on his mobile phone regarding transfer of money but he was not aware from whose account and into whose account the money was transferred.

77. The Ld. Addl. PP for State requested for permission to cross-examine the witness as he was stated to be resiling from his earlier statement which was allowed and during cross-examination PW41 stated that the IO of the present case had State Vs. Pankaj Sehrawat and Ors. Page No.69 of 385 made inquiries from him and his statement was recorded. He had never stated in his statement given in the present case to the effect that on 10.03.2015 maternal uncle of Neeraj Sehrawat namely, Rambeer Shokeen called him in his office at Kamruddin Nagar, Nangloi and that he told him that Neeraj Sehrawat was outside and he required money for expenditure, for that purpose, Rambeer Shokeen handed over him cash of Rs.50,500/- along with Rs.700/- for commission agent and slip for depositing the said amount in the name of Jasbir Singh in HDFC account No. 06851000028163. He was confronted with the statement Ex.PW41/PA wherein it was so recorded. He had not stated in his statement given in the present case that he thereafter visited in the office of Sachin Goel at Kusumdeep Building, Azadpur Commercial Complex, Delhi and gave him cash of Rs.50,500/- and Rs.700/- as commission/ transaction fee. He was confronted with the statement Ex.PW41/PA wherein it was so recorded. He had not stated in his statement to the police that thereupon Sachin Goel asked him his contact number and he gave him his mobile number being 9990861654 and volunteered however, that mobile number was correctly his. He was confronted with the statement Ex.PW41/PA wherein it was so recorded. He had not stated in his statement to the police that thereafter, Sachin Goyal transferred the cash from his personal bank account to HDFC bank account of Jasbir Singh. He was confronted with the statement Ex.PW41/PA wherein it was so recorded. He had not made any inquiry regarding the OTP number received in his mobile phone as stated by him in his examination in chief. He stated that he was aware about the procedure as well as requirement regarding State Vs. Pankaj Sehrawat and Ors. Page No.70 of 385 OTP number received in the mobile phone. He denied the suggestion that he received OTP number on his mobile phone regarding the said transaction of depositing of money in the account of Jasbir Singh or that he was intentionally concealing the said fact from the Court.

78. PW41 further admitted that there were many criminal cases against Rambeer Shokeen, who is the maternal uncle of Neeraj Sehrawat. He admitted that he was aware that Neeraj Sehrawat who is his brother-in-law is a known criminal of Delhi. He had not stated in his statement to the police that since Rambeer Shokeen and Neeraj Sehrawat were known criminals and related to him, they could cause harm at any stage, therefore, he had not given the evidence against them prior to recording of his statement by the police in the present case. He was confronted with the statement Ex.PW41/PA wherein it was so recorded. He could not affirm or deny that his statement was recorded in the present case on 02.05.2015. He stated that he had never been provided any police protection after giving statement to the police in the present case. He denied the suggestion that he demanded for necessary protection for him and his family on account of giving statement against the accused

persons in the present case. He was confronted with the statement Ex.PW41/PA wherein it was so recorded. He denied the suggestion that he was read over the contents of his statement. He stated that his sister Arti resides in her matrimonial home in village Bawana. He denied the suggestion that he was deposing falsely on account of being relative of Neeraj Sehrawat being his brother-in-law or that State Vs. Pankaj Sehrawat and Ors. Page No.71 of 385 he was concealing the correct facts having been won over by the accused persons. He was not cross-examined on behalf of the accused persons except accused Rambeer Shokeen and during cross-examination by the Ld. Counsel for accused Rambeer Shokeen, PW41 admitted that he had never met the accused Rambeer Shokeen at any point of time and had never talked with accused Rambeer Shokeen even on phone.

79. PW42 Shri Lal Chand deposed that he had been residing at H. No.310, Banjara Basti, Karala Road, Village Sultanpur, Delhi. He retired from DESU in the year 1999. He had four sons namely, Sube Singh, Subhash Singh, Captan Singh and Sahib Singh. His son Sube Singh expired in the year 1997 because of Cancer. His another son Subhash was handicapped because his one hand was not functioning. His other two sons namely, Sahib Singh and Captan Singh had been earlier plying tempo after purchasing the same on installments for their livelihood. On 28.02.2014, his both sons were killed. He could not elaborate on account of his age as to what happened on that day. He did not remember as to who had killed his sons. Three assailants had fired shots on his sons but he did not know their names. He had not given any name to the police in the investigation of the present matter.

80. The Ld. Addl. PP for State requested for permission to cross-examine the witness as he was stated to be resiling from his earlier statement which was allowed and during cross- examination PW42 stated that he was resident of Village Sultanpur Dabas. Out of the assailants who killed his sons, two State Vs. Pankaj Sehrawat and Ors. Page No.72 of 385 were from his village. He did not know the names of the said two assailants who were from his village and volunteered in respect to that incident, in the case which was pending in Rohini Court also he had stated that he had not seen the said assailants. He did not identify the real assailants in Rohini Court in respect of that incident as he had an apprehension that the said criminals could kill him and his other family members. He denied the suggestion that on 28.02.2014 when his son Sahib Singh came in the tempo at about 10 a.m. he was sitting on the chabutra (platform) outside his house and that one white colour Skoda came from the side of Village Puth Khurd and scratched the tempo of his son and that on that issue boys sitting in that Skoda car started fighting with his son Sahib Singh while having pistol in their hands. He was confronted with the statement Ex.PW42/PA wherein it was so recorded.

81. PW42 admitted that he had stated in his statement to the police that among the boys from the Skoda car, two boys were from his village namely, Rahul Kala S/o Narender Dabas and Deepak Katia S/o Ranbir. He denied the suggestion that he had stated to the police that the said boys Rahul Kala and Deepak along with other boys started firing gun shots on his son and volunteered he simply saw his son lying dead. He was confronted with the statement Ex.PW42/PA wherein it was so recorded. He stated that gunshots were fired on his two sons. He admitted that after hearing the sound of gunshots, his other son namely, Captan Singh intervened to save his brother and thereafter, those two Rahul Kala and Deepak as well as the other boys started firing State Vs. Pankaj Sehrawat and Ors. Page No.73 of 385 shots on his other son Captan Singh as well. He admitted that

when his both sons fell down on the ground due to gun fire, those assailants still kept on firing on his sons while they were lying on the ground. He had not complained to the police regarding the said incident and FIR No.183/2014 was registered at PS Bawana. He was confronted with the statement Ex.PW42/PA wherein it was so recorded. He could not say if the name of the third assailant who killed his sons was Ravi Mania who was arrested in the said case. He was confronted with the statement Ex.PW42/PA wherein it was so recorded. He denied having made the statement under Section 161 Cr.P.C. He denied the suggestion that he was intentionally deposing falsely being under the pressure of the accused persons or that he was intentionally not giving the true facts to the Court after passage of time as well as because of pressure from the accused persons even in case FIR No.183/2014 as well as in this case. He could not identify the accused Rahul Kala S/o Narender Dabas, Deepak Katia and Ravi Mania as at present he had very weak eyesight. He denied the suggestion that he was intentionally not identifying the accused persons. He was not cross-examined on behalf of the accused Rambeer Shokeen and Pankaj Sehrawat despite opportunity being given and during cross-examination on behalf of the other accused persons he stated that he was not aware if the accused Rahul Kala had already been acquitted from the Court of Rohini in case FIR No.183/2014 and volunteered he was not aware of anything about that case.

82. PW43 Shri Prashant Kaushik deposed that he had his State Vs. Pankaj Sehrawat and Ors. Page No.74 of 385 voter identity card issued from the Election Commission on which his photograph was there bearing number IPN2087765. He admitted that on both the voter identity cards lying on the judicial record, the number of his original voter identity card was mentioned in one of the copies which was in the name of Prashant Kaushik S/o Pramod Kaushik and photograph on the said voter identity card was of some other person. Moreover, the address on the overleaf was also not correct according to the original. The said copy is Mark PX. He stated that he knew the accused Rambeer Shokeen as he had been earlier their local MLA. Rambeer Shokeen had never taken his voter identity card from him at any point of time. He stated that he was not aware as to how photograph of someone else with different address came on the voter identity card number IPN2087765 issued in his name. He knew the accused Neeraj Bawania who was a known criminal. He was shown copies of voter identity card Mark PX at page No.2062 as well as at page No.2103 and he could not say if the photograph depicted on the voter identity card was of Neeraj Bawania.

83. The Ld. Addl. PP for State requested for permission to cross-examine the witness as he was stated to be resiling from his earlier statement which was allowed and during cross- examination, PW43 stated that police had made inquiries from him in the case but no statement was recorded. The statement under Section 161 Cr.P.C of the witness dated 19.08.2015 was read over to him and he stated that he had never given any such statement which is Ex.PW43/PX. He denied the suggestion that State Vs. Pankaj Sehrawat and Ors. Page No.75 of 385 he had stated in his statement to the police that former MLA Rambeer Shokeen had taken his voter identity card on the pretext of some important work and that he stated to the police that he was not aware as to how the copy of his voter identity card reached the accused Neeraj Bawania. He stated that he had never identified the photograph of accused Neeraj Bawania during the investigation of the case. He was confronted with the contents of the statement Ex.PW43/PX. He was not cross-examined on behalf of the accused persons except the accused Rambeer Shokeen.

84. PW44 Shri Narendra Singhal deposed that he had a business of iron cutting work in the name and style of Balaji Steel Company presently at Prahladpur, earlier it was at E-29, DSIDC Sector-4, Bawana Industrial Area. While he was running the said business at Bawana, on 05.02.2012 at about 2/3 p.m. he received a call on his mobile No.9212566070. The caller of the said call told that he was Kala from Sultanpur Majra and he demanded a sum of Rs.10 lakhs and threatened that if he would not give Rs.10 lakhs to him, he would kidnap his son. On that day he was already very disturbed as his cousin had expired on that day. Thereafter, he again received a call from the same person by the name Kala on 06.02.2012 and he again demanded the money and reduced it to Rs.5 lakhs. He told him that since there was already a tragedy in his family on account of death of his cousin, he expressed his inability to pay the amount demanded and in that manner he avoided it. Again on 12.02.2012 the same person Kala again made a call to him and demanded State Vs. Pankaj Sehrawat and Ors. Page No.76 of 385 money and threatened him again. On account of such continuous pressure by the said caller, he reported the matter to Police Station Bawana and got FIR No.53/2012 registered. He came to know that certain persons had been arrested in the said case. He stated that police had joined him in the investigation of that FIR for the purpose of identifying the voice of the caller who demanded money and threatened him. He thereafter never received any threats. He had joined the investigation of the present case when he went to the office of Special Cell at Lodhi Road.

85. The Ld. Addl. PP for the State requested for permission to put leading questions to the witness which was allowed and during cross-examination by the Ld. Addl. PP for State, PW44 admitted that he had given the statement under Section 161 Cr.P.C. which is Ex.PW44/PA to the police in the matter. He had not stated in his such statement that the persons involved in his FIR No.53/2012 were dreaded criminals and could threaten him for not giving evidence in the Court and that he demanded security for himself. He was confronted with the statement Ex.PW44/PA. During cross-examination on behalf of the accused Neeraj, Naveen and Rahul, he stated that he had given the evidence in FIR No.53/2012 of PS Bawana. He could not ascertain regarding the exact identity of the voice whether it was of the same person who called him and demanded money and threatened him. He denied the suggestion that no call was made by Kala. He was not cross-examined on behalf of the other accused persons despite opportunity being given.

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86. PW45 Shri Vijay Kumar deposed that he had been earlier working as Senior Manager, Indian Bank. During the years 2012 to 2015 he was working as Senior Manager at Nangloi Branch, Najafgarh Road of Indian Bank. He did not remember the exact date but while he was working in the said branch of the said bank, one person by the name Rakesh opened a saving account in the said bank. He proved the notice issued under Section 91 Cr.P.C. to him from the police official of the present case which bore his receipt/ acknowledgment with his initial and bank stamp as Ex.PW45/A. He stated that in pursuance to such notice, he provided the certified copy of account opening form, other relevant documents pertaining to account No.605597918 in the name of Rakesh; certified copy of statement of account of the said account from 01.01.2013 till May 2015. The reply along with relevant documents is collectively Ex.PW45/B. Certified copy of statement of account is Ex.PW45/C. He stated that in respect of the said account, once the account holder brought three cheques of the amount which he did not remember. He also did not remember the

date due to passage of time. Those cheques were deposited and amount of those cheques was credited in the account. Thereafter, the said account holder Rakesh came to the bank for withdrawing the amount which was more than Rs.10 lakhs.

87. PW45 further deposed that since he was newly posted in the said branch of the bank, in case any customer used to seek withdrawal of big amount, he used to verify the same as there was non-availability of cash. He asked the said customer by State Vs. Pankaj Sehrawat and Ors. Page No.78 of 385 name Rakesh to wait for withdrawing the amount as asked by him. In the meantime, he received a call on the landline of the bank phone. The caller of that phone told that he was calling from the office of Rambeer who is a renowned person of that area but he did not remember what was his complete name. That caller told him that the said person Rakesh who was seeking to withdraw the money was a genuine person and known to him. He also told him to pay him the cash which he was seeking to withdraw from the account. He did not exactly remember the date when the money was withdrawn but it was between Rs.10 to Rs.15 lakhs. He also did not remember if some other amount was also withdrawn on some other date. The Ld. Addl. PP for State sought permission to put some leading questions to the witness which was allowed and during cross-examination by the Ld. Addl. PP, PW45 admitted that those three cheques which the account holder Rakesh had deposited were of Rs.8 lakhs, Rs.5 lakhs and Rs.7 lakhs respectively, deposited in June 2013. He admitted that the amount of the said cheques was credited in his account on 20.06.2013. He admitted that on the same day i.e. 20.06.2013, the said account holder Rakesh sought to withdraw Rs.20 lakhs from the account. It was possible that the caller who made the call on the landline of the bank told his name to be Rambeer Shokeen. He did not remember if he informed him that he was a local Councilor, however he admitted that he named the area Kamruddin Nagar. He admitted that on the same day i.e. on 20.06.2013, account holder Rakesh withdrew Rs.5 lakhs and entries pertaining to such transactions are reflected in the statement of account given by him to the police. He was not State Vs. Pankaj Sehrawat and Ors. Page No.79 of 385 cross-examined on behalf of the accused persons except on behalf of the accused Rambeer Shokeen.

88. PW46 Shri Sushil Sehrawat deposed that his father had retired from Delhi Police. Accused Pankaj Sehrawat is his cousin as he was the son of his uncle Prem Singh. He knew Rakesh Babla who was also his cousin, being the son of his maternal aunt (mausi). He did not know anything regarding the plot comprised in Khasra No.38/24 of Village Shahbad Daultpur, Shiv Vihar, Delhi. He had never been told about the said plot by Pankaj Sehrawat. He had also never visited the said plot at any point of time. The Ld. Addl. PP for State requested for permission to cross-examine the witness as he was stated to be resiling from his earlier statement which was allowed and during cross-examination PW46 stated that he was called by the police during the investigation of the case. He was not aware if police had recorded his statement or not. He had never stated in his statement to the police that in January, 2013 his cousin Pankaj Sehrawat as well as Rakesh Babla met him regarding the said plot of Khasra No.38/24 and told him that the said plot was earlier in the name of father of Rakesh Babla late Narain Singh and that possession of the same was encroached by someone and Pankaj Sehrawat and Rakesh Babla had again regained the possession of the said plot by putting their bricks on the said plot and that they also informed him that the one who had earlier taken the possession of the said plot was threatened in the name of accused Neeraj Bawana due to which that party got scared and agreed to settle with them or that he had stated the said facts in

State Vs. Pankaj Sehrawat and Ors. Page No.80 of 385 his statement to the police. He had not stated in his statement to the police that Pankaj Sehrawat told him and Rakesh Babla that since that plot was in possession of the other party, there was no fault in going into compromise as the possession and the electricity meter were in the name of the other party and that Pankaj Sehrawat further told that a portion of 400 sq. yards of that plot would be with them and portion of 200 sq. yards of that plot would be given to the other side under the compromise and the terms of compromise must not be lesser than the said terms. He denied the suggestion that he had stated in his statement to the police that Pankaj Sehrawat further told him that if the other side did not agree with the said terms, he should be threatened to kill and that he was also asked to accompany Rakesh Babla to go at the time of compromise regarding the said plot. He was confronted with the statement Ex.PW46/A wherein it was so recorded.

89. PW46 further denied the suggestion that the next day he accompanied Rakesh Babla for the talks of compromise regarding the said plot where he met with one person by the name Rakesh Chikara, who was told to be the other side/ opposite side and that he and Rakesh Babla told him that 400 sq. yards of the plot had been taken by them and there could not be compromise on any other term upon which the other side did not agree on such terms, then Rakesh Babla threatened him to agree with such terms of compromise failing which he would be killed, and thereupon that person told that he would finalize it after talking with the true owner of the plot. He denied the suggestion State Vs. Pankaj Sehrawat and Ors. Page No.81 of 385 that he had stated to the police that the said other side agreed on the said terms of compromise, however, he suggested that the plot should be sold as a whole and they would get the money consideration of 400 sq. yards and the other side would get money sale consideration of 200 sq. yards. And such terms were informed to Pankaj Sehrawat who stated to sell the plot as a whole and that thereafter in February, 2013 Rakesh Babla collected Rs.20 lakhs as earnest amount in respect of the said plot. He denied the suggestion that he stated in his statement to the police that in the morning of 06.06.2013, Pankaj Sehrawat told him and Sandeep Bablu to accompany Rakesh Babla for going to Rohini Sector -11 where the payment was to be received regarding the sale of the said plot and that Sandeep Bablu also told him that accused Neeraj Bawana informed him on phone from jail to collect the payment of the said plot and that the payment was to be handed over to his maternal uncle/ accused Rambeer Shokeen. He was confronted with the statement Ex.PW46/A wherein it was so recorded. He denied the suggestion that he had stated to the police that the next day he along with Sandeep Bablu, Rakesh Babla went to Nirman Group Office, Rohini, Sector-11 where they found Subhash Pinta, his father Bhagwan Dass, Rakesh Chikara, his father-in-law Satyanarayan, his grandson Ved Pal present from the side of seller and one Sanjay Rana, Joginder Thakaran, Chand Ram, Vijay and Rakesh Dabas present from the side of the purchaser of the plot and that Satyanarayan, Bhagwan Dass executed a GPA in favour of Chand Ram, Vijay and Rakesh Dabas towards executing sale documents for sale of the plot and that purchaser State Vs. Pankaj Sehrawat and Ors. Page No.82 of 385 of the plot made the payment to Rajesh Bansal, out of which Rs.60 lakhs came to Satyanarayan and Bhagwan Dass and Rs.1.10 crores in cash as well as Rs.20 lakhs by three cheques came to Rakesh Babla and that Sandeep Bablu took the cash amount on behalf of Rakesh Babla. He was confronted with the statement Ex.PW46/A wherein it was so recorded.

90. PW46 denied the suggestion that he had stated to the police that thereafter, he along with Sandeep Bablu, Rakesh Babla reached their house where they met Pankaj Sehrawat and that Pankaj Sehrawat kept cheques of Rs.20 lakhs and Rs.1.10 crores was to be given through Sandeep Bablu to Rambeer Shokeen for the purpose of helping him in his election and that he had not received any amount regarding that deal and that he stated to the police that his cousins Neeraj Bawana and Pankaj Sehrawat had no lawful source of income and that he also told the police that Neeraj Bawana and Pankaj Sehrawat ran a crime syndicate and that they could harm him and his family at any point of time and that for that reason he could be stopped from giving evidence against them and that for that reason he asked for his protection from the police. He was confronted with the statement Ex.PW46/A wherein it was so recorded. He denied the suggestion that he had been won over by the accused, therefore, he was not deposing the correct and true facts despite having knowledge of the same or that since he had stated in his statement that accused Neeraj Bawana and Pankaj Sehrawat led a dreaded crime syndicate, therefore, out of fear he was intentionally withholding the correct facts from the Court. During State Vs. Pankaj Sehrawat and Ors. Page No.83 of 385 cross-examination by the Ld. Counsel for accused Rambeer Shokeen, he admitted that till date there was not a single instance where he had been pressurized or threatened by the accused Rambeer Shokeen at any point of time. During cross-examination by the Ld. Counsel for Pankaj Sehrawat, he admitted that evidence as he had given on that day had been so given by him voluntarily without any pressure or coercion from anyone and that till date there was not a single instance where he had been pressurized or threatened by Neeraj and Pankaj. He was not cross-examined on behalf of the other accused persons.

91. PW47 Shri Rakesh Deshwal @ Babla deposed that he was residing at Village Jasoor Kheri, PS Bahadurgarh, Distt. Jhajjar, Haryana with his family and he was a farmer. His maternal aunt (mausi) was married in Bawana Village, Delhi and had two sons namely, Sandeep @ Bablu and Sushil. Because of his said relation, he frequently visited Village Bawana. During his visits, he had also met once or twice with cousins of Sandeep namely, Neeraj Sehrawat and Pankaj Sehrawat. He had never visited any plot comprised in Khasra No.38/24 Village Shahbad, Daulatpur, Shiv Vihar, Delhi. He had never visited anywhere for the purpose of any compromise talks regarding the said plot with anybody. He was not aware of anything about the said plot. He stated that no payment was ever received by him regarding the sale of the said plot.

92. The Ld. Addl. PP for State requested for permission to cross-examine the witness as he was stated to be resiling from his earlier statement which was allowed and during cross-

State Vs. Pankaj Sehrawat and Ors. Page No.84 of 385 examination, PW47 stated that his statement was never recorded by the police. He admitted that he was called by the police during the investigation of the case. He denied the suggestion that he was intentionally deposing falsely regarding the recording of his statement by the police on 27.04.2015. He had never stated in his statement to the police that in January, 2013 Pankaj Sehrawat as well as Rambeer Shokeen told him regarding the plot of Khasra No.38/24 and told him that the said plot was earlier in the name of his father and that they also gave the documents of title of that plot in the name of his father and that then he had a belief that the possession of that plot was taken by someone and that Pankaj Sehrawat told him to regain the possession of that plot by putting bricks and construction material over that

plot and thereafter he along with Pankaj Sehrawat regained the possession of the said plot by putting bricks, construction material over that plot. He was confronted with the statement Ex.PW47/A wherein it was so recorded. He denied the suggestion that Pankaj Sehrawat had arranged bricks from his known and that on the asking of Pankaj Sehrawat he called the owner of the said plot Subhash Dhingra @ Pinta and threatened him by saying that he was a wrestler of Village Jasoor Kheri and that he had put bricks and construction material over the said plot and if he would now see towards that plot, he would face dire consequences and that on the same phone call, Pankaj had also threatened him by saying that he was the brother of Neeraj Bawana and that if he would now look towards that plot, he would be killed. He denied the suggestion that Pankaj Sehrawat told him to continue work on the plot and if anyone came to that plot, then he should be informed about State Vs. Pankaj Sehrawat and Ors. Page No.85 of 385 Neeraj Bawana and told that the said plot belonged to Neeraj Bawana, thereupon whoever would come would get scared and that after some days the second party Subhash Dhingra came along with Rakesh Chikara and that he threatened them by saying that he was the brother of Neeraj Bawana and present in that plot on his behalf and that Rambeer Shokeen was his maternal uncle and that he was the real owner of the plot and he should not dare to visit there again. He was confronted with the statement Ex.PW47/A wherein it was so recorded.

93. PW47 denied the suggestion that he stated to the police that when Subhash Dhingra and Rakesh Chikara wanted to see the documents of title of that plot, he showed them those documents and they thereafter left after taking his phone number and that after some days Rakesh Chikara again came to that plot and met him and offered for a compromise and that he told him that he should come in this regard the next day and that thereafter he on the same day met with Pankaj Sehrawat where son of his maternal aunt Sushil Sehrawat was also present and Pankaj Sehrawat told him that since the plot was in possession of the other party and electricity meter was also in their name, therefore, there was no harm in going for a compromise. He was confronted with the statement Ex.PW47/A wherein it was so recorded. He denied the suggestion that he stated to the police that Pankaj Sehrawat told that under the settlement 400 sq. yards of the plot would be in their share and 200 sq. yards would be in the share of the other party and that compromise should not be less than the said terms and that if the other side did not agree for State Vs. Pankaj Sehrawat and Ors. Page No.86 of 385 the same, then they would be killed and Pankaj Sehrawat also told to take Sushil Sehrawat along with them and that the next day when Rakesh Chikara again came to the plot, then he and Sushil Sehrawat told him about the compromise only on the terms to the effect that 400 sq. yards of the plot would be in their name and remaining 200 sq. yards would be in the share of the other side and that when Rakesh Chikara tried not to agree with such terms, then he threatened him to agree with such terms of compromise or he would be killed and thereupon Rakesh Chikara told that he would finalize the same after talking with the real owner of the plot. He was confronted with the statement Ex.PW47/A wherein it was so recorded.

94. PW47 further denied the suggestion that he had stated to the police that later that other side told that the plot should be sold as a whole and they would keep money sale consideration of 400 sq. yards and they would keep 200 sq. yards and that no one would disclose about the dispute of the plot to anyone and that he informed about the same to Pankaj Sehrawat and then Pankaj Sehrawat agreed to sell the plot as a whole and they would leave the possession of the plot after transfer of the

title by the other side to the purchaser and he would not sign on any other document of sale and that he told all the said facts to Rakesh Chikara on phone who agreed for the same as final. He denied the suggestion that he had stated to the police that in February, 2013 in first week he received a call from Rakesh Chikara informing that a buyer for the plot had agreed and told that he should come to collect the payment of earnest amount and that as State Vs. Pankaj Sehrawat and Ors. Page No.87 of 385 per his information, he went to Anushar Property Office, Nirman Group, Rohini, Sector-11 where he met the property dealer Rajesh Bansal, Subhash Pinta and Rakesh Chikara and there were Sanjay Rana, Joginder Thakaran on behalf of the buyer and they agreed to purchase the plot for total sale consideration of Rs.2.20 crores and at that time the purchaser party had brought Rs.25 lakhs in cash and Rs.5 lakhs in cheque as earnest amount out of which the property dealer Rajesh Bansal handed over Rs.20 lakhs as earnest amount to him and it was agreed that the remaining sale consideration would be paid in the next four months. He was confronted with the statement Ex.PW47/A wherein it was so recorded.

95. PW47 denied the suggestion that he stated to the police that on that day he came to the house of Pankaj Sehrawat with Rs.20 lakhs and handed over the same to Pankaj Sehrawat and that on 06.06.2013 he along with Sandeep Bablu, his elder brother Sushil went to Nirman Group Office where Subhash Pinta, his father Bhagwan Dass, Rakesh Chikara, his father-in- law Satyanarayan, his grandson Ved Pal were present from the side of seller and one Sanjay Rana, Joginder Thakaran, Chand Ram, Vijay and Rakesh Dabas were present from the side of purchaser of the plot and Satyanarayan, Bhagwan Dass executed a GPA in favour of Chand Ram, Vijay and Rakesh Dabas for executing sale documents for sale of the said plot and the purchaser of the plot made the payment to Rajesh Bansal, out of which Rs.60 lakhs came to Satyanarayan and Bhagwan Dass and Rs.1.10 crores in cash as well as Rs.20 lakhs by three cheques State Vs. Pankaj Sehrawat and Ors. Page No.88 of 385 came to him and that Sandeep Bablu took the cash amount on his behalf. He denied the suggestion that he had stated to the police that he along with Sandeep Bablu and Sushil Sehrawat went to the house of Sandeep Bablu where they met Pankaj Sehrawat and Pankaj kept the cheque of Rs.20 lakhs with him and instructed to hand over Rs.1.10 crores through Bablu to his maternal uncle Rambeer Shookan for helping in his election. He was confronted with the statement Ex.PW47/A wherein it was so recorded.

96. PW47 denied the suggestion that he stated to the police that when he asked Pankaj Sehrawat to give some money to him, then he told him that his father was not the owner of the said plot and that the documents of title in the name of his father were fabricated and if he would demand the money, he would be imprisoned for preparing fabricated documents and Pankaj told him to go back to his house quietly and that because of such fear, he left the house and burnt those documents of title and he did not get any money and that he told the police that Neeraj and Pankaj Bawana run a very dreaded crime syndicate and that they could harm him and his family and therefore, they could also prevent him from giving evidence against them in the Court. He was confronted with the statement Ex.PW47/A wherein it was so recorded. He denied the suggestion that he had been won over by the accused, therefore, he was not deposing the correct and true facts despite having knowledge of the same or that since he had stated in his statement that accused Neeraj Bawana and Pankaj Sehrawat led a dreaded crime syndicate, therefore, out of fear he was intentionally withholding the correct facts from the Court.

State Vs. Pankaj Sehrawat and Ors. Page No.89 of 385 He was cross-examined by the Ld. Counsel for accused Rambeer Shokeen and he admitted that till date there was not a single instance where he had been pressurized or threatened by the accused Rambeer Shokeen at any point of time. He stated that he had never met with Rakesh Chikara S/o Shri Daya Nand Chikara, R/o VPO Jaunti, Delhi. During cross-examination by the Ld. Counsel for accused Pankaj Sehrawat he admitted that evidence as he had given that day had been so given by him voluntarily without any pressure or coercion from anyone or that till date there was not a single instance where he had been pressurized or threatened by Neeraj and Pankaj. He was not cross-examined on behalf of the other accused persons.

97. PW48 Shri Vijay Kumar deposed that he was working as a Property Dealer. In 2013, he had invested money Rs.15 lakhs in a plot located near Industrial Area Bawana. He had given a cheque for the said amount in the name of one Rakesh. The transaction had taken place in the office of Mr. Goyal at Rohini and the deal had been got done by one Mr. Thakaran and Sanjay Rana. A Power of Attorney was executed in his name by the person whose name he did not remember. He also had one or two other partners in the deal and one of them was Mr. Chand Ram, Ex-MLA from Bawana Vidhan Sabha Constituency and he had received the plot. He identified his photograph on the copy of GPA dated blank executed by Shri Satyanarayan S/o Shri Shankar Lal and Bhagwan Dass S/o Shri Khem Chand in favour of Shri Chaudhary Chand Ram, Shri Vijay Kumar and Rakesh Kumar but he stated that he was not certain if the signatures at State Vs. Pankaj Sehrawat and Ors. Page No.90 of 385 point B were his. The GPA is Mark PW48/1. He identified his photograph on the copy of Agreement to Sell dated 04.06.2013 executed by Shri Satyanarayan S/o Shri Shankar Lal and Bhagwan Dass S/o Shri Khem Chand in favour of Shri Chaudhary Chand Ram, Shri Vijay Kumar and Rakesh Kumar but he stated that he was not certain if the signatures at point B were his. The Agreement to Sell is Mark PW48/2. He identified his photograph on copy of receipt dated 04.06.2013 executed by Shri Satyanarayan S/o Shri Shankar Lal and Bhagwan Dass S/o Shri Khem Chand in favour of Shri Chaudhary Chand Ram, Shri Vijay Kumar and Rakesh Kumar but he stated that he was not certain if the signatures at point B were his. The receipt is Mark PW48/3. He was not certain if in the copy of possession letter dated 04.06.2013 executed by Shri Satyanarayan S/o Shri Shankar Lal and Bhagwan Dass S/o Shri Khem Chand in favour of Shri Chaudhary Chand Ram, Shri Vijay Kumar and Rakesh Kumar the signatures at point A were his. The possession letter is Mark PW48/4.

98. The Ld. Additional PP requested for permission to put questions to the witness as he was not supporting the case of the prosecution entirely which was allowed and during cross- examination by the Ld. Additional PP, he stated that police had called him and enquired from him during the investigation of the present case and volunteered he had himself gone to the Special Cell. The Special Cell had not recorded his statement and volunteered they had only enquired from him. He was shown the statement dated 27.04.2015 recorded under Section 161 Cr.P.C.

State Vs. Pankaj Sehrawat and Ors. Page No.91 of 385 and he stated that he did not remember fully if he had given the said statement. The statement is Mark PW48/5. He denied the suggestion that he was deliberately stating that he did not remember fully if he had given the statement to the police or that he had given the said statement to the police. He had not stated to the police that in the month

of February 2013, his friends namely Sanjay Rana and Joginder Thakaran told him that one plot of 600 square yards situated in Khasra No.38/24, Village Shahbaad Daulat Pur, Shiv Vihar was for sale. He was confronted with Mark PW48/5 wherein it was so stated. He had stated to the police that Sanjay Rana and Joginder Thakaran told him that their friends Chand Ram and Rakesh Kumar were also interested in purchasing part of the plot. He had not stated to the police that Sanjay Rana and Joginder Thakaran had told him that the owners of the plot were Satyanarayan and Bhagwan Dass; that he had agreed to the deal and thereafter gone to see the plot; that in the first week of February 2013, Joginder Thakaran and Sanjay Rana had gone to the office of Rajesh Bansal situated in Nirman Group, Rohini Sector-11 where it was agreed from their side to purchase the plot at the rate of Rs.37,000/- per square yard total Rs.2.2 crores; that when the rate was being settled he was in touch with the said two persons telephonically. He was confronted with Mark PW48/5 wherein the said facts were stated.

99. PW48 had not stated to the police that Sanjay Rana and Joginder Thakaran had paid Rs.25 lakhs and Rs.5 lakhs by cheque from his side as earnest money; that a period of 4 months State Vs. Pankaj Sehrawat and Ors. Page No.92 of 385 was fixed for making the entire payment for the plot; that on 06.06.2013 from the side of the sellers Shri Satyanarayan, Shri Bhagwan Dass, Shri Subhash @ Pinta, Rakesh Chhikara, Ravinder and 3 other persons and from his side Sanjay Rana, Joginder Thakaran, Rakesh Kumar, Chand Ram and himself had gone to the office of Rajesh Bansal at Rohini to make the final payment and volunteered he was alone when he made the payment. He had not stated to the police that the documents in respect of the property were prepared in the office where he, Rakesh Kumar and Chand Ram were shown as purchaser and Satyanarayan and Bhagwan Dass were shown as Sellers and volunteered he had stated that he had gone to one office but he could not say if it was the office of Rajesh Bansal where the documents in respect of the property were prepared and he had handed over two cheques and Sanjay Rana and Joginder Thakaran were also present. He admitted that he had handed over two cheques bearing No.000112 for Rs.7 lakhs and bearing No.000111 for Rs.8 lakhs drawn on Karur Vyasya Bank Ltd. Account No.4104135000003214. He had not stated to the police that Rs.1.70 crores were given in cash or that cheque No.003792 drawn on Allahabad Bank in the name of Shri Rakesh Kumar for Rs.5 lakhs was handed over. He was confronted with Mark PW48/5 wherein it was so stated. He admitted that they had asked in whose names the cheques were to be made and they were told that they were to be made in the name of Rakesh and they had given cheques in the name of Rakesh of different dates.

100. PW48 stated that he had not stated to the police that after State Vs. Pankaj Sehrawat and Ors. Page No.93 of 385 that the other party counted the money and Satyanarayan and Bhagwan Dass executed a GPA for 600 square yards plot in the name of Rakesh Kumar, Chand Ram and himself and volunteered his deal was only for Rs.24-25 lacs. He had not stated to the police that the GPA was got notarized on 06.06.2013 by Notary Med Singh register entry No.5969 and volunteered he had signed the documents in the office only. He had not stated to the police that Neeraj and Pankaj Bawana were dangerous criminals and were running a notorious gang and they could cause harm to him and his family or that they should be provided security. He was confronted with Mark PW48/5 wherein it was so stated. He denied the suggestion that he had deliberately not revealed the correct facts or denied having stated the facts as mentioned to the police in order to favour the accused persons as he had been won over by the accused persons or that he had given the statement Mark

PW48/5 to the police or that the documents from 852 to 873 in the judicial file were prepared in the office of Rajesh Bansal on the same day or that the signatures in Mark PW48/1 to Mark PW48/4 were his or that he had deliberately denied the same. During cross-examination by the Ld. Counsel for accused persons he stated that he was told that the plot for which the deal was made was near Industrial Plot Bawana. He was not told the Khasra number.

101. PW49 Shri Sanjay Rana deposed that he was doing property work and he was also running a PG. In 2015, on date he did not remember, he received a call from the police asking him to come to their office. He had gone to the office at Chanakya State Vs. Pankaj Sehrawat and Ors. Page No.94 of 385 Puri. The police inquired from him about the deal of a plot but he stated that he had not got done any such deal. Police inquired from him but no statement of his was recorded. The Ld. Additional PP requested for permission to put questions to the witness as he was not supporting the case of the prosecution which was allowed and during cross-examination by the Ld. Additional PP, he admitted that he was called to the Special Cell, Lodhi Road. He was shown the statement dated 27.04.2015 recorded by ACP Manishi Chandra under Section 161 Cr.P.C. and he stated that he had not given any such statement and the same is Mark PW49/1. He denied the suggestion that he was deliberately stating that he had not given the statement to the police or that he had given the said statement to the police. He denied the suggestion that he had stated to the police that in the month of February 2013, his friend namely Rajesh Bansal, who was running the office in the name of Nirman Group, situated at Sector-11 Rohini, told him that one plot of 600 square yards situated in Khasra No.38/24, Village Shahbaad Daulat Pur, Shiv Vihar was for sale or that he had stated to the police that he along with his friend Joginder Thakaran went to the office of Rajesh Bansal and talks were held regarding the sale of the said plot or that Rajesh Bansal told them that the said plot belonged to Satyanarayan and Bhagwan Dass or that he along with Joginder Thakaran asked their friends and partners namely Chand Ram, Vijay Kumar and Rakesh to purchase the said plot and thereafter they had shown the said plot to them. He denied the suggestion that he had stated to the police that the said three friends/ partners got ready to purchase the said plot in the following shares:-

State Vs. Pankaj Sehrawat and Ors. Page No.95 of 385 Chand Ram 20%, Rakesh Kumar 20% and Vijay Kumar 60%. He admitted that Chand Ram, Vijay Kumar and Rakesh were known to him.

102. PW49 denied the suggestion that he had stated to the police that in the first week of February 2013, Rajesh Bansal called both the parties (purchasers and sellers) at his office. He denied the suggestion that he along with Joginder Thakaran went to the office of Rajesh Bansal on behalf of their partners/ friends i.e. Chand Ram, Rakesh Kumar and Vijay Kumar and one Rakesh came on behalf of Satyanarayan (owner) and one Subhash @ Pinta along with Rakesh @ Babla came on behalf of his father Bhagwan Dass there. He denied the suggestion that he had stated to the police that he along with Joginder Thakaran on behalf of the partners agreed to purchase the said plot for Rs.2.20 crores (Rs.37,000/- per sq. yds); or that he along with Joginder Thakaran were in continuous touch with their partners through phone regarding the said deal; or that he along with Joginder Takaran handed over Rs.25 lakhs in cash and one cheque of Rs.5 lakhs to Rajesh Bansal as earnest money on behalf of their partners; or that it was agreed that the whole money regarding the

plot would be deposited in four months; or that on 06.06.2013, Satyanarayan, Bhagwan Dass, Subhash @ Pinta, Rakesh Chikara, Ravinder and three other persons came from the side of sellers and he along with Joginder Thakaran, Vijay Kumar, Rakesh Kumar and Chand Ram came from the side of purchasers and also for making the payment. He denied the suggestion that he had stated to the police that documents regarding the plot were State Vs. Pankaj Sehrawat and Ors. Page No.96 of 385 prepared and in the said documents Vijay Kumar, Rakesh Kumar, Chand Ram were shown as purchasers and Satyanarayan along with Bhagwan Dass were shown as sellers and on the said documents photographs of the said five persons were pasted and they also signed the said documents. He was shown GPA Mark PW48/1, Agreement to Sell dated 04.06.2013 Mark PW48/2, copy of receipt dated 04.06.2013 Mark PW48/3 and copy of possession letter dated 04.06.2013 Mark PW48/4 and he stated that the said documents were not prepared in his presence and that he did not know anything about the said documents. He denied the suggestion that the said documents were prepared in his presence or that he was deliberately deposing falsely in the said regard.

103. PW49 stated that the deed of Will dated 04.06.2013, executed by Shri Satyanarayan was not prepared in his presence and the same is Mark PW49/2. He stated that the deed of Will dated 04.06.2013, executed by Shri Bhagwan Dass was not prepared in his presence and the same is Mark PW49/3. He stated that the indemnity bond dated 04.06.2013, executed by Shri Satyanarayan and Shri Bhagwan Dass was not prepared in his presence and the same is Mark PW49/4. He stated that the affidavit cum undertaking dated 04.06.2013, executed by Shri Satyanarayan and Shri Bhagwan Dass was not prepared in his presence and the same is Mark PW49/5. He denied the suggestion that the said documents were prepared in his presence or that he had stated to the police that thereafter payment i.e. Rs.1.70 crores in cash and three cheques i.e. cheques bearing State Vs. Pankaj Sehrawat and Ors. Page No.97 of 385 No.000112 for Rs.7 lakhs and bearing No.000111 for Rs.8 lakhs drawn on Karur Vyasya Bank Ltd. Account No.4104135000003214 and cheque No.003792 drawn on Allahabad Bank in the name of Shri Rakesh Kumar for Rs.5 lakhs were handed over. He stated that the said cheques were not handed over in his presence. The said cheques are Mark PW49/6 (colly). He denied the suggestion that he had stated to the police that Rakesh Kumar and Vijay Kumar had given the said cheques Mark PW49/6 (colly) in the name of Rakesh on asking of the sellers; or that the said deal was finalized and said documents and said payments were exchanged; or that the said document i.e. GPA was notarized by Notary Medh Singh. He denied the suggestion that he was deposing falsely as he had been won over by the accused persons or that he had deliberately denied the execution of the said deal and execution of the said documents and exchange of payments. He was not cross-examined on behalf of the accused persons despite opportunity being given.

104. PW50 Manoj Verma deposed that he was Senior Sales Manager with HDFC Life. In 2015, he was called to the Special Cell, Lodhi Road and he had informed the police officials that he did not know the accused Pankaj Sehrawat. His statement was not recorded. The Ld. Additional PP requested for permission to put questions to the witness as he was not supporting the case of the prosecution and during cross-examination by the Ld. Additional PP, he was shown the statement dated 02.04.2015 recorded by ACP Manishi Chandra under Section 161 Cr.P.C. and he stated that he had not given any such statement. The statement State Vs. Pankaj Sehrawat and Ors. Page No.98 of 385 is Mark PW50/1. He denied the suggestion that he had stated to the police that he had started a job of cashier in Head Quarter "Z" Restro-Bar, 10 DDA Market, Netaji Subhash Place, Pitampura,

Delhi in October 2009. He denied the suggestion that he had stated to the police that in the month of October 2014 the said Bar was on the verge of closure and he along with his friends namely Arvind Yadav and Sukhbir Kajla took it on rent for Rs.3.5 lakhs per month; or that the said Bar was closed in February 2015; or that the associates of accused persons namely Pankaj Bawania and Neeraj Bawania used to come in the said Restro-Bar and used to enjoy without paying money to them or that they used to give Rs.50,000/- as protection money to Pankaj or that he was deliberately stating that he had not given the statement to the police or that he had given the said statement to the police. He identified the accused Neeraj produced through VC. He stated that he had identified him as his videos came on Facebook. He did not identify the other accused persons. The Ld. Additional PP had pointed out towards the accused Pankaj produced through VC and the witness stated that he did not identify him. He was not cross-examined on behalf of the accused persons despite opportunity being given.

105. PW51 Insp. Vikram Dahiya deposed that in 2015-16, he was posted as SI at Special Cell, Lodhi Colony. The investigation of the present case was going on. ACP Manishi Chandra along with him had arrested accused Amit Malik @ Bhura (the said accused had already been discharged in the present case). He was also similarly a witness to recovery of Sim Card which was State Vs. Pankaj Sehrawat and Ors. Page No.99 of 385 effected at the instance of accused Gurpreet Singh (already discharged). He had also filed a charge sheet in FIR No.839/2015, PS Rajouri Garden in respect of Amit Malik @ Bhura and Naveen Huda @ Bhanja (already discharged). He stated that on 03.06.2015, he was entrusted with the task of execution of proceedings under Section 82 Cr.P.C. regarding the accused Rambeer Shokeen. He had affixed the copy of the process under Section 82 Cr.P.C. at the residential address, office and Chopaal of the village and also in the Court and also made an announcement where the said addresses were located. He had recorded the statements of Jagdev Shokeen, brother of accused Rambeer Shokeen and Narender Kadiyan. The said statements are Mark PW51/1 (colly). A report forwarded to the ACP by him on 04.07.2015 is Mark PW51/2. The DD entries regarding his departure and arrival are Mark PW51/3 (colly).

106. PW51 further stated that on 27.11.2016, accused Rambeer Shokeen was apprehended from Yuva Shakti School, Rama Vihar and one pistol 9 mm along with two live cartridges was recovered from his possession and the same was seized vide seizure memo Mark PW51/4. Further, before seizure of the weapon, a sketch of pistol and live cartridges was prepared and the same is Mark PW51/5 and FIR No.65/16, PS Special Cell was registered. On 01.12.2016, ACP Govind Sharma arrested the accused Rambeer Shokeen in office of NDR Special Cell vide arrest memo Ex.PW14/1 in the present FIR. Further, ACP Govind Sharma also recorded the disclosure statement of the accused Rambeer Shokeen and the same is Ex.PW51/A. ACP Govind State Vs. Pankaj Sehrawat and Ors. Page No.100 of 385 Sharma recorded his statement under Section 161 Cr.P.C. On 05.12.2016, accused Rambeer Shokeen was again interrogated and supplementary disclosure statement was recorded by ACP Govind Sharma and the same is Ex.PW51/B. IO ACP Govind Sharma recorded his statement under Section 161 Cr.P.C. Further, on 07.04.2015, accused Neeraj Bawania along with accused Rashid @ Guddu was apprehended from Mundka underpass, on Karala Mundka Road and illegal weapons were recovered from the possession of both the accused persons by their team members including him. At the time of apprehension, they were travelling in a White Verna Car but he did not remember the registration number and there was a brief exchange of fire at the time of

their apprehension. The said documents were not part of the charge sheet. He identified the accused Rambeer Shokeen and Neeraj produced through VC. During cross-examination by the Ld. Counsel for accused persons other than the accused Rambeer Shokeen, PW51 denied the suggestion that the accused Neeraj did not make any disclosure statement.

107. PW52 Shri Joginder Thakaran deposed that he was doing the work of agricultural property. In 2015 or 2016 on date he did not remember, he had received a call from the police officials asking him to come to their office. He had gone to the office which was a police station but he did not remember the place. The police inquired from him about a plot in Shahbad Village but he stated that he had no knowledge about the same. Police inquired from him but no statement of his was recorded. The Ld. Additional PP requested for permission to put questions State Vs. Pankaj Sehrawat and Ors. Page No.101 of 385 to the witness as he was not supporting the case of the prosecution which was allowed and during cross-examination by the Ld. Additional PP, he was shown the statement dated 27.04.2015 recorded by ACP Manishi Chandra under Section 161 Cr.P.C. and he stated that he had not given any such statement. The statement is Mark PW52/1. He denied the suggestion that he was deliberately stating that he had not given the statement to the police or that he had given the said statement to the police. His testimony was to the same effect as that of PW49. He denied the suggestion that he was deposing falsely as he had been won over by the accused persons or that he was not deliberately telling the address of Special Cell where his statement was recorded by the IO or that he had deliberately denied the execution of the deal and execution of the documents and exchange of payments. He was not cross-examined on behalf of the accused persons despite opportunity being given.

108. PW53 Shri Sandeep Gaba deposed that he had business of iron. He knew nothing about the present case. Police had called him for inquiry on date he did not remember but he had come back as he did not know anything. The Ld. Additional PP requested for permission to put questions to the witness as he was not telling the truth which was allowed and during cross-examination by the Ld. Additional PP, he was shown the statement dated 10.05.2015 recorded by ACP Manishi Chandra under Section 161 Cr.P.C. and he stated that he had not given any such statement. The statement is Mark PW53/1. He denied the suggestion that he was deliberately stating that he had not given State Vs. Pankaj Sehrawat and Ors. Page No.102 of 385 the statement to the police or that he had given the said statement to the police. He denied the suggestion that before November 2014, he used to run a book shop and one Kabadi shop in Subhash Nagar area to earn money and volunteered he had a steel plant. He denied the suggestion that he had stated to the police that a local criminal and a local financier namely Gurpreet Singh resident of Mahavir Nagar came to his house in November 2014 and took him to one factory situated in Village Kamruddin Nagar area; or that the said Gurpreet Singh introduced him to gangster Neeraj Bawania who was present there with his associates Naveen Huda @ Bhanja and others or that the said Gurpreet threatened him to pay Rs.50,000/- per month as protection money to Neeraj Bawania or face dire consequences or that the accused Neeraj Bawania also showed his pistol to him and also fired from the pistol on the wall of the factory and he got scared due to the same and thereafter he started paying Rs.50,000/- as protection money.

109. PW53 further denied the suggestion that Neeraj Bawania along with Gurpreet also asked him to help Gurpreet in identifying the business/ bookies who could pay extortion/ protection money for the gang of Neeraj Bawania or that the accused Gurpreet Singh used to take protection money in the last week of every month or that Gurpreet Singh, Neeraj Bawania and their associates had threatened him and extorted over Rs.2 lakhs on different occasions or that in the month of January 2015, accused Neeraj Bawania and Rambeer Shokeen, Ex- MLA Mundka had also called him to their office at Village Kamruddin State Vs. Pankaj Sehrawat and Ors. Page No.103 of 385 Nagar, Delhi and extorted Rs.5 lakhs from him for the assembly elections of 2015 and also used his car for campaigning purpose during the assembly elections of 2015. He denied the suggestion that he was not deliberately telling the address of Special Cell where his statement was recorded by the IO. He did not identify any of the accused persons. The Ld. Additional PP pointed out towards the accused Rambeer Shokeen and accused Neeraj Bawania who had been produced through VC but the witness stated that he did not identify them. He denied the suggestion that he was deliberately not identifying the accused persons as he had been won over by them. He was not cross-examined on behalf of the accused persons despite opportunity being given.

110. PW54 Shri Mukesh Agarwal deposed that earlier he was selling mobiles. Around 4-5 years prior, two persons had come to him at his shop 44, Free School Street, Calcutta-16 to purchase a mobile and they purchased one Blackberry phone and the make of the other phone he did not remember. He had not taken any document from them. He was shown a photocopy of the bill in the name of Vikas and he identified the same as the bill which was issued against purchase of one mobile make INTEX. The attested copy of the same is Mark PW54/1. After sometime police officials had come and inquired from him and he checked from the CCTV footage and told them who had come to purchase the mobile. The CCTV footage was also handed over to the police (no such CCTV footage is on record). Again said, it was possible that he did not hand over the CCTV footage and he had done the recording and kept with himself. After sometime police State Vs. Pankaj Sehrawat and Ors. Page No.104 of 385 had brought one person to his shop and asked him if he had purchased the mobile from him. He had identified the said person at that time as the matter was not very old. He stated that could not identify the said person at present as long time had lapsed. He was shown the accused persons through video conferencing and he stated that he was not certain if the said person was amongst the accused and the said person was fair, bald and strong. The Ld. Additional PP had pointed out towards Neeraj Bawana but the witness stated that he was not certain if he was the same person.

111. The Ld. Additional PP requested for permission to put some questions to the witness which was allowed and during cross-examination by the Ld. Additional PP, PW54 denied the suggestion that he was deliberately not identifying the accused Neeraj Bawana as he had been won over by him. He admitted that police had given him a notice under Section 160 and 91 Cr.P.C., copy of which is Mark PW54/2. His reply to the same is Ex.PW54/A. He admitted that the said persons had come to his shop twice i.e. on 06.03.2015 and 11.03.2015. He admitted that one of the persons who called himself Vikas had sold a mobile make LG Nexus 6 to him and in exchange of the same, second- hand mobile make LG G-3 was given to Vikas. He admitted that he had handed over the copy of the register to the police showing sale of both the mobile phones i.e. one Blackberry Mobile phone on 06.03.2015 and on 11.03.2015 regarding the LG phones. Copy of the register is Mark PW54/3 (colly)

and the entries are at point X and Y. He was not cross-examined on behalf of the accused Rambeer Shokeen despite opportunity being given.

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112. PW55 Shri Rakesh Kumar deposed that he was a Contractor. Around 10-12 years prior, he was called by the police to the office of Special Staff at Janak Puri. His name and other particulars were asked and then he was sent back. No inquiry was done from him nor his statement was recorded. The Ld. Additional PP requested for permission to cross-examine the witness as he was not supporting the case of the prosecution which was allowed and during cross-examination by the Ld. Additional PP, he was shown the statement dated 27.04.2015 recorded by ACP Manishi Chandra under Section 161 Cr.P.C. and he stated that he had not given any such statement. The statement is Mark PW55/1. He denied the suggestion that he was deliberately stating that he had not given the statement to the police or that he had given the said statement to the police or that he had stated to the police that in February 2013, his two old friends, who were property dealers, namely Sanjay Rana and Joginder Thakaran told him that one plot of 600 sq. yrds i.e. Khasra No.38/24, Village Shahbad Daulat Pur, Shiv Vihar, Delhi was for sale and volunteered, his friends had told him about a plot in Bawana Industrial Area and there were talks regarding the same in the office of Rajesh Bansal and he had given a blank cheque of Rs.5 lakhs to Rajesh Bansal. He denied the suggestion that Sanjay Rana and Joginder Thakaran told him that Satyanarayan and Bhagwan Dass were the owners of the said plot or that Sanjay Rana and Joginder Thakaran also asked him to purchase some part of the said plot in partnership with Vijay Kumar and Chand Ram or that thereafter he along with Vijay and Chand Ram visited the said plot for the purpose of purchasing it State Vs. Pankaj Sehrawat and Ors. Page No.106 of 385 or that he agreed to purchase 20% part of the said plot and Chand Ram and Vijay agreed to purchase 20% and 60% part of the plot respectively. His further testimony was to the same effect as that of PW49.

113. PW55 was shown GPA Mark PW48/1, Agreement to Sell dated 04.06.2013 Mark PW48/2, copy of receipt dated 04.06.2013 Mark PW48/3 and copy of possession letter dated 04.06.2013 Mark PW48/4 and he stated that the said documents were not prepared in his presence and that he did not know anything about the said documents and his signatures and photos were not there on the said documents. The Ld. Additional PP had pointed to signatures at point X on every page and he denied that the same were his signatures. The Ld. Additional PP had pointed to the photograph at point X1 and he denied the same as being his photograph. He denied the suggestion that the said documents were prepared in his presence or that he was deliberately deposing falsely in the said regard or that he was deliberately denying his signatures and photographs on the said documents. He denied the suggestion that he had stated to the police that thereafter payment i.e. Rs.1.70 crores in cash and three cheques i.e. cheque bearing No.000112 for Rs.7 lakhs and bearing No.000111 for Rs.8 lakhs drawn on Karur Vyasya Bank Ltd. Account No.4104135000003214 and cheque No.003792 drawn on Allahabad Bank in the name of Shri Rakesh Kumar for Rs.5 lakhs were handed over. He identified his signatures at point A on the same and volunteered the cheque bearing No.003792 belonged to him but the same was blank and nothing was written State Vs. Pankaj Sehrawat and Ors. Page No.107 of 385 on it. He was not cross-examined on behalf of the accused persons despite opportunity being given.

114. PW56 Shri Chand Ram deposed that he was an Ex-MLA and remained MLA from 1993-1998 on the ticket of BJP. Around 3-4 years prior, he was called by the police to the office of Crime Branch at place he did not remember. No inquiry was done from him nor his statement was recorded. The Ld. Additional PP requested for permission to cross-examine the witness as he was not supporting the case of the prosecution which was allowed and during cross-examination by the Ld. Additional PP, he was shown the statement dated 27.04.2015 recorded by ACP Manishi Chandra under Section 161 Cr.P.C. and he stated that he had not given any such statement. The statement is Mark PW56/1. He denied the suggestion that he was deliberately stating that he had not given the statement to the police or that he had given the said statement to the police. He denied the suggestion that he had stated to the police that in February 2013, his two old friends, who were property dealers, namely Sanjay Rana and Joginder Thakaran told him that one plot of 600 sq. yds i.e. Khasra No.38/24, Village Shahbad Daulat Pur, Shiv Vihar, Delhi was for sale and volunteered Joginder Thakaran was his friend-cum-Party worker but Sanjay Rana was not known to him. On date he did not remember Joginder Thakaran had called him on phone and told him about a plot the particulars of which he did not remember and which he had never seen and told him to purchase it but he told him that he did not want to purchase it. He told him that he could make his office there. He asked him how much he State Vs. Pankaj Sehrawat and Ors. Page No.108 of 385 would have to pay and he stated that about Rs.5 lakhs would come to his share which he would have to pay by cheque. He told him that at that time he did not have that much money and someone should pay on his behalf and he would return the money in installments. One Rajesh told him that he was getting the plot sold and he asked him to give the cheque. He did not give any cheque or cash and if any friend gave, he could not say who had given but a cheque of Rs.5 lakhs was handed over on his behalf. He was asked to give 3-4 photos and he handed over the same. Similar suggestions were put to him as put to PW49 and PW55 which he denied. He was confronted with the statement Mark PW56/1 wherein all the said facts were stated.

115. PW56 was shown GPA Mark PW48/1, Agreement to Sell dated 04.06.2013 Mark PW48/2, copy of receipt dated 04.06.2013 Mark PW48/3 and copy of possession letter dated 04.06.2013 Mark PW48/4 and he stated that the said documents were prepared in his presence. He identified his signatures on point Y on every page on the said documents and his photographs at point Y1 on the said documents. He identified his signatures on the deed of Will dated 04.06.2013, executed by Shri Satyanarayan, which is Mark PW49/2 at point Y on every page stating it to be a true copy as also on the deed of Will dated 04.06.2013, executed by Shri Bhagwan Dass which is Mark PW49/3 and on indemnity bond dated 04.06.2013, executed by Shri Satyanarayan and Shri Bhagwan Dass, which is Mark PW49/4 and on affidavit cum undertaking dated 04.06.2013, executed by Shri Satyanarayan and Shri Bhagwan Dass which is State Vs. Pankaj Sehrawat and Ors. Page No.109 of 385 Mark PW49/5. He stated that the cheques Mark PW49/6 (colly) were not handed over in his presence. Further, similar suggestions were put to him as to PW49 and PW55 which he denied. He was not cross-examined on behalf of the accused persons except on behalf of the accused Rambeer Shokeen despite opportunity being given and during cross-examination by the Ld. Counsel for the accused Rambeer Shokeen, PW56 could not tell the amounts but all the concerned persons had given cheques. He had not written the words 'True Copy' above his signature and the words 'Chand Ram' below his signatures on the documents and volunteered the same were written by Rajesh. He stated that he got possession of his share of the plot.

116. PW57 Dr. Dinesh Modi deposed that he ran a small Nursing Home by the name Sant Soham Hospital at Bawana, Delhi-110039. In the year he did not remember, he received a ransom call on his mobile bearing No.9212126388. A demand of Rs.25 lakhs was made. It was a computerized number from which the call was received. No threat was made. He ignored the same. He made a complaint to the police on which FIR was registered and to his knowledge no one was arrested in the said FIR. He was shown certified copy of FIR No.179/2012 PS Bawana and he stated that the said FIR was lodged on the complaint made by him. Certified copy of the charge-sheet including the FIR is Ex.PW57/A (pages 1741 to 1767). The Ld. Additional PP requested for permission to cross-examine the witness as he was not fully supporting the case of the prosecution which was allowed and during cross-examination by the Ld. State Vs. Pankaj Sehrawat and Ors. Page No.110 of 385 Additional PP, he admitted that he was called to the office of Special Cell NDR, Lodhi Colony and ACP Manishi Chandra recorded his statement in FIR No.10/2015. He was shown his statement dated 19.08.2015 recorded under Section 161 Cr.P.C. and he denied having made the said statement to the police. The statement is Mark PW57/1. He admitted that he had stated to the police that on 23.05.2012 two persons had come in his OPD chamber and pointed a gun towards him. He admitted that they threatened him but he denied the suggestion that they threatened him in the name of Neeraj Bawania. He was confronted with Mark PW57/1. He denied the suggestion that he had deliberately denied that he was threatened in the name of Neeraj Bawania as he had been won over by him. He admitted that they demanded extortion money of Rs.25 lakhs and also demanded to give the permanent possession of Chemist Shop in the New Building. He admitted that on the same day HC Joginder from PS Bawana had come to the clinic and he requested him for help and told him about the incident. He admitted that he advised him to meet ACP Kanjhawala or that on the next day he met ACP Kanjhawala but he did not give any complaint.

117. PW57 further admitted that on 26.05.2012, he again received a threatening call on which he gave a complaint and FIR No.179/2012 was registered. He denied the suggestion that he had stated to the police that Rahul Kala and Deepak @ Deepa had come to his clinic. He was confronted with Mark PW57/1 wherein it was so stated. He admitted that during investigation he had identified accused Rahul Kala in Tihar and volunteered he State Vs. Pankaj Sehrawat and Ors. Page No.111 of 385 was prompted. He denied the suggestion that he was deposing falsely that he was prompted to identify the accused Rahul Kala as he had been won over by the accused persons regarding the said fact. He did not identify any accused. The Ld. Additional PP had pointed towards the accused Rahul Kala who had been produced through VC but he stated that he did not identify him. He denied the suggestion that he was deliberately not identifying the accused Rahul Kala as he had been won over by him. He was not cross-examined on behalf of the accused Rambeer Shokeen.

118. PW58 Shri Lalit Mathur deposed that he was a contractor by profession and did civil contracts for the government. He did not know anything about the present case. He stated that Lodhi Colony Police had called him many years back and had enquired from him. He did not remember what he had told them. He did not remember if police had recorded his statement. The Ld. Addl. PP for State requested for permission to cross-examine the witness as he was stated to be resiling from his earlier statement which was allowed and during cross-examination he was shown his statement dated 27.04.2015 recorded under Section 161 Cr.P.C. and he stated that he did not remember if he had made the said statement to the police. The said statement is Mark PW58/1. He denied the

suggestion that he was intentionally denying the fact of recording of statement dated 27.04.2015 as he had been won over by the accused persons. He stated that he was running a tile manufacturing factory in Majari Village. He admitted that he was having mobile No.9958900845 in 2015. He admitted that on 21.02.2015, when State Vs. Pankaj Sehrawat and Ors. Page No.112 of 385 he was at his flat at Rohini, he had received a call on his said mobile number and the caller had asked him if he had bulb factory in Majra. He admitted that he told the caller that he ran a tile factory and not a bulb factory. He did not remember if the said person had stated his name to be Bali and volunteered he had received a threat but he did not remember the name. He did not remember if he had stated that he was the brother of Neeraj Bawana, who is a desperate and wanted criminal of Delhi or that if he had demanded Rs.50 lakhs from him or that he told him that he would not give the amount or that thereafter he threatened to kill him through his associates in a few days. He denied the suggestion that he was deliberately stating that he did not remember the said facts as he had been won over by the accused persons or that he had stated the said facts to the police. He admitted that he had disconnected the phone thereafter and during the night he received two threatening calls and volunteered he did not pick the calls. He denied the suggestion that he had stated to the IO that he had picked the calls and the caller threatened him to pay the money or he would kill him. He was confronted with Mark PW58/1 wherein it was so stated.

119. PW58 admitted that he received another threatening call during the day time but he did not remember the name of the caller. He denied the suggestion that he had stated to the IO that the caller was Naveen Bali or that he asked him to pay or that when he refused to pay the money he told him that it appeared that he was not interested in running the factory or that he threatened him that he would shoot him in the head and he would State Vs. Pankaj Sehrawat and Ors. Page No.113 of 385 not allow him to sit in the factory. He was confronted with Mark PW58/1 wherein it was so stated. He admitted that he had lodged FIR in PS Samaypur Badli on 24.02.2015 but he did not remember the FIR number. He could not say if the FIR number was 246/2015. He had not stated to the police that later on Naveen Bali and his associates were arrested in the said FIR. He was confronted with Mark PW58/1 wherein it was so stated. He was not cross-examined on behalf of the accused Rambeer Shokeen despite opportunity being given.

120. PW59 Shri Anoop Singh deposed that he is a farmer. In January, 2015 he had received a call from Naveen Bali on his mobile, the number of which he did not remember. He also did not remember the number from which the call was made. He had made a recording of the call by Bali. He stated that 13 of them jointly owned a 400 square yards plot at Prahladpur. The accused Naveen had got his Mami namely Snehlata to take possession of the said plot. They had filed a Civil Suit in respect of the same which was pending in the Rohini Court. He told him that he was Naveen Bali calling from Tihar Jail and asked him if he knew him. He told him that he did not know him. He stated that he also owned 1000 square yards of agricultural land in Village Prahladpur. The accused Naveen Bali asked him to vacate the said plot otherwise he would kill him and he told him what he would do with the plot if he was not alive. He made a complaint at PS Shahbad Dairy on which the FIR was registered. He was shown copy of FIR No.94/2015 PS Shahbad Dairy and the contents of the FIR were read over to the witness and he stated State Vs. Pankaj Sehrawat and Ors. Page No.114 of 385 that it was the same FIR which he had got lodged. The same is Mark PW59/1. The case was sent to Special Cell. The recording that he had done was also handed over to Special Cell. He stated

that the said case was still pending. He stated that he could not identify Naveen Bali as he had never seen him. The Special Cell at Lodhi Road had also called him for inquiry.

121. The Ld. Additional PP requested for permission to put questions to the witness as he was not fully supporting the case of the prosecution which was allowed and during cross- examination by the Ld. Additional PP, PW59 did not remember if the number from which Naveen Bali had called him on 23.01.2015 was 8510005137. He admitted that Special Cell, Lodhi Road had recorded his statement but he denied having made the same. The said statement is Mark PW59/2. He denied the suggestion that he was deliberately denying the statement Mark PW59/2 to the police as he had been won over by the accused persons or that on 24.01.2015, he had received a call from mobile number 9711555592 of Deepa Pehlwan who had threatened him to kill him if he did not vacate the plot of 1000 square yards. He denied the suggestion that he was deliberately denying having stated the same to the police or that he had stated to the police that Naveen Bali and Deepa Pehlwan were members of Neeraj Bawania Gang or that they wanted to take possession of his plot after threatening him and volunteered he had only stated about the call by Naveen Bali. He was confronted with Mark PW59/2 wherein it was so stated. He denied the suggestion that he had denied the factum regarding Deepa State Vs. Pankaj Sehrawat and Ors. Page No.115 of 385 Pehlwan as he had been threatened by him. He was not cross- examined on behalf of the accused Rambeer Shokeen despite opportunity being given.

122. PW60 Shri Gurmeet Singh Sabarwal @ Meeta deposed that earlier he was doing work of Tour & Travels and at present he was running a small restaurant. Gurpreet was the nephew of his friend Sukhbinder Singh. Gurpreet used to come to the house of Sukhbinder Singh and he also used to go to his house. He became friends with Gurpreet who was his age. They used to meet often. He did not know anything else about the case. He stated that police had called him for enquiry in the present case in 2015 at Lodhi Road. Police had recorded his statement and volunteered he had only told and the statement was recorded by police officials themselves. He was shown his statement which is Ex.PW60/A and he stated that some part of the statement was made by him but the part regarding the amount was not stated by him.

123. The Ld. Addl. PP for State requested for permission to cross-examine the witness as he was stated to be resiling from his earlier statement which was allowed and during cross- examination he stated that he had stated to the police that he was in regular touch with Gurpreet and used to keep meeting in the house of his Maternal-Uncle Pappi at Vishnu Garden, Delhi. He had not stated to the police that in the last week of October 2014, Gurpreet called him and volunteered he had stated that Gurpreet called him and asked him where he was and he stated that he was at Hari Nagar on which he came there with three other persons State Vs. Pankaj Sehrawat and Ors. Page No.116 of 385 and introduced only Neeraj Bawania to him. He was confronted with Ex.PW60/A wherein he had stated about Gurpreet introducing him to dreaded criminals Neeraj Bawania and Naveen Bhanja. He denied the suggestion that he was deliberately not stating about being introduced to Naveen Bhanja as he had been won over by him or that he had stated to the police that Gurpreet asked him to give them protection money and assured him that no one would disturb him in his illegal betting business and volunteered he did not have any such betting business. He had stated to the police that he had heard of Neeraj Bawania as a dreaded rewarded gangster of Delhi. He had not stated to the

police that Naveen Bhanja was his main associate or that due to fear he agreed to pay them Rs.20,000/- per month as protection money. He was confronted with Ex.PW60/A. He admitted that he had stated to the police that after around 10 days of the meeting, in the first week of November, 2014, he got a call from Naveen Bhanja and he asked him to give Rs.1 lakh as protection money within one month and that he told him that he could only afford the pre-decided amount of Rs.20,000/- per month but Naveen Bhanja told him that he would kill him if the protection money of Rs.1 lakh was not paid and volunteered he did not pay the amount and Naveen Bhanja had told him that his wife was pregnant and he needed the money on which he told him that if he needed Rs.10 to 20 thousand he could take the same from him and there was no talk of any amount being paid per month. He denied the suggestion that he was stating falsely to the said effect.

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124. PW60 had not stated to the police that out of fear he told Gurpreet about the extortion call of Naveen Bhanja on which he told him that he would talk to Neeraj Bawania to reduce the amount and volunteered he had stated that he told Gurpreet about the call and he stated that he would talk to Neeraj Bawania and he would not get any other call. He had not stated to the police that Gurpreet talked to Neeraj Bawania and finally they agreed to receive Rs.50,000/- or that he paid the said amount to Neeraj Bawania through Gurpreet Singh or that thereafter he continued paying Rs.20,000/- per month to Neeraj Bawania till February 2015, that is upto the arrest of accused Neeraj Bawania's brother Pankaj Bawania by Special Cell or that he had paid Rs.1.10 lakhs to gangster Neeraj Bawania through Gurpreet Singh due to fear of life to grant illegal book betting. He was confronted with Ex.PW60/A and volunteered he was not aware whether Gurpreet talked to Neeraj Bawania or not but he stopped receiving the calls and he had not paid any amount to anyone. He had not stated to the police that the accused Neeraj Bawania and his gang members are desperate criminals of Delhi and other States and they may harm him and his family members anywhere and even in Court if called for evidence in the case. He was confronted with Ex.PW60/A. He stated that he could not identify the accused Neeraj even if shown to him. He denied the suggestion that he was deliberately refusing to identify the accused Neeraj as he had been won over by him. PW60 was not cross-examined on behalf of the accused Rambeer Shokeen despite opportunity being given.

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125. PW61 Shri Anoop Singh @ Bittoo Bolder deposed that he runs a restaurant Pooran Singh Ambalewala at Mayapuri and his son Sukwinder Singh Raja does the work of selling car accessories. He stated that he did not know anything about the present case. Police had called him for inquiry on date he did not remember but when Gurpreet had been arrested. He knew Gurpreet as he used to reside in his Mohalla. Police had called him to Lodhi Colony Cell. Police had made enquiry from him and recorded his statement. He was shown his statement and he stated that he had not given such a long statement and he was only asked if he knew Gurpreet to which he stated yes and he was asked to sign some papers. The statement is Mark PW61/1.

126. The Ld. Additional PP requested for permission to cross-

examine the witness as he was not supporting the case of the prosecution which was allowed and during cross-examination by the Ld. Additional PP, PW61 stated that he had stated to the police that Gurpreet Singh was a desperate criminal of their area and volunteered he used to indulge in fighting. He admitted that he had stated to the police that in 2014 he used to do betting with the friends of his circle. He admitted that he had stated to the police that in November 2014 Gurpreet had come to his restaurant and volunteered he used to keep coming. He had not stated to the police that Gurpreet had introduced him to Pankaj Sherawat who is the brother of another dangerous criminal Neeraj Bawania or that they had asked him to pay protection money of Rs.50,000/- per month or that the accused Pankaj Sehrawat had shown him a pistol. He was confronted with Mark State Vs. Pankaj Sehrawat and Ors. Page No.119 of 385 PW61/1. He had stated to the police that he had heard about Neeraj Bawania. He had not stated to the police that on seeing the brother of Neeraj i.e. Pankaj in front of him, he got scared or that they told him to give Rs.50,000/- per month as protection money or that out of fear for his life he used to give protection money to Gurpreet Singh in the last week of every month. He had not stated to the police that the accused Gurpreet Singh, Neeraj Bawania and his friends had on the threat of life taken around Rs.2 lakhs from him or that the accused Neeraj Bawania and his associates are dreaded criminals of Delhi and other States and to stop him from giving evidence, they could cause harm to him and his family anywhere and in the Court. He was confronted with Mark PW61/1. He did not identify the accused produced through VC. The Ld. Additional PP had pointed towards Pankaj Sehrawat who had been produced through VC and he stated that he did not identify him. He denied the suggestion that the accused Pankaj Sehrawat was the same person who had visited his restaurant along with Gurpreet Singh in November 2014 and he was intentionally not identifying him as he had been won over by him. He was not cross-examined on behalf of the accused Rambeer Shokeen despite opportunity being given and during cross examination by the Ld. Counsel for the other accused persons, he stated that he had heard about Neeraj from Gurpreet and volunteered he had never seen him.

127. PW62 Insp. Pramod Chauhan deposed that on 07.04.2015, he was posted as SI at PS Special Cell, Lodhi Colony. He was handed over investigation of case FIR State Vs. Pankaj Sehrawat and Ors. Page No.120 of 385 No.30/2015 PS Special Cell. He arrested the accused Neeraj Bawania and accused Rashid in the said case. He had received the documents regarding stay of Neeraj Bawania in Mumbai vide seizure memo photocopy of which is Mark PW62/1 which were seized by SI Shiv Raj Rawat from Mumbai. In the said case, SI Sohan Lal recovered one AK-47 and SLR which were robbed by the accused Neeraj Bawania and were recovered at the instance of Neeraj Bawania from near Vijay Colony Mundka on 09.04.2015. Photocopy of the seizure memo is Mark PW62/2. He had handed over the photocopies of the seizure memos to the IO of the present case. After investigation, he filed the charge sheet in case FIR No.30/2015 PS Special Cell in which the accused Neeraj Bawania was sentenced to 7 years imprisonment after trial. During cross-examination by the Ld. Counsel for accused persons, he denied the suggestion that the accused Neeraj did not make any disclosure statement and all documents collected qua the accused Neeraj were manipulated. He stated that there was no other accused apart from Neeraj and Rashid in case FIR No.30/2015. Accused Rambeer Shokeen had no relation whatsoever with FIR No.30/2015.

128. PW63 Insp. Kuldeep Bhoriya deposed that on 16.03.2015, he was posted at Special Cell, Northern Range. On that day, in FIR No.94/2015 PS Shahbad Dairy, he had arrested Naveen Dabas

@ Bali s/o Narender Singh r/o Village Sultanpur Dabas, Delhi from Patiala House Court premises. He recorded his disclosure statement in which he had stated that he had another associate Deepak Dabas @ Deepa and along with him he State Vs. Pankaj Sehrawat and Ors. Page No.121 of 385 had committed the offence of FIR No.94/2015. Photocopy of the disclosure statement of accused Naveen Dabas @ Bali is Mark PW63/1. Copy of FIR is Mark PW63/2. During the course of investigation, the full identity of Deepak Dabas @ Deepa was disclosed and that he was the son of late Shri Ved Pal r/o Village Sultanpur Dabas, Delhi. On 10.07.2015, from Village Sultanpur Dabas, he arrested Deepak Dabas @ Deepa. Photocopy of his arrest memo is Mark PW63/3. He recorded the disclosure statement of Deepak Dabas @ Deepa, which is Mark PW63/4. He had filed the charge sheet in the said case after completing investigation and the same was pending trial. He handed over copies of arrest related documents of the said persons to the IO of the present case. He identified the accused Naveen Dabas @ Bali produced through VC.

129. PW64 Insp. Ravinder Kumar Tyagi deposed that on 14.03.2015, he was posted as SI at Special Cell, NDR, Lodhi Colony, New Delhi. On that day, he along with ACP Satyaveer Singh Dagar joined the investigation of the present case. On that day, accused Pankaj along with his mother was apprehended by the CISF staff at Domestic Airport, Delhi. Two live cartridges and one magazine were seized by the CISF staff from them. The IO of PS Domestic Airport had arrested the mother of the accused under Arms Act and accused Pankaj under Section 41.1 Cr.P.C. On that day, accused Pankaj was arrested by the IO ACP Satyaveer Singh Dagar in the present case and his disclosure statement was recorded. Arrest memo of accused Pankaj Sehrawat is Ex.PW64/A. Disclosure statement of the accused State Vs. Pankaj Sehrawat and Ors. Page No.122 of 385 was recorded which is Ex.PW64/B. On 26.03.2015, 28.03.2015, 09.04.2015, 12.04.2015 accused Pankaj was interrogated by ACP/IO Manishi Chandra in the present case and his disclosure statements were recorded, which are Ex.PW64/C, Ex.PW64/D, Ex.PW64/E, Ex.PW64/F respectively. The accused had disclosed that he had purchased a Scorpio Car bearing No.DL 10CT 0917 from extortion amount and he along with his brother was using the said car for running syndicate activities. He stated that he had parked the said vehicle in a plot in his village and that he could get the same recovered. He along with ACP Manishi Chandra along with other staff went to Village Bawana and at the instance of the accused Pankaj Sehrawat, Scorpio Car No.DL 10CT 0917 was recovered and seized vide seizure memo Ex.PW64/G. The documents of the car i.e. copy of RC, Delivery Receipt of the Scorpio, detailed invoice dated 26.06.2014 of the Scorpio and receipt dated 30.06.2014 of Rs.91,174/- were also found in the car and the same were seized vide seizure memo Ex.PW64/G. The said documents are Ex.PW64/H (colly) and the copy of the RC is Mark PW64/1.

130. PW64 further deposed that on 10.04.2015, accused Sunil Rathi had appeared before MCOCA Court at Patiala House Courts on production warrants. After taking permission from the Court, he was interrogated and interrogation memo was prepared, which is Ex.PW64/I. The IO arrested the accused Sunil Rathi in the present case vide arrest memo Ex.PW64/J. On 18.04.2015, 29.04.2015 and 05.05.2015 accused Sunil Rathi was again interrogated by ACP/IO Manishi Chandra in the present case and State Vs. Pankaj Sehrawat and Ors. Page No.123 of 385 his disclosure statements were recorded, which are Ex.PW64/K, Ex.PW64/L, Ex.PW64/M respectively. On 10.04.2015, accused Neeraj was running on PC remand in FIR No.30/2015 PS Special Cell, Delhi. On that day, accused Neeraj was interrogated by ACP/IO Manishi Chandra in this case and arrested vide arrest

memo Ex.PW64/N. His disclosure statement was recorded which is Ex.PW64/O. On 29.04.2015, 06.05.2015 and 07.05.2015 accused Neeraj was again interrogated by ACP/IO Manishi Chandra in the present case and his disclosure statements were recorded, which are Ex.PW64/P, Ex.PW64/Q and Ex.PW64/R respectively. On 23.04.2015, accused Naveen Dabas @ Bali and Rahul Dabas @ Kala were produced on production warrants before the MCOCA Court at Patiala House. ACP/IO Satyaveer Singh Dagar interrogated both the accused persons and prepared their interrogation memos which are Ex.PW64/S and Ex.PW64/T respectively. They were arrested in the present case and their arrest memos are Ex.PW64/U and Ex.PW64/V respectively. On 10.05.2015, accused Naveen Dabas @ Bali was interrogated by ACP/IO Manishi Chandra in the present case and his disclosure statement was recorded, which is Ex.PW64/W. On 10.05.2015, accused Rahul Dabas @ Kala was interrogated by ACP/IO Manishi Chandra in the present case and his disclosure statement was recorded which is Ex.PW64/X.

131. PW64 deposed that on 28.04.2015, accused Gurpreet Singh was arrested by ACP/IO Manishi Chandra in the present case in the office of Special Cell vide his arrest memo Ex.PW64/Y. His disclosure statement was recorded which is State Vs. Pankaj Sehrawat and Ors. Page No.124 of 385 Ex.PW64/Z. On 14.05.2015, accused Gurpreet Singh was again interrogated by ACP/IO Manishi Chandra in the present case and his disclosure statement was recorded which is Ex.PW64/Z1. On 14.05.2015, ACP/IO Manishi Chandra had prepared the transcript of two calls of accused Gurpreet Singh made to Teena on 28.11.2014 and another with Guddu on 07.12.2014. The said transcripts are Ex.PW64/Z2. On 29.06.2015, 07.07.2015 and 04.12.2015 specimen handwritings of the accused Neeraj were obtained before MCOCA Court at Patiala House, which are part of Ex.PW35/1 to Ex.PW35/6 (colly) bearing his signatures at point A on each page. He identified the accused Naveen Dabas @ Bali and the accused Neeraj Sehrawat produced through VC. The identity of the other accused persons was not disputed.

132. During cross examination by the Ld. Counsel for accused persons, PW64 denied the suggestion that accused Neeraj did not make any disclosure statements dated 10.04.2015, 29.04.2015, 06.05.2015 and 07.05.2015 which are Ex.PW64/O, P, Q and R or that the accused Naveen did not make any disclosure statements dated 23.04.2015 and 10.05.2015 which are Ex.PW64/S and W or that the accused Rahul did not make any disclosure statements dated 23.04.2015 and 10.05.2015 which are Ex.PW64/T and X. He stated that he would have to check the record as to whether the name of the accused Rambeer Shokeen surfaced in the disclosure statements made by the other accused persons. He denied the suggestion that no disclosure statements were made by the accused persons regarding the accused Rambeer Shokeen or that the disclosure statements on record were recorded by the State Vs. Pankaj Sehrawat and Ors. Page No.125 of 385 police officials on their own in order to falsely implicate the accused Rambeer Shokeen or that repeated supplementary disclosure statements were being recorded to cover up the deficiencies in the earlier statements.

133. PW65 Shri Ish Kumar deposed that he did the work of Sale Purchase of property and he was doing a job with Pardesi Group, Sector-11, Rohini. On 28.02.2012 at about 1:30 p.m. he along with Harinder Singh, Ajit and other friends were sitting in their office. Two persons aged about 25 years, came to their office and asked where their boss was. He told them that he was going out of India. He asked them what work they had on which they stated that they had come for 'manas maran khatir'

and both of them took out pistols and fired, one at him and the other towards Harinder Singh but it did not hit them and one shot went into the chair and the other in the computer. They ran into the back room and then the said persons escaped. He got an FIR lodged at PS Prashant Vihar bearing FIR No.98/2012 and he had given his evidence in Rohini Court in the said matter. Certified copy of the FIR along with copy of judgment and his statement recorded as PW2 in the said case are Ex.C-3 (colly). When the accused persons in the said FIR were arrested, he had gone to PS Bawana and identified one Manjeet and he did not remember the name of the other person. He could not identify the said persons if shown to him as long time had lapsed.

134. The Ld. Additional PP requested for permission to put questions to the witness which was allowed and PW65 stated that he had identified only two persons one of whom was Manjeet State Vs. Pankaj Sehrawat and Ors. Page No.126 of 385 and he could not say if he had identified Rahul Kala or Naveen Dabas. He denied the suggestion that he had deposed falsely in this regard as he had been won over by the accused persons. He could not identify any of the accused persons who had been produced through VC. The Ld. Additional PP had pointed out towards the accused Naveen Bali and accused Rahul Dabas @ Kala but the witness stated that he was unable to identify them. He denied the suggestion that he had not identified the accused persons as he had been won over by them. He was not cross- examined on behalf of the accused Rambeer Shokeen despite opportunity being given and during cross-examination by the Ld. Counsel for the other accused persons, he denied the suggestion that the allegations had been made against the accused persons at the behest of the police officials to falsely implicate them and to create false evidence against them.

135. PW66 ACP Kailash Singh Bisht deposed that on 29.06.2015, he was posted as Inspector at New Delhi Range, Lodhi Colony, Delhi. On that date, the IO of the case Shri Manishi Chandra directed him to obtain the specimen signature of accused Neeraj Sehrawat after taking Court permission. He along with SI Ravinder Tyagi went to MCOCA Court at Patiala House. Accused Neeraj was produced in the Court concerned. He forwarded an application before the Court for taking the specimen handwriting. Thereafter, he took the specimen handwriting in 10 sheets which are part of Ex.PW35/6 (colly). The Ld. Judge also signed all the 10 sheets. On 07.07.2015, he along with SI Ravinder Tyagi again went to the concerned Court State Vs. Pankaj Sehrawat and Ors. Page No.127 of 385 where the accused Neeraj was produced and he moved an application for obtaining the specimen handwriting of accused Neeraj in the concerned Court. After taking permission from the concerned Court he obtained specimen handwriting of the accused Neeraj on 15 sheets which are part of Ex.PW35/6 (colly). The Ld. Judge also signed the 15 sheets. The identity of the accused was not disputed. He was not cross-examined on behalf of the accused persons despite opportunity being given.

136. PW67 Shri V. Renganathan deposed that on 19.01.2017, he was posted as Joint Commissioner of Police, Special Cell, Delhi. On that day, he received a case file for prosecution sanction under Section 23 (2) MCOC Act, along with the request of DCP Special Cell. He had gone through the file, statements of witnesses, draft charge sheet and other documents on the file. He had also called the concerned IO, ACP Shri Hirday Bhushan and he also inquired from him. After satisfying himself, he accorded sanction on 10.02.2017 against the accused Rambeer Shokeen for offence under Section 3(4) of MCOC Act 1999 (as extended to NCT of Delhi vide notification dated 02.01.2002). He

accorded sanction after going through the statements and all documents on record and after inquiry from IO after applying his mind. The sanction order is Ex.PW67/A. He was not cross-examined on behalf of the accused persons except on behalf of the accused Rambeer Shokeen despite opportunity being given.

137. PW68 Shri Satyaveer Singh (Retired ACP) deposed that on 14.03.2015, he was posted as ACP/SR, Special Cell. On that day, he was also looking after the charge of ACP NDR, Special State Vs. Pankaj Sehrawat and Ors. Page No.128 of 385 Cell as Shri Manishi Chandra, ACP NDR was out of station. Information was received from PS Domestic Airport Delhi that one accused Pankaj Sehrawat who was wanted in the present case was arrested by them under Section 41.1 Cr.P.C. This information was conveyed to him by Insp. Umesh Bharatwal. On this information, he along with Insp. Umesh Bharatwal, SI Ravinder Tyagi and other staff reached PS Domestic Airport Delhi, where they met Rajesh Yadav IO who produced the accused Pankaj Sehrawat. He interrogated the accused Pankaj Sehrawat and on the basis of evidence, he arrested him in the present case vide arrest memo which is Ex.PW64/A. He recorded his disclosure statement which is Ex.PW64/B. IO SI Rajesh Yadav produced accused Pankaj Sehrawat before the Ld. Duty Magistrate. On their request the custody of the accused Pankaj Sehrawat was transferred to the Ld. District Judge as MCOC Act Special Judge was out of Delhi. The accused was produced at the residence of the Ld. District Judge and they were given two days' police custody of the accused and the next day, he handed over the accused and the case file to Shri Manishi Chandra ACP NDR.

138. PW68 deposed that on 23.04.2015, he was again looking after the work of Shri Manishi Chandra ACP NDR as he was on leave. Information was received that two persons who were wanted in the present case namely Naveen @ Bali and Rahul @ Kala were produced in the Court pursuant to production warrants. He along with Insp. Kailash Bisht, SI Ravinder Tyagi and other staff reached the Court and after taking permission from the Court they were interrogated. He arrested the accused State Vs. Pankaj Sehrawat and Ors. Page No.129 of 385 Naveen @ Bali vide arrest memo Ex.PW64/U. He recorded his disclosure statement Ex.PW64/S. He also arrested the accused Rahul @ Kala vide arrest memo Ex.PW64/V. He also recorded his disclosure statement which is Ex.PW64/T. On their request, both the accused persons were remanded in police custody upto 02.05.2015. The case file and the accused persons were handed over to Shri Manishi Chandra ACP NDR on the same day. The identity of the accused persons was not disputed. He was not cross-examined on behalf of the accused persons except accused Rambeer Shokeen despite opportunity being given and during cross-examination by the Ld. Counsel for accused Rambeer Shokeen, he stated that he did not remember when the name of accused Rambeer Shokeen surfaced for the first time and in whose disclosure statement. He denied the suggestion that any of the accused persons had never disclosed anything incriminating against the accused Rambeer Shokeen or that the disclosure statement was recorded by them in order to falsely implicate the accused Rambeer Shokeen in the present case.

139. PW69 Shri Satnarayan Master deposed that he is a retired teacher. He did not know anything about the present case. He did not remember if police had ever called him for any inquiry. The Ld. Additional PP requested for permission to cross- examine the witness as he was not supporting the case of the prosecution which was allowed and during cross-examination by the Ld. Additional PP,

he stated that he did not remember if he was called to the Special Cell, Lodhi Road. He was shown the statement dated 27.04.2015 recorded by ACP Manishi Chandra State Vs. Pankaj Sehrawat and Ors. Page No.130 of 385 under Section 161 Cr.P.C. and he stated that he did not remember if he had given any such statement. The statement is Mark PW69/1. He did not remember if he had stated to the police that he had bought a plot of around 600 sq. yds at Khasra No.38/24, Village Shahbad Daulatpur, Shiv Vihar, Delhi about 20 years prior out of which 300 sq. yds was registered in his name and remaining 300 sq. yds was registered in the name of his friend Shri Bhagwan Dass @ Thekedar. He did not remember if in January 2013, Shri Bhagwan Dass informed him that his son Subhash Chander @ Pinta told him that he had received a call from one person who told him that he was Rakesh Pehlwan of Village Jasoor Khedi, Jhajhar Haryana or if he further told that the said plot belonged to him and he had put bricks on the said plot and he held that property. He did not remember if he told him that he was scared and did not want to indulge in any dispute as he along with his family lived in Delhi and his children were vulnerable. He did not remember if he along with his son-in-law Rakesh Chikara and grandson Ravinder went to the house of Bhagwan Dass and discussed the matter with him. He did not remember whether thereafter he along with Rakesh Chikara, Ravinder and Subhash Chander went to the said plot and found nobody there but fresh bricks were lying and he told Rakesh Chikara and Subhash Pinta to find the other party.

140. PW69 did not remember whether thereafter they came to know that their papers of the plot were not proper and some chains were missing in between or if they went to Ravinder @ Bholu, resident of Village Prahladpur who had sold the said plot State Vs. Pankaj Sehrawat and Ors. Page No.131 of 385 to them and told him that their papers of the plot were not complete. He did not remember if he told them that he gave all the documents to them and there was no fault with the documents or that thereafter, Rakesh Chikara and Subhash Pinta had found out that Rakesh Pehlwan of Jasoor Khedi was friend of notorious gangster Neeraj Bawana who was operating from jail and he was also his relative. He did not remember if he had stated to the police that Neeraj Bawana is Bhanja of Rambeer Shokeen, a powerful politician. He did not remember if he along with Bhagwan Dass decided that in this old age they did not want to get into any trouble with the said gangsters and their families were vulnerable. He did not remember if Bhagwan Dass asked him to request his son-in-law Rakesh Chikara to help them in the matter and to see if they could get some money from the property, even if it had to be sold to someone from the gang of Neeraj Bawana. He did not remember if he asked Rakesh Chikara to settle the dispute with the gangster's relative or that after a couple of days Rakesh Chikara informed him that at best, he and Bhagwan Dass were being offered money equivalent to 100-100 sq. yds each while the remaining 400 sq. yds would have to be surrendered free of cost. He did not remember if he also informed him that there was a threat to their lives and to their family members if they refused the deal being offered by the members of Neeraj Bawana gang or if he told the said fact to Bhagwan Dass. He did not remember if Bhagwan Dass asked him to get them out of the situation and also handed over the document of the plot to him or if he asked Rakesh Chikara to settle the dispute and to sell the plot as soon as possible.

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141. PW69 stated that he did not remember if after a few days, in the first week of February 2013, Rakesh Chikara gave Rs.5 lakhs to him and told that it was bayana payment for the plot. He did not

remember if on 06.06.2013, he along with Rakesh Chikara and Ravinder went to Nirwan Group Office of Rajesh Bansal at C-1/106/107, Sector-11, Rohini or that Bhagwan Dass along with his son Subhash Chander also came there and one Rakesh Pehlwan resident of Village Jasoor Khedi also came there. He did not remember if he was informed that as per the terms put by the gangsters they all were the sellers of the plot. He did not remember if from the buyer side one Joginder Thakaran, resident of Nangal Thakaran, Sanjay Rana from Village Shahbad Daultapur, Chand Ram son of Late Amar Singh resident of Village Dariyapur, Delhi, Shri Vijay Kumar son of Shri Ishwar Singh, R/o H. No.1, VPO Mangeshpur, Delhi, Rakesh son of Prem Singh, R/o B-7/8, Miyawali Nagar, Delhi were present at the said office or that in the presence of the property dealer Rajesh, he and Bhagwan Dass executed the sale of the said property of 600 sq. yds in the name of Chand Ram, Vijay Kumar and Rakesh, R/o Miyawali Nagar, Delhi through GPA attested by Notary Shri Med Singh (Reg. No.2065/Delhi) bearing registered entry No.5969 dated 06.06.2013. He did not remember if after executing the same, he received Rs.60 lakhs on his and Bhagwan Dass's behalf or if after 2-3 days he gave Rs.27 lakhs to Rakesh Chikara to hand over to Bhagwan Dass after deducting the commission of the mediator. He did not remember if Rakesh Chikara gave Rs.27 lakhs to Bhagwan Dass at his house as a full and final payment for his share of 100 sq. yds or if in total, he State Vs. Pankaj Sehrawat and Ors. Page No.133 of 385 received Rs.32 lakhs for the plot including bayana payment of Rs.5 lakhs. He did not remember if he had stated to the police that he knew the same very well that Neeraj Bawana, Pankaj Bawana and others are very desperate criminals of Delhi and they could harm anyone anytime so necessary protection may be provided to him.

142. PW69 stated that the GPA Mark PW48/1 bears his photo at point Z and his signatures at point Z1 on every page; the Agreement to Sell dated 04.06.2013 Mark PW48/2 bears his photo at point Z and his signatures at point Z1 on every page; copy of receipt dated 04.06.2013 Mark PW48/3 bears his photo at point Z and his signatures at point Z1; copy of possession letter dated 04.06.2013 Mark PW48/4 bears his signatures at point Z1; deed of Will dated 04.06.2013 executed by him is Mark PW49/2 and the same bears his photo at point Z and his signatures at point Z1. He stated that on the deed of Will dated 04.06.2013 executed by Shri Bhagwan Dass the photo was perhaps of Shri Bhagwan Dass. He did not remember if the same was prepared in his presence. The same is Mark PW49/3. He identified his signatures on the indemnity bond dated 04.06.2013, executed by him and Shri Bhagwan Dass which is Mark PW49/4 at point Z1 and on the affidavit-cum-undertaking dated 04.06.2013, executed by him and Shri Bhagwan Dass which is Mark PW49/5 at point Z1. He denied the suggestion that statement Mark PW69/1 was true and correct version of his statement which he had given to the police or that he had stated that he did not remember the facts that had been put to him as he State Vs. Pankaj Sehrawat and Ors. Page No.134 of 385 had been won over by the accused persons. He was not cross- examined on behalf of the accused persons despite opportunity being given.

143. PW70 Inspector Rajesh Kumar deposed that on 14.03.2015, he was posted as Sub-Inspector at PS Domestic Airport, New Delhi. On that day, case FIR No.26/15 was handed over to him for further investigation and in the said case, accused Smt. Sudesh Kumari was interrogated. During her interrogation, she stated that she was going to Kolkata along with her son, namely, Pankaj Kumar. She further disclosed that her son was standing outside the police station at that time. He apprehended her son, namely, Pankaj Sehrawat S/o Shri Prem Singh R/o Village Bawana, Delhi.

Accused Pankaj Sehrawat was interrogated and revealed that he was involved in many criminal cases. Thereafter, he arrested the accused for offence punishable under Section 41.1 Cr.P.C. Information regarding arrest was sent to Special Cell as well as to other police stations. After medical examination of accused, kalandra was prepared and accused was produced before the Court. Special Cell officials also reached the Court and moved application in the Court and accused Pankaj Sehrawat was handed over to them, as he was wanted in the present case. The copy of kalandra is Mark PW70/1; copy of arrest memo is Mark PW70/2; copy of personal search memo is Mark PW70/3. He stated that the kalandra Mark PW70/1 was in his handwriting. He was not cross-examined on behalf of the accused Rambeer Shokeen despite opportunity being given. During cross-examination by the Ld. Counsel for the other State Vs. Pankaj Sehrawat and Ors. Page No.135 of 385 accused persons, he did not remember whether he had handed over the air ticket of the accused to the IO of the present case or not and volunteered he had collected the air ticket during investigation in case FIR No.26/15, PS Domestic Airport, New Delhi. He admitted that the said air tickets were not available in the present case file. In FIR No.26/15, offence under Section 25 Arms Act was involved. He had not received any notice regarding any case in which the accused Pankaj Sehrawat was PO or NBWs had been issued against him and volunteered he had interrogated him and he had revealed about the other cases. He denied the suggestion that any such disclosure was never made either by Pankaj Sehrawat or his mother Sudesh Kumari or that the disclosure as alleged in the case file was recorded at the behest of the police officials of Special Cell only to falsely implicate the accused Pankaj Sehrawat in the present case. In FIR No.26/15, only Sudesh Kumari was the accused.

144. PW71 ASI Surender Kumar deposed that on 04.02.2016, he was posted as ASI at PS Special Cell, Lodhi Colony. On that day, DCP Shri Manishi Chandra handed over to him an application and directed him to go to Dehradun to bring one vehicle from Dehradun Court. On that day, he along with HC Sanjay Dhama went to Dehradun Court and filed the application given by DCP Shri Manishi Chandra regarding vehicle, bearing No.DL-8CAF-9780. The Court of Dehradun ordered regarding handing over of possession of the same to him and they went to police station Doiwala, Dehradun. Thereafter, they took possession of the vehicle from PS Doiwala. Prior to moving the State Vs. Pankaj Sehrawat and Ors. Page No.136 of 385 application in the Court, they had also visited PS Doiwala for verification of the vehicle. They along with the vehicle came back to PS Special Cell, Lodhi Colony and deposited the same in Malkhana. He handed over the documents regarding the same to DCP Shri Manishi Chandra. The application of DCP Shri Manishi Chandra to Dehradun Court along with the order of the concerned Court is Ex.C-54. The copy of FIR Nos.137/15, 138/15 and 139/15, which were registered at PS Doiwala are Ex.C-55 [colly (28-30)]. He was not cross-examined on behalf of the accused Rambeer Shokeen despite opportunity being given. During cross-examination by the Ld. Counsel for the other accused persons he stated that he had gone through the contents of the application handed over to him by DCP Shri Manishi Chandra. He did not remember as to regarding which accused the application was related. Perhaps, it was related to the accused Amit @ Bhura only. No written order was given to him for the said purpose to visit Dehradun Court and volunteered the order was contained in the application itself. He did not know what was the relevance of the said vehicle in the present case.

145. PW72 ASI Sanjeev deposed that on 10.04.2015, he was posted as MHC(M) at PS Special Cell, Lodhi Colony. On that day, HC Gurmeet deposed the contents from personal search of accused Pankaj Sehrawat through RC No.17/21/15. He entered the same into register No.19 vide entry No.2528. Copy of the same is Ex.PW72/A. On 12.04.2015, ACP Shri Manishi Chandra deposed one Mahindra Scorpio, bearing registration No.DL- 10CT-0917 along with photocopy of RC, delivery receipt, retail State Vs. Pankaj Sehrawat and Ors. Page No.137 of 385 invoice dated 26.06.2014 of the said vehicle, receipt of Rs.91,174 dated 30.06.2014 of the Scorpio Car and key. He entered the same in register No.19 vide entry No.2532. Copy of the same is Ex.PW72/B (OSR). On 30.04.2015, ACP Shri Manishi Chandra deposed one sealed parcel sealed with the seal of 'Special Cell NDR 32' containing one CD. He entered the same in register No.19 vide entry No.2546. Copy of the same is Ex.PW72/C (OSR). On 02.05.2015, ACP Manishi Chandra deposed one register. He entered the same in register No.19 vide entry No.2550. Copy of the same is Ex.PW72/D (OSR). On 07.05.2015, SI Sohan Lal deposed three sealed parcels sealed with the seal of 'Special Cell NDR 37' containing micro SD Card of San Disk marked as S-1 to S-3. He entered the same in register No.19 vide entry No.2552. Copy of the same is Ex.PW72/E (OSR). On 12.05.2015, SI Vikram Dahiya deposed four sealed parcels sealed with the seal of 'Special Cell NDR 13' containing micro SD Cards T-1 to T-4, make Kingston. He entered the same in register No.19 vide entry No.2554. Copy of the same is Ex.PW72/F (OSR). On 17.05.2015, ACP Manishi Chandra deposed one sealed parcel sealed with the seal of 'Special Cell NDR 1' containing SIM Card. He entered the same in register No.19 vide entry No.2562. Copy of the same is Ex.PW72/G (OSR).

146. PW72 further deposed that on 02.06.2015, ACP Manishi Chandra deposed two sealed parcels sealed with the seal of 'Special Cell NDR 1' containing two CDs marked as V-1 and V-

2. He entered the same in register No.19 vide entry No.2575.

State Vs. Pankaj Sehrawat and Ors. Page No.138 of 385 Copy of the same is Ex.PW72/H (OSR). On 08.06.2015, he handed over S-1, V-1 and V-2 along with CFSL form to HC Parvesh Rathi with the instructions to deposit the same in CFSL, CBI vide RC No.69/21/15. After deposition, HC Parvesh Rathi handed over to him the acknowledgment receipt on the same day. Copy of RC is Ex.PW72/I (OSR). He was not cross-examined on behalf of the accused Rambeer Shokeen despite opportunity being given. During cross-examination by the Ld. Counsel for the other accused persons he stated that the seals were maintained by General Store. The seals were not deposited with the MHC(M). SI Vikram Dahiya or ASI Sohan Lal and ACP Manishi Chandra had not deposited any seal with him. He denied the suggestion that the articles mentioned in his examination were not deposited in the malkhana on the said dates or that the entries made by him in the register were false and fabricated, which were made at the behest of police officials to create false evidence against the accused persons or that the parcels were not sealed as stated by him in the examination or that the same were manipulated by him at the behest of police officials to create false evidence to support the case of prosecution and to falsely implicate the accused in the present case.

147. PW73 Shri S.N. Shrivastava, Retired Commissioner of Police deposed that in 2015, he was posted as Special Commissioner, Special Cell. He superannuated as Commissioner of Police, Delhi on 30.06.2021. During his posting as Special Commissioner Special Cell in Delhi Police, on

16.02.2015, he received a proposal from Shri Manishi Chandra, the then ACP, State Vs. Pankaj Sehrawat and Ors. Page No.139 of 385 Special Cell, for approval under Section 23 (1) of MCOC Act, to register a case under Sections of MCOC Act against Neeraj Bawania and the seven other criminal syndicate members namely Naveen, Rahul, Pankaj, Amit Malik, Sunil Rathi, Naveen Bhanja and Rambeer Shokeen. On 20.02.2015, after going through the material available on record along with the detailed proposal sent by the ACP and after due application of mind and on being satisfied, owing to larger public interest, he accorded approval for registration and investigation of the case under Sections 3 and 4 of MCOC Act against seven accused persons. On 29.08.2015, he received a request of the IO, Additional DCP Manishi Chandra, to grant sanction under Section 23 (2) of MCOC Act against 10 accused persons namely Neeraj Sehrawat, Naveen Dabas, Rahul Dabas, Pankaj, Amit Malik, Sunil Rathi, Naveen Hooda, Gurpreet Singh, Deepak Dabas and Rambeer Shokeen for offences under Sections 3 and 4 of MCOC Act. In order to satisfy himself as regards the evidence collected against the said accused persons, he summoned the IO Additional DCP Manishi Chandra with complete record of the case and perused carefully the statements of the witnesses and other documents placed on file. After scrutiny of the record, he found that organized crime syndicate led by Neeraj Sehrawat @ Bawania was continuing with their unlawful activities of murder, attempt to murder, extortion, assault on police party etc. by using illegal firearms in Delhi and other states by resorting to violence, threat of violence, intimidation, coercion with the objective of creating terror among people and making pecuniary benefits. After satisfying himself, he accorded sanction against the said 10 accused persons for State Vs. Pankaj Sehrawat and Ors. Page No.140 of 385 offences punishable under Section 3 (4) of MCOC Act vide sanction order dated 09.09.2015. Approval for registration of FIR vide order dated 20.02.2015 is Ex.PW73/A and the sanction order dated 09.09.2015 bearing his signatures at point A is Ex.PW73/B.

148. PW74 Shri Manishi Chandra, DCP deposed that in February 2015, he was posted as ACP Special Cell, Lodhi Colony. He had prepared a proposal for registration of the case under MCOC Act which was forwarded through proper channel for seeking approval of the competent authority as defined under Section 23 (1) (a) of the said Act. The proposal is Ex.PW74/A. The competent authority i.e. the then Special Commissioner of Police, Special Cell had granted approval for the registration of the FIR which is Ex.PW73/A and consequent to this, the present FIR was registered at PS Special Cell on the basis of his complaint dated 23.02.2015 which is Ex.PW20/2. The investigation of the FIR was taken up by himself as per the requirements of the MCOC Act. During the course of investigation, he had formally arrested accused Sunil Rathi, Amit Malik, Deepak Dabas, Neeraj Sehrawat and Naveen Hooda when they were brought on respective production warrants. Also, accused Gurpreet Singh was arrested by him as a fresh arrestee in the course of investigation. Further 3 more accused viz. Pankaj Sehrawat, Naveen Dabas and Rahul Dabas were investigated by him even though their arrests in the present FIR were affected by his colleague ACP Shri Satyaveer Dagar who was looking after his charge during the course of his leaves. He had also arrested State Vs. Pankaj Sehrawat and Ors. Page No.141 of 385 and interrogated accused persons namely Deepak Dabas @ Deepa; Naveen Huda @ Bhanja and Amit Malik @ Bhura (already discharged). He further deposed to the same effect as PW64.

149. PW74 deposed that he tried to search the accused Rambeer Shokeen but in vain. He obtained NBWs against him and thereafter, process under Sections 82 Cr.P.C. and 83 Cr.P.C. was issued

against him. The copy of application for NBWs is Ex.PW74/B. His application regarding process under Sections 82 Cr.P.C. and 83 Cr.P.C. is Ex.PW74/C (colly). The report regarding process under Section 83 Cr.P.C. is Ex.PW74/D (colly). He had issued notice under Section 91 Cr.P.C. to the Branch Manager, Oriental Bank of Commerce, Najafgarh Road, Nangloi, Delhi. The copy of the notice is Ex.PW74/E. He had also requested the Sub-Registrar, Nangloi to attach the property of accused Rambeer Shokeen. Copy of the said notice is Ex.PW74/F. He had also issued notice under Section 91 Cr.P.C. to RTO, Wazirpur, Delhi which is Ex.PW74/G. He also issued notice to Chief Electoral Officer, Kashmere Gate, Delhi regarding enquiry of expenditure and assets declared by Rambeer Shokeen which is Ex.PW74/H. On 16.04.2015, he had issued notice under Section 91 Cr.P.C. to the Regional Passport Officer, Kolkata, West Bengal. The copy of the same along with its acknowledgement is Ex.PW74/I. He had sent eight exhibits to FSL, Rohini, Delhi vide letter dated 10.07.2015 which is Ex.PW74/J. Notice under Section 91 Cr.P.C. was served to General Manager, Durga Showroom, Rama Road, Moti Nagar, State Vs. Pankaj Sehrawat and Ors. Page No.142 of 385 Delhi which is Ex.PW74/K. He also issued notice under Section 91 Cr.P.C., Mark PW21/A, to Satman Automobiles Private Limited, Okhla, Delhi and the same is Ex.PW74/L. The copy of the notice under Section 91 Cr.P.C. to General Manager, Carz Unlimited, Moti Nagar, Delhi dated 23.04.2015 is Ex.PW74/M. Seizure memo of register dated 02.05.2015 is Ex.PW18/2. Notice dated 19.05.2015 to Branch Manager, Indian Bank, Nangloi, Delhi is Ex.PW45/A. Notice under Section 91 Cr.P.C. dated 18.06.2015 to Branch Manager, Indian Bank, Nangloi Delhi is Ex.PW74/N. Notice under Section 91 Cr.P.C. to Branch Manager, Karur Vysya Bank, Rohini Delhi is Ex.PW37/1.

150. PW74 further deposed that he had also got recorded the statements of a few public witnesses under Section 164 Cr.P.C. which are Ex.C-20 (colly); Ex.C-21 (Colly) and Ex.C-22 (Colly). The statement under Section 164 Cr.P.C. of Shri Ranjan Kumar S/o Shri Ashok Kumar is Ex.PW8/A. The application for recording statement of witnesses namely Ranjan Kumar and Shri Kamaldeep Dabas under Section 164 Cr.P.C. is Ex.PW74/O; the proceedings under Section 164 Cr.P.C. and his application for copy of the same are Ex.PW74/P (colly). His application for recording statement of witnesses namely Rajesh Bansal, Rakesh Chikara, Jasbir Singh, Sandeep Sehrawat @ Babloo under Section 164 Cr.P.C. is Ex.PW74/Q. His application for re- recording statement of witnesses namely Rajesh Bansal and Jasbir Singh under Section 164 Cr.P.C. is Ex.PW74/R. The proceeding regarding identification of witness Rajesh Bansal dated 01.05.2015 under Section 164 Cr.P.C. is Ex.PW74/S. The State Vs. Pankaj Sehrawat and Ors. Page No.143 of 385 proceeding regarding identification of witness Jasbir Singh @ Goldy dated 29.04.2015 under Section 164 Cr.P.C. is Ex.PW74/T.

151. PW74 proved the copy of notice under Section 91 Cr.P.C.

having receiving of the Manager of Hotel Narayana Udaipur, Rajasthan as Ex.PW74/U. The reply of the Manager of Hotel Narayana Udaipur, Rajasthan is Ex.PW74/V. During investigation, he had authorized ASI Surrender to bring the vehicle bearing registration No. DL 8C AF 9780 from Dehradun. His application in this regard is Ex.C-54 bearing his signatures at point X. He had also collected the certified copy of the judgment of case FIR No.69/10 PS Hari Nagar which is Ex.PW74/W (colly) regarding the conviction of the accused Neeraj Sehrawat. He stated that the wife of accused Rambeer Shokeen namely Rita Shokeen had visited the office of Special Cell Lodhi Road, New Delhi and handed over to him one request letter regarding seeking time for joining

investigation on behalf of the accused Rambeer Shokeen which is Ex.PW74/X. On her letter his comments are at points A to A1 bearing his signatures at point X. The letter was bearing signatures of Rita Shokeen at point B and C as she had signed at point C in his presence. He stated that during the course of investigation, detailed documentary evidence qua the places of visit, stay and expenses undertaken by the accused Neeraj Sehrawat was collected. Two vehicles one Mahindra Scorpio and one Toyota Etios were seized vide respective seizure memos. Notices were sent out to various authorities for determining the mode of livelihood of the arrested State Vs. Pankaj Sehrawat and Ors. Page No.144 of 385 accused and their responses were collected and placed on file. Specimen handwriting of the accused Neeraj Sehrawat and voice specimen of accused Gurpreet Singh were taken for respective Forensic analysis. Efforts were made to trace the accused Rambeer Shokeen against whom approval had not been accorded but whose role had figured during the course of investigation. After completion of necessary proceedings under Sections 82, 83 Cr.P.C. accused Rambeer Shokeen was declared as proclaimed offender by the concerned Court.

152. PW74 deposed that after completion of investigation, he had moved the proposal seeking sanction to prosecute as required under Section 23 (2) of MCOC Act against the arrested as well as the absconding PO accused and after receipt of the same, the main police report under Section 173 and two subsequent supplementary police reports under Section 173 (8) Cr.P.C. were submitted by him. He was transferred from Special Cell in the month of October 2016 and upon being relieved from the Special Cell, he had entrusted the continuing investigation to his successor Shri Govind Sharma. He identified the accused persons produced through VC except accused Rambeer Shokeen who was not arrested by him.

153. PW75 Shri Rajesh Kumar Jangira, SJA had brought the summoned record i.e. case file of FIR No.30/2015, PS Special Cell, Delhi under Sections 186, 353, 307/34 IPC and 25/27 Arms Act. The seizure memo dated 11.04.2015 of documents which was Mark PW62/1 is Ex.PW75/A (OSR). Seizure memo dated 09.04.2015 of AK47 rifle and SLR which was Mark PW62/2 is State Vs. Pankaj Sehrawat and Ors. Page No.145 of 385 Ex.PW75/B (OSR). Copy of judgment dated 21.08.2016 in FIR No.30/2015 is Ex.PW75/C (OSR) and order on sentence dated 08.09.2016 is Ex.PW75/D (OSR). He was not cross-examined on behalf of the accused persons despite opportunity being given.

154. PW76 Ms. Hoisi Gangte, Assistant Ahlmad had brought the summoned record i.e. case file of FIR No.7/2015, PS Special Cell, Delhi under Sections 25/54/59 Arms Act. The copy of charge sheet is Ex.C-60 (colly) (OSR). The copy of disclosure statement of accused Parvesh Mann @ Sagar dated 06.02.2015 is Ex.PW76/A (OSR). She was not cross-examined on behalf of the accused persons despite opportunity being given.

155. PW77 Shri Hridya Bhushan, ACP deposed that on 31.12.2016 he was posted as ACP, Special Cell, NDR, Lodhi Colony, New Delhi. On that day, the investigation of case FIR No.10/15, PS Special Cell was handed over to him after the previous IO ACP Govind Sharma was transferred from Special Cell, NDR. He perused the case file. During the investigation, he collected the attested copies of documents pertaining to case FIR Nos. 65/2016, 35/2015 and 7/2015 of PS Special Cell and FIR No.764/2014, PS Netaji Subhash Place, Delhi. He also collected certified copies of documents

pertaining to case FIR No.1072/14 of PS Baghpat. During investigation, he also collected the income tax return and PAN card details of the accused Rambeer Shokeen and his wife Ms. Rita Shokeen and their account details from Oriental Bank of Commerce, Nangloi and State Bank of Hyderabad, Rohini, Delhi. He also recorded the statement of the witnesses. He further obtained prosecution sanction under State Vs. Pankaj Sehrawat and Ors. Page No.146 of 385 Section 23 (2) of MCOC Act against the accused Rambeer Shokeen and after completion of investigation he had filed the charge sheet in the Court. The notice under Section 91 Cr.P.C. served upon the Commissioner of Income Tax E-2 Civic Centre, Near NDLS Railway Station is Ex.PW77/A. He was not cross- examined on behalf of the accused persons except accused Rambeer Shokeen despite opportunity being given.

156. PW78 Rakesh Jatav deposed that he worked as a Driver.

He was illiterate. He only knew how to sign in Hindi. In the year 2013, he was a cycle repair mechanic near Mundka. One Bhagwan Dass who used to reside in Rohini had got his bank account opened in Indian Bank many years back. One Ajay was working at the residence of Bhagwan Dass who was a friend of his. Ajay had brought Bhagwan Dass to him and they requested him to help them. They told him that their land had been sold and they wanted to deposit the money in his account on which he stated that he did not have any bank account, thereafter his account was opened by Bhagwan Dass. The amount which was around Rs.18 to 20 lakhs came to his account. After 2-3 days the amount was withdrawn by Bhagwan Dass. He asked him why he did not get the money deposited in the name of his servant on which he stated that his servant Ajay did not have Aadhar Card so the account could not be opened in his name.

157. The Ld. Additional PP requested for permission to cross-

examine the witness as he was resiling from his earlier statement which was allowed and during cross-examination by the Ld. Additional PP, PW78 could not tell the address of Bhagwan Dass State Vs. Pankaj Sehrawat and Ors. Page No.147 of 385 and Ajay and volunteered Ajay used to come at his shop and he had never visited the house of Ajay or Bhagwan Dass. He did not have the mobile number of Ajay and Bhagwan Dass. He did not know any person namely Vijay Kumar who had issued the cheques of Rs.8 lakhs and Rs.7 lakhs in his name. He denied the suggestion that he was unable to tell the complete address and mobile numbers of Ajay and Bhagwan Dass as no such persons existed or that the cheques were handed over to him by the accused Pankaj Sehrawat and he was deposing falsely at the instance of the accused persons as he had been won over by them. He stated that he was called by Special Cell but he did not go, thereafter the officials of Special Cell took him and made inquiries from him. No statement of his was recorded. However, inquiry was made from him. The Ld. Additional PP read out the statement under Section 161 Cr.P.C. to the witness and he denied having made the same. The same is Mark PW78/A. He had not stated to the police that he had three children and he was illiterate or that he had learnt how to sign through his children. He had not stated to the police that he ran a cycle and motorcycle puncture shop in Kamruddin Nagar which he had taken on rent of Rs.5000/- per month and volunteered his shop was in Mundka. He was confronted with the statement Mark PW78/A wherein it was so recorded.

158. PW78 stated that he had stated to the police that he was paying rent of Rs.6000/- per month for his residence. He knew Rambeer Shokeen. He denied the suggestion that the accused Rambeer Shokeen was at a distance of 50-100 mtrs. from his State Vs. Pankaj Sehrawat and Ors. Page No.148 of 385 shop and volunteered it was 5 to 6 kms away. He denied the suggestion that during the elections of Councilor of 2012, he started going to the office of Rambeer Shokeen for lunch and sweet water. He denied the suggestion that at that time, he came into contact with the accused Rambeer Shokeen, Pankaj Sehrawat or that in June 2013, accused Pankaj Sehrawat met him in office and told him to open a bank account or that when he asked him the reason for the same, he stated that he had to receive certain cheques which he would take in his name or that the accused Pankaj Sehrawat gave him Rs.1000/- to open one bank account. He admitted that bank account No.605597918 is his. He denied the suggestion that on 17.06.2013 he could manage to open one bank account No.605597918 with the help of his known persons. He denied the suggestion that on the same day, he gave his account number to the accused Pankaj Sehrawat and he handed over to him three cheques in his name of Rs.5 lakhs, Rs.7 lakhs and Rs.8 lakhs and directed him to deposit the same in his bank and he deposited the same in his bank after filling the receipt. He denied the suggestion that at the direction of the accused Pankaj Sehrawat, he used to visit his bank regularly to inquire regarding clearance of the cheques or that on 20.06.2013 the cheques were cleared and he informed regarding the same to Pankaj or that he along with Pankaj went to the bank and he filled the form to withdraw Rs.20 lakhs but the cashier told them that there was not enough cash amount and to withdraw huge amount, one had to inform the bank one day prior or that he informed regarding the same to Pankaj and the accused Pankaj talked to his uncle Rambeer Shokeen through phone and State Vs. Pankaj Sehrawat and Ors. Page No.149 of 385 Rambeer Shokeen talked to the Bank Manager. He denied the suggestion that on the same day, he withdrew Rs.1 lakh and Rs.14 lakhs in cash and he along with the accused Pankaj went to the office of Rambeer Shokeen and the accused Pankaj handed over the cash amount to Rambeer Shokeen after taking the same from him.

159. PW78 further denied the suggestion that the accused Pankaj asked him to withdraw the remaining amount of Rs.5 lakhs on the next day or that he along with Pankaj went to the bank and he withdrew Rs.5 lakhs and he along with Pankaj went to the office of accused Rambeer Shokeen and accused Pankaj handed over Rs.5 lakhs to the accused Rambeer Shokeen after taking the same from him. He was confronted with his statement Mark PW78/A wherein the said facts were recorded. He denied the suggestion that he had deliberately denied the said facts as he had been won over by the accused persons or that the statement Mark PW78/A was the true and correct version given by him to police officials but he was denying the same as he had been won over by the accused persons. He did not remember whether he had handed over the copy of his bank statement after putting his signatures on the same to the IO of the present case. Copy of passbook of account No.605597918 and bank account statement of the same were shown to the witness who identified his signatures at point A on each page. Copy of the passbook and bank statement are Mark PW78/1 (colly).

160. PW78 stated that he did not identify the accused Pankaj Sehrawat. The Ld. Additional PP had pointed out towards the State Vs. Pankaj Sehrawat and Ors. Page No.150 of 385 accused Pankaj Sehrawat who had been produced through VC but the witness stated that he was not able to identify him. He denied the suggestion that he was deliberately not identifying the accused Pankaj Sehrawat

as he had been won over by him. He identified the accused Rambeer Shokeen produced through VC. He was cross-examined by the Ld. Counsel for the accused Rambeer Shokeen and he stated that he knew the accused Rambeer Shokeen as he had come in his Gali for campaigning and he had also seen him on Television. He had never personally met the accused Rambeer Shokeen. He had never been to the office of accused Rambeer Shokeen. He was not cross-examined on behalf of the other accused persons despite opportunity being given.

161. The Ld. Addl. PP had made a statement dated 19.09.2019 that he may be allowed to drop Ct. Kapil of PS Fugana, District Muzaffarnagar as a witness as he had brought the record pertaining to previous involvement of the accused Amit Malik @ Bhura who had already been discharged by the Court which was allowed. The accused Pankaj Sehrawat, Neeraj Sehrawat, Rahul Dabas @ Kala and Naveen Dabas @ Bali had made a joint statement on 22.2.2020 admitting the following documents:

i) RC No.69/21/15 regarding deposit of intercepted voice calls to CFSL;

ii) FIR, charge-sheets of Crime No.1072/2014 and FIR No.575/2014 PS Baghpat, UP of accused Amit Malik, Neeraj Sehrawat, Naveen Hooda and Sunil Rathi (running into page Nos.

from 1031 to 1043);

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iii) Charge-sheet, FIR and cognizance of FIR No.98/2012 PS Prashant Vihar of accused Naveen Dabas @ Bali and involvement of accused Neeraj Sehrawat and Rahul Kala (running from page Nos. 133 to 1443);

iv) Charge-sheet, FIR and cognizance of FIR No.234/2012 PS Prashant Vihar of accused Neeraj Sehrawat (running from page Nos. 1493-1517);

v) Charge-sheet, FIR and cognizance of FIR No.180/2012 PS Samaypur Badli of accused Neeraj Sehrawat (running from page Nos. 1518-1612);

vi) Charge-sheet, FIR and cognizance and other documents of FIR No.77/2012 PS Bawana of accused Neeraj Sehrawat, Rahul Dabas @ Kala and Naveen Dabas @ Bali (running from page Nos. 1613- 1649);

vii) Charge-sheet, FIR and cognizance and other documents of FIR No.53/2012 PS Bawana, Delhi of accused Neeraj Sehrawat, Rahul Dabas @ Kala and Naveen Dabas @ Bali (running from page Nos. 1650-1707);

viii) Charge-sheet, FIR and cognizance of FIR No.99/2012 PS Bawana, Delhi of accused Neeraj Sehrawat, Pankaj Sehrawat and Deepak Dabas (running from page Nos. 1708-1736);

ix) Charge-sheet, FIR and cognizance of FIR No.179/2012 PS Bawana, Delhi of accused Neeraj Sehrawat, Rahul Dabas and Deepak Dabas (running from page Nos. 1737-1767);

x) Charge-sheet, FIR and cognizance of State Vs. Pankaj Sehrawat and Ors. Page No.152 of 385 FIR No.183/2014 PS Bawana, Delhi of accused Rahul Dabas @ Kala (running from page Nos.1768-1878);

xi) FIR No.739/2014 PS Nangloi, Delhi (page No.681); and

xii) Documents of conviction of accused Neeraj Sehrawat in FIR No.69/2010 PS Hari Nagar (page Nos.1297-1332).

The said documents were thereafter admitted by the accused Rambeer Shokeen vide statement dated 05.03.2021. All the accused persons further vide statement dated 09.09.2022 admitted the following documents:

Charge Sheet dated 10.09.2015

1) Documents in respect of Debit Card and Account No.60500101 1003493 of Sahil Shokeen (Page Nos.284-

299);

2) Documents of vehicle No.DL 8CAF 9780 (Page Nos. 682-

700);

3) Vehicle mileage report of vehicle No.DL10CT 0917 (page Nos. 555-556);

4) Letter dated 17.04.2015 and details of account No.605001011002241 of accused Pankaj Sehrawat (page Nos.714-729);

5) Details of account No.605001011002241 of accused Pankaj Sehrawat (page Nos.730-742);

6) Details of account No.068510-00028163 of Jasbir Singh used by accused Neeraj Sehrawat (page Nos.493-511);

7) Clearance of one cheque of Rs.5 lakhs in respect of Rakesh on 20.06.2013 from A/c No.20366407114 of Rakesh Kumar related to sale of disputed plot of Khasra No.38/24 Shiv Vihar, Delhi (page Nos.899-902);

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- 8) Proceedings of recording of statement under Section 164 Cr.P.C. of Kamal Deep Dabas (dated 24.04.2015) and Ranjan Kumar S/o Ashok Kumar (dated 24.04.2015) (page Nos.903-916);
- 9) Proceedings of recording of statement under Section 164 Cr.P.C. of Sandeep Sehrawat @ Babloo R/o Bawana (page Nos.907-911 dated 29.04.2015);
- 10) Proceedings of recording of statement under Section 164 Cr.P.C. of Jasveer Singh (page Nos.917-932 dated 24.04.2015 and 01.05.2015);
- 11) Proceedings of recording of statement under Section 164 Cr.P.C. of Rajesh Bansal (page Nos.944-948);
- 12) Proceedings of recording of statement under Section 164 Cr.P.C. dated 30.04.2015 of Rajesh Bansal and Rakesh Chikara (page Nos.933-943);
- 13) Reply dated 27.04.2015 and details of account No.0328501- 1000455 of Sachin Goel (page Nos.525-533);
- 14) Documents of account No.4209101-10010822 seized on 22.04.2015 in the name of Suraj (page Nos.546-554);
- 15) Copy of FIR No.1683/2015 dated 25.08.2015 PS Mangolpuri Delhi related to double murder by accused Neeraj Sehrawat, Naveen Dabas, Rahul Dabas and Naveen Hooda in Jail van (page Nos.1473-1474);
- 16) Certified copies of charge sheet, FIR, disclosure statement and postmortem report of FIR No.1683/2015 dated 25.08.2015 under Sections 302/120B/147/149/34 IPC PS Mangolpuri Delhi (Page Nos.31-71) and statement under Section 161 Cr.P.C. (page No.76-76);
- 17) Documents related to stay of accused Neeraj Sehrawat on fake name and ID of Prashant with others in Hotel Narayan (page Nos.1982-2001);
- 18) Documents related to stay of accused Neeraj Sehrawat on fake name and ID of Prashant with others in Hotel Jai Mahal from 03.09.2014 - 04.09.2014 (page Nos.2002- 2006);

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- 19) Documents related to stay of accused Neeraj Sehrawat on fake name and ID of Prashant Kaushik with others in Hotel Savera from January 06-09, 2015 (page Nos.2007-2012);
- 20) Documents related to stay of accused Neeraj Sehrawat on fake name and ID of Prashant Kaushik with others in Hotel Juhu Residency from January 24-27, 2015 (page Nos. 2013- 2026);

- 21) Documents related to stay of accused Neeraj Sehrawat on fake name and ID of Vikas Kumar with others in Hotel Suba Galaxy from January 04-05, 2015 (page Nos.2027 -2034);
- 22) Documents related to stay of accused Neeraj Sehrawat on fake ID of Vikas Kumar with others in Hotel Marigold from April 01-03, 2015 (page Nos.2035-2048);
- 23) Documents related to stay of accused Neeraj Sehrawat on fake ID of Prashant Kaushik with others in Hotel Raj Palace from February 21-26, 2015 (page Nos.2056-2063);
- 24) Documents related to stay of accused Neeraj Sehrawat on fake ID of Vikas Kumar with others in Hotel Rupasi Bangla from February 26 to March 03, 2015 (page Nos.2064-2070);
- 25) Documents related to stay of accused Neeraj Sehrawat on fake ID of Prashant Bhardwaj with others in Hotel Geetanjali from March 03-06, 2015 (page Nos.2071-2077);
- 26) Documents related to stay of accused Neeraj with others in Hotel Host International from April 01-06, 2014 (page Nos.2078-2081);
- 27) Documents related to stay of accused Neeraj with others in Hotel Kings Crown from April 06-07, 2014 (page Nos.2082-2089);
- 28) Documents related to stay of accused Neeraj Sehrawat on fake ID of Vikas Kumar with others in Hotel Devsagar from March 12-14, 2015 (page Nos.2090-2098);
- 29) Documents related to stay of accused Neeraj Sehrawat on fake ID of Prashant Kaushik with others in Hotel N. S. International from March 06-07, 2015 (page Nos.2099- 2103);

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- 30) Documents related to stay of accused Neeraj with others in Hotel Majestic International from March 09-11, 2015 (page Nos.2104-2112);
- 31) Documents related to stay of accused Neeraj with Arvind Rohilla and others in Hotel Green View from March 27-28, 2015 (page Nos.2113-2118);
- 32) Reply dated 25.04.2015 to show the date for accused Neeraj in the name of Suraj Singh for passport and other documents (page Nos.2119-2123);
- 33) Certified copy of FORM-26 filed by Rambeer Shokeen in Delhi Legislative Assembly for AC-08 for year 2013 containing Expenditure/assets details (page Nos.790-803);
- 34) Certified copy of FORM-26 filed by Mrs. Rita Shokeen W/o Rambeer Shokeen in Delhi Legislative Assembly for AC-08 for year 2015 containing Expenditure/assets details (page Nos.804-820);

35) Charge sheet, FIR, cognizance and other documents of FIR No.183/2014 PS Bawana Delhi regarding double murder in road rage by accused Rahul Dabas @ Kala (page No.680-

36) Reply of report in respect of Sunil Rathi & Others vide letter No.62/ST-SDM-Baraut/2015 dated 04.05.2015 (page Nos. 840-848);

37) Involvement of accused Sunil Rathi (page Nos.849-850) Charge Sheet dated 30.01.2016

38) Recharge and bill payment details as per reply dated 28.11.2015 (page Nos.99-103);

39) Recharge and bill payment details as per reply dated 16.11.2015 (page Nos.104-105);

40) Recharge and bill payment details as per reply dated 16.11.2015 (page Nos.108-111);

41) Recharge and bill payment details as per reply dated 16.09.2015 (page Nos.112-113);

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42) Recharge and bill payment details as per reply dated 07.12.2015 (page Nos.114-119) Charge Sheet Dated 19.02.2016

43) Transfer order of Toyota Etios car by Ld. ASJ-IV, Dehradun to Delhi (page No.27-27) and statement under Section 161 Cr.P.C. regarding deposit of car at PS Special Cell, Delhi (page No.77-77);

44) Certified copy of Crime No.20/2015 FIR No.135-138/2015 PS Doiwala, Dehradun Uttarakhand and Charge Sheet (page Nos.28-30) Charge Sheet dated 08.03.2017

45) Income Tax Return and PAN Card details of accused Rambeer Shokeen and his wife Mrs. Rita Shokeen (page Nos.173-178);

46) Attested copies of two supplementary charge sheets and disclosure statements of FIR No.764/2014 PS Subhash Palace, Delhi and complete record of FIR No.764/2014 PS Subhash Palace, Delhi (page Nos.32-105);

47) Certified copy of cognizance and attested copy of charge sheet of FIR No.35/2015 under Sections 384/34 PS Special Cell, Delhi (page Nos.136-149);

48) Certified copy of cognizance and attested copies of FIR, seizure memo, sketch of pistol, disclosure statements and charge sheet of accused Rambeer Shokeen related to FIR No.65/2016 PS Special Cell, Delhi (page Nos.150-171);

49) Copies of charge sheet, FIR and disclosure statement of accused Parvesh Maan related to FIR No.07/2015 PS Special Cell, Delhi (page Nos. 119-135);

50) Complete record of FIR No.1072/2014 (should be FIR No.575/2014 and Crime No.1072/2014) under Sections 147, 148, 149, 395, 397, 120-B, 34 IPC, PS Kotwali, Baghpat, UP and certified copies (page Nos.106-118);

51) Attested copy of FIR No.308/2007 under Sections 341/325/34 IPC PS Nangloi Delhi related to conviction of State Vs. Pankaj Sehrawat and Ors. Page No.157 of 385 accused Rambeer Shokeen S/o Shri Nawal Singh and others (page Nos.27-29);

52) Involvements of accused Rambeer Shokeen S/o Shri Nawal Singh mentioned at Register No.9 Part-III, Beat No.1, serial No.87/2 and Information Sheet report dated 17.01.2017 (page No.30);

53) Report dated 20.02.2017 regarding destruction order dated 09.12.2016 of FIR No.308/2007 PS Nangloi, Delhi (page No.31);

54) Details of account No.62309088497 of accused Rambeer Shokeen and 62315772594 of Mrs. Rita Shokeen obtained vide No.F-231 & 232 dated 03.03.2017 (page Nos.179-

202); and

55) Details of account No.05832010001120 of accused Rambeer Shokeen and 05832010049800 of Mrs. Rita Shokeen obtained on 02.03.2017 (page Nos.203-217).

162. The accused Rambeer Shokeen vide his statement dated 05.03.2021 had further admitted Ex.PW1/A; Ex.PW3/A; Ex.PW3/B; Ex.PW3/C; Ex.PW3/D; Ex.PW4/A; Ex.PW5/A; Ex.PW5/B; Ex.PW5/C; Ex.PW5/D; Ex.PW10/1; Ex.PW10/2; Ex.PW10/3; Ex.PW10/4; Ex.PW10/5; Ex.PW10/6; Ex.PW10/7; Ex.PW10/8; Ex.PW10/9; Ex.PW10/10; Ex.PW10/11; Ex.PW10/12; Ex.PW10/13; Ex.PW10/14; Ex.PW10/15; Ex.PW10/16; Ex.PW10/17; Ex.PW10/18; Ex.PW10/19; Ex.PW10/20; Ex.PW10/21; Ex.PW10/22; Ex.PW10/23; Ex.PW10/24 and Ex.PW10/25. Vide order dated 09.09.2022, witnesses at Sr. No.10, 30, 32, 34, 35, 43, 46, 47, 48, 49, 50, 53, 70, Inspector Arvind Kumar, Sr. No.86, 87, 88, 89, 90, 91, 93, 94, 95, 96, 97, 98, 99, 100, 101, 102, 108, 109, 111, 113, 114, witnesses at Sr. No.4, 5, 7, 8, 9 in the charge sheet dated State Vs. Pankaj Sehrawat and Ors. Page No.158 of 385 30.01.2016, at Sr. No.1, 2 in the supplementary charge sheet dated 19.02.2016, at Sr. No.2, 7, 8, 9, 10, 11, 12, 13, 15 and 16 in the supplementary charge sheet dated 08.03.2017 were dropped. Further witnesses at Sr. No.5, 6, 7, 12, 13, 14, 17, 18, 22, 24, 25, 26, 27, 36, 37, 38, 39, 40, 41, 55, 56, 57, 58, 59, 60, 61, 62, 63, 64, 65, 66, 68, 69, 78, 79, 80, 81, 82, 83, 105, 130, 131, 148 and 158 were dropped and at Sr. No.1 in charge sheet dated 08.03.2017 had already expired. Witness at Sr. No.132 Bhagwan Dass had already expired and witness at Sr. No.128 was dropped vide order dated 18.03.2023. Witnesses at Sr. No.84 and 104 were dropped vide order dated 12.04.2023 as also witnesses at Sr. No.54, 67, 71 to 76, 77, 112, 154. Witness at Sr. No.14 in the supplementary charge sheet No.3 was stated to have expired. Witness at Sr. No.1 in supplementary charge sheet No.1 was dropped vide order dated 11.05.2023 and the witness from Election Cell DCP/ West District was dropped vide order dated 19.05.2023 as also witness Sunit Goel. Prosecution evidence was closed on 29.05.2023.

STATEMENT OF ACCUSED PERSONS

163. After the prosecution evidence was led, statement of the accused persons was recorded under Section 313 Cr.P.C. wherein all the incriminating material existing on record including the exhibited documents were put to the accused persons which they denied and they stated that they were innocent and had been falsely and wrongly implicated in the present case. The accused persons denied knowing most of the things that were put to them. The accused Pankaj Sehrawat stated that the statement of PW2 State Vs. Pankaj Sehrawat and Ors. Page No.159 of 385 was recorded under threat by the police officials. He was not aware what PW9 had stated before the Ld. Magistrate, however, before the Court, no such statement was made. He stated that PW11 had spoken the truth and his statement showed how the police officials had coerced the witness to depose falsely against him and his family members. He did not know about execution of GPA but with regard to his involvement, PW12 had stated correctly. He also stated that false and manipulated statements had been recorded. He stated that PW13 was forced to make the statement under Section 164 Cr.P.C. He stated that PW17 had deposed correctly that there was no kind of threat made. The statements made were false and fabricated. He stated that PW19 had deposed correctly that there was no kind of threat and it showed that the witnesses had been planted and manipulated by the police officials. He stated that the statement recorded by office of Special Cell was false and fabricated. PW22 had deposed correctly and the witnesses had been planted and forced to depose against him by police officials. He stated that false FIR had been registered against him. He stated that what PW46 had stated that he had never been told about the plot in Khasra No.38/24 of Village Shahbad Daulatpur, Shiv Vihar by him and he had never visited the said plot at any point of time was correct. He stated that he did not make any disclosure statement. Further the Scorpio Car bearing No.DL 10CT 0917 was purchased from his lawful earnings and not from the alleged extortion money. He stated that the present was a cooked-up case and sanction was accorded without application of mind. He had been arrested wrongly and falsely. A sham and bogus proposal State Vs. Pankaj Sehrawat and Ors. Page No.160 of 385 was prepared which was approved without application of mind to falsely fabricate him and his family members. He stated that approval was granted without application of mind and sanction was also without application of mind. The story had been concocted and witnesses had been planted by the police officials. Witnesses had been forced to depose against him and their statements had been manipulated. He further stated that all the public witnesses had not deposed against him rather, it had come on record that they were forced and manipulated by the police officials to depose against him in order to falsely implicate him in the present case. He stated that he was involved in family occupation of farming and also in the rental and property dealing business and was living out of those earnings.

164. The accused Neeraj Sehrawat stated that the statement of PW2 by the Special Cell was recorded under threat by police officials. He was not aware what PW9 had stated before the Ld. Magistrate, however, before the Court no such statement was made. He stated to the same effect regarding PW11, PW12, PW19 and PW22 as was stated by the accused Pankaj Sehrawat. He stated that the witnesses were forced to make the statement. PW17 had deposed correctly that there was no kind of threat made and the statement recorded by police was false and fabricated. He stated that the witnesses had been planted and forced to depose against him by police officials. A false FIR had been registered against him. He stated that appeal against his conviction in FIR No.30/2015 PS

Special Cell in which he was sentenced to 7 years imprisonment after trial was pending before State Vs. Pankaj Sehrawat and Ors. Page No.161 of 385 the Hon'ble High Court and the weapons as deposed by PW62 were planted on him and he was falsely and wrongly implicated in the said case. He also stated that the Scorpio car bearing No.DL 10CT 0917 was purchased from his lawful earnings and not from the alleged extortion money. He stated that he did not make any disclosure statement. Regarding the sanction and approval, he stated to the same effect as the accused Pankaj Sehrawat. He stated that witnesses had been forced to depose against him and statements had been manipulated. He further stated to the same effect as the accused Pankaj Sehrawat and that he had been to various hotels as he was fond of travelling and he had paid the expenses out of his earnings. Only on that basis the present case had been lodged.

165. The accused Naveen @ Bali stated that no disclosure statement of his was recorded. He stated that the sanction was accorded without application of mind. A sham and bogus proposal was prepared which was approved without application of mind to falsely fabricate him and his brother and the approval was granted without application of mind. He stated that the story had been concocted and witnesses had been planted by police officials. Witnesses had been forced to depose against him and the statements had been manipulated. He further stated to the same effect as the accused Pankaj and Neeraj and that he was a wrestler before being arrested in 2011 and in 2015 the case was falsely planted on him.

166. The accused Rahul @ Kala stated that he did not make any disclosure statement. He stated to the same effect about proposal State Vs. Pankaj Sehrawat and Ors. Page No.162 of 385 and sanction as was stated by the other accused persons. He also stated that the witnesses had been forced to depose against him and the statements had been manipulated. He further stated to the same effect as the other accused persons.

167. The accused Rambeer Shokeen stated that PW2 had deposed correctly that there were three maternal uncles (Mamas) of accused Pankaj and Neeraj namely Jagdev Shokeen, Sanjeev Shokeen and himself. However, their family relations were not cordial. He stated that he was illegally arrested and he was not carrying any alleged weapon with him at the time of his apprehension. The said alleged weapon was planted upon him by police officials only to falsely implicate him in the present case and to strengthen the present case and to destroy his political career by acting in collusion with politicians. No alleged pistol was recovered from him. Neither he was interrogated nor his statement was recorded by anybody. Some blank pages were got signed by him under coercion by the police officials. He was falsely implicated in FIR No.65/2016 just to strengthen the present case and to destroy his political career by acting in collusion with politicians. He stated that what PW27 had deposed about the statement of Kamaldeep Dabas was absolutely false. He was a planted witness and planted by police officials only to register an FIR against him along with accused Neeraj Sehrawat only to strengthen the present case and fulfill the ingredients of MCOC Act. He stated that the accused Neeraj Sehrawat did not visit his office and nobody by the name of Kamaldeep had ever visited his office. He had been falsely implicated in FIR State Vs. Pankaj Sehrawat and Ors. Page No.163 of 385 No.35/2015 of PS Special Cell after registration of the FIR in question i.e. FIR No.10/2015 and the same was a result of malafide afterthought deliberations of police officials at the instructions of their political masters to strengthen the present case and fulfill

the ingredients of MCOC Act and to destroy his political career.

168. The accused Rambeer Shokeen further stated that he did not know anybody by the name of Jasbir Singh @ Goldy. He stated that PW31 might have identified him as he was a public figure and was elected as an independent MLA from Mundka Constituency and he might have seen his photographs on posters, banners, T.V, Internet etc. He did not know Komal Sharma. He had not seen Pankaj in his political rallies and his relations were not very cordial with Pankaj or his family. He admitted that the name of Neeraj's wife is Arti. No criminal case was pending against him prior to registration of the FIR in question i.e. FIR No.10/2015. He had no relation to FIR No.183/2014 registered at PS Bawana. He stated that PW43 might have been a resident of his constituency. He did not make any phone call as deposed by PW45. No notice under Section 82 Cr.P.C. was served upon him and he did not come across any such notice. The alleged weapon was planted upon him by the police officials only to falsely implicate him in the present case and to strengthen the present case and to destroy his political career by acting in collusion with politicians. The police officials got some blank pages signed from him under pressure. No such document was prepared in his presence. He stated that he was falsely implicated in the present State Vs. Pankaj Sehrawat and Ors. Page No.164 of 385 case. No disclosure statement of his was recorded. He had no relation with FIR No.179/2012 PS Bawana or with FIR at PS Samaypur Badli or FIR No.94/2015 PS Shahbad Dairy or with FIR No.98/2012, PS Prashant Vihar. He stated that no approval was granted against him. He was not even named in the FIR and the statements as stated by PW74 as got recorded by him under Section 164 Cr.P.C. were made by the witnesses under threat and as per the instructions of the police officials as stated by them and other witnesses. He was not served with any notice whatsoever. He stated that he had been acquitted in FIR No.1072/2014 PS Baghpat vide judgment dated 13.09.2022. He stated that he was a public figure and PW78 might have been a resident of his constituency. PW78 had categorically stated in his cross-examination that he had seen him while campaigning and he had seen him on television.

169. The accused Rambeer Shokeen also stated that no public witnesses had deposed against him. In fact, it had also come on record that they were forced and manipulated by the police officials to depose against him in order to falsely implicate him in the case. He stated that he was elected as an independent Member of Legislative Assembly (MLA) from Mundka Constituency in the year 2013 and his wife Rita Shokeen was also elected as Municipal Councilor from Nilothi, Delhi ward in the year 2012 without being from a political family. He was falsely implicated in the present case by the police officials by acting in connivance with their political masters and his political opponents to destroy his political career and to tarnish his image State Vs. Pankaj Sehrawat and Ors. Page No.165 of 385 amongst the society. He did not have cordial relations with his relatives. He and his family were living out of the agricultural income and rental income earned by his family out of their ancestral property. He had been in social service for the past 20 years and he was also rewarded by the then President for the same with the Ram Dhari Dinkar Award. Prior to 2013 there was no talk of his relations with the accused Neeraj but after he was elected MLA in 2013, suddenly his relationship with accused Neeraj was highlighted in order to tarnish his image. He became mentally disturbed when he was implicated in the present case and even at present he was under medication and he was taking medicines for the last 4-5 years. His wife and children had also become unwell and his son was under medication for BP and obesity. He stated that his children were neglected due

to the pendency of the present false case as there was no-one else to look after them. He had never had any involvement with any crime nor his family members. The accused persons stated that they did not wish to lead evidence in defence.

ARGUMENTS ARGUMENTS BY THE LD. ADDL. PP FOR STATE

170. I have heard Shri Gyan Prakash, Ld. Additional PP for State; Shri Rahul Sahani, Ld. Counsel for accused Pankaj Sehrawat, Neeraj Sehrawat, Naveen Dabas @ Bali and Rahul @ Kala and Shri Sumeet Shokeen, Ld. Counsel for the accused Rambeer Shokeen and perused the record. Written submissions were also filed on behalf of accused Pankaj Sehrawat, Neeraj State Vs. Pankaj Sehrawat and Ors. Page No.166 of 385 Sehrawat, Naveen Dabas @ Bali and Rahul @ Kala which I have perused.

171. The Ld. Additional PP for State had fairly conceded that mostly the witnesses were hostile. PW1 had proved the order for announcing reward of Rs.1 lakh for anyone giving clue about the accused Neeraj. PW2 had identified the accused Pankaj and Neeraj though otherwise he was hostile. PW3 was the UDC who had proved the Voter ID Card. PW6 had also identified the accused Neeraj and Pankaj as his cousins and he had a debit card which was used by Amit Malik @ Bhura who had since been discharged. The testimony of PW7 was important as she had stated about the purchase of a car in her name but she had never used it and the car had never come to her house. PW8 who is her husband had also stated that he was running his factory in the premises of the uncle of accused Pankaj and Neeraj and that the vehicle was purchased at the instance of Jagdev Shokeen. It was submitted that the vehicle was recovered from Dehradun from one Sunil Rathi who was a member of the gang of the accused persons. It was submitted that Jagdev Shokeen had expired so he could not be examined. Reference was made to the testimony of PW8 and that it was clear that the person who had purchased the vehicle had not used it. It was submitted that the vehicle was purchased from extortion money as Pankaj had no proven source of income. Reference was also made to the second statement of PW8 dated 09.03.2021. PW9 had admitted his statement made under Section 164 Cr.P.C. and there was nothing in the statement that the same was given wrongly before the Ld. MM. PW10 had State Vs. Pankaj Sehrawat and Ors. Page No.167 of 385 deposed about purchase of two Scorpios for which cash payment was made and that showed that the vehicles were purchased from extortion money as no source of income was shown. PW12 was a property dealer and he was corroborated by PW69 who had initially stated that he did not remember anything but thereafter he had identified his signatures on the documents which were put to him and had proved the execution of the documents. Statement of PW12 was recorded twice under Section 164 Cr.P.C. and he had admitted that the total consideration for the sale was Rs.2 crores and Rs.5 lakhs were given as token money. He had also admitted that his statement under Section 164 Cr.P.C. was recorded twice and that the said statements had been given voluntarily. As per the statement of PW12, Rakesh @ Babla had come to his office. He had also stated that some amount was paid in cash and some in cheques.

172. The Ld. Additional PP had further argued that from the statement of PW13, it was evident that fear factor was there. He met Rakesh at the plot. He also admitted his statement under Section 164 Cr.P.C. As per him, the maximum amount was given in cash and some in cheques and they were paid less than the price of the plot. He had volunteered that Neeraj is the son of his Mausi.

Moreover, his father-in-law said that when the name of Neeraj was there, they did not want to get into any legal entangle which showed that there was a dispute and also involvement of the accused persons. Further during his statement dated 10.03.2021, the cross-examination by the Ld. Additional PP showed fear of Neeraj. PW15 had stated about Neeraj using the State Vs. Pankaj Sehrawat and Ors. Page No.168 of 385 debit card of someone to withdraw money from the bank in Kolkata which money was deposited in Delhi and OTP was received on the mobile of relative of Neeraj in Delhi. PW16 had stated about the apprehension of Rambeer Shokeen and he had filed the charge sheet in that case and also identified him. PW18 had the license to transfer money. Ashish was the brother-in-law of the accused Neeraj and in Delhi Police. Jasbir had stayed with Neeraj in Kolkata and Neeraj was getting a forged passport made. PW19 had admitted stating before the Ld. MM that he had given Rs.2.5 lakhs to Neeraj. PW20 was the Duty Officer and he had stated about the registration of FIR. PW21 had deposed about purchase of two vehicles by accused Pankaj in cash and even the CA had stated that all the amount in the account was by way of cash which was the ransom amount. PW24 had stated about Toyota Etios which had been taken by the accused Pankaj. PW25 had stated about registration of FIR No.42/15 PS Special Cell regarding the dispute over the plot. PW26 had deposed about the ITR of Pankaj. PW27 was the IO of FIR No.35/2015 lodged by Kamaldeep Dabas.

173. It was submitted that PW28 had deposed about the stay of Vikas in the hotel and infact Neeraj had stayed as Vikas and the signatures had been proved by the handwriting expert to be of Neeraj. PW29 had also stated about use of forged documents and Amit Bhura had stayed with Neeraj who stayed as Vipin. PW31 had shared the room with Neeraj though in a different name. He admitted his statement under Section 164 Cr.P.C. and that Neeraj used to foot the bill for dinner. He also identified the accused State Vs. Pankaj Sehrawat and Ors. Page No.169 of 385 Rambeer Shokeen. PW33 was the Passport Officer and he had stated about the application for passport in the name of Suraj Singh and the handwriting of Neeraj matched the writing in the passport application. PW34 had shown that Pankaj was a nephew of Rambeer Shokeen. PW35 had matched the handwriting on the election card, hotel record, passport application. PW36 had deposed that the ration card was not existing in the name in which the passport was sought. PW37 had stated about the account where the cheques were deposited. PW38 had stated about the stay in hotel in Ujjain. PW39 had deposed about recharge of mobiles of accused persons. PW40 had stated about liquor being supplied which was used in the elections in Delhi of Rambeer Shokeen. PW41 was the person who deposited the money which was later used by the accused Neeraj and he admitted his mobile number and that Neeraj was his brother-in- law.

174. It was pointed out that PW42 had deposed in respect of Rahul @ Kala. It was submitted that there were several FIRs which were common for the accused persons which showed that they were gang members. PW43 had stated about his Voter ID card being used and that he knew the accused Rambeer Shokeen. The said Voter ID card was used for stay in hotel by forging the same and for purchase of mobile and Internet calling facility. PW44 had talked of extortion. PW45 had deposed about the account opened in the name of Rakesh in the bank of PW45 and he proved the documents of the account and stated about a call by accused Rambeer Shokeen to clear the cheques. PW48 proved State Vs. Pankaj Sehrawat and Ors. Page No.170 of 385 the deal of property and he admitted his signatures on the receipt and the documents of the deal. PW51 had arrested Rambeer Shokeen

and he also deposed about the proceedings under Section 82 Cr.P.C. PW54 was the owner of the shop from where the accused had purchased the mobile from Kolkata. PW56 was the property dealer. PW57 had stated about receiving ransom call and he got an FIR registered. PW58 had also received a threat and he got FIR No.246/2015 registered which was pending trial and Naveen Bali had been arrested in the said case. PW59 had also stated about threat by Bali and FIR No.94/2015 was got registered which was pending trial. PW60 had stated about Gurpreet introducing Neeraj to him though he did not identify the accused Neeraj and he had stated about Naveen @ Bhanja who had been discharged. PW62 had arrested Neeraj in FIR No.30/2015 in which the accused Neeraj had been convicted. PW63 had arrested Naveen Bali in FIR No.94/2015. PW64 had, amongst other things, deposed about Scorpio vehicle being recovered and disclosure statements of accused persons. PW65 had stated about FIR No.98/2012. PW66 had stated about the specimen writing being taken.

175. The Ld. Addl. PP further submitted that PW67 had proved the sanction in respect of the accused Rambeer Shokeen. PW68 had arrested accused Pankaj from the airport. PW69 had stated that most of the things he did not remember but he identified his signatures and photographs on all the documents regarding the property deal. PW70 had deposed about the apprehension of Pankaj along with his mother and he proved the Kalandara.

State Vs. Pankaj Sehrawat and Ors. Page No.171 of 385 PW71 had stated about getting the vehicle Toyota Etios Liva from Doiwala. PW72 was the MHCM. PW73 had stated about giving the approval for registration of FIR and sanction. PW74 was the IO. PW75 had proved the record of FIR No.30/2015 and PW76 had proved the record of FIR No.7/2015. PW77 had stated about the charge sheet against the accused Rambeer Shokeen. From the testimony of PW78 it was clear that he was lying as he could not tell the address of Bhagwan Dass at whose behest he had opened the account and he also admitted the bank documents and that he was receiving cash in account. He was not able to explain the source of cash so it was clear that it was extortion money.

176. It was submitted that there were several FIRs in which the accused persons were common and in some of the cases, they had been convicted which showed that they were running a gang. The FIRs also showed extortion and that the accused persons had no established source of income. Toyota Etios was recovered from gang members in Dehradun which also showed that they were running a gang. It was urged that the public witnesses were hostile out of fear. It was submitted that the loan in respect of the vehicles was being paid out of the cash which was deposited and it was earned from the crime syndicate and the accused persons had properties which they could not account for.

ARGUMENTS ON BEHALF OF THE ACCUSED
PERSONS

177. The Ld. Counsel for the accused Rambeer Shokeen had State Vs. Pankaj Sehrawat and Ors. Page No.172 of 385 argued that the prosecution was not clear what was the role of accused Rambeer Shokeen in the case. In the proposal for approval, there was no allegation against him or on what basis he was made the accused and no approval was granted in his respect. In fact, till date there was

no proposal against him though sanction was taken against him. FIR No.10/2015 was registered on 23.02.2015 and prior to that only the FIR at Baghpat was there but the accused Rambeer Shokeen had not been named as an accused therein and the charge sheet against him was filed only in 2016. He had also been acquitted in that case. He was also not named in the present FIR and not alleged to be a part of any crime syndicate. No notice was received by him and even in the Baghpat FIR, till 2016 when the charge sheet was filed he was not made an accused. The first FIR against Rambeer Shokeen was registered in April 2015 being FIR No.35/2015 i.e. two months after the present FIR when approval was not granted against him. The investigating agency came up with the witness Kamaldeep who after 4 months made allegations of an incident of January 2015 and the delay was not explained in the charge sheet or during cross-examination and the delay was fatal. He had stated about some boys of Neeraj but he could not tell who they were. Charge had been framed in the said matter and matter was listed for PE but the accused had challenged the order on charge by way of a revision petition and the witnesses had not supported the case of the prosecution. The witnesses Kamaldeep and Sandeep Sehrawat had not stated about giving money. Moreover, PW9 was a resident of Bawana and was alleged to be the owner of a restaurant in Rajouri Garden but State Vs. Pankaj Sehrawat and Ors. Page No.173 of 385 there was no complaint in Rajouri Garden or Bawana and then the statement was recorded in Special Cell which was 40 kms away. PW9 was not even shown as the owner of BNB Shooters in the agreement and the said case was lodged only to make the accused Rambeer Shokeen co-accused with accused Neeraj. It was subsequently submitted that the accused Rambeer Shokeen had been discharged in the said case by the order of the Ld. ASJ in the revision petition filed by the accused Rambeer Shokeen challenging the framing of charge against him.

178. The Ld. Counsel had further argued that thereafter, FIR No.65/16 was got registered against the accused Rambeer Shokeen under Arms Act in which he was arrested. The charge sheet was filed and charge had been framed which was challenged by way of a revision petition. It was urged that the weapon had been planted upon the accused and no fingerprints were taken and there was no investigation as to the source of the weapon. The accused was arrested from a public place outside a school at 6:00 p.m. but no public witness was joined. Moreover, there were three persons in the vehicle and as per the case of the prosecution, the accused Rambeer Shokeen had got down and was arrested whereas the other two had escaped and the accused Rambeer Shokeen was in possession of the weapon. There was no allegation that the accused Rambeer Shokeen had made any effort to fire and the only purpose was to affect the political career of the accused Rambeer Shokeen as he was the only independent MLA in 2012 and he did not give support to anyone. It was given in media that AK-47 had been recovered from the State Vs. Pankaj Sehrawat and Ors. Page No.174 of 385 accused Rambeer Shokeen but in fact it was recovered from the accused Neeraj and the accused Rambeer Shokeen was not even an accused in that case. It was submitted that the accused Rambeer Shokeen had been implicated in the FIR in Baghpat but prior to that, no notice was given to him by the Baghpat Police. It was admitted that as per the legal position, charge sheet could be filed against an accused under MCOC Act if, even during investigation certain cases were registered against him. However, the accused Rambeer Shokeen was falsely implicated in the present case as per the Ld. Counsel, after the IO did not get approval against him as the directions were to implicate him to hamper his political career. It was submitted that the wife of the accused Rambeer Shokeen was also a politician and she had won as a Councilor and it was the constituency of Parvesh Verma who was

the son of Saheb Singh Verma. It was a hot seat but the accused Rambeer Shokeen won as an independent candidate and thereafter he did not give support to any party so he was targeted. After the elections, everyone started talking about accused Rambeer Shokeen being the Mama of accused Neeraj.

179. It was pointed out that notice to the accused Rambeer Shokeen was given under Section 160 Cr.P.C. as also to Jagdev Shokeen which was mentioned in the application of 20.04.2015 seeking issuance of NBWs against the accused Rambeer Shokeen moved by ACP Manishi Chandra. However, if Rambeer Shokeen was sought to be made an accused, the notice should have been under Section 41A Cr.P.C. and not under Section 160 Cr.P.C. Jagdev had not been made an accused and PW74 did not State Vs. Pankaj Sehrawat and Ors. Page No.175 of 385 remember as to what prompted them to convert Rambeer Shokeen from a witness to an accused. PW73 had also stated that he did not find any evidence against the accused Rambeer Shokeen. It was submitted that the present case had destroyed the family and political career of the accused Rambeer Shokeen and he, his wife and children all had medical ailments and the medical record had been filed along with the bail application. The case of the prosecution was that he had facilitated the crime syndicate. The prosecution had examined Prashant Kaushik who had stated in his statement under Section 161 Cr.P.C. that he had given his Voter ID card to Rambeer Shokeen who got the photos changed and used it for accused Neeraj. PW41 Ashish Nain had stated that he was given money by the accused Rambeer Shokeen to put in the account to be used by the accused Neeraj. Jasbir was also asked by the accused Rambeer Shokeen to give money and to stay with the accused Neeraj and to help him to abscond. However, the IO did not get approval on this story and then the accused Rambeer Shokeen was falsely implicated in the present FIR. It was argued that all the witnesses had categorically stated that the accused Rambeer Shokeen was not involved in any transaction or facilitation and he was not a witness to any transaction and there was nothing to show that he was helping the other accused persons. In 2015 and 2016 everyone had a mobile but there was no single scientific evidence on record against the accused Rambeer Shokeen of helping the other accused persons and there was no single transaction of the accused Rambeer Shokeen with the other accused persons. It was submitted that even if it was believed that Kamaldeep had given Rs.2.5 lakhs, State Vs. Pankaj Sehrawat and Ors. Page No.176 of 385 the accused Neeraj could not have purchased two Scorpios, a Toyota Etios in Rs.2.5 lakhs and also travelled to so many places and also sponsored the elections of the accused Rambeer Shokeen. It was submitted that there was no evidence to corroborate that any monetary help was received by the accused Rambeer Shokeen from any other accused.

180. The Ld. Counsel had further submitted that the prosecution had relied on the transaction in respect of the plot and that the accused Rambeer Shokeen had extended threat and Rs.1 crore had gone to him and in the charge sheet it was stated that the accused Neeraj had given Rs.1 crore for elections of the accused Rambeer Shokeen. It was the case of the prosecution that the accused Rambeer Shokeen was material in the land deal and he was a facilitator and a part of the syndicate and the syndicate resorted to extortion through land deal. The witnesses who were involved in the land deal were examined but not even a single witness had said that in the land deal, any money was given to the accused Rambeer Shokeen. Even otherwise, there was a legal hurdle in the land deal and reference was made to Sections 91 and 92 of the Evidence Act and it was submitted that the said documents had not been proved as per law. It was pointed out that only photocopies of the

documents had been produced and not the originals and photocopies were put to the witnesses. None of the witnesses had stated that the originals were with them or that they were lost or were in their custody. Even if the documents were proved, they were hit by Sections 91 and 92 of the Evidence Act as no oral evidence could be led in State Vs. Pankaj Sehrawat and Ors. Page No.177 of 385 contradiction to the documents which documents showed that the deal was only for Rs.25 to 30 lakhs. No seller or buyer had stated that they had given on paper Rs.2 crores and as such the prosecution had failed to prove the amount of the deal. It was asserted that there was no witness on record who could link the accused Rambeer Shokeen with any of the allegations. PW78 Rakesh Jatav received the money in his account and also took out the money but he had stated that he had opened the account at the instance of the seller Bhagwan Dass and he had taken out the money and given to him and the accused Rambeer Shokeen did not come into the picture. FIR No.42/2015 was registered at the instance of the seller Bhagwan Dass but the FIR did not mention the accused Rambeer Shokeen or who took the money to the accused Rambeer Shokeen and there was no recovery from him or at his instance.

181. It was further argued that as regards the Toyota Etios, it was nowhere deposed that the accused Rambeer Shokeen was material in the purchase of the same and the only allegation was against Jagdev and the accused Rambeer Shokeen could not be made an accused and put to trial for the acts of his brother. It was submitted that the prosecution had not proved that there was any syndicate and there was nothing which could connect the accused Rambeer Shokeen to the other accused. For the purpose of MCOC Act, organized crime was to be proved and it had to be proved that there was a nexus between the accused Rambeer Shokeen and the other accused but the same was not shown and there was no document or witness to the same. As regards FIR State Vs. Pankaj Sehrawat and Ors. Page No.178 of 385 No.35/2015 Neeraj and Rambeer had been shown to be the accused but PW2 and PW9 had not stated anything and the accused Rambeer Shokeen did not have any other common FIR with the other accused persons. The prosecution had to prove continuing unlawful activity but here there was no activity to connect the accused Rambeer Shokeen and nothing was shown which was unlawful. It was vehemently argued that not even a single ingredient of MCOC Act had been proved. It was the allegation that the accused Rambeer Shokeen had acquired wealth out of the crime syndicate but there were letters from the SDM and revenue authority that stated that there was no property owned by the accused Rambeer Shokeen. In the FIR at Baghpat, accused Rambeer had been acquitted on 13.09.2022. The first charge sheet was of 17.03.2015 which was against Sampat and Gopi and there was no whisper about the accused Rambeer Shokeen and in the present case, the FIR was registered in February 2015. PW73 had stated that there was no evidence against the accused Rambeer Shokeen and he had stated that he had gone through the record and only Section 3 (4) MCOC Act was made out but the same could not be proved. It was urged that the sanction was not as per law and the basic ingredients of MCOC Act were not proved against the accused Rambeer Shokeen and there were no witnesses or documents which could connect the accused Rambeer Shokeen with the alleged offences or with the alleged syndicate or the co-accused.

182. It was contended that the accused Rambeer Shokeen could not be made an accused only on assumptions or as he was the State Vs. Pankaj Sehrawat and Ors. Page No.179 of 385 relative of accused Neeraj and Pankaj for acts done by them. PW57 had not deposed about the cheques of Rakesh but about the single cheque to one another Rakesh and it was the account of that person.

PW40 had also made no allegation and the election results were declared in August, 2013 and there were no elections in December, 2013. PW43 had stated that he had not given his Voter ID card to the accused Rambeer Shokeen and the persons who had identified the accused Rambeer Shokeen were those who were residents of his constituency or police persons who had arrested him and they had explained in cross- examination and examination in chief that they had met him in rallies and seen him on TV and there was no other corroboration. He was identified only as he was an MLA and a public figure. PW45 was the Manager of Indian Bank and he had stated that it could be possible that the accused Rambeer Shokeen had called him but it could be anyone from his office and it was not proved who had called, when the call was made and the call was not verified and he also stated that there was no requirement of any call. He did not remember the number from which the call was made or the number on which the call was made. PW69 had admitted his signatures and above the same, it was written 'true copy' but he could not say who had written the same. There was no reason why he had signed twice but his signatures appeared twice on all the documents and the documents showed that the deal was only for Rs.25 lakhs and the transactions were through bank accounts. The receipt was on record. It was submitted that one could not rely on ocular evidence when the documents were on record. The weapon was planted on the accused Rambeer State Vs. Pankaj Sehrawat and Ors. Page No.180 of 385 Shokeen and had no bearing on this case and it could have a bearing only if the weapon was used in the offence but that was not shown. It was submitted that the accused Rambeer Shokeen was managing his family out of rental and agricultural income and they were three brothers.

183. As regards the offence under Section 174 A IPC, it was submitted that the same was a result of the medical condition of the accused Rambeer Shokeen. It was submitted that the order sheets would show that the accused was suffering from various ailments and mental issues and since April 2017 he had been going regularly to AIIMS and other hospitals for treatment and was on medication for various ailments and was still under treatment. Reference was made to the order dated 19.04.2017 which was in context of the application for interim bail filed by the accused on ground of medical illness of the wife. It was submitted that the accused had escaped from custody on 26.09.2018 and he had escaped due to mental illness and he was under medication and was with two police officials when he was taken for treatment to the hospital. The same found mention in the order sheet dated 28.02.2018 and at that time, the accused was under custody of Ghaziabad police. On 01.10.2018 NBWs were issued against him but the same were not served as the premises were found locked. On 23.10.2018 proceedings under Section 82 Cr.P.C. were initiated but they could not be served due to lapse of time. Fresh process under Section 82 Cr.P.C. was issued on 05.12.2018 and the accused was declared an absconder on 23.02.2019. It was fairly submitted that the factum of State Vs. Pankaj Sehrawat and Ors. Page No.181 of 385 escaping was staring at the accused but he was of unsound mind and on the day of the escape, he was unable to understand the consequences of his act. It was further submitted that it was not a case that the accused was again arrested but he had himself surrendered in December 2020 which was mentioned in the order sheet dated 21.01.2021. It was also not the case that during the period that he had escaped from custody, he had committed another crime after escape or that he escaped with the assistance of any other accused and in fact he had himself surrendered.

184. It was contended that vide order dated 20.09.2018, the accused Rambeer Shokeen had been granted interim bail on the ground of medical ailment of his wife which would be valid till 05.10.2018 but despite the interim bail order, he was not released as the release order had not reached Ghaziabad and despite the order of interim bail he had escaped. It was argued that if the accused knew the consequences of his act, then he would not have escaped as he had already been granted interim bail by the Court. Further reference was made to the order dated 12.04.2018 by which extension of earlier interim bail was sought and it was noted in the order sheet that the medical documents of the accused had been verified and had been found to be genuine. It had also been recorded that the behaviour of the accused had been found to be abnormal and he had been referred to IHBAS which was the only Government Institute to take care of mental illness. Further the medical documents showed that he had suicidal tendencies and he was suffering from severe depression which was also recorded in the order of 15.05.2018 for extension State Vs. Pankaj Sehrawat and Ors. Page No.182 of 385 of interim bail and that the documents stood verified. The medical documents already formed part of the record as they were annexed with the application for interim bail and were also received from jail and had been supplied to the counsel for the accused which showed that the accused had been continuously referred to IHBAS from the jail itself. However, there was no document of treatment of the accused after he had escaped till he surrendered. It was submitted that even after the accused had surrendered, he had been under medical treatment in AIIMS and even the reports from the jail were to the effect that he was under

treatment.

185. It was argued that the accused was suffering from medical ailments as he had been falsely implicated. There was no FIR against him prior to the present case and subsequently FIRs were registered only to implicate him. When he had escaped, a separate FIR was also registered being FIR No.242/18 under Sections 223 and 224 IPC PS Safdarjung Enclave which was pending trial at Saket Court as the accused had escaped from Safdarjung Hospital. The same found mention in the order dated 28.02.2018 when the counsel for the accused had moved an application for cancellation of interim bail. Reference was made to Section 84 IPC. It was submitted that the circumstances were on record which substantiated the fact that in the present case mens rea was absent and for every offence there should be mens rea. It was submitted that the accused was also disturbed by the fact that there were media reports that AK-47 had been recovered from him though he was not involved in any such offence. It was State Vs. Pankaj Sehrawat and Ors. Page No.183 of 385 urged that the prosecution had not proved the nexus of the accused with the other accused persons and there was no corroboration of any allegation against the accused whatsoever.

The prosecution had failed to prove that he was facilitating or he was a member of any crime syndicate or that he was harboring any other accused and no witness had supported any allegation against the accused Rambeer Shokeen.

186. The Ld. Counsel for the accused Pankaj Sehrawat, Neeraj, Naveen and Rahul Kala had emphasized the importance of approval and that if the approval for registration of FIR was defective, it could not be relied upon. It was submitted that the approval in the instant case was without application of mind and the FIR did not by itself disclose commission of any cognizable offence or of any organized crime and the approval had to be seen through the lens of Section 23 MCOC Act in which three conditions had been laid down as mandatory. If even one of them was defective, then the other conditions did not stand. As per this Section, the investigation had to be by an officer of a particular rank. Reference was made to the cross-examination of PW74 who was the IO and that the last FIR which was registered against the accused persons was of 2014 and it was also submitted that the FIR was not registered on the basis of commission of an offence but on the discretion of the IO. It was submitted that the FIR did not show any overt act or commission of offence and there was admission on the part of the IO that neither the proposal nor the FIR disclosed commission of any fresh offence. It was submitted that as per the settled law, where State Vs. Pankaj Sehrawat and Ors. Page No.184 of 385 has to be continuity and the accused persons could not be convicted only on the basis of past acts as otherwise the IO would only collect the previous charge sheets and file the charge sheet under MCOCA. The continuity was in the sense that if there was a threat today, by itself it would not attract MCOC Act but if in the past also, there was more than one case of a similar nature, then it would be treated as an unlawful activity in continuity with the previous acts and MCOC Act would be attracted but the same was absent in the present case. It was submitted that the Hon'ble Supreme Court had also emphasized the importance of approval and that one condition of Section 23 MCOCA was dependent on the other and they operated at different stages and as such the trial was vitiated.

187. On facts, the Ld. Counsel submitted that the accusation against the accused persons was of extortion but none of the witnesses had supported the case of the prosecution and they had not stated that money had been extorted from them. It was not shown by the prosecution that the accused persons had collected money or property by using violence. Regarding the deal of the plot, 14 witnesses were examined who showed transfer of money but they did not say anything about the accused persons or anything which would connect them to the transactions or the money trail. The vehicles purchased by accused Pankaj were on installment and his IT details were also on record which were not negated by the prosecution and the vehicle was purchased from the sources of the accused. There was nothing to show that the money was received by him by running a racket and there was State Vs. Pankaj Sehrawat and Ors. Page No.185 of 385 nothing to connect him to any of the activities. It was urged that technically and legally, the offence under MCOCA was not made out and the entire trial was vitiated and there was no evidence of any nature to show any overt or criminal act or to show that the accused persons were involved in extortion or land grabbing. It was also contended that the Hon'ble Supreme Court had categorically held that even Section 465 Cr.P.C. would not apply in such cases and the defects were not curable.

188. Written submissions were also filed on behalf of the accused Neeraj Sehrawat; Navin Bali; Rahul Kala and Pankaj Sehrawat submitting that for charging and prosecuting a person for organized crime or being a member of an organized crime syndicate, it would be necessary to prove that the person concerned had indulged in:

- i) an activity,
- (ii) which is prohibited by law,
- (iii) which is a cognizable offence punishable with imprisonment for three years or more,
- (iv) undertaken either singly or jointly,
- (v) as a member of organized crime syndicate i.e. acting as a syndicate or a gang, or on behalf of such syndicate.
- (vi) (a) in respect of similar activities (in the past) more than one charge sheets have been filed in competent court within the preceding period of ten years,
- (b) and the court has taken cognizance of such offence.
- (vii) the activity is undertaken by:

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- (a) violence, or
- (b) threat of violence, or intimidation or
- (c) coercion or
- (d) other unlawful means.
- (viii)(a) with the object of gaining pecuniary benefits or gaining undue or other advantage for himself or any other person, or
- (b) with the object of promoting insurgency.

It was submitted that what was evident was that besides the past charge sheets, there has to be an activity which indicates continuity of offence or in other words organized crime has to be continuing unlawful activity and therefore, unless there is an act or omission indicating continuation of unlawful activity there would be no question of commission of organized crime. It was contended that mere proof of filing a charge sheet was not enough and it was only one of its requisites for constituting the offence of organized crime. If only the past charge sheet were to be enough to constitute an offence of organized crime, it would have offended the requirement of Article 20 (1) of the Constitution and possibly Article 20 (2) as well, and in any case Section 300 Cr.P.C. If proof of filing two chargesheets was enough to establish an offence of organized crime, there may be no occasion to carry out any investigation, other than collecting copies of charge sheets. Consequently,

it would be unnecessary for high-ranking police officers to wield the power to allow recording of information or to sanction prosecution after such chargesheets are collected.

189. Further, if "organized crime" were to refer to only more State Vs. Pankaj Sehrawat and Ors. Page No.187 of 385 than one charge sheet filed, the classification of crime in Sections 3 (1) (i) and 3 (1) (ii) on the basis of the consequence of resulting in death or otherwise would have been phrased differently, namely, by providing that "if any one of such offence has resulted in death", since the continuing unlawful activity requires more than one offence. It was contended that reference to "such offence" in Section 3 (1) implied a specific act or omission. In the present case as conceded by the Investigating Officer PW74, the FIR did not disclose the commission of a fresh act/ offence by the accused persons, rather the IO in his discretion had got the present case registered and the accused had been charge-sheeted and prosecuted only on the basis of previous charge sheets. Reliance in this regard was placed on the judgment of the Hon'ble High Court of Bombay in Prafulla & Ors. v. State of Maharashtra MANU/MH/1909/2008 wherein it had been settled that mere proof of filing charge sheets in the past was not enough and there had to be indulgence in any crime which could be said to be a continuation of past criminal activity, in other words, there had to be a fresh act/ omission. It was submitted that the ratio in Prafulla & Ors. v. State of Maharashtra (supra) had been approved and confirmed by the Hon'ble Supreme Court in State of Maharashtra v. Shiva @ Shivaji Ramji Sonawane & Ors. (2015) 14 SCC 272.

190. It was highlighted that in the present case, the proposal for invoking Section 3 MCOC Act sent by the IO on 14.02.2015 (Ex.PW74/A) did not contain or disclose the commission of organized crime or in other words, it did not disclose any overt State Vs. Pankaj Sehrawat and Ors. Page No.188 of 385 act or omission which would amount to a continuation of unlawful activity carried out by use of force for the purpose of pecuniary gain with which the accused was charged. The proposal contained the list of various cases ranging from the year 2010 to 2014-Neeraj Sehrawat; 2011 to 2014 -Naveen Bali; 2012 to 2014 -Rahul Kala and 2010 to 2012 -Pankaj Sehrawat and undisputedly the charge sheets in all the matters were filed and cognizance was taken. It was asserted that a cautious perusal of the proposal would reveal that the provisions of MCOC Act sought to be proposed were based only on past criminal activity without there being a fresh act in continuation of the previous unlawful activity. In the present case, the proposal dated 14.02.2015 for approval for recording information, the approval order dated 20.02.2015 (Ex.PW73/A) and recording of first information (Ex.PW20/2) did not relate to any actual continuing unlawful activity. It had been conceded by the IO in his cross "It is correct that proposal dated 14.02.2015 does not disclose any act or commission after the last case in respect of which FIR was registered qua any of the said 4 accused persons." It was pointed out that the approval for recording information required under Section 23 of MCOC Act was not an empty formality. The provisions of MCOC Act could be invoked only by strictly complying with the provisions of Section 23 of the MCOC Act. The competent authority was duty-bound to apply its mind to the attendant facts while permitting the registration of any FIR under MCOC Act or granting sanction for prosecution.

191. It was further submitted that the law on the point of State Vs. Pankaj Sehrawat and Ors. Page No.189 of 385 reading and understanding a statutory provision which contains a non-obstante clause as well as a provision which is clothed in negative words is well settled. A non-obstante clause

is a legislative device which is usually employed to give overriding effect to certain provisions over some contrary provisions, that may be found either in the same enactment or some other enactment. Reference in this regard was made to the judgment in *Union of India and Anr. v. G.M. Kokil and Ors.*

MANU/SC/0210/1984 : (1984) IILL J20SC; *Maru Ram v. Union of India and Ors.* MANU/SC/0159/1980 : 1980 Cri.L.J. 1440 and *A.G. Varadarajulu and Anr. v. State of T.N. and Ors.* MANU/SC/0232/1998 : [1998] 2 SCR 390. It was highlighted that it was well settled that the mode of showing a clear intention of the legislature that the provision enacted was a mandatory one was by clothing the command in negative form. It was submitted that the negative words are ordinarily used as a legislative device to make a statute imperative and reliance in this regard was placed on the judgments in *Mannalal Khetan v. Kedar Nath Khetan and Ors.* MANU/SC/0060/1976 : [1977] 2 SCR190 and *M. Pentiah and Ors. v. Muddala Veeramallappa and Ors.* MANU/SC/0263/1960 : [1961] 2 SCR 295). It was submitted that it was also the well-settled principle of law that when the law requires a thing to be done in a particular manner, it should be done in that manner and not in any other manner, and the said principle would have to be followed more strictly when an action is accompanied by serious consequences. It was asserted that Section 23 of the MCOC Act which opens with a non-obstante clause and is further clothed with negative words *State Vs. Pankaj Sehrawat and Ors.* Page No.190 of 385 clearly discloses the mandate of the legislature that the cognizance of the offences under the MCOC Act should not be in a routine course, but only upon the facts disclosing the applicability thereof and satisfaction of the officer of a high rank, the minimum being of the rank of Deputy Inspector General of Police in that regard. In fact, the officer of such a high rank was required to decide about the approval even for the recording of FIR in relation to any offence under the MCOC Act. It was reiterated that the mere filing of charge sheets in the past was not sufficient to register fresh FIR under MCOC Act against any accused persons. Notably, for the registration of FIR under MCOC Act, a fresh act had to be committed, which had not happened in the case at hand and PW74 Manishi Chandra, DCP who was posted as ACP, Special Cell and prepared the proposal for approval for registration of case FIR under MCOC Act had admitted in his cross-examination that "it is correct that the FIR per se does not disclose the commission of any fresh offence except those mentioned in the proposal and is a verbatim reproduction of the contents of the proposal."

192. It was submitted that similarly, PW73 S.N. Shrivastava, who passed the approval order dated 20.02.2015 had conceded in his cross-examination that "I do not recall if any fresh act unlawful act was committed by the accused persons due to passage of time. However, the same is a matter of record." It was submitted that the same obviously disclosed that the approving authority had to apply its mind about the applicability of the provisions of the MCOC Act before allowing the recording of *State Vs. Pankaj Sehrawat and Ors.* Page No.191 of 385 FIR, that is, a commission of a fresh offence and for that purpose, there must be, prima facie, satisfaction about the commission of offence of organized crime under the MCOC Act by the person or persons against whom the FIR is to be recorded, which was absent in the present case. It was argued that it was clear that every act in Section 23 MCOC Act depended upon the other and even if one act was not performed as provided for in the Section, the Court would not have jurisdiction to take cognizance, and any proceeding adopted thereunder would also be without jurisdiction and would vitiate the trial, so, grant of

approval Ex.PW73/A was without there being any organized crime, hence the same had been granted without application of mind rendering the prosecution of the accused for the offences under MCOC Act vitiated. Reliance was placed in this regard on the judgments in Prafulla & Ors. v. State of Maharashtra (supra); State of Maharashtra v. Shiva (supra); Ismail Sheikh v. State of Maharashtra MANU/MH/0173/2005 and Ashraf Khan v. State of Gujarat MANU/SC/0790/2012.

193. It was argued that admittedly, the Investigating Officer himself was the complainant of this case which was against the settled propositions of law and canons of principles of justice. A fair investigation which was but the very foundation of a fair trial, necessarily postulated that the informant and the investigator must not be the same person. Justice must not only be done but must appear to be done also. Any possibility of bias or a pre-determined conclusion had to be excluded. It was urged that it was impermissible and beyond comprehension to allow a State Vs. Pankaj Sehrawat and Ors. Page No.192 of 385 person to (i) make an accusation; (ii) the fact that he accuses is "sufficient ingredient" to make a penal offence; (iii) "investigate" that accusation which he himself makes; and (iv) become a "witness" to prove the accusation and then based on his testimony a person is convicted and punished. It was thus submitted that in the present case, the proposal and its grant thereof was without application of mind as the same did not disclose the commission of an organized crime as mandated under the law and the FIR and subsequently the sanction itself were without application of mind and bad in law; hence, the trial of the accused persons stood vitiated and was also unsustainable in the eyes of law being based only on the previous charge sheets filed against the accused persons. Reliance was also placed on the judgment in John D'Souza v. Assistant Commissioner of Police, B-1/Special, DCB, CID and Ors. Criminal Writ Petition No.147 of 2007 decided on 30.04.2007.

ARGUMENTS IN REBUTTAL

194. The Ld. Additional PP for State in rebuttal had submitted that as regards Section 174A IPC, there was a categorical averment of the IO that the wife had appeared before him and she was informed of the proceedings. It was submitted that the accused Rambeer Shokeen had knowledge of the proceedings and he had escaped, his address was the same and there was no procedural lapse. All ingredients of the offence under Section 174A IPC stood proved. Moreover, legal insanity and medical insanity were different and even the latter was not proved in the instant case. It was submitted that it was for the accused to show State Vs. Pankaj Sehrawat and Ors. Page No.193 of 385 that he was not in a position to understand the nature of his act or that it was wrong or illegal and in fact if he was insane, he would have been wandering here and there whereas he had duly escaped and then surrendered so he knew the consequences of his act. Reliance was also placed on Section 222 of Cr.P.C. and it was submitted that Sections 3(2) and 3(3) of MCOC Act included being a member of an organized crime syndicate and as such the accused could be convicted for being a member of an organized crime syndicate under Section 3(4) of MCOC Act as it was not the case that the accused had been misled on the charge. It was also submitted by the Ld. Additional PP that Section 2 (c) MCOC Act defined 'organized crime' and the prosecution had to establish that the unlawful activity was done with violence or with a view to gain pecuniary advantage and only these two parts had to be established and it was not for the prosecution to show that there was any fresh act when the approval was taken and there was no requirement of any fresh act. The only

requirement was that in 10 years there should have been more than one charge sheet whereas in the present case, there were several charge sheets and the accused persons had never challenged the order taking cognizance or framing of charge.

DISCUSSION

195. It is the settled proposition of law that to bring home a conviction, the prosecution has to establish its case beyond the pale of reasonable doubt by establishing an unbroken chain of events, leading to commission of the offence. It is also a settled proposition of law that once this chain is broken or a plausible State Vs. Pankaj Sehrawat and Ors. Page No.194 of 385 theory of another possibility is shown, the accused becomes entitled to the benefit of doubt which ultimately leads to his/her acquittal (Sadhu Singh v. State of Punjab 1997(3) Crimes 55). The cardinal rule in criminal law is that the prosecution has to prove its case beyond reasonable doubt and the benefit of doubt has to be given to the accused. In Batcu Venkateshwarlu v. Public Prosecutor High Court of AP (SC) 2009 (1) RCR (Criminal) 290: 2009 (1) RAJ: 2008 (15) SCALE 212, the Hon'ble Supreme Court has observed as under:

"A person has, no doubt, a profound right not to be convicted of an offence which is not established by the evidential standard of proof beyond reasonable doubt. Though this standard is a higher standard, there is, however, no absolute standard. What degree of probability amounts to "proof" is an exercise particular to each case... Doubts would be called reasonable if they are free from a zest for abstract speculation. Law cannot afford any favourite other than truth. To constitute reasonable doubt, it must be free from an over emotional response. Doubts must be actual and substantial doubts as to the guilt of the accused persons arising from the evidence, or from the lack of it, as opposed to mere vague apprehensions. A reasonable doubt is not an imaginary, trivial or a merely possible doubt, but a fair doubt based upon reason and common sense. It must grow out of the evidence in the case."

Now on the basis of the testimony of the witnesses and the documents on record, the Court has to scrutinize whether the prosecution is able to prove the offences with which the accused persons have been charged against the accused persons beyond reasonable doubt.

196. It is the case of the prosecution that the accused persons were running a crime syndicate and extending threats, inflicting State Vs. Pankaj Sehrawat and Ors. Page No.195 of 385 crimes including murder in order to extort money/grab land and were members of crime syndicate and doing continuing unlawful activity in the form of organized crime i.e. extortion from wealthy persons of money or land grabbing. The involvements of the different accused persons were also stated as per which the accused Pankaj Sehrawat (A1) was involved in 2 cases, Neeraj Sehrawat (A2) was involved in 23 criminal cases, accused Naveen Dabas @ Bali (A4) was involved in 20 criminal cases, Rahul Dabas @ Kala (A8) was involved in 8 criminal cases and accused Rambeer Shokeen (A10) was involved in 1 criminal case. It is also the case of the prosecution that there are 7 cases in which the accused persons were involved as a crime syndicate being FIR No.575/14 PS Baghpat, UP, FIR

No.98/12 PS Prashant Vihar, Delhi, FIR No.69/10 PS Hari Nagar, Delhi, FIR No.77/12 PS Bawana, Delhi, FIR No.53/12 PS Bawana, Delhi, FIR No.99/12 PS Bawana, Delhi and FIR No.179/12 PS Bawana, Delhi and it is the case of the prosecution that the said FIRs showed that the accused persons were involved in the extortion of money from wealthy people on the basis of threatening them by exploiting their position as dreaded criminals.

197. Coming to the legal position, the foremost condition for applicability of MCOC Act is that there must be an "organized crime syndicate".

A. "Organized crime syndicate" is defined in Section 2(f) of MCOC Act as under:

"Organized crime syndicate" means a group of two or more persons who, acting either singly or State Vs. Pankaj Sehrawat and Ors. Page No.196 of 385 collectively, as a syndicate or gang indulge in activities of organized crime."

Thus, the "organized crime syndicate" must be indulging in activities of "organized crime."

B. The definition of "organized crime" is contained in Section 2(e) of MCOC Act which reads as under:

"Organized crime" means any continuing unlawful activity by an individual, singly or jointly, either as a member of an organized crime syndicate or on behalf of such syndicate, by use of violence or threat of violence or intimidation or coercion, or other unlawful means, with the objective of gaining pecuniary benefits, or gaining undue economic or other advantage for himself or any other person or promoting insurgency."

From the definition of "organized crime", the ingredients of "organized crime" may be culled out as under:

- i) there has to be continuing unlawful activity.
- ii) such activity is carried out by an individual, either singly or jointly.
- iii) such an activity is committed either by a member of an organized crime syndicate or on behalf of such syndicate.
- iv) there is use of violence or threat of violence or intimidation or coercion or other unlawful means.

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- v) such activity is committed with the objective of gaining pecuniary benefits or gaining undue economic advantage or other advantage for the person who undertakes such an activity or any other person or promoting insurgency.

Thus, for "organized crime" there must be "continuing unlawful activity".

C. "Continuing unlawful activity" is defined in Section 2(d) of MCOC Act as under:

"Continuing unlawful activity" means an activity prohibited by law for the time being in force, which is a cognizable offence punishable with imprisonment of three years or more, undertaken either singly or jointly, as a member of an organized crime syndicate or on behalf of such syndicate in respect of which more than one charge sheets have been filed before a competent Court within the preceding period of ten years and that Court has taken cognizance of such offence."

The ingredients of "continuing unlawful activity" can be stated to be as under:

- i) such an activity should be prohibited by law for the time being in force.
- ii) such an activity is a cognizable offence punishable with imprisonment of three years or more.
- iii) such an activity is undertaken either singly or jointly as a member of an organized State Vs. Pankaj Sehrawat and Ors. Page No.198 of 385 crime syndicate or on behalf of such a syndicate.
- iv) in respect of such an activity, more than one charge sheet must have been filed before the competent court.
- v) the charge sheet must have been filed within a preceding period of ten years; and
- vi) the competent court/s has taken cognizance of such offence.

Thus, there must be continuing unlawful activity. However, the ingredient of use of violence in such activity with the objective of gaining pecuniary benefit is not included in the definition of 'continuing unlawful activity' but finds mention in the definition of 'organized crime' and as such 'organized crime' is a species of 'continuing unlawful activity'.

D. In the instant case, charge has been framed against the accused persons for the offences under Sections 3 and 4 of MCOC Act which are the penal sections. Section 3 of MCOC Act reads as under:

"3. Punishment for organized crime.- (1) Whoever commits an offence of organized crime shall-

- (i) if such offence has resulted in the death of any person, be punishable with death or imprisonment for life and shall also be liable to a fine, subject to a minimum fine of rupees one lakh;

(ii) in any other case, be punishable with State Vs. Pankaj Sehrawat and Ors. Page No.199 of 385 imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life and shall also be liable to a fine, subject to a minimum fine of rupees five lakhs.

(2) Whoever conspires or attempts to commit or advocates, abets or knowingly facilitates the commission of an organized crime or any act preparatory to organized crime, shall be punishable with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life and shall also be liable to a fine, subject to a minimum fine of rupees five lakhs.

(3) Whoever harbors or conceals or attempts to harbor or conceal, any member of an organized crime syndicate shall be punishable with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life, and shall also be liable to fine, subject to a minimum fine of rupees five lakhs.

(4) Any person who is a member of an organized crime syndicate shall be punishable with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life and shall also be liable to a fine, subject to a minimum fine of rupees five lakhs.

(5) Whoever holds any property derived or obtained from commission of an organized crime or which has been acquired through the organized crime syndicate funds shall be punishable with a term which shall not be less than three years but which may extend to imprisonment for life and shall also be liable to fine, subject to a minimum fine of rupees two lakhs.

4. Punishment for possessing unaccountable wealth on behalf of member of organized crime syndicate. - If any person on behalf of a member of an organized crime syndicate is, or, at any time has been, in possession of movable or immovable property which he cannot satisfactorily account for, he shall be punishable with imprisonment for a term which shall not be less than three years but which State Vs. Pankaj Sehrawat and Ors. Page No.200 of 385 may extend to ten years and shall also be liable to fine, subject to a minimum fine of rupees one lakh and such property shall also be liable for attachment and forfeiture, as provided by Section

20."

Thus, Section 3 of MCOC Act punishes the commission of offence of organized crime itself or even abetting or attempting to commit or advocating the same as well as being a member of an organized crime syndicate or harboring or concealing any member of an organized crime syndicate and holding of property derived or obtained from commission of an organized crime or that which has been acquired through the organized crime syndicate. Section 4 MCOC Act sets out that if any person (even not being a member of an organized crime syndicate) on behalf of a member of an organized crime syndicate is in possession of any movable or immovable property which he cannot

satisfactorily account for, he shall be punished with imprisonment from 3 years to life imprisonment and fine. Such property is also liable for attachment and forfeiture.

E. In the present case, the accused Neeraj Sehrawat has been charged with running an 'organized crime syndicate' and for being a member of the said 'organized crime syndicate' and also for committing organized crime and accused Pankaj Sehrawat, Naveen Dabas @ Bali and Rahul Dabas @ Kala have been charged for being members of the 'organized crime syndicate' and for committing 'organized crime' i.e. under Sections 3(1) and 3(4) of the MCOC Act (though the charge mentions only Section 3 of MCOC Act) while the accused Rambeer Shokeen has been charged with harboring, concealing and organizing the State Vs. Pankaj Sehrawat and Ors. Page No.201 of 385 concealment of accused Neeraj Sehrawat; of providing accused Neeraj Sehrawat an HDFC debit card; of receiving money from the crime syndicate and for holding money and property derived/ obtained from the commission of organized crime or which had been acquired through organized crime syndicate and for being in possession of movable property which he could not satisfactorily account for and which was obtained/ acquired from proceeds of organized crime committed by organized crime syndicate i.e. under Sections 3(2), 3(3), 3(5) and Section 4 of MCOC Act. As such it was for the prosecution to establish that there was organized crime which was committed and/ or that an organized crime syndicate was being run.

198. The investigating agency and the prosecution had relied upon several FIRs to show the existence of an organized crime syndicate and continuing unlawful activity and in the proposal for approval for registration of FIR, 14 FIRs were specifically referred to in this regard. The same are detailed below in a tabular form along with their present status and whether the documents of the said cases were admitted by the accused persons.

		TABLE A	
Sl. No.	FIR No., Date, u/s & PS	Details of Co-accused persons	Present status
1.	FIR No. 69/2010, dated 14.03.10, u/s 186/353/332/34/174-A IPC, PS Hari Nagar,	Accused Neeraj @ Neetu @ Bawania R/o Bawana Delhi.	Cognizance was taken on 2.6.2010 & Neeraj & Sombir were convicted on
State Vs. Pankaj Sehrawat and Ors. Delhi			Page No.202 of 385 24.5.2013 for two years RI with fine Rs. 1,000/- . Accused Pardeep pleaded guilty of the charge. Documents admitted on 22.02.2020.

2.	FIR No.179/2012 dated 29.05.2012 u/s 385/506/507/34 IPC PS Bawana, Delhi.	1. Neeraj @ Neetu @ Bawania R/o Bawana, Delhi. 2.Rahul @ Kala S/o Narender R/o Village Sultanpur Dabas, Delhi.	Ex.PW74/W (colly) Case status - case disposed All acquitted on 24.07.2019. Documents admitted on 22.02.2020. Ex.PW57/A and Mark PW57/D1
3.	FIR No.77/2012 dated 1.3.2012 u/s 385/506/507/120 -B/34 IPC PS Bawana, Delhi	1.Rahul S/o Surender R/o Village Ladpur, Delhi. 2. Naveen @ Bali @ Chhota @ Time Pass S/o Narender R/o	Refer to testimony of PW57. On 29.7.2013, the court proceedings against the receiver of extorted money namely Ajay @ Sonu stood
State Vs. Pankaj Sehrawat and Ors.		Village Sultanpur Dabas, Delhi. 3. Neeraj @ Neetu @ Bawania R/o Bawana, Delhi.	Page No.203 of 385 abated as he was killed during gang rivalry. All discharged on 29.07.13. Documents admitted on 22.09.2022.
4.	FIR No.53/2012 dated 12.2.2012 u/s 385/506/507/120 -B/34 IPC PS Bawana, Delhi	1. Neeraj @ Neetu @ Bawania R/o Bawana, Delhi. 2. Naveen @ Bali @ Chhota @ Time Pass S/o Narender R/o Village Sultanpur Dabas, Delhi	Accused Rahul@ Kala & Naveen @Bali have been discharged vide order dated 01.07.2023. Neeraj Bawana is on bail. Case listed for

		3. Rahul @ Kala S/o Narender R/o Village Sultanpur Dabas, Delhi & one other co-accused person	Prosecution Evidence. Documents admitted on 22.02.2020. (Refer to testimony of PW44)
5.	FIR No.98/2012 dated 28.2.2012 u/s 307/452/506/120 -B/ 212/34 IPC,	1. Neeraj Bawana R/o Bawana, Delhi. 2. Naveen @	Case Status- Case disposed 1. Neeraj Bawana 2. Naveen @
State Vs. Pankaj Sehrawat and Ors. PS Prashant Vihar, Delhi.		Bali @ Chhota @ Time Pass s/o Narender R/o Village Sultanpur Dabas, Delhi. 3. Rahul @ Kala s/o Narender R/o Village Sultanpur Dabas, Delhi.	Page No.204 of 385 Bali @ Chhota @ Time Pass had been discharged on 13.09.13. Other accused convicted on 09.12.2015. Documents admitted on 22.02.2020 Ex.C-3 (colly) Refer to testimony of PW65
6.	FIR No.99/2012 dated 15.3.2012 u/s 385/387/ 506/507/120- B/34 IPC, PS Bawana, Delhi.	Accused Neeraj Bawana and Pankaj both s/o Prem Singh R/o 848, Pana Maujan, Bawana, Delhi. Deepak Dabas & Others	Charge had been framed against both the accused on 01.07.2016. (Deepak Dabas has been discharged in the present case) Prosecution

			evidence
			Documents admitted on 22.02.2020.
7.	FIR No.575/2014 u/s	1. Neeraj @ Neetu @	Charge framed.
State Vs. Pankaj Sehrawat and Ors.	147/148/ 149/395/397/120 -B/ 34 IPC, PS Kotwali, Baghpat, UP. Crime No.1072/2014	Bawana R/o Bawana, Delhi. 2. Pankaj Sehrawat 3. Rambeer Shokeen S/o Nawal Singh 4. Amit Malik	Page No.205 of 385 Case Status- Prosecution evidence Accused Rambeer Shokeen acquitted vide judgment dated 13.09.2022. Documents admitted on 22.02.2020 and 09.09.2022.
8.	FIR No.764/2014 dated 24.08.2014 u/s 307/302/120- B/34 IPC & 25/27 Arms Act, PS Subhash Place, Delhi	Accused Neeraj Sehrawat @ Bawania & Pankaj Sehrawat S/o Prem Singh R/o 848, Pana Maujan, Bawana, Delhi.	Ex.C-61 (colly) Charge has been framed against both the accused on 13.05.2016. Prosecution Evidence
9.	FIR No.437/2011 dated 27.07.2011 PS : Jhajjar, Haryana, under Sections 186, 120-B IPC & 25 Arms Act,	Naveen @ Bali @ Chhota @ Time Pass & Others	Documents admitted on 09.09.2022. Cognizance was taken on 13.12.2012. P.O. proceedings against Neeraj Bawania, presently on bail. Neeraj discharged on

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18.10.2022

Others
acquitted.

.	180/2012 dated 31.5.2012, PS Samaypur Badli, Delhi, under Sections 387, 506(2), 420, 465, 474, 471, 120-B & 34 IPC	& Others	taken on 07.08.2013 Documents admitted on 22.02.2020
11	FIR No.192/2012 dated 18.05.2012, PS Sadar Panipat, Haryana under Sections 148, 149, 506, 34 IPC & 25 Arms Act,	Accused Neeraj Bawania & Others	Accused Neeraj declared P.O. on 18.03.2014.
12	FIR No.194/2012 dated 19.05.2012 PS Sadar Panipat, Haryana, under Sections 148, 149, 307, 302, 120-B, 34 IPC & 25 Arms Act,	Neeraj Bawania & Others	Cognizance taken on 29.04.2014 and accused Neeraj Bawania was declared P.O. Acquitted on 18.04.2021
13	FIR No.234/2012 dated 26.06.2012, PS	Neeraj Bawania (apprehended alone while in possession of	Cognizance taken on 11.10.2012.
State Vs. Pankaj Sehrawat and Ors.	Prashant Vihar under Sections 25/27 Arms Act	illegal weapon).	Page No.207 of 385 Acquitted on 10.04.2018 Documents admitted on 22.02.2020.

. dated 05.03.2013, PS Crime Branch, under Sections 186, 353, 120-B, 34 IPC.	Bawania 2. Rahul @ Kala & others	on 24.09.2013
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The investigating agency and the prosecution had further referred to the other cases against the accused persons, and the involvements of the different accused persons who are facing trial before this Court can be seen through the following table:

TABLE B Sl. FIR Nos., PS, Name of Cognizance Order / No. date under Accused Order on Charge Sections Persons

1. FIR Rahul Dabas Acquitted No.183/2014 @ Kala PS Bawana u/s Refer to testimony of 302 and 34 IPC PW42 25 and 27 Arms Act Documents admitted on 22.02.2020

2. FIR Pankaj was Documents admitted No.739/2014, the on 22.02.2020 PS Nangloi complainant State Vs. Pankaj Sehrawat and Ors. Page No.208 of 385 Under Section 379 IPC

3. FIR Rambeer Documents admitted No.35/2015, PS Shokeen on 09.09.2022 Special Cell, Sections 384, Bawania 34 IPC. Ex.C-58 (colly.) Refer to testimony of PW27.

4.	FIR No.65/2016, PS Special Cell, under Section Arms Act	Rambeer Shokeen	Rambeer Shokeen discharged on 08.08.2023. Documents admitted on 09.09.2022 Charge-sheet is Ex.C-59 (colly) Refer to testimony of PW14, PW16 and PW51 Charge framed against the accused Admitted on 09.09.2022
5.	FIR No.07/2015, PS Special Cell	Others allegedly part of gang	Charge framed against the accused Admitted on 09.09.2022

- | | | | | |
|----|--|----------------------|----------------------|---------|
| | under Sections
25/54/59 Arms
Act | of Neeraj
Bawania | Ex.C-60 (colly) | |
| 6. | FIR
No.308/2007,
PS Nangloi,
under Sections | Rambeer
Shokeen | Rambeer
convicted | Shokeen |

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341, 325 & 34 Rs.100 fine

- | | | | | | |
|-----|--|---------------------------|--------|-----------------------------------|----|
| 7. | IPC
FIR
No.211/2011
PS Bawana,
under Section
307, 120-B &
34 IPC & 27
Arms Act | Naveen
Bali | @ | Charged framed on
13.02.2013 | |
| 8. | FIR
No.212/2011
PS Bawana,
under Sections
302, 120-B &
34 IPC & 25
and 27 Arms
Act | Naveen
Bali
Others. | @
& | Pending Trial. | |
| 9. | FIR
No.351/2011,
PS Sampla
Rohtak, under
Sections 395
and 34 IPC &
25 and 27 Arms
Act | Naveen
Bali | @ | Charge framed
18.05.2012 | on |
| 10. | FIR
No.241/2011,
PS Sadar
Sonipat under
Sections 307,
332, 353, 412,
420 & 34 IPC
& 25 and 27
Arms Act | Naveen
Bali | @ | Charge framed
22.06.2013 | on |
| 11. | FIR
No.240/2011,
PS Sadar
Sonipat under | Naveen
Bali | @ | Cognizance taken on
11.07.2012 | |

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Sections 307,
332 & 186 IPC
and 25 & 27
Arms Act

- | | | | |
|------------------------------------|---|--------------------|---|
| 12. | FIR
No.20/2014, PS
Special Cell,
Delhi, under
Sections 120-B
IPC read with
Section 302,
468, 471 and
34 IPC | Naveen @
Bali | Cognizance taken on
28.08.2014 |
| 13. | FIR
No.120/2014,
PS Sadar
Ballabgarh
42 Prisoners
Act and 201
IPC | Naveen @
Bali | |
| 14. | FIR

PS Kanjhawla,
under Sections
336 IPC and 27
Arms Act | | Charge sheet filed. |
| 15. | FIR
No.22/2012, PS
Special Cell,
under Sections
25 Arms Act | | Charge framed |
| 16. | FIR
No.29/2010, PS
Bawana, under
Sections 336,
506 and 34 IPC
& 25 and 27
Arms Act | Pankaj | Charge framed on
24.02.2011

Refer to testimony of
PW22 |
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| 17. | FIR
No.146/2010,
PS Bawana,
under Sections
323, 341 and
34 IPC & 17
and 61 Excise
Act | Pankaj &
Others | Pending Trial |
| 18. | FIR
No.206/2012,
PS South
Rohini, under
Sections 506,
507, 387,120-B
& 34 IPC | | Pending Trial |
| 19. | FIR
No.42/2015, PS | Neeraj
Pankaj | Ex.PW25/A
A number of |

	Special Cell		witnesses were examined in the present case.
21.	PS Shahbad Dairy FIR No.30/2015 PS Special Cell under Sections 186/353/307/34 IPC and 25/27/54/59 Arms Act.	Naveen @ Bali Neeraj	Mark PW59/1 Refer to testimony of PW59 and PW63 Refer to testimony of PW62 and PW75. Neeraj convicted and sentenced to 7 years. Ex.PW75/A, B, C and D.
22.	FIR No.246/2015 PS Samaypur Badli dated	Naveen @ Bali	Refer to testimony of PW58

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24.02.2015

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23.	FIR No.1683/2015 PS Mangolpuri under Sections 302/120B/147/149/34 IPC dated 25.08.2015	Neeraj Naveen @ Bali Rahul@ Kala Naveen Huda	Documents admitted on 22.02.2020.
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While the proposal and the FIR of the present case referred to the FIRs upto 2014, several FIRs also came to be registered against the accused persons subsequently before the filing of the charge sheet in the present case and reference has been made to several FIRs in which only one or more than one of the accused persons have been named and the same are also reflected in the above table.

199. It is the case of the prosecution that there are several cases in which the accused persons were involved as an organized crime syndicate and which reflected continuing unlawful activity being FIR No.575/14 PS Baghpat, UP, FIR No.98/12 PS Prashant Vihar, Delhi, FIR No.69/10 PS Hari Nagar, Delhi, FIR No.77/12 PS Bawana, Delhi, FIR No.53/12 PS Bawana, Delhi, FIR No.99/12 PS Bawana, Delhi and FIR No.179/12 PS Bawana, Delhi and it is the case of the prosecution that the said FIRs showed that the accused persons were involved in the extortion of money from wealthy people on the basis of threatening them by exploiting their position as dreaded criminals. Reference was made in the proposal to FIR No.180/12 PS Samaypur Badli but State Vs. Pankaj Sehrawat and Ors. Page

No.213 of 385 in the said FIR, only the accused Neeraj Bawana out of the present accused persons is named; similar is the position with regard to FIR No.192/2012 PS Sadar Panipat, Haryana, FIR No.194/2012 PS Sadar Panipat, Haryana (accused Neeraj was acquitted in the said case on 18.04.2021), FIR No.437/2011 PS Jhajjar, Haryana (in which accused Naveen @ Bali was also stated to be involved though the accused Neeraj has subsequently been discharged on 18.10.2022), FIR No.234/2012 PS Prashant Vihar, FIR No.40/2013 PS Crime Branch, Delhi (in this case Rahul @ Kala was also stated to be involved but the accused Neeraj Bawana already stood discharged vide order dated 24.09.2013). As regards FIR No.69/10 PS Hari Nagar, Delhi, it was lodged on the allegations that on 14.03.2010 the accused Neeraj who was then an undertrial prisoner along with Somveer and Pradeep who were lodged in Jail No.1 Tihar obstructed public servants and caused hurt by using criminal force to deter them from discharging their official duty on which the said FIR was registered under Sections 186, 353, 332, 34/174 A IPC. It may be mentioned that in the said FIR, none of the sections of extortion were invoked. Cognizance was taken on 02.06.2010 and the accused Neeraj and Somveer were convicted on 24.05.2013 and one accused Pradeep had pleaded guilty of the charge. However, the said FIR cannot be said to have any alleged objective of pecuniary gain by the said acts and there is even nothing to show that the said acts were done to gain any undue advantage or other advantage over any rival gang (on the aspect as to what constitutes "other advantage" in the definition of organized crime contained in Section 2(e) of MCOC Act, State Vs. Pankaj Sehrawat and Ors. Page No.214 of 385 reference may be made to the judgment in State of Maharashtra v. Jagain Gagansingh Nepali @ Jagya & Ors. Criminal Appeal No.20/2011 decided by Full Bench of the Hon'ble High Court of Bombay in August, 2011 and referred to in the judgment of the Hon'ble High Court of Delhi in State Govt. of NCT of Delhi v. Khalil Ahmed Crl. Rev. P. No.42/2012 decided on 23.04.2012) and as such cannot be relied upon for the purpose of showing existence of organized crime though the documents of conviction were admitted on 22.02.2020 by the accused persons. It may also be mentioned that there is nothing to show that any action had been taken against Somveer and Pradeep for invoking the provisions of MCOC Act nor were they arrested in the present case as members of an organized crime syndicate.

200. The prosecution had also relied upon FIR No.98/2012 PS Prashant Vihar which was registered under Sections 307, 452, 506, 120B and 212/34 IPC and 25/27 Arms Act on the allegations that in February 2012, Naveen @ Bali informed his associates that a message had been conveyed to Proprietor of Pardesi Property for paying Rs.35 lakhs as protection money but he was not paying the demanded money. The associates were directed to approach the office of Pardesi properties to extend threat and to open fire so as to compel the proprietor to meet the demand. On 28.02.2012 the syndicate members threatened the persons sitting in the office by firing on which the said FIR was registered. During the course of investigation accused Neeraj, Naveen and others were arrested and the vehicle used in the commission of the offence, that is Maruti Alto Car was also seized which vehicle State Vs. Pankaj Sehrawat and Ors. Page No.215 of 385 was also used in the commission of offence reported vide FIR No.78/12 under Section 25 Arms Act PS Bawana and stood registered in the name of Narender, father of Rahul @ Kala. Charge sheet was filed in the said case.

201. In this regard PW65 Shri Ish Kumar was examined who had stated that on 28.02.2012 at about 1:30 p.m. he along with others was sitting in their office and two persons aged about 25 years, came to their office and asked where their boss was. He had stated about them taking out their pistols and

firing but the same did not hit them and they ran back into the room. He got FIR No.98/2012 PS Prashant Vihar lodged. He had given his evidence in Rohini Court in the matter. He stated that when the accused persons in the FIR were arrested, he had gone to PS Bawana and identified one Manjeet and he did not remember the name of the other person. Certified copy of the FIR along with other documents and statement of PW65 recorded as PW2 in the said case are Ex.C-3 (colly). During cross-examination by the Ld. Additional PP, he could not say if he had identified Naveen Dabas or Rahul Kala and in Court he did not identify any of the accused persons, even when they were pointed out by the Ld. Additional PP. As such PW65 had stated about identifying only Manjeet but Manjeet is not an accused before this Court. He did not identify either Naveen or Rahul Dabas. As per the record, cognizance had been taken in the said case and there were five accused persons i.e. Manjeet @ Mangal, Virender, Bhupender Singh Ahlawat, Sabinder and Naveen @ Bali. Thereafter, accused Neeraj and Naveen @ Bali were discharged on State Vs. Pankaj Sehrawat and Ors. Page No.216 of 385 13.09.2013 from the Court of the Ld. ASJ as submitted by the prosecution and charge was framed on 27.09.2013 against Manjeet @ Mangal and Suresh @ Kala only and they were stated to be facing trial and they were convicted on 09.12.2015 but no evidence has been brought on record to show that Manjeet and Suresh were members of the alleged crime syndicate run by Neeraj Bawana or that the IO had attempted to arrest them in the present case as members of the organized crime syndicate. It may be mentioned that the documents of the said FIR were admitted on 22.02.2020 by the accused persons.

202. Reliance was then placed on FIR No.77/2012 which was registered under Sections 385/506/507, 120B and 34 IPC at PS Bawana on the allegations that in February 2012 Naveen Bali at the instance of Neeraj Bawania threatened a businessman namely, Sunil Goel and forced him to give Rs.50 lakhs as protection money. During the course of investigation, one Rahul Ladpuriya and Manjeet @ Mangal were arrested who disclosed that they had threatened Sunil Goel and made extortion call for Rs.50 lakhs on the behest of Naveen @ Bali and Neeraj Bawania and that one of the gang members namely Sonu @ Ajay had extorted Rs.15 lakhs from the complainants which was distributed amongst the gang members. Accused Neeraj, Naveen and Ajay @ Sonu were also arrested in the case. Charge sheet was filed and as per the record, on 29.07.2013, the Court proceedings against the receiver of extorted money namely, Ajay @ Sonu stood abated as he was killed during gang rivalry and the said case resulted in discharge of the other accused persons on State Vs. Pankaj Sehrawat and Ors. Page No.217 of 385 29.07.2013 though the documents of the case were admitted on 22.09.2022.

203. The prosecution had also relied upon FIR No.53/12 PS Bawana under Sections 385, 506, 507, 120B and 34 IPC which was registered on the allegations that the accused Neeraj along with his gang members hatched a criminal conspiracy to extort money from one Narender Singhal @ Pappu, an industrialist of DSIIDC, Bawana and on 12.02.2012, Narender Singhal @ Pappu reported that on 05.02.2012, he received a call of extortion for Rs.5 lakhs from one Kala from Sultanpur who was later identified as Rahul Dabas @ Kala. On 12.02.2012, Kala again made a threatening call and demanded Rs.10 lakhs from him over phone on which the FIR was registered. During investigation, Rahul Ladpuriya and Manjeet @ Mangal were arrested who disclosed that they had threatened Narender Singhal on the behest of Naveen @ Bali and Neeraj Bawania and later they and Rahul @ Kala were arrested and charge sheet was filed. As per the submissions of the prosecution/ record,

accused Rahul @ Kala and Naveen @ Bali had already been discharged vide order dated 01.07.2023 in the said case and the matter is stated to be listed for prosecution evidence against the other accused and the documents of the said case were admitted on 22.02.2020. It may be mentioned that Rahul Ladpuriya and Manjeet @ Mangal have not been made accused in the present case nor any attempt was made to arrest them in the present case as members of the organized crime syndicate and the charge sheet is silent about any action against them for invoking the provisions of MCOC State Vs. Pankaj Sehrawat and Ors. Page No.218 of 385 Act.

204. PW44 was also examined in this regard and PW44 Narender Singhal had stated that he had a business of iron cutting work at Prahladpur and he had received a call on his mobile on 05.02.2012 from a person who stated that he was Kala from Sultanpur Majra and he demanded Rs.10 lakhs and threatened that if he would not give Rs.10 lakhs to him, he would kidnap his son. He again received a call from the same person on 06.02.2012 and he again demanded the money and reduced it to Rs.5 lakhs and again on 12.02.2012 the same person Kala made a call to him and demanded money and threatened him again. He had stated that on account of such continuous pressure by the caller, he had reported the matter to Police Station Bawana and got FIR No.53/2012 registered. He came to know that certain persons had been arrested and police had joined him in the investigation of the FIR for the purpose of identifying the voice of caller who demanded the money and threatened him and thereafter he never received any threats. During cross- examination by the Ld. Additional PP, he had denied having stated in his statement that the said persons involved in FIR No.53/2012 were dreaded criminals and could threaten him for not giving evidence in the Court or that he had demanded security for himself. During cross-examination on behalf of the accused persons, he had stated that he had given evidence in the said case but he also stated that he could not ascertain regarding the exact identity of the voice whether it was of the same person who called him and demanded money and threatened him. He State Vs. Pankaj Sehrawat and Ors. Page No.219 of 385 denied the suggestion that no call was made by Kala. As such it is significant that PW44 had stated about receiving three calls demanding money from one Kala though he had not paid any amount actually and he had got the case registered. However, the prosecution has not led any evidence to show that he had identified the voice of the caller or to show that the Kala referred to was the accused Rahul @ Kala before this Court. Even otherwise, a separate FIR was registered on the complaint and the said matter is stated to be pending for prosecution evidence.

205. The prosecution had then relied on FIR No.179/2012 PS Bawana which was registered on the allegations that one Dr. Dinesh Modi, owner of Soham Hospital received a threatening call from Neeraj Bawania through his associates for either making him a partner in his hospital or to give Rs.25 lakhs as protection money. FIR No.179/12 under Sections 385, 506, 507, 34 was registered which is Ex.PW57/A. Neeraj, Rahul @ Kala and Deepak @ Deepa were arrested and Rahul @ Kala was identified by the complainant during TIP proceedings. The phone used in making the extortion call was also recovered. Charge sheet was filed. Dr. Dinesh Modi was examined as a witness in the present case as PW57 who had stated that in the year he did not remember, he received a ransom call on his mobile and a demand of Rs.25 lakhs was made though no threat was made. He ignored the same and made a complaint to the police on which FIR was registered bearing FIR No.179/2012. He stated that to his knowledge no one was arrested in the FIR. Certified copy of the charge-sheet including FIR is Ex.PW57/A. During cross-

State Vs. Pankaj Sehrawat and Ors. Page No.220 of 385 examination by the Ld. Additional PP for State he admitted that he had stated to the police that on 23.05.2012 two persons had come in his OPD chamber and pointed a gun towards him and they threatened him but he denied the suggestion that they threatened him in the name of Neeraj Bawana. He admitted that they demanded extortion money of Rs.25 lakhs and also demanded to give permanent possession of Chemist Shop in the New Building and that he had met ACP Kanjhawala but he did not give any complaint. He admitted that on 26.05.2012, he again received a threatening call on which he got FIR No.179/2012 registered. He denied the suggestion that he had stated to the police that Rahul Kala and Deepak @ Deepa had come to his clinic though he admitted that during investigation, he had identified the accused Rahul Kala in Tihar and volunteered he was prompted. He stated that he did not identify any accused. As such PW57 had stated about receiving ransom calls and about two persons threatening him and demanding extortion money of Rs.25 lakhs and that he had got FIR No.179/2012 registered. Further, he had stated that he had identified the accused Rahul @ Kala in Tihar but he had volunteered that he was prompted and he had denied the suggestion that he had stated to the police that Rahul @ Kala and Deepak @ Deepa had come to his clinic.

206. During cross-examination by the Ld. Counsel for the accused persons PW57 had admitted that in FIR No.179/2012, the name of the person who had extended the threat was not mentioned. He was not aware if a trial was conducted in the said matter or what was the outcome of the same. He was not aware State Vs. Pankaj Sehrawat and Ors. Page No.221 of 385 that the accused in the said FIR had been acquitted by judgment dated 24.07.2019. He was shown copy of the judgment Mark PW57/D1 but he was not aware of the same. He did not remember who had prompted him to identify Rahul Kala in Tihar. He denied the suggestion that allegations were made against the accused persons at the behest of the police officials to falsely implicate them and to create false evidence against them. Even otherwise, the accused had already been acquitted in the said matter and PW57 had not identified the accused Rahul @ Kala in the Court and Deepak @ Deepa had already been discharged in the present case.

207. The prosecution had also relied on FIR No.99/2012 PS Bawana registered under Sections 385, 387, 506, 507, 120B and 34 IPC on the allegations that on 11.03.2012, the accused Neeraj along with his gang members had made a call to one Anoop Goel, an industrialist of DSIIDC, Bawana demanding Rs.3 lakhs as protection money. During the course of investigation, Vivek @ Balle and Ravinder @ Paua were arrested. Subsequently, Pankaj was also arrested and the car used in the commission of the offence i.e. Santro car was seized on his disclosure. Later, one Naveen @ Jonny was also arrested who had allegedly made the extortion call to the complainant at the behest of Neeraj Bawania. Deepak @ Deepa was also arrested and the accused persons were charge sheeted and charge had been framed against the accused Neeraj and Pankaj and the case was stated to be pending trial and listed for prosecution evidence. The documents of the said case were admitted by the accused persons on 22.02.2020. It may be State Vs. Pankaj Sehrawat and Ors. Page No.222 of 385 mentioned that as per the record of the present case, the investigating officer had neither attempted to arrest Vivek @ Balle or Ravinder @ Paua in the present case as members of the organized crime syndicate nor are they shown as involved in any other case with the accused Neeraj. The charge sheet was also silent about any action against them for invoking the provisions of MCOC Act. Further, Deepak @ Deepa has already been discharged in the present case.

208. The prosecution had referred to FIR No.575/2014 PS Baghpat Crime No.1072/2014 under Sections 147, 148, 149, 395, 397, 120 B and 34 IPC to show that the accused persons were members of an organized crime syndicate. As per the allegations, the accused Neeraj and Pankaj hatched a conspiracy with other gang members to manage the escape of Amit Malik @ Bhura from the custody of Uttarakhand Police and Neeraj Bawania through his associates attacked upon the police party escorting Amit Bhura and helped the escape of Amit @ Bhura from the custody of Uttarakhand Police and they also looted two assault rifles and one SLR from the escort party of Uttarakhand Police. During investigation, it was revealed that another associate of Neeraj namely, Sunil Rathi had asked Neeraj to help in the escape of Amit Bhura from the custody of Uttarakhand Police. However, the accused Sunil Rathi and Amit Malik @ Bhura have already been discharged in the present case. The documents of the said case had been admitted on 22.02.2020 and also on 09.09.2022 as Ex.C-61 (colly). It was argued by the Ld. Counsel for the accused Rambeer Shokeen that the first charge sheet in State Vs. Pankaj Sehrawat and Ors. Page No.223 of 385 the said case was filed before the Baghpat District Court, UP on 17.03.2015 only against two accused persons namely Samarpal and Govi and the accused Rambeer Shokeen was not even named in the said charge sheet. It was highlighted that the accused Rambeer Shokeen was never arrested in the said FIR and he was arrayed as an accused in the said FIR with the aid of Section 120B IPC by way of a supplementary charge sheet dated 23.02.2016 i.e. after the registration of the present FIR. It was also the contention of the Ld. Counsel that the accused Rambeer Shokeen had already been acquitted in the said case vide judgment dated 13.09.2022 passed by the Ld. ASJ, Baghpat and a copy of the same was placed on record with the bail application filed on behalf of the accused Rambeer Shokeen. While the matter is stated to be pending against the accused Neeraj, vide judgment dated 13.09.2022, the accused Rambeer Shokeen has been acquitted in the said matter. Moreover, it is not in dispute that charge sheet had not been filed in the said case on the date the proposal was made for approval for registration of FIR or even on the date of registration of FIR in the present case.

209. The prosecution had also referred to FIR No.764/2014 dated 24.08.2014 PS Subhash Place which was registered under Sections 307, 302, 120 B, 34 IPC and 25 and 27 Arms Act against the accused Neeraj and Pankaj, the documents of which were admitted on 09.09.2022 and the matter was stated to be listed at the stage of prosecution evidence. As per the allegations, Neeraj had hatched a conspiracy to liquidate one Pradeep Dahiya who had become leader of his rival gang after the death of Nitu State Vs. Pankaj Sehrawat and Ors. Page No.224 of 385 Dabodhia. In August 2014, he along with the accused Pankaj made a plan to eliminate Pradeep Dahiya. A shoot out took place wherein the associates of the accused Neeraj succeeded in killing Pradeep Dahiya and Anil @ Neela. Some of the accused persons were arrested in the said case. While the said case may not be for any pecuniary advantage, as per the settled law, it could be for any other advantage also and clearly the accused persons had tried to gain advantage over the rival gang. At the same time, the record reveals that no efforts were made to arrest the other accused persons of the said case as members of the organized crime syndicate in the present case. Moreover, the charge sheet had not been filed in the said case on the date the proposal was made for approval for registration of FIR. It may be mentioned that the documents of FIR No.1683/2015 PS Mangolpuri under Sections 302/120B/147/149/34 IPC had also been placed on record by the prosecution and admitted by the accused persons in which the accused Neeraj Sehrawat, Naveen Dabas, Rahul Dabas and Naveen

Huda were alleged to have committed a double murder in jail van but the said incident had taken place much after the approval was granted in the present case and FIR was registered in the present case.

210. It is thus seen that the accused persons had been acquitted in FIR No.179/2012 PS Bawana and discharged in FIR No.77/2012 PS Bawana on 29.07.2013 whereas FIR No.69/2010 PS Hari Nagar could not be said to show any connection to any crime syndicate. Further, the accused Rahul @ Kala and Naveen @ Bali had been discharged in FIR No.53/2012 PS Bawana and State Vs. Pankaj Sehrawat and Ors. Page No.225 of 385 the matter is stated to be pending against the accused Neeraj. In FIR No.98/12 PS Prashant Vihar, the accused Neeraj and Naveen @ Bali had already been discharged on 13.09.2013. The accused Rambeer Shokeen has been acquitted in FIR No.575/2014 Crime No.1072/2014 PS Baghpat though charge has been framed against the accused Neeraj. As such, when the proposal for approval for registration of FIR was moved in the present case, out of the FIRs that were relied upon to show continuing unlawful activity and existence of an organized crime syndicate, charge sheet had not been filed in one case (FIR No.575/2014 PS Baghpat); FIR No.69/2010 PS Hari Nagar could not be considered for invoking MCOC Act; the accused Neeraj and Naveen had been discharged in FIR No.98/2012 PS Prashant Vihar and all the accused were discharged in FIR No.77/2012 on 29.07.2013. In some of the FIRs, only the accused Neeraj was named out of the accused persons facing trial and in FIR No.40/2013 PS Crime Branch, the accused Neeraj had been discharged on 24.09.2013. The only FIRs which could thus be considered were FIR No.437/2011 PS Jhajjar in which the accused Neeraj was discharged subsequently on 18.10.2022; FIR No.179/2012 PS Bawana in which the accused persons were acquitted subsequently; FIR No.53/2012 PS Bawana in which the accused Rahul @ Kala and Naveen @ Bali had been discharged subsequently on 01.07.2023 and FIR No.99/2012 PS Bawana in which charge had been framed against the accused Neeraj and Pankaj to show the existence of an organized crime syndicate. In FIR No.764/2014 PS Subhash Place charge sheet was filed subsequently to the proposal being moved. There are no other State Vs. Pankaj Sehrawat and Ors. Page No.226 of 385 cases whose documents have been proved or admitted which show the connection between the accused persons so as to show the existence of a crime syndicate though the prosecution had also relied upon several other FIRs to show the involvement of the other accused persons and the list of such involvements is contained in the table given above (Table B). The question which thus remains to be examined is whether there is indeed any crime syndicate which could be called an organized crime syndicate for the purposes of MCOC Act.

211. The prosecution had further examined several witnesses to show that the organized crime syndicate existed and was indulging in organized crime. The prosecution had specifically examined several witnesses regarding a deal in respect of plot measuring 600 sq. yds situated at Khasra No.38/24, Village Shahbad Daultpur, Shiv Vihar, Delhi which it was alleged was in the name of 2 persons i.e. Bhagwan Dass and Satyanarayan and of which forcible possession was taken by one Rakesh Babla after putting bricks and threatening the owner in the name of accused Neeraj Bawana whereafter the owner had compromised the matter and had agreed to receive the sale consideration for part of the plot and the remaining sale consideration had been taken by the accused persons. It is also the case of the prosecution that the said amount was handed over to the accused Rambeer Shokeen for elections. The Ld. Counsels for the accused persons had argued that as many as 14

witnesses were examined by the prosecution in this regard but the prosecution had failed to prove any role of the accused persons. A perusal of State Vs. Pankaj Sehrawat and Ors. Page No.227 of 385 the evidence shows that most of the witnesses who had been examined by the prosecution in respect of the land deal had turned hostile and had denied the suggestions that were put to them by the Ld. Additional PP during cross-examination though it has come on record that the deal had taken place in respect of the said plot. PW2 had denied knowing if the accused Neeraj and Pankaj along with their associates had indulged in land grabbing in Delhi or that in January 2013 he was told about the aforesaid plot or that he received Rs.1.10 crores cash and 3 cheques in the name of Rakesh from the mediator/property dealer Rajesh Bansal or that he had handed over the cheques to accused Pankaj and the cash to accused Rambeer Shokeen for elections. He had also stated that in the year 2013 he had never mediated with regard to any property.

212. PW12 was a property dealer and had deposed about being informed by one Rakesh about the plot which belonged to one of his relatives which he wanted to sell. He had also stated about the meeting between the buyers and sellers in January and February 2013 in his office. He had further stated about the deal taking place and some amount in cash and some in cheque being handed over though during cross-examination by the Ld. Additional PP, he could not tell the Khasra number of the plot and he also stated that he was never informed by the seller that there was a dispute regarding the plot with Rakesh @ Babla or the exact amount agreed for the sale of the plot. He had stated that the accused Pankaj Sehrawat had never come to his office and had not dealt with him. He had admitted the total consideration to be around State Vs. Pankaj Sehrawat and Ors. Page No.228 of 385 Rs.2 crores and that Rs.25 lakhs were given as earnest money. He had stated that the statement under Section 164 Cr.P.C. Ex.PW12/1 was given by him voluntarily and without any threat, coercion or pressure and that the statement under Section 164 Cr.P.C. was given twice. As such PW12 had stated about the deal taking place and the money being paid for it and he also admitted the consideration amount though some of the facts he could not depose about. He had stated about the statement under Section 164 Cr.P.C. being given voluntarily but it is pertinent that in the Court, he had denied that the accused Pankaj Sehrawat had ever dealt with him.

213. PW13 had stated about his father-in-law informing him in January 2013 that he along with one Shri Bhagwan Dass owned a plot measuring 600 sq. yds in Shiv Vihar, Shahbad Daultpur and that some persons had put bricks in that plot in order to possess it whereafter he along with Pinta, son of Bhagwan Dass had gone to the plot. He had stated that in the chain of documents of his father-in-law, execution by one of the landowners was missing and the documents of Rakesh were found to be in order and thereafter a settlement was arrived at. He had also approached Rajesh Bansal PW12 to find buyers for that plot and that the sale consideration of the plot was agreed at around Rs.2 crores and he had stated who the buyers were and about the amount being paid. Thus, PW13 had stated about the deal of the plot taking place and also that bricks had been put on the plot but he had stated that the chain of documents of his father-in-law was found to be defective whereas of the other side was in order and thereafter a settlement State Vs. Pankaj Sehrawat and Ors. Page No.229 of 385 was arrived at. During cross-examination by the Ld. Additional PP, PW13 had denied the suggestion that Rakesh @ Babla had told him that he was present at the plot on behalf of Neeraj Bawania and Rambeer Shokeen and volunteered he had only told him that Neeraj Bawania was the son of his Mausi. He had admitted that when he told his father-in-law that name of Neeraj Bawania

was cropping up in the plot dispute, he had said that they should not get into any entangle or legal action but he denied the suggestion that out of fear of Neeraj Bawania and Rambeer Shokeen, the settlement had been arrived at or that Rakesh @ Babla had threatened to kill him. He had also admitted that the statement under Section 164 Cr.P.C. Ex.PW13/1 was given by him voluntarily and without any threat, coercion and pressure but otherwise it is seen that in the Court he had not stated about any threat being extended. Thus, in the testimony of PW13, the name of accused Neeraj Bawana had cropped up and he had volunteered that Rakesh @ Babla had only told him that Neeraj Bawania was the son of his Mausi. This has to be seen in light of what he stated further i.e. he had admitted that when he told his father-in-law that the name of Neeraj Bawania was cropping up in the plot dispute, he had said that they should not get into any entangle or legal action which implies that the settlement that took place subsequently was out of fear of the accused Neeraj though PW13 had denied the suggestion that out of fear of Neeraj Bawania and Rambeer Shokeen, the settlement had been arrived at or that Rakesh @ Babla had threatened to kill him. Even though PW13 had tried to contend that the chain of documents of his father-in-law was defective, it is evident what State Vs. Pankaj Sehrawat and Ors. Page No.230 of 385 the reason for the settlement was. At the same time, there is nothing in the testimony of PW13 to point out that the accused Neeraj Bawana had himself extended any threat and what was told to PW13 was by Rakesh Babla. Further, other than the accused Neeraj, he had not stated about any other accused person.

214. PW17 had denied being involved in the deal of the plot and denied that he ever received any threats regarding that plot. He was cross-examined by the Ld. Additional PP for State but he denied the suggestions that were put to him and during cross- examination he had stated that he did not have any acquaintance with Neeraj or Pankaj Sehrawat and none of the said persons had ever threatened him. He also stated that his father was happy with the deal and that his father and his partner had never complained to him about any force being used in the deal of the plot. PW37 had deposed about the statement of account of Vijay Kumar. PW45 had stated about one Rakesh opening a saving account in Indian Bank, Nangloi Branch, Najafgarh Road and he had provided the documents to the police and that in respect of the said account once the account holder had brought 3 cheques of the amount which he did not remember and those cheques were credited in the account and the account holder had also come to withdraw the amount which was more than Rs.10 lakhs. He had stated about receiving a call from the office of Rambeer who told him that the person Rakesh who was seeking to withdraw the money was genuine and some amount was withdrawn. He admitted during cross-examination by the Ld. State Vs. Pankaj Sehrawat and Ors. Page No.231 of 385 Additional PP that on 20.06.2013 when the cheques were credited the account holder Rakesh sought to withdraw Rs.20 lakhs from the account and withdrew Rs.5 lakhs. During cross-examination by the Ld. Counsel for accused Rambeer Shokeen, PW45 stated that he did not remember the exact date as to when he joined the investigation of the present case. He admitted that he must have been called by the police to join the investigation of this case on 03.07.2015 when his statement was recorded. Since during those days there was only one landline in the bank, which was in his office, therefore he picked that call and no other staff of the branch. He did not know if the caller told his name or not and volunteered in fact he told that he was speaking from the office of Rambeer Shokeen. As far as he remembered, he could not say if the caller was actually Rambeer Shokeen or not. He did not ask the name of the caller who made the call to him. He denied the suggestion that no call was received from the office of Rambeer Shokeen. He did not remember if

the said Rakesh, account holder came alone or with someone else. He stated that there was no necessity for a call or recommendation for release of any amount from the account of the bank to him.

215. PW45 had thus, stated that the person who had called him to make the payment to Rakesh had stated that he was speaking from the office of Rambeer Shokeen though he could not say if the caller was actually Rambeer Shokeen or not. Further, PW45 had stated about the call from the office of Rambeer and he had also stated that it was possible that the caller who made the call on the landline of the bank told his name to be Rambeer Shokeen State Vs. Pankaj Sehrawat and Ors. Page No.232 of 385 and as far as he remembered, he could not say if the caller was actually Rambeer Shokeen or not and as such he was not certain if the caller was the accused Rambeer Shokeen. There is also merit in the contention of the Ld. Counsel for the accused Rambeer Shokeen that the call could have been made by anyone from the office of accused Rambeer and there is nothing cogent to establish that it was the accused Rambeer Shokeen who had made the call on which the money was withdrawn. PW45 had also stated that there was no necessity for a call or recommendation for release of any amount.

216. PW46 stated that he did not know anything regarding the plot in question and he had never visited the said plot and during cross- examination by the Ld. Additional PP, he denied whatever was put to him. PW47 also stated that he had never visited the plot in question and had never visited anywhere for the purpose of any compromise talks regarding the plot and was not aware of anything about the said plot and no payment was ever received by him regarding the said plot and during cross- examination by the Ld. Additional PP, he denied whatever was put to him. As such PW46 and PW47 had not supported the case of the prosecution at all regarding the deal of the plot. PW48 had stated about investing Rs.15 lakhs in 2013 in a plot located near Industrial Area Bawana and he had given a cheque for the said amount in the name of one Rakesh. He had stated about having one or two other partners in the deal and that he had received the plot. He had also identified his photographs on the documents which were put to him though he was not certain if the signatures State Vs. Pankaj Sehrawat and Ors. Page No.233 of 385 were his. During cross-examination by the Ld. Additional PP, he had denied most of the things that were put to him though he had admitted that he had handed over two cheques bearing No.000112 for Rs.7 lakhs and bearing No.000111 for Rs.8 lakhs drawn on Karur Vyasya Bank Ltd. PW49 had not supported the case of the prosecution regarding the deal of the plot in question and during cross- examination by the Ld. Additional PP he had denied the suggestions that were put to him and he had also stated that he did not know anything about the documents which were put to him and also that the cheques were not handed over in his presence.

217. PW52 also stated that he had no knowledge about a plot in Shahbad Village and during cross-examination by the Ld. Additional PP he denied the suggestions that were put to him. He stated that the documents that were put to him were not prepared in his presence and he did not know anything about the said documents. As such the said witness had not supported the case of the prosecution. PW55 had denied the suggestions that were put to him by the Ld. Additional PP for State regarding the deal of the plot in question and he stated that the documents that were put to him were not prepared in his presence and he did not know anything about the said documents and

his signatures and photos were not there on the said documents and he even denied the signatures on the documents. PW56 had also denied the suggestions that were put to him by the Ld. Additional PP for State, though he stated that on date he did not remember, Joginder Thakaran had called him on phone and told him about a State Vs. Pankaj Sehrawat and Ors. Page No.234 of 385 plot, the particulars of which he did not remember and which he had never seen and told him to purchase it and that a cheque of Rs.5 lakhs was handed over on his behalf. He had stated about the documents Mark PW48/1, Mark PW48/2, Mark PW48/3 and Mark PW48/4 being prepared in his presence and he also identified his signatures on Mark PW49/2 and on Mark PW49/3, Mark PW49/4 and Mark PW49/5. He stated that the cheques Mark PW49/6 (colly) were not handed over in his presence. PW69 did not remember most of the things that were put to him by the Ld. Additional PP for State though he stated that Mark PW48/1 bore his photo and his signatures as also Mark PW48/2, Mark PW48/3, Mark PW48/4 and Mark PW49/2 was executed by him. He also identified his signatures on Mark PW49/4 and Mark PW49/5.

218. PW78 had deposed about one Ajay bringing Bhagwan Dass to him and they had asked him to open a bank account as he wanted to deposit money in the account from the land that had been sold and that an amount of around Rs.18 to 20 lakhs came to the account which was withdrawn by Bhagwan Dass after 2 to 3 days. He had denied the suggestion about going to the office of Rambeer Shokeen or that he came into contact with the accused Rambeer Shokeen, Pankaj Sehrawat or that in June 2013 accused Pankaj Sehrawat had asked him to open the bank account or that the accused Pankaj Sehrawat had given him Rs.1000/- to open one bank account. He had also denied the suggestion that he had given his account number to accused Pankaj Sehrawat who handed over 3 cheques to him which he deposited in the account State Vs. Pankaj Sehrawat and Ors. Page No.235 of 385 or that on 20.06.2013 the cheques were cleared about which he informed the accused Pankaj who asked him to withdraw Rs.20 lakhs or that thereafter the accused Rambeer Shokeen had spoken to the Bank Manager or that he had withdrawn the said amount or that the amount was handed over to the accused Rambeer Shokeen. He was not able to identify the accused Pankaj Sehrawat though he identified the accused Rambeer Shokeen and during cross-examination he stated that he knew the accused Rambeer Shokeen as he had come in his Gali for campaigning and they had also seen him on television but he had never personally met him nor had been to his office. Thus, PW78 had denied having any contact with the accused Pankaj Sehrawat and Rambeer Shokeen. It was argued by the Ld. Counsel for the accused persons that the testimony of the said witness showed that the account was got opened by the seller of the land i.e. Bhagwan Dass and there is nothing to show that the accused persons had any hand in it and it is seen that PW78 had denied the suggestions put to him regarding the role of the accused Pankaj Sehrawat. The Ld. Addl. PP, on the other hand, had argued that it was clear that the said witness was not telling the truth as he could not tell the address of Bhagwan Dass at whose behest he had opened the account and he had admitted the bank documents but it was for the prosecution to establish that PW78 had opened the bank account at the instance of the accused persons and not at the instance of the seller Bhagwan Dass but the same does not stand established from the testimony of PW78. Even no evidence has been led by the prosecution to show that the accused Pankaj indeed had any role in getting the bank State Vs. Pankaj Sehrawat and Ors. Page No.236 of 385 account of the said witness opened or that the money went to the accused Pankaj and thereafter was handed over to the accused Rambeer Shokeen.

219. It is thus seen that from the testimony of the witnesses, it stands established that the deal had taken place in respect of the plot in question, once PW69 who was one of the owners of the land had stated about the documents being prepared in his presence, and PW56 who was one of the buyers had also stated about the documents. Further, PW48 had identified his photographs on the documents and also admitted handing over two cheques though during cross-examination, he stated that he was told that the plot for which the deal was made was near Industrial Plot Bawana and he was not told the Khasra number. Moreover, PW12 had admitted the total consideration to be around Rs.2 crores and that Rs.25 lakhs were given as earnest money though the Ld. Counsel for the accused Rambeer Shokeen had argued that oral evidence could not be led when the documents were there which showed that the deal was only for Rs.25-30 lakhs. The Ld. Counsel for the accused Rambeer Shokeen had argued that the original documents had not been produced, nor any of the witnesses had stated where the original documents were. It is true that the originals of the documents were not produced and were marked only though PW56 and PW69 had identified the signatures on them and also the photographs and PW48 had also identified his photographs on the said documents. It was also contended by the Ld. Counsel for the accused Rambeer Shokeen that PW56 could not say who had written the State Vs. Pankaj Sehrawat and Ors. Page No.237 of 385 words 'True Copy' above his signatures and the words 'Chand Ram' below his signatures on the documents and the signatures of PW56 appeared twice on the documents. However, PW56 had volunteered that the said words were written by Rajesh and even otherwise, the said documents were marked. At the same time, the testimony of the witnesses is sufficient to show that the deal of the plot of land had taken place. It is further pertinent that as per the evidence on record the documents of sale of land i.e. GPA, Agreement to Sell, copy of receipt and copy of possession letter were executed only by Satyanarayan and Bhagwan Dass as the sellers in favour of Choudhary Chand Ram, Vijay Kumar and Rakesh Kumar and there is no document which was executed by the so called party of Rakesh @ Babla whose chain of documents was stated to be proper and who was purportedly also the owner of the land, which would have been so if the deal had taken place without any coercion and the property indeed belonged to the side of Rakesh @ Babla. It may be mentioned that during cross- examination by the Ld. Addl. PP for State, PW13 could not admit or deny whether the documents of sale were only executed by Satyanarayan and Bhagwan Dass or that he had stated to the police in his statement under Sections 161 Cr.P.C. and in his statement under Section 164 Cr.P.C. that the documents for sale of the plot were executed by Satyanarayan and Bhagwan Dass and he was even confronted with his statements wherein the said fact was recorded and the record also shows that the documents State Vs. Pankaj Sehrawat and Ors. Page No.238 of 385 for sale of the plot were executed only by Satyanarayan and Bhagwan Dass.

220. At the same time, from the testimony of the witnesses, nothing has come forth which could specifically connect the accused Pankaj Sehrawat or the accused Rambeer Shokeen to the said land deal. Though it is evident that the deal was executed out of fear of the accused Neeraj Bawana, there is even nothing to show his direct role in the said land deal and it is not the case put forth by any witness that the accused Neeraj had himself extended any threat to any person. The Ld. Counsel for the accused Rambeer Shokeen had argued that as per the case of the prosecution, the accused Rambeer Shokeen was involved in grabbing the said plot and he had received Rs.1.1 crores out of the transaction of the plot but there is merit in the contention that as per the evidence which has come on record, there is nothing to show that the accused Rambeer Shokeen had any relation whatsoever

with the said transaction of the plot and none of the witnesses have stated about any money being received by the accused Rambeer Shokeen. Further, there is also merit in the contention that as per the documents on record, the total sale consideration of the plot was only Rs.25,00,000/- (though PW12 had admitted the sale consideration to be around Rs.2 crores and Rs.25 lakhs were given as earnest money) so the question of the accused Rambeer Shokeen receiving Rs.1.1 crores out of the said land deal did not arise. It may also be mentioned that PW25 had deposed about Bhagwan Dass Dhingra coming to the office of Special Cell and giving a complaint which was marked to him on State Vs. Pankaj Sehrawat and Ors. Page No.239 of 385 which FIR No.42/15 dated 05.06.2015 was registered which is Ex.PW25/A in which he had named the accused Neeraj. Quite clearly, there would have been no occasion for Bhagwan Dass to have got the FIR registered if the deal had taken place without any coercion or fear. At the same time, it is relevant that the land deal was stated to have taken place in 2013 whereas the FIR was got registered on 05.06.2015 i.e. after a gap or more than one year and after the registration of the present FIR and no reason has come forth for the delay in getting the said FIR registered.

221. As per the above chart (Table B) and as per the involvements of the accused Pankaj shown in the FIR, the accused Pankaj was stated to be involved in FIR No.146/2010 PS Bawana under Sections 323, 341 and 34 IPC and Sections 17/61 Excise Act which was registered on the allegations that one lady had seen two motorcyclists selling illicit liquor and when she opposed the same, she was beaten up. In the said case, none of the accused persons named in the present case except the accused Pankaj were arrested and the same cannot be said to have any connection with any organized crime syndicate of Neeraj nor can it be regarded as a continuing unlawful activity for the purposes of MCOC Act. Further FIR No.29/2010 PS Bawana under Sections 336, 506 and 34 IPC and Sections 25 and 27 Arms Act was also registered against him on the allegations that he along with others had gone to a plot at Karambir after making a call and fired some rounds and many persons were arrested in the said case though out of the present accused persons, only the accused Pankaj was arrested. Even as per the case of the State Vs. Pankaj Sehrawat and Ors. Page No.240 of 385 prosecution, the said FIR was not relied upon to show the involvement of accused Pankaj in the crime syndicate and in the said case, the police did not invoke any provision of extortion. It surfaced that the offence was committed only to maintain pressure on the members of the rival gang but which was the rival gang is not stated, nor even is it stated that the accused Pankaj had done the said act on behalf of the Neeraj gang. FIR No.206/2012 PS South Rohini was also referred to in the list of involvements of the accused Pankaj in which case the caller had introduced himself as a member of Neeraj gang and demanded money but during investigation, out of the present accused persons, only accused Pankaj was arrested and the said FIR has also not been relied upon by the prosecution to show the existence of a crime syndicate.

222. The prosecution had contended that several vehicles were purchased by the accused persons, mainly by the accused Pankaj Sehrawat from the funds of the organized crime syndicate and in this respect the prosecution had examined PW7. PW7 had deposed about being asked by her husband to accompany him to a showroom of cars and a car was purchased by her husband and she had gone there with Jagdev Shokeen, owner of the premises where her husband was running the factory. After signing the documents, she came to her house. During cross-examination by the Ld. Additional PP, PW7 had admitted that in September, 2014, her husband had told her that his factory owner Jagdev

Shokeen wanted to purchase a car for his relative in her name on loan and that she had signed the documents of the car and its loan State Vs. Pankaj Sehrawat and Ors. Page No.241 of 385 documents though she did not know if some other persons were accompanying Jagdev Shokeen. She also stated that she had never seen the car and she did not know if the delivery of the car was taken by the relatives of Jagdev Shokeen and she had never used the car. Pertinently during cross-examination she had admitted that Jagdev Shokeen had never asked her husband to purchase the vehicle for use of any of his relatives. When recalled for examination in respect of the accused Rambeer Shokeen, PW7 had deposed that in the year 2005, she had purchased a car in her name in cash and she along with her husband, Jagdev Shokeen and some other persons, whom she did not know, had gone to the showroom to purchase that car and they had received the delivery of the car and sometimes Jagdev Shokeen used to drive that vehicle for his own use. As such PW7 had stated about the purchase of a car at the instance of Jagdev Shokeen. The Ld. Addl. PP had submitted that her testimony was important as she had stated that the vehicle was purchased in her name but she had never used it and it never came to her house, however, the testimony of PW7 does not establish that the car was purchased for use by any of the accused persons or the payment for it was made by any of the accused persons.

223. PW8 had stated about taking the premises for running factory from Jagdev Shokeen on rent and it was submitted that Jagdev Shokeen was the uncle of accused Pankaj and Neeraj. He had also stated about purchasing a car make ETIOS Liva from Moti Nagar in the name of his wife who had furnished the documents and his wife had executed the loan documents. He State Vs. Pankaj Sehrawat and Ors. Page No.242 of 385 had stated that he was using the said vehicle and he had purchased the vehicle and he was paying the installments of the said car. During cross-examination by the Ld. Additional PP, he had denied the suggestion that in September 2014 Jagdev Shokeen had asked him to purchase a car either in his name or in the name of his wife Shivani or that he had told him that his nephew Pankaj needed a car in the name of other person. He had also denied the suggestion that after sanctioning of the loan, accused Pankaj and his friend had visited the showroom and got delivery of the car or that he had seen the said car with Pankaj after 3 - 4 days of delivery or that during Delhi Assembly elections in February 2015, this car was used by accused Pankaj in the elections. He had admitted that in his statement before the Ld. Magistrate he had stated that the vehicle was impounded from the possession of Neeraj Bawania and the vehicle was registered in the name of his wife Shivani Sharma. He stated that he himself had taken delivery of the car and the vehicle was also being used by his landlord Jagdev Shokeen. He stated that he had never given the said vehicle to criminals Sunil Choudhary and others and that he had never met the accused Neeraj and Pankaj. He had given the vehicle to Jagdev Shokeen.

224. When PW8 was recalled for examination in respect of the accused Rambeer Shokeen, PW8 had stated that the vehicle was purchased on the request of his landlord who stated that he needed a vehicle for his own use and had purchased the vehicle on loan which was in the name of his wife. He stated that the vehicle, its color, make and model were decided by Jagdev State Vs. Pankaj Sehrawat and Ors. Page No.243 of 385 Shokeen. He, his wife, Jagdev Shokeen and two more persons whom he did not know had gone to take the delivery of the vehicle and the same day he had handed over the vehicle to Jagdev Shokeen. He had never used that vehicle. He had also stated that he used to repay the loan in installments and the amount of installment was adjusted in the rent which was to

be paid to Jagdev Shokeen. He also stated that Jagdev Shokeen had stated that he needed the vehicle for use of his family but he had not given the particular name of the person for whom he required the vehicle. During cross-examination by the Ld. Addl. PP, he was confronted with portions of his statement under Section 164 Cr.P.C. Ex.PW8/B wherein he had stated that Jagdev Shokeen had told him that he needed the vehicle for the use of his maternal nephew Pankaj and that Pankaj had used the vehicle in the election of the accused Rambeer Shokeen and he did not remember whether he had stated to the Ld. Magistrate that Pankaj had also accompanied them when they had gone to take the delivery of the vehicle. He admitted that the accused Pankaj used to come to his factory and he knew him. It is pertinent that PW8 had stated that the vehicle was purchased at the instance of Jagdev Shokeen and also about handing over the vehicle to Jagdev Shokeen. However, from the testimony of PW7 and PW8, it does not stand established that the vehicle was purchased for the accused Pankaj Sehrawat.

225. PW24 had stated about handing over the documents relating to sale of Toyota Etios Liva to the officers of Special Cell. He had stated that first day he was approached by one State Vs. Pankaj Sehrawat and Ors. Page No.244 of 385 Pankaj Sehrawat who was accompanied by one more person whose name he did not know who were interested in buying a used car but later on they decided to buy a new car. He arranged a call from Grace Toyota to Pankaj Sehrawat in order to start the process of buying the car and also handed over loan application form and informed him about the documents which would be required. He had stated that the same day Pankaj Sehrawat had returned with the loan application form and the required documents and the loan application was signed by one Shivani and the documents also pertained to her. After 2-3 days Shivani along with her husband and probably with Pankaj Sehrawat came to their office and signed the loan disbursal agreement and the vehicle was delivered.

226. During cross-examination on behalf of the accused Pankaj Sehrawat, PW24 admitted that none of the documents which he had seen in the Court were signed by the accused Pankaj Sehrawat. He admitted that whenever a new vehicle was delivered, the photographs of the delivery of the vehicle were taken by the company. He denied the suggestion that the vehicle in question was not delivered at their office/ showroom or that it was delivered from the showroom of Grace Toyota. They did not prepare any document to reflect that the vehicle was delivered from their showroom and therefore, he could not produce any such document. He denied the suggestion that no such document was prepared as the vehicle was not delivered at their showroom. He denied the suggestion that it was only at the behest of the investigating officer that he had deposed about Pankaj coming to State Vs. Pankaj Sehrawat and Ors. Page No.245 of 385 their showroom to get the vehicle or submitting the documents for the finance of the vehicle or that he had not arranged any call from Grace Toyota to Pankaj Sehrawat. He admitted that he had never met anybody named Manishi Chandra. He stated that he had met a lot of people in the office of Special Cell and then he recalled that he had met ACP Manishi Chandra. Thus, PW24 had admitted that none of the documents which were on record were signed by the accused Pankaj Sehrawat. However, he had also stated about the vehicle being sold at the behest of the accused Pankaj Sehrawat though he did not state that any money was paid by the accused Pankaj Sehrawat.

227. As such, PW7 and PW8 had stated about the purchase of a vehicle in the name of PW7 on loan at the instance of Jagdev Shokeen and that the vehicle was handed over to Jagdev Shokeen though they had not stated anything specifically about the vehicle being purchased by or for the accused Pankaj Sehrawat. PW24 had specifically stated about the accused Pankaj Sehrawat accompanied by one more person coming to the showroom and returning with the loan application form and the required documents which were in the name of Shivani. The testimony of the said three witnesses does show that the vehicle was purchased and from the testimony of PW24 it is evident that the vehicle was purchased at the behest of the accused Pankaj Sehrawat. However, there is nothing in the testimony of the witnesses which establishes that the amount for the vehicle was paid by the accused Pankaj Sehrawat and PW24 had not deposed anything in that regard whereas PW8 had stated about the State Vs. Pankaj Sehrawat and Ors. Page No.246 of 385 amount of loan being adjusted in the rent which he had to pay to Jagdev Shokeen but again he had not stated about the amount being paid by Pankaj Sehrawat.

228. From the testimony of PW24, even if it comes out that the accused Pankaj Sehrawat was involved in the purchase of vehicle, it does not show that he had paid the amount for purchase of the said vehicle. The Ld. Addl. PP had argued that the testimony of the witnesses proved that the vehicle was purchased by the accused Pankaj Sehrawat from extortion money as he had no proven source of income. However, even no suggestion was put to PW7 that the vehicle was purchased by the accused Pankaj Sehrawat or that he had paid for the vehicle. PW8 had denied the suggestion that when he asked from Shri Jagdev Shokeen the purpose of purchasing the car, he told him that his nephew Pankaj needed a car in the name of other person. He had also denied the suggestion that he had seen the said car with Pankaj after 3 - 4 days of delivery or that during Delhi Assembly elections in February, 2015, the said car was used by accused Pankaj in the elections or that after purchasing the car, he was paying only Rs.1,000/- as a rent to Shri Jagdev Shokeen as he was also paying Rs.11,005/- per month as installment of purchasing the said vehicle to accused Pankaj or that he had taken the said car on loan for accused Pankaj at the instance of his factory owner Shri Jagdev Shokeen. He was confronted with the statement made to the police wherein the said facts were stated but nowhere any suggestion was put that to him the said vehicle was purchased out of extortion money or that the accused State Vs. Pankaj Sehrawat and Ors. Page No.247 of 385 Pankaj Sehrawat had made the payment for the same. Rather PW8 had stated that he did not remember, if he had stated before the Ld. Magistrate that the installments of the car used to be adjusted from the rent of the shed which was taken by him from Shri Jagdev Shokeen which would be clearly contrary to the contention that the vehicle was purchased out of extortion money. Even if the installments for the car were adjusted out of the rent paid by PW8 to Jagdev Shokeen, it does not show that it was extortion money. The Ld. Counsel for the accused Rambeer Shokeen had argued that Jagdev Shokeen had not been made an accused and he had expired and the accused Rambeer Shokeen could not be held liable for the acts of his brother and there is merit in this contention, more so, when there is nothing to establish that the said vehicle was used in the elections of the accused Rambeer Shokeen.

229. Further, as per the case of the prosecution, the vehicle was recovered from the possession of a co-accused Sunil Rathi who was stated to be a gang member and the Ld. Addl. PP had argued that PW71 had deposed about bringing the said vehicle from Dehradun and it is seen that PW71 had

deposed about going to Dehradun Court to bring one vehicle bearing No.DL 8C AF9780 and he stated that they had taken possession of the vehicle from PS Doiwala and brought the same to PS Special Cell, Lodhi Colony. He had stated that the application for release of vehicle was perhaps related to Amit @ Bhura and he did not know what was the relevance of the said vehicle in the present case. Even otherwise, the accused Amit @ Bhura has already been State Vs. Pankaj Sehrawat and Ors. Page No.248 of 385 discharged in the present case. Moreover, PW8 had stated about handing over the vehicle to Jagdev Shokeen and how it reached the other accused has not been shown by the prosecution.

230. Two other witnesses were examined to show purchase of vehicles by the accused Pankaj Sehrawat and PW10 had proved the documents in respect of Scorpio Mahindra SUV DL10 CT0917 which was stated to be purchased by accused Pankaj Sehrawat on 26.06.2014 for which he had made down payment in cash in two installments and there was also bank finance and two more payments were made in cash. He had also stated about purchase of another vehicle being Scorpio SUV bearing No.DL4CM B8763 by Pankaj Sehrawat on 06.02.2013 for which he made a down payment in cash and there was a bank finance. PW21 had also stated about providing details of vehicle No.DL1CP 1772 which was purchased by Pankaj Sehrawat for which some amount was paid in cash and some amount was financed. It is thus seen that the said witnesses had stated about purchase of three vehicles by the accused Pankaj Sehrawat and as per the case of prosecution even the vehicle purchased in the name of Shivani was purchased by or for the accused Pankaj Sehrawat and all the vehicles were purchased out of extortion money. However, there is nothing in the testimony of the witnesses to show that the money which was used by the accused Pankaj Sehrawat to purchase the vehicles was obtained out of extortion or from proceeds of organized crime or that the vehicles were used for the purpose of organized crime syndicate and no specific suggestion was put to the witnesses in that regard.

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231. It was then argued by the Ld. Addl. PP that there was no known source of income of the accused Pankaj Sehrawat which showed that the vehicles were purchased out of extortion money. PW64 had deposed that disclosure statements of the accused Pankaj were recorded which are Ex.PW64/B, Ex.PW64/C, Ex.PW64/D, Ex.PW64/E and Ex.PW64/F respectively. The accused had disclosed that he had purchased a Scorpio Car bearing No.DL 10CT 0917 from extortion amount and he along with his brother was using the said car for running syndicate activities. He stated that he had parked the said vehicle in a plot in his village and that he could get the same recovered. He along with ACP Manishi Chandra along with other staff went to Village Bawana and at the instance of the accused Pankaj Sehrawat, Scorpio Car No.DL 10CT 0917 was recovered and seized vide seizure memo Ex.PW64/G. The documents of the car i.e. copy of RC, Delivery Receipt of the Scorpio, detailed invoice dated 26.06.2014 of the Scorpio and receipt dated 30.06.2014 of Rs.91,174/- were also found in the car and the same were seized vide seizure memo Ex.PW64/G. The said documents are Ex.PW64/H (colly) and the copy of the RC is Mark PW64/1. During cross-examination PW64 could not admit or deny the suggestion that the car bearing registration No.DL 10 CT 0917 was taken on loan. He denied the suggestion that a Scorpio Car bearing No.DL 10 CT 0917 seized vide seizure memo Ex.PW64/G was not purchased from extortion amount or that the accused Pankaj along with

his brother Neeraj were not using the said car for running syndicate activities or that the accused Pankaj did not make any disclosure statements dated 14.03.2015, State Vs. Pankaj Sehrawat and Ors. Page No.250 of 385 26.03.2015, 28.06.2015, 09.04.2015 and 12.04.2015 which are Ex.PW64/B, C, D, E and F. Thus, PW64 had denied the suggestions put to him but there is nothing in his testimony to show that the said vehicle was indeed purchased out of extortion money.

232. The prosecution in this regard had also examined PW26 who deposed that he knew Pankaj Sehrawat; he had prepared and filed his Income Tax Returns for the assessment years 2011-12, 2012-13 and 2013-14; Pankaj Sehrawat had told him that he was a property dealer and he wanted to file his Income Tax Returns; he had seen the bank statements of Pankaj Sehrawat in order to verify the claim of income made by him and he stated that the entire income shown by Pankaj Sehrawat was not reflected in his bank statement and he stated that some of it was received by him as commission in cash. The copies of acknowledgement of income tax returns for the assessment years 2011-12, 2012-13 and 2013-14 are Mark PW26/A, PW26/B and PW26/C. He could not tell how much of the income reflected in the said returns could be verified in banking transactions and how much was stated to be income in cash as commission. He stated that before filing the income tax returns, Pankaj Sehrawat had informed him that he wanted to take a vehicle on loan and for that purpose the bank required income tax returns and thus he wanted to file income tax returns. He also stated that before filing of the said returns or at the time when he approached him, Pankaj Sehrawat had stated that he had a source of income as commission from property dealing and he had stated nothing else. During cross-

State Vs. Pankaj Sehrawat and Ors. Page No.251 of 385 examination by the Ld. Addl. PP, PW26 denied the suggestion that he had stated to the police that in the year 2012 accused asked him to prepare forged income tax returns for the year 2012-13 as he wanted to take a loan or that he refused to accept the said request or that thereafter he asked him to prepare the returns by showing him working as a property dealer and volunteered it was for the first time only that he told him that he was working as a property dealer. He was also confronted with the statement recorded under Section 161 Cr.P.C. What is material is that PW26 had stated that all the income of the accused Pankaj Sehrawat was not reflected in banking transactions and some of it was received in cash but he could not say if the accused Pankaj Sehrawat was a property dealer or not.

233. During cross-examination on behalf of the accused Pankaj Sehrawat, PW26 stated that the Income Tax Department did not send any notice or raise any objection on the returns of Pankaj Sehrawat as had been filed by him. Thus, there was no notice sent to the accused Pankaj Sehrawat regarding the Income Tax Returns filed by him. Further, from the testimony of PW26, it does not stand established that the accused Pankaj did not have any known source of income. It was for the prosecution to have led specific evidence to show that the vehicles were purchased out of proceeds of organized crime or extortion or even to show that the accused Pankaj Sehrawat was in possession of the said vehicles purchased out of money which he could not account for but no such evidence has been brought on record. Further, it was for the prosecution to show that the vehicles were used for the State Vs. Pankaj Sehrawat and Ors. Page No.252 of 385 purpose of organized crime syndicate but no such evidence has been brought on record except that one Scorpio was recovered on the disclosure of the accused Pankaj Sehrawat which also does not establish that it was used for the

purpose of any organized crime syndicate. The Toyota Etios was recovered from the accused Sunil Rathi but it has not been shown that the same was purchased out of extortion money or even that it was in the name of the accused Pankaj Sehrawat and accused Sunil Rathi has already been discharged in the present case. Even otherwise, no charge has been framed against the accused Pankaj Sehrawat for the offence under Section 3(5) MCOC Act which provides punishment for holding any property derived or obtained from commission of an organized crime or which had been acquired through the organized crime syndicate funds or under Section 4 of MCOC Act which lays down punishment for being in possession of movable or immovable property on behalf of a member of an organized crime syndicate which he cannot satisfactorily account for.

234. The prosecution had examined several witnesses to show that threats had been extended by the accused persons to them in respect of which FIRs were got lodged by them and that the same showed commission of organized crime. PW9 Kamaldeep Dabas @ Monu had stated that no one had demanded money from him and he was running his business peacefully. He had stated about his statement being recorded under Section 164 Cr.P.C. which is Ex.PW9/A. During cross-examination by the Ld. Additional PP, he denied the suggestions that were put to him and he denied the State Vs. Pankaj Sehrawat and Ors. Page No.253 of 385 suggestion that in January 2015, gang members of accused Neeraj had come to his club 'BNB Shooters' or that they had told him that Neeraj had demanded half share of the income of the club or that he was taken to the office of Rambeer Shokeen where he met the accused Neeraj whom he identified or that the accused Neeraj threatened him to give half share of income of the club to him or that on his repeated requests, accused Neeraj asked him to give Rs.2.5 lakhs in order to get rid of the matter or that thereafter Sandeep Sehrawat had come to his village and he handed over Rs.2.5 lakhs to him for handing over the same to the accused Neeraj. However, he had admitted that he had stated before the Ld. Magistrate that he had given Rs.2.5 lakhs to the accused Neeraj Bawania, in January, 2015 as he was forcibly demanding half share of income of the club 'BNB Bar' and that on his request, accused Neeraj had agreed to take Rs.2.5 lakhs in order to leave the forcible share and that one person of accused Neeraj had taken the amount from him and after that he was not harassed by the accused Neeraj. He had admitted that he had given the said statement before the Ld. Magistrate willingly and voluntarily. As such in his statement under Section 164 Cr.P.C. PW9 had stated about giving Rs.2.5 lakhs to the accused Neeraj and that the said amount was taken by one person of accused Neeraj from him.

235. During cross-examination, PW9 stated that he never received any threat from anyone. It is pertinent that he admitted that after his visit at Special Cell, his statement was recorded by the Ld. Magistrate but on that basis it cannot be said that the State Vs. Pankaj Sehrawat and Ors. Page No.254 of 385 statement under Section 164 Cr.P.C. was given under any kind of coercion. When the statement of PW9 was recorded again on 10.03.2021, he had denied the suggestions that were put to him by the Ld. Additional PP for State though he had admitted the statement Ex.PW9/A and that it was the same statement which he had given to the Ld. Magistrate and he had given the same voluntarily and without any threat, coercion or pressure.

236. PW2 Sandeep Sehrawat is the person to whom PW9 had allegedly handed over the amount. He had denied the suggestions put to him during cross-examination by the Ld. Additional PP and that he had stated to the police that in the year 2015 on the instructions of accused Neeraj, he had

collected extortion money amounting to Rs.2.50 lakhs from one Kamaldeep Dabas (PW9) or that as per the instructions of the accused Neeraj, he had given that money to the accused Rambeer Shokeen and in his earlier statement dated 27.07.2019 as well he had denied the suggestions that in January 2015, on the instructions of the accused Neeraj, he had received Rs.2.50 lakhs as extortion money from Kamaldeep Dabas @ Monu, resident of Barwala or that on the instructions of the accused Neeraj, he had gone to the office of Rambeer Shokeen situated at Kamruddin Nagar and handed over the amount to Rambeer Shokeen. During cross-examination, he had admitted that the police had threatened to implicate him in the case and out of fear, he had given statement to the police and that there was no threat to him for making the statement which he had made in the Court. As such PW2 had denied receiving Rs.2.50 lakhs at the instance of the accused Neeraj from PW9 State Vs. Pankaj Sehrawat and Ors. Page No.255 of 385 and at the most from the testimony of PW2 and PW9 it can be said that an amount of Rs.2.50 lakhs was handed over at the instance of the accused Neeraj by PW9 but there is nothing to show that there was any connection of any other accused to the same or even to show that the amount was delivered in the office of the accused Rambeer Shokeen. During cross-examination PW74 denied the suggestion that false and concocted statements were recorded by him of witnesses Kamaldeep Dabas, Sandeep Sehrawat and other witnesses by threatening and forcing the witnesses to depose against the accused Rambeer Shokeen in order to falsely implicate him in the present case.

237. Further, PW27 had deposed about PW9 coming to PS and giving a statement about some boys claiming to be members of Neeraj Bawana gang approaching him and asking him to give 50% share of the bar to Neeraj Bawana and about being taken to the office of accused Rambeer Shokeen where he met the accused Neeraj Bawana who raised the demand but on his repeated requests, he asked for and accepted Rs.2.5 lakhs. He had stated about getting FIR No.35/2015 PS Special Cell registered and after completion of investigation he had filed the charge sheet. The FIR is Ex.PW27/1 and the same was registered under Sections 384/34 IPC. It may be mentioned that the documents of the said case were admitted by the accused persons on 09.09.2022 and are Ex.C-58 (colly). He had denied the suggestion during cross-examination that after registration of the FIR in the present case, FIR No.35/15 was registered in order to create false evidence against the accused Rambeer Shokeen.

State Vs. Pankaj Sehrawat and Ors. Page No.256 of 385 However, it is pertinent that PW27 had stated that PW9 had come to him on 10.05.2015 whereas the incident was stated to be of January 2015 and there is no explanation forthcoming, as was contended by the Ld. Counsel for the accused Rambeer Shokeen, for the delay in lodging the FIR. The Ld. Counsel had also argued that Kamaldeep Dabas stayed in Barwala whereas the restaurant was stated to be in Rajouri Garden and there was nothing to show that he was the owner of the club and there was no complaint at Rajouri Garden and the complaint was lodged only at PS Special Cell which was 40 kilometers away. However, nothing much turns of the said contention though at the same time it is significant that the complaint on the basis of which FIR No.35/2015 was registered was made much after the alleged incident and after the registration of the present FIR. It may also be mentioned that the accused Rambeer Shokeen has been discharged by the order of the Ld. Special Judge (PC Act) (CBI)- 23, RADC dated 08.08.2023 in the revision petition filed by the accused Rambeer Shokeen against the order on charge of the Ld. ACMM-03. Thus, the said case survives only against the accused Neeraj.

238. Further, PW11 Gulshan Batra was examined who denied receiving any threat or demand either in person or through telephone and during cross-examination by the Ld. Additional PP, he had denied receiving a call on his mobile from a person who stated his name to be Bali in February, 2012 or that he asked him to arrange Rs.5 lakhs within three days or on his failure he threatened to blow his shop. Even when he was examined again State Vs. Pankaj Sehrawat and Ors. Page No.257 of 385 on 10.03.2021 he had stated that he had never made any complaint to the police and he had never received any threat from anyone and had denied the suggestions put to him by the Ld. Additional PP for State. As such his testimony does not help the case of the prosecution.

239. PW19 Hans Raj Goel had stated that in the year 2012 he had not received any threat of any kind from anyone and during cross-examination by the Ld. Additional PP for State he had denied having stated in the statement under Section 161 Cr.P.C. that in January 2012, at around 6:30 p.m. he had received a call on his mobile or that the caller had stated that he was Bali and he had asked him to go and meet Bhai or that he repeated "Neeraj bhai se jakar mil liyo" or that he informed his father about the incident and thereafter they had gone to the house of elder brother of father of Neeraj who assured that he would talk to Neeraj. As such nothing significant had come out in the evidence of PW19 to support the case of the prosecution.

240. PW22 Rajbir had stated that he had friendship with one Karambir Sehrawat but later on around 2010, he had disassociated himself from him. He had also stated that there was no incident of any criminal or threatening nature against him or at a time when he was with Karambir and he had never lodged any complaint with PS Bawana regarding any incident of firing upon him. During cross-examination by the Ld. Additional PP for State, he had denied the suggestions that he had stated to the police that in 2010 in February he was present with Karambir at his plot when accused Pankaj Sehrawat along with his 40-50 State Vs. Pankaj Sehrawat and Ors. Page No.258 of 385 associates came to the plot and fired upon them or that regarding the said incident he had lodged FIR No.29/10 PS Bawana or that he had stated to the police that at that time Neeraj was in jail and his brother Pankaj was looking after his affairs and running his gang. As such even PW22 had denied having made any statement against the accused Pankaj Sehrawat and even denied lodging FIR No.29/10 PS Bawana. Even otherwise, the prosecution has failed to bring anything on record to show that the said offence was committed on behalf of any organized crime syndicate.

241. PW23 Raj Jain had stated that in the year 2015 he was the President of Bawana Chamber of Industries but he was never approached by anyone for any protection money to be paid personally or on behalf of Bawana Chamber of Industries and he had never paid any protection money to anyone. During cross-examination by the Ld. Additional PP for State, he denied the suggestions that in October 2011, 2-3 boys had come to his office or that they had stated that they were people of Neeraj Bawana and that he should collect Rs.5000/- from each factory and pay the money to them as protection money or that he told the boys that the factory owners would not pay the money upon which the boys gave him two days' time to pay Rs.10,00,000/- or that on his repeated requests, they asked him to pay Rs.5 lakhs by the evening or that in the evening he had paid Rs.5 lakhs to the boys. As such he had also denied the suggestions regarding paying any protection money to any person and the prosecution has not even brought on record that any FIR was registered in that respect.

242. PW42 Lal Chand had stated that on 28.02.2014 his sons State Vs. Pankaj Sehrawat and Ors. Page No.259 of 385 were killed but he did not remember as to who had killed his sons. He had stated that three assailants had fired shots on his sons but he did not know their names. During cross-examination by the Ld. Additional PP for State, he had stated that out of the assailants who killed his sons, two were from his village. He did not know the names of those two assailants who were from his village and he had volunteered that even in the Rohini Court he had stated that he had not seen the assailants. He had stated that he did not identify the real assailants in the Rohini Court as he had an apprehension that those criminals could kill him and his family members. He had admitted that he had stated in his statement to the police that among the boys from the Skoda car, two had attacked his sons, two boys were from his village namely, Rahul Kala and Deepak Katia though he denied the suggestion that he had stated to the police that those boys Rahul Kala and Deepak along with other boys started firing gun shots on his son and volunteered that he simply saw his son lying dead. He admitted that after hearing the voice of gun shots, his other son Captan Singh intervened to save his brother and thereafter Rahul Kala and Deepak and other boys started firing shots on his other son Captan Singh and even after both the sons fell down on the ground due to gun fire, the assailants still kept on firing on his sons while they were lying on the ground. He had also denied making the complaint to the police on which FIR No.183/2014 was registered and he could not say if the third assailant who killed his sons was Ravi Mania who was arrested in the case. He could not identify the accused Rahul Kala as he stated he had very weak eyesight. It is pertinent that though PW42 had State Vs. Pankaj Sehrawat and Ors. Page No.260 of 385 admitted having stated to the police that the accused Rahul Kala was one of the boys who had fired on his son, the incident which has been referred to took place when the car of the accused persons scratched the tempo of his son on which the boys sitting in the car started fighting with his son and they had pistol in their hands. As such at the most it was an incident of road rage and cannot be said to be connected to the activities of the gang or having any motive of pecuniary gain or even any other advantage. It is also significant that during cross-examination PW42 stated that he was not aware if the accused Rahul @ Kala had already been acquitted from Court of Rohini in FIR No.183/2014. It is not disputed that the accused Rahul @ Kala stands acquitted in the said case besides there being nothing to connect the said case to any organized crime syndicate.

243. PW50 during cross-examination by the Ld. Additional PP for State had denied the suggestion that he had stated to the police that he had started the job of cashier in Head Quarter "Z" Restro-Bar or that in the month of October 2014, the Bar was on the verge of closure and he along with his friends had taken it on rent. He denied the suggestion that he had stated to the police that the associates of accused persons namely Pankaj Bawania and Neeraj Bawania used to come in the Restro-Bar and used to enjoy without paying money to them or that they used to give Rs.50,000/- as protection money to the accused Pankaj. He had identified the accused Neeraj though he also stated that he had identified him as his videos come on Facebook but he did not identify the accused Pankaj. Thus, PW50 had denied the State Vs. Pankaj Sehrawat and Ors. Page No.261 of 385 suggestions put to him and his testimony does not help the case of the prosecution and even it is not shown that any FIR was got registered by the said witness.

244. PW53 Sandeep Gaba had stated about running the business of iron and he had denied making the statement dated 10.05.2015 Mark PW53/1 to the police. He denied the suggestion that before

November 2014, he used to run a book shop and one Kabadi shop in Subhash Nagar and volunteered he had a steel plant. He also denied the suggestion that he had stated to the police that a local criminal and a local financier namely Gurpreet Singh had come to his house in November 2014 and took him to one factory situated in Village Kamruddin Nagar or that he introduced him to gangster Neeraj Bawana who was present there with his associates Naveen Huda @ Bhanja and others or that Gurpreet threatened him to pay Rs.50,000/- per month as protection money to Neeraj Bawana or to face dire consequences or that the accused Neeraj Bawana showed his pistol to him and fired from the pistol on the wall of the factory and he got scared due to the same and thereafter he started paying Rs.50,000/- as protection money. He further denied the suggestion that Neeraj Bawana along with Gurpreet asked him to help Gurpreet in identifying the business/ bookies who could pay extortion/ protection money for the gang of Neeraj Bawana or that the accused Gurpreet Singh used to take protection money in the last week of every month or that Gurpreet Singh, Neeraj Bawana and their associates had threatened him and extorted over Rs.2 lakhs on different occasions or that in January 2015, the accused Neeraj State Vs. Pankaj Sehrawat and Ors. Page No.262 of 385 Bawana and Rambeer Shokeen had also called him to their office at Village Kamruddin Nagar and extorted Rs.5 lakhs from him for assembly elections of 2015 and used his car for campaigning purpose during the assembly elections of 2015. He did not identify any of the accused persons. As such PW53 had denied the suggestions about any threat being extended to him or any money being extorted from him and as such his testimony does not help the case of the prosecution and it has not even come in his evidence that he had got any FIR registered.

245. PW58 Lalit Mathur had during cross-examination by the Ld. Additional PP stated that he was running a tile manufacturing factory in Majari Village. He had admitted that on 21.02.2015 when he was at his flat at Rohini, he had received a call on his mobile number though he did not remember if the said person had stated his name to be Bali or that he was the brother of Neeraj Bawana or if he had demanded Rs.50 lakhs from him or that he told him that he would not give the amount or that thereafter he threatened to kill him through his associates in a few days. He admitted that he had disconnected the phone thereafter and during the night he received two threatening calls but he volunteered that he did not pick the calls. He admitted that he received another threatening call during the day time but he did not remember the name of the caller and denied the suggestion that he had stated to the IO that the caller was Naveen Bali or that he asked him to pay the amount or when he refused to pay the money, he told him that it appeared that he was not interested in running the factory or that he threatened him that he State Vs. Pankaj Sehrawat and Ors. Page No.263 of 385 would shoot him in the head and would not allow him to sit in the factory. He admitted that he had lodged FIR in PS Samaypur Badli on 24.02.2015 though he did not remember the FIR number and he could not say if the FIR number was 246/2015. He had not stated to the police that later on Naveen Bali and his associates were arrested in the FIR. As such PW58 did not remember most of the things that were put to him though he had stated about receiving threatening calls. He did not remember if the caller had stated his name to be Bali or that he was the brother of Neeraj Bawana. It is pertinent that during cross- examination PW58 stated that the police had not got any voice sample verified by him in respect of the calls, though he denied the suggestion that no call was made by Naveen Bali. It may also be mentioned that the FIR in the present case was registered on 23.02.2015 and the FIR on the complaint of PW58 was registered on 24.02.2015.

246. PW59 Anoop Singh stated that in January 2015, he had received a call from Naveen Bali on his mobile though he did not remember the number of his mobile on which he received the call nor the number from which the call was made. He had stated about making a recording of the call by Bali. He had stated that the accused Naveen Bali had asked him to vacate the plot otherwise he would kill him and what he would do with the plot if he was not alive. He had stated about making a complaint at PS Shahbad Dairy on which FIR No.94/2015 was lodged which is Mark PW59/1. He had stated that the case was still pending. He could not identify Naveen Bali as he had never seen him. During State Vs. Pankaj Sehrawat and Ors. Page No.264 of 385 cross-examination by the Ld. Additional PP, he denied the suggestion that on 24.01.2015, he had received a call from the mobile of Deepa Pehlwan who had threatened him to kill him if he did not vacate the plot of 1000 square yards or that he had stated to the police that Naveen Bali and Deepa Pehlwan are members of Neeraj Bawania Gang or that they wanted to take possession of his plot after threatening him and he volunteered that he had only stated about the call by Naveen Bali. It may be mentioned that Deepak Dabas @ Deepa has already been discharged in the present case. PW59 had stated about the call from Naveen Bali who asked him to vacate the plot. However, during cross-examination PW59 stated that he knew Satish and Snehlata as they belonged to his family and stayed in Prahladpur. Snehlata was the real Mami of Naveen Bali. He denied the suggestion that no call was made by Naveen Bali. It was argued by the Ld. Counsel for the accused persons that there was a family dispute between the parties and PW59 had stated that he knew Satish and Snehlata as they belonged to his family and it was Snehlata who was alleged to have taken possession of the plot and as such the possibility of it being a family dispute cannot be ruled out.

247. PW63 had also deposed about the said FIR and stated that on 16.03.2015, in FIR No.94/2015 PS Shahbad Dairy, he had arrested Naveen Dabas @ Bali s/o Narender Singh r/o Village Sultanpur Dabas, Delhi from Patiala House Court premises and he recorded his disclosure statement. Copy of the FIR is Mark PW63/2. He had filed the charge sheet in the said case after State Vs. Pankaj Sehrawat and Ors. Page No.265 of 385 completing the investigation and the same was pending trial. He identified the accused Naveen Dabas @ Bali produced through VC. During cross-examination by the Ld. Counsel for the accused persons he denied the suggestion that FIR No.94/2015 was lodged at the behest of officials of Special Cell to falsely implicate the accused persons in the present FIR No.10/2015. He stated that he did not remember if it had come during investigation of FIR No.94/2015 that there was a property dispute of mama of accused Naveen Dabas @ Bali with the complainants of that case. He was shown the disclosure statement of accused Naveen Dabas @ Bali and he stated that as per the same, there was a property dispute of mama of accused Naveen Dabas @ Bali with the complainants of that case. Thus, even in the disclosure statement of the accused Naveen @ Bali, it was recorded that there was a property dispute of mama of accused Naveen Dabas @ Bali with the complainants of that case. PW63 had also deposed about arresting Deepak Dabas @ Deepa in the said FIR No.94/2015 PS Shahbad Dairy though the accused Deepak Dabas @ Deepa has already been discharged in the present case. No doubt the accused Naveen Dabas @ Bali was arrested in the said FIR but it is seen that the co-accused Deepak Dabas @ Deepa has already been discharged and the said FIR does not prove any nexus of the accused Naveen @ Bali with the other accused persons.

248. PW60 Gurmeet Singh had stated that Gurpreet was the nephew of his friend and he became friends with Gurpreet. During cross-examination by the Ld. Additional PP for State, he State Vs. Pankaj Sehrawat and Ors. Page No.266 of 385 stated that he had not stated to the police that in the last week of October 2014, Gurpreet called him and volunteered he had stated that Gurpreet called him and asked him where he was and he stated that he was at Hari Nagar on which he came there with three other persons and introduced Neeraj Bawana and denied the suggestion that he was also introduced to Naveen Bhanja. He had denied the suggestion that he had stated to the police that Gurpreet asked him to give them protection money and assured him that no one would disturb him in his illegal betting business and volunteered he did not have any such betting business. He had not stated to the police that due to fear he agreed to pay them Rs.20,000/- per month as protection money. He admitted that he had stated to the police that in the first week of November 2014, he got a call from Naveen Bhanja and he asked him to give Rs.1 lakh as protection money within one month and he told him that he could only afford the pre-decided amount of Rs.20,000/- per month but Naveen Bhanja told him that he would kill him if the protection money of Rs.1 lakh was not paid and volunteered he did not pay the amount and Naveen Bhanja told him that his wife was pregnant and he needed the money. He had not stated to the police that out of fear he told Gurpreet about the extortion call of Naveen Bhanja on which he told him that he would talk to Neeraj Bawana to reduce the amount or that Gurpreet talked to Neeraj Bawana and agreed to receive Rs.50,000/- or that he paid the amount to Neeraj Bawana through Gurpreet Singh and thereafter he continued paying Rs.20,000/- per month to Neeraj Bawana till February 2015 or that he had paid Rs.1.10 lakhs to Neeraj Bawana through Gurpreet Singh due to fear of life to grant illegal State Vs. Pankaj Sehrawat and Ors. Page No.267 of 385 book betting and volunteered he was not aware whether Gurpreet talked to Neeraj Bawana or not but he stopped receiving the calls and he had not paid any amount to anyone. He did not identify the accused Neeraj in Court. It may be mentioned that Gurpreet and Naveen Bhanja have both been discharged in the present case and as such the testimony of PW60 cannot be read to show any link between the accused Neeraj and Gurpreet and Naveen Bhanja. At the most PW60 had stated about being introduced to Neeraj Bawana and he had also denied about stating that due to fear he agreed to pay Rs.20,000/- per month as extortion money and he also denied making any other payment to Neeraj Bawana through Gurpreet Singh.

249. During cross-examination PW60 admitted that Naveen Bhanja had told him that he needed the money as his wife was pregnant and volunteered that initially he had demanded the money in a different manner and then stated about his wife being pregnant. As such, PW60 had vacillated in his statement giving different versions but even nothing has been brought on record to show that he had got any FIR registered.

250. PW61 Anoop Singh @ Bittoo Bolder testified that he knew Gurpreet as he used to reside in his Mohalla and during cross- examination by the Ld. Additional PP he was confronted with the statement under Section 161 Cr.P.C. Mark PW61/1. He admitted that he had stated to the police that in 2014 he used to do betting with the friends of his circle and that in November 2014 Gurpreet had come to his restaurant though he denied that he had stated to the police that Gurpreet had introduced him to Pankaj Sehrawat State Vs. Pankaj Sehrawat and Ors. Page No.268 of 385 who is the brother of Neeraj Bawana or that they had asked him to pay protection money of Rs.50,000/- per month or that the accused Pankaj Sehrawat had shown him a pistol or that on seeing Pankaj in

front of him, he got scared or that out of fear for his life he used to give protection money to Gurpreet Singh in the last week of every month. He also denied having stated to the police that the accused Gurpreet Singh, Neeraj Bawania and his friends on the threat of life had taken Rs.2 lakhs from him. He did not identify the accused Pankaj. Again it is significant that the accused Gurpreet has already been discharged and PW61 had denied having stated to the police that Gurpreet and Pankaj had asked him to pay protection money of Rs.50,000/- per month or that he had paid around Rs.2 lakhs. Moreover, there is nothing in his testimony to show that he had got any FIR registered.

251. It is thus seen that several witnesses were examined by the prosecution to establish that the accused persons were engaged in organized crime and were acting on behalf of an organized crime syndicate but the witnesses were mostly hostile either on the point of threat being extended or on the point of the person who extended the threat and in case of some of the witnesses, it has not even been brought on record that they had made any complaint on the basis of which any FIR was registered. PW74 was also cross-examined by Ld. Counsel for the accused persons and he admitted that in so far as the investigation was carried out by him, specific and quantifiable amounts pertaining to the land disputes settled, properties acquired or generated and cash accumulated by the organized crime syndicate could not be State Vs. Pankaj Sehrawat and Ors. Page No.269 of 385 brought on record. During investigation, he did not recall if it came to his knowledge that any Court had held that the accused persons were members of any organized crime syndicate. He did not recall if it came to his knowledge during investigation as to how many accused persons were there in FIR No.1683/2015 PS Mangolpuri. He denied the suggestion that he being the complainant of the case was interested in success of this case hence, he carried out the investigation in a biased manner or that he had manipulated the statements of witnesses and had not recorded the correct version of witnesses. He denied the suggestion that he forced the witnesses to depose according to his wish before the Ld. Magistrate in their statement under Section 164 Cr.P.C. or that the accused persons had been falsely implicated in this case or that the accused Neeraj and Pankaj were surviving on the proceeds of their agricultural land and rental income accruing to their parents. The accused Pankaj in his statement under Section 313 Cr.P.C. had stated that he was involved in family occupation of farming and also in the rental and property dealing business and was living out of those earnings. Though the accused persons have not led any evidence to show the same, the prosecution has also not shown any specific and quantifiable amounts pertaining to the land disputes settled, properties acquired or generated and cash accumulated by the alleged organized crime syndicate. Further, PW74 did not recall if it came to his knowledge that any Court had held that the accused persons were members of any organized crime syndicate.

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252. Several witnesses were then examined by the prosecution regarding the role of the accused Rambeer Shokeen or pertaining to his arrest. PW14 was the IO of the case and had arrested the accused Rambeer Shokeen in the present case and filed a supplementary charge sheet against him and nothing material had come out in his cross-examination qua the arrest of the accused Rambeer Shokeen. PW16 had stated about the apprehension of the accused Rambeer Shokeen in FIR No.65/2016 PS Special Cell and he had also filed the charge sheet in the said case. The said FIR was

registered under Sections 25/27/54/59 Arms Act. The documents of the said case were admitted by the accused persons on 09.09.2022 and are Ex.C-59 (colly) and the certified copy of the charge sheet is Ex.PW16/1. As per the testimony of PW16, FIR No.65/2016 against accused Rambeer Shokeen was registered on 27.11.2016 i.e. much after the registration of the present case (though there is no legal bar to considering cases which come up even during investigation of a case under MCOC Act). PW51 had also deposed about the apprehension of the accused Rambeer Shokeen in the said case and he was extensively cross-examined on behalf of the accused Rambeer Shokeen. During cross-examination PW51 stated that he was accompanied by SI Yogesh, ASI Sandeep, HC Rohtash, Ct. Narender and informer when accused Rambeer Shokeen was apprehended. He had first informed the senior officers about the apprehension namely ACP Govind Sharma. He was the first IO in FIR No.65/2016 and ASI Bachu was the second IO. ASI Bachu had visited the spot in his presence. He reached the spot around 9.30-10 p.m. He stated that when ASI Bachu reached the spot he State Vs. Pankaj Sehrawat and Ors. Page No.271 of 385 was present there along with SI Yogesh and ASI Sandeep. He was carrying the IO kit with him. He had reached Yuva Shakti School around 6.30 p.m. DD No.7 was lodged regarding his departure. He had specified the names of the team members in the departure entry.

253. PW51 further stated that there were a few houses around the Yuva Shakti School. He offered his search to the accused before searching him. The accused Rambeer had come to the spot in a Fortuner when he apprehended him. He did not remember the number of the Fortuner. The Fortuner was being driven by Sandeep Dhaka who was the owner of the Fortuner and on the passenger seat was Vijay Gahlot. Sandeep Dhaka had escaped from the spot. Vijay Gahlot had shown a pistol and before he could be apprehended, he escaped from the spot. The identification of Sandeep Dhaka and Vijay Gahlot was revealed to him by the accused Rambeer Shokeen. He had not arrested Sandeep Dhaka in the present case and volunteered he was not the IO of the present case. Sandeep Dhaka was informed about the arrest of Rambeer Shokeen in the present case. He had handed over sealed case property to the IO in FIR No.65/2016 along with seizure memo, sketch and copy of rukka. He had prepared the seizure memo in the said case. He stated that a magazine would be required to load the bullet in the pistol. A magazine was also seized in the present case. He did not specifically mention about the magazine in the sketch and volunteered magazine is part of the pistol.

254. PW51 also stated that the two bullets shown in the sketch State Vs. Pankaj Sehrawat and Ors. Page No.272 of 385 were recovered from the magazine. He denied the suggestion that no weapon was recovered from the accused Rambeer and the same was planted by him at the behest of his seniors to falsely implicate accused Rambeer in FIR No.10/2015, PS Special Cell. He stated that he did not record the disclosure statement of the accused Rambeer at the time of his apprehension in FIR No.65/2016. He did not remember how many times his statement under Section 161 Cr.P.C. was recorded in the present case and volunteered in respect of the accused Rambeer, his statement under Section 161 Cr.P.C. was recorded twice. At the time of recording of disclosure statement of the accused Rambeer Shokeen, he was present along with ACP Govind Sharma. The description of the seal with which the weapon was sealed was SPL CELL NDR 15. The seal remained with the Malkhana. He denied the suggestion that the accused Rambeer was not apprehended from Yuva Shakti School, Rama Vihar or that the rukka and sketch memos were prepared while sitting in the

police station or that blank papers were got signed from accused Rambeer and no such disclosure was ever made by the accused Rambeer or that the accused Rambeer was illegally arrested without following the guidelines passed by the Hon'ble Supreme Court. Thus, PW51 was extensively cross-examined on behalf of the accused and though a suggestion was put to him that the accused Rambeer Shokeen was not arrested from near the Yuva Shakti School, no suggestion was put to him as to from where, according to the accused, he was arrested in FIR No.65/2016. During cross-examination PW74 denied the suggestion that the weapon was falsely planted upon the accused Rambeer Shokeen State Vs. Pankaj Sehrawat and Ors. Page No.273 of 385 at the time of his arrest only to strengthen the present case and volunteered he had not arrested the accused Rambeer Shokeen.

255. The Ld. Counsel for the accused Rambeer Shokeen had argued that the weapon was planted on the accused at the time of his apprehension to support the fake allegations made in the present FIR and pursuant to his arrest in the said FIR, the accused was arrested in the present FIR. It was also submitted that not even a single public witness was cited by the officials of the Special Cell in the said case and no fingerprints were lifted from the alleged weapon and no source of the alleged weapon was ever investigated by the officials of the Special Cell. However, the merits of the said case need not be gone into in the present case as it was submitted by the Ld. Counsel for the accused Rambeer Shokeen that charge had been framed in the said matter against the accused Rambeer Shokeen and as such the said matter is being tried separately. Suffice it to state that the said case was registered under Arms Act and there is nothing in the said case to connect the accused Rambeer Shokeen to the other accused persons of the present case and the only other accused in the said case was one Vijay Gahlot and there is nothing on record to show that Vijay Gahlot had any connection with the crime syndicate allegedly run by the accused Neeraj.

256. PW34 Komal Sharma deposed that he knew Rambeer Shokeen as his village was near his house. He had stated about the wife of the accused Rambeer Shokeen contesting in the election of municipal corporation and winning the same and thereafter, Rambeer Shokeen had also contested for the assembly State Vs. Pankaj Sehrawat and Ors. Page No.274 of 385 seat of Mundka constituency and won that election. He stated that he had not extended any monetary help in that election and had also not given any loan to them. He had stated about seeing the accused Pankaj Sehrawat during the election of Rambeer Shokeen and stated that he had never received any threat either from Rambeer Shokeen or Pankaj Sehrawat. During cross- examination by the Ld. Addl. PP for State, PW34 denied the suggestions that during the election of municipal corporation which was contested by his wife, Rambeer Shokeen had taken a loan of Rs.2.5 lakhs from him, promising to return it in a week but he did not return the money or that later Rambeer Shokeen stopped receiving his calls and stopped talking to him or that in the year 2015 during the assembly elections, Rambeer Shokeen sought his support over the telephone but he disconnected the phone or that thereafter Rambeer Shokeen sent his people for forcing him to support him but he refused or that one day Pankaj came to his office, he was accompanied by many people and he threatened him either to leave Delhi or face dire consequences or that thereafter, supporters/ criminals linked with Rambeer Shokeen told him that Rambeer would sort him out after the elections. He was confronted with the statement Mark PW34/A wherein the said facts were recorded. He stated that he was not aware whether on 14.03.2015 Pankaj Sehrawat and his mother were apprehended at the airport and

denied the suggestion that on 14.03.2015 he had received a message on his mobile No.9818137555 in this regard or that on 15.03.2015 one Jagdev, maternal uncle of Neeraj called him and asked him to go to Tihar Jail to give clothes to Pankaj's mother but he denied or that in the State Vs. Pankaj Sehrawat and Ors. Page No.275 of 385 first week of April 2015 Neeraj messaged him over his phone and demanded money but he denied or that he then messaged him to sell a Scorpio car of Pankaj but he again denied. Thus, PW34 was examined to show the connection of the accused Rambeer Shokeen, Pankaj Sehrawat and Neeraj. While it is not in dispute that the accused Rambeer Shokeen is the maternal uncle of accused Pankaj Sehrawat and Neeraj and PW34 had also stated about seeing the accused Pankaj Sehrawat during the elections of accused Rambeer Shokeen, nothing had come out in the examination of PW34 which would show that they were part of any organized crime syndicate or acting on its behalf.

257. PW40 had deposed about running a liquor shop in Haryana and about the accused Deepak @ Deepa wanting liquor, who met him along with Rs.3 lakhs. He stated about the accused Deepak @ Deepa giving him Rs.3 lakhs and from December 2013 to January 2014 the boys of Deepak @ Deepa kept on taking boxes of liquor bottles from liquor shop. He had also stated that he had heard the name of accused Neeraj Bawana but he had no connection or concern with him. At the cost of repetition, it is stated that the accused Deepak @ Deepa has already been discharged in the present case and even otherwise nothing incriminating has come out in the testimony of PW40 qua the other accused persons. It was sought to be contended on behalf of the prosecution that the said liquor was procured for the purpose of use in elections of the accused Rambeer Shokeen but the material on record does not point to any such linkage.

258. A number of witnesses had then been examined by the State Vs. Pankaj Sehrawat and Ors. Page No.276 of 385 prosecution to prove the charges against the accused Rambeer Shokeen of harboring, concealing and organizing the concealment of the accused Neeraj Sehrawat @ Neeraj Bawana by providing a false identity and for holding money and property derived and obtained from commission of organized crime and for being in possession of immovable property which he could not satisfactorily account for. PW43 is the person whose voter identity card was allegedly forged for the benefit of the accused Neeraj and he had admitted that on both the voter identity cards lying on the judicial record, number of his original voter identity card was mentioned which was in the name of Prashant Kaushik S/o Pramod Kaushik and photograph on the said voter identity card was of some other person. Moreover, the address on the overleaf was not correct according to the original. The copy is Mark PX. It is pertinent that PW43 stated that he knew the accused Rambeer Shokeen as he had been earlier their local MLA but he also stated that Rambeer Shokeen had never taken his voter identity card from him at any point of time. He also knew the accused Neeraj Bawania who was a known criminal but he could not say if the photograph depicted on the voter identity card Mark PX was of Neeraj Bawania. During cross-examination by the Ld. Addl. PP for State, he denied the suggestion that he had stated in his statement to the police that former MLA Rambeer Shokeen had taken his voter identity card on the pretext of some important work and that he was not aware as to how copy of his voter identity card reached the accused Neeraj Bawania.

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259. During cross-examination by the Ld. Counsel for accused Rambeer Shokeen PW43 stated that he had met accused Rambeer Shokeen once in the campaigning of elections. He had never seen the originals of copy Mark PX as shown to him in the Court. Thus, PW43 had stated that he knew the accused Rambeer Shokeen but he had never taken his voter identity card from him at any point of time. PW3 had deposed about the verification of Voter ID card and that after verification, it was found that Voter ID card No.IPN2924296 was issued in the name of Shri Navin Jha, son of Shri Dinesh Jha, r/o 9, Village Nilothi, Nangloi and voter card No.IPN2938362 was issued in the name of Balwinder Kaur, wife of Shri Jaswinder Singh, r/o A-77, Block-A, Vikas Vihar, Nilothi Extension, New Delhi. However, the prosecution has not been able to establish that the accused Rambeer Shokeen had taken the Voter ID card of PW43 and thereafter handed it over to the accused Neeraj who changed the name on it and created two other Voter ID cards and used the same. It was argued by the Ld. Addl. PP that PW35 had matched the handwriting of the accused Neeraj on the Voter ID card but that does not show any connection with the accused Rambeer Shokeen.

260. It is then the case of the prosecution that the record showed that the accused Neeraj had stayed in various hotels under different identities and also used the Voter ID of PW43 for the said purpose. A perusal of the testimony of PW28 shows that he had testified about one Vikas Kumar who checked-in to their hotel 'Senses' in Kolkata on 14.03.2015 and stayed there till State Vs. Pankaj Sehrawat and Ors. Page No.278 of 385 18.03.2015 and he had proved the documents in that regard. The guest registration form pertaining to the said customer is Ex.PW28/3 and he had submitted copy of driving license which is Ex.PW28/5. It was submitted by the Ld. Addl. PP for State that PW28 had deposed about the stay of Vikas in the hotel and in fact Neeraj had stayed as Vikas and the signatures had been proved by the handwriting expert to be of Neeraj. However, that only shows that the accused Neeraj had stayed in the hotel under a fake identity but it does not show the connection of any other accused with him nor does it show that the accused Neeraj was doing any act on behalf of any organized crime syndicate nor it has any specific bearing on the present case. PW29 had deposed about one Neeraj Kumar and Vipin checking in to their hotel on 14.01.2015 at Chandigarh and the Ld. Addl. PP had argued that PW29 had also stated about use of forged documents and Amit @ Bhura had stayed with Neeraj who stayed as Vipin. However, Amit @ Bhura has already been discharged in the present case. PW38 had provided the documents in respect of stay of guests at their hotel in Ujjain but nothing much turns on the same.

261. The prosecution had further relied upon documents relating to stay of the accused Neeraj Sehrawat on fake name and ID of Prashant with others in Hotel Narayan; relating to stay of accused Neeraj Sehrawat on fake name and ID of Prashant with others in Hotel Jai Mahal from 03.09.2014 - 04.09.2014; relating to stay of accused Neeraj Sehrawat on fake name and ID of Prashant Kaushik with others in Hotel Savera from January 06- 09, 2015; relating to stay of accused Neeraj Sehrawat on fake State Vs. Pankaj Sehrawat and Ors. Page No.279 of 385 name and ID of Prashant Kaushik with others in Hotel Juhu Residency from January 24-27, 2015; relating to stay of accused Neeraj Sehrawat on fake name and ID of Vikas Kumar with others in Hotel Suba Galaxy from January 04-05, 2015; relating to stay of accused Neeraj Sehrawat on fake ID of Vikas Kumar with others in Hotel Marigold from April 01-03, 2015; relating to stay of accused Neeraj Sehrawat on fake ID of Prashant Kaushik with others in Hotel Raj Palace from February 21-26, 2015; relating to stay of accused Neeraj Sehrawat on fake ID of Vikas Kumar with others in Hotel Rupasi Bangla from

February 26 to March 03, 2015; relating to stay of accused Neeraj Sehrawat on fake ID of Prashant Bhardwaj with others in Hotel Geetanjali from March 03-06, 2015; relating to stay of accused Neeraj with others in Hotel Host International from April 01-06, 2014; relating to stay of accused Neeraj with others in Hotel Kings Crown from April 06-07, 2014; relating to stay of accused Neeraj Sehrawat on fake ID of Vikas Kumar with others in Hotel Devsagar from March 12-14, 2015; relating to stay of accused Neeraj Sehrawat on fake ID of Prashant Kaushik with others in Hotel N. S. International from March 06-07, 2015; relating to stay of accused Neeraj with others in Hotel Majestic International from March 09-11, 2015; and relating to stay of accused Neeraj with Arvind Rohilla and others in Hotel Green View from March 27-28, 2015. The said documents were admitted by the accused persons on 09.09.2022. Other than Prashant Kaushik, the others whose identities were faked have not been examined in the present case. Regarding the said record of hotels which has been relied upon by the prosecution, even if it is accepted that the State Vs. Pankaj Sehrawat and Ors. Page No.280 of 385 accused Neeraj had resided in the said hotels under fake identities, there is nothing to show the connection of the said stay with being a member of or running the organized crime syndicate as it is not the case that while so residing in any of the hotels, any organized crime was committed. Even it cannot be said that the stay in the hotels shows that the resources for the same were derived from organized crime in the absence of any specific evidence in that regard. The record at best shows that the accused Neeraj had stayed in various hotels under fake identities and was thereby trying to conceal himself but it does not reflect that any other accused had a role in his concealment, much less the accused Rambeer Shokeen.

262. PW6 was examined to show that his debit card was used by the accused persons. He had identified the accused Pankaj and Neeraj as his cousins and he had deposed about having a debit card which he had given to his father Jagdev Singh Shokeen. He denied having knowledge about any person by the name of Amit Malik @ Bhura. During cross-examination, he had stated that his father Shri Jagdev Singh Shokeen used to operate and handle his said account and he was operating the said account after the death of his father. When he was recalled for examination in respect of the accused Rambeer Shokeen, PW6 reiterated that the debit card used to be in the possession of his father and he did not know as to who might have been using the same. The Ld. Addl. PP had submitted that the said debit card was used by Amit Malik @ Bhura but the said accused has already been discharged in the present case and the testimony of PW6 does not show any State Vs. Pankaj Sehrawat and Ors. Page No.281 of 385 connection to any of the accused persons in the present case who are facing trial.

263. It is also the case of the prosecution that the accused Neeraj Bawana had purchased mobiles from the shop of PW54 out of extortion money. PW54 had stated about two persons coming to his shop to purchase a mobile though he had not identified the accused Neeraj Bawana before the Court. When he was cross-examined by the Ld. Addl. PP for State, PW54 had admitted that the said persons had come to his shop twice i.e. on 06.03.2015 and 11.03.2015 and that one of the persons who called himself Vikas had sold a mobile make LG Nexus 6 to him and in exchange of the same, second hand mobile make LG G-3 was given to Vikas. During cross-examination by the Ld. Counsel for the accused persons PW54 stated that he was the owner of the mobile shop. At the time of purchase of mobiles, no identity document was taken and volunteered identity document was taken only for sale of SIM cards. He was not the authorized dealer of any mobile company and volunteered

he was a small shop owner. He admitted that he had given copy of bill of one mobile and one mobile was exchanged. He had not handed over any document to the police showing that he was the owner of the shop nor he had brought it that day and volunteered it was not asked. He had not brought the original register that day and volunteered he had shut the shop. He admitted that in the register the make of the phone and the name of the person who purchased it were not mentioned and volunteered the IMEI number was mentioned. He could not tell how there were entries regarding State Vs. Pankaj Sehrawat and Ors. Page No.282 of 385 2014 and one entry regarding 2015 and volunteered the matter was old. He stated that the cuttings were to mark the phones which were sold. He denied the suggestion that he was not a mobile handset seller or purchaser or that he only dealt in mobile accessories as was apparent from Mark PW54/1 or that the phones were neither sold by him nor purchased by him as recorded in the stock register Mark PW54/3 (colly). He denied the suggestion that he was deposing falsely at the instance of the IO or that the documents handed over by him to the police officers were forged and fabricated documents and the same were created at the behest of police officials. Even though PW54 was cross-examined extensively on behalf of the accused persons and he had deposed about sale of mobile phones, nothing much turns on the same and it is also not the case that the said phones were used for making any extortion calls and there is nothing to establish that the said phones were purchased out of extortion money.

264. It was then argued that the accused Neeraj had attempted to get a passport in Kolkata under another identity as he wanted to flee the country and the accused Rambeer Shokeen had facilitated the same. During cross-examination by the Ld. Addl. PP for State, PW31 had denied the suggestions that he had attended election meetings of Rambeer Shokeen or that in February 2014, he had met Neeraj Bawania in the office of Rambeer Shokeen or that Rambeer Shokeen instructed him to go to Kolkata with Neeraj as Neeraj who was on parole, wanted to jump parole and flee the country or that thereafter, they went to State Vs. Pankaj Sehrawat and Ors. Page No.283 of 385 Kolkata in a Mahindra Scorpio which was arranged by Rambeer Shokeen or that after reaching Kolkata, Neeraj asked him to find an agent who could get a passport prepared on false ID or that thereafter he introduced Neeraj to one Manu who was having an old travel agency or that Manu agreed to arrange a passport for Rs.70,000/- or that Neeraj Bawania paid the said amount to Manu or that thereafter, Manu got some documents prepared through Maqbul and with the said documents passport application was submitted or that they stayed in different hotels in Kolkata for one month. Thus, PW31 had denied the suggestions put to him in this regard. PW33 who was working as Senior Supervisor in Regional Passport Office, Kolkata had deposed about receiving an application form of Suraj Singh S/o Prem Singh R/o Bahirsorva Mongla, Bardwan, 713101 for passport and that on account of adverse police report the passport was not issued. He had stated that another application was also filed which is Ex.PW33/4. Nothing material had come out in the cross-examination of the said witness. It was argued by the Ld. Addl. PP for State that the handwriting on the said application was matched by PW35 to be of the accused Neeraj. However, that does not establish that the accused Rambeer Shokeen had any role in the same and it has also not been shown that any FIR was got registered in that respect. Further, PW36 who was the Sub Divisional Controller, Food and Supplies, Burdwan Khady Bhawan, Burdwan, West Bengal had stated about there being no ration card in the name of Suraj Singh issued on 27.04.2011, in whose name the passport application was made. Thus, it has been brought on record that there was no ration card existing in the State Vs. Pankaj Sehrawat and Ors. Page No.284 of 385 name of Suraj Singh on the basis of which passport

was sought in the name of Suraj Singh and as per the case of the prosecution, the handwriting in the application for passport was that of the accused Neeraj but that does not help to establish any of the offences with which the accused persons have been charged with in the present case, nor there is anything to show that the accused Rambeer Shokeen had in any manner facilitated the accused Neeraj Bawana in obtaining a false passport.

265. It is then the case of the prosecution that the accused Rambeer Shokeen had got money transferred to the accused Neeraj which showed his role in facilitating the crime syndicate. PW18 Sachin Goel had deposed that he was in the business of money transfer under his own name. He had stated that in the month of March 2015, one Ashish approached him to transfer Rs.50,500/- in one account in the name of Jasbir Singh held with HDFC Bank. He gave him Rs.51,000/- and he transferred Rs.50,550/- in the account of Jasbir as had been instructed by Ashish from his personal account of OBC. The register which he used to maintain in his usual course of business wherein the entries of transactions done by him were made is Ex.PW18/1 and the entry of the transaction conducted at the request of Ashish whereby an amount of Rs.50,550/- was transferred to the HDFC account of Jasbir is at point A on page 44. The mobile number reflected against the entry was of the client Ashish, full name Ashish Nain. The prosecution had also placed on record the details of account No.0328501-1000455 in the name of Sachin Goel and the said documents were admitted by the accused State Vs. Pankaj Sehrawat and Ors. Page No.285 of 385 persons on 09.09.2022. PW18 was extensively cross-examined on behalf of the accused persons and during cross-examination PW18 stated that he had not issued any receipt of the money deposited by him and volunteered it was not required because the moment the money was transferred the customer would receive an SMS. Thus, no receipt was produced but there is other evidence available on record to show the transaction. He further stated that he had not checked the identity of that person to verify that his name was in fact Ashish Nain. He stated that most of the times, he recorded the name of the depositor but in the present case, the name of Ashish had not been mentioned. He admitted that he only wrote the name of the person to whom the amount was remitted and not of the person who remitted the amount. However, nothing much turns on the same as Ashish has also been examined in the present case as PW41.

266. PW18 was also cross-examined regarding the entry in the register and he stated that the entry at point A on page 44 in Ex.PW18/1 was in his handwriting. He stated that his staff also used to make entries in the register. He denied the suggestion that Ashish Nain never approached him for the deposit of any amount to any other account or that at the behest of the investigating agency, entry at point A on Ex.PW18/1 was created only at a later stage after the registration of the present FIR. He admitted that at some places there were cuttings in the register Ex.PW18/1. However, there is nothing to dispute the entry regarding the transaction in question. PW18 further stated that he had an agreement with the platform through which he used to remit the State Vs. Pankaj Sehrawat and Ors. Page No.286 of 385 money. For violation of the agreement, the company could take action. The register which had been produced was for his own record and the accounts which were submitted to the company were maintained on computer/ on the portal of the company. He had not given access to the Online portal to the police. He had given the copy of the agreement to the police. He had not given the printouts of the account maintained at the portal. In the portal, the name of the person who sent the money was not recorded. Only his mobile number was recorded. However,

the name of the account holder who received the money along with the account number was recorded. He stated that apart from the agreement, no other agreement was signed between him and MMPL Private Limited. He was conducting his business as per the said agreement. He admitted that as per his agreement, before any transaction on behalf of any customer, he was to collect his identification documents and fill up KYC form which was to be then forwarded to the company. He admitted that there was a clause in the agreement according to which failure to comply with KYC norms would amount to compromising national security and despite that he did not obtain KYC form in this case. He admitted that as per the contract he could not transfer more than Rs.50,000/- for a customer. He denied the suggestion that only that record which was entered on the computer and on the portal of the company could be considered original record of his transaction. However, PW18 had stated that in the present case, he had transferred the money from his personal account and not through the M-rupee platform and as such the agreement with MMPL is not of much significance.

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267. During further cross-examination PW18 stated that after his statement was recorded in this case, neither he had contacted the police nor the police had contacted him regarding the investigation of this case. The register which he had handed over to the police was not sealed in his presence. He denied the suggestion that he had along with the police officials of Special Cell manipulated the register Ex.PW18/1 to falsely implicate the accused in this case or that the alleged manipulation was done as the officials of Special Cell had threatened him to book him in a case of very serious nature involving national security if he did not agree to the said manipulation as well as deposing falsely before the Court in this case as per the whims and fancies of Special Cell officials. He denied the suggestion that he had never known or met Mr. Ashish Nain nor had conducted any transaction/ money transfer for him or that the only time he had met Ashish Nain was in the office of Special Cell when he was called there by the Special Cell. Thus, PW18 had denied the suggestions put to him and there is also nothing to dispute the transaction by which money was transferred in the name of Jasbir.

268. PW41 Ashish Nain had deposed that his sister was married with Neeraj Sehrawat R/o Village Bawana. He had stated to the IO of the present case regarding receiving of OTP on his mobile phone regarding transfer of money but he was not aware from whose account and into whose account the money was transferred. During cross-examination by the Ld. Addl. PP for State he had denied stating in his statement to the police that on State Vs. Pankaj Sehrawat and Ors. Page No.288 of 385 10.03.2015 maternal uncle of Neeraj Sehrawat namely, Rambeer Shokeen called him in his office at Kamruddin Nagar, Nangloi and that he told him that Neeraj Sehrawat was outside and he required money for expenditure, for that purpose, Rambeer Shokeen handed over him cash of Rs.50,500/- along with Rs.700/- for commission agent and slip for depositing the said amount in the name of Jasbir Singh in HDFC account No. 06851000028163. He had not stated in his statement given in the present case that he thereafter visited in the office of Sachin Goel at Kusumdeep Building, Azadpur Commercial Complex, Delhi and gave him cash of Rs.50,500/- and Rs.700/- as commission/ transaction fee or that thereupon Sachin Goel asked him his contact number and he gave him his mobile number being 9990861654 (though he volunteered that the mobile number was

correctly his) or that thereafter, Sachin Goel transferred the cash from his personal bank account to HDFC bank account of Jasbir Singh. He was also confronted with the statement Ex.PW41/PA. PW41 had also stated that he not made any inquiry regarding the OTP number received in his mobile phone as stated by him in his examination in chief though he had admitted receiving the OTP. As such, despite PW41 not admitting the transaction, he had received the OTP and he also admitted his mobile number. During cross-examination by the Ld. Counsel for accused Rambeer Shokeen PW41 admitted that he had never met with accused Rambeer Shokeen at any point of time and had never talked with accused Rambeer Shokeen even on phone. Thus, while the transaction of sending money to the account of PW31 stands established, in view of the testimony of PW41, there is State Vs. Pankaj Sehrawat and Ors. Page No.289 of 385 nothing to prove that PW41 had done the transaction at the behest of the accused Rambeer Shokeen.

269. Further, PW31 Jasbir Singh @ Goldy is the person in whose account the money was allegedly transferred and he was also examined in this regard though he was hostile regarding the suggestions put to him qua the transfer of money. He deposed that he did not know anybody named Rambeer Shokeen or Neeraj Sehrawat @ Neeraj Bawania. However, around 6 or 7 years prior he was in Kolkata where he met one Shakti who had purchased some pairs of juttis from him; later, he proposed him that they could share a room and divide the rent amongst themselves and they stayed in a hotel near Chorangi Market. There were three people who stayed in that room i.e. him, Shakti and his cousin, whom he later came to know was Neeraj Sehrawat although he was staying in the hotel by using a different name. He had also stated about giving his debit card of HDFC bank to Shakti to use it for withdrawal of money. He had identified his signatures on the statement recorded under Section 164 Cr.P.C as Ex.PW31/1 but he stated that he had not given any such statement to the Ld. Magistrate and that he had stated whatever had been instructed by the police to state before the Ld. Magistrate. During cross-examination by the Ld. Addl. PP for State, PW31 had denied the suggestion that he had given his HDFC ATM card to Rambeer Shokeen or that later on he had seen his debit card in the hands of Neeraj Bawania and when he asked him about the said card, he said that he had been given the said card by Rambeer Shokeen for his expenses or that Rambeer State Vs. Pankaj Sehrawat and Ors. Page No.290 of 385 Shokeen would deposit money in his account and Neeraj would use the card and withdraw the money for his use.

270. PW31 further stated that he had seen the debit card/ATM card bearing No.4363030405443805 of HDFC bank belonging to him which was the same card that he had given to Shakti and is Ex.Article P-1. He denied the suggestion that he had given the said card to Rambeer Shokeen, who in turn had given it to Neeraj. He denied the suggestion that Shakti had not returned the said card to him as stated by him or that it was recovered from the possession of Neeraj Bawania and volunteered he had been called to the PS for his statement where they had taken the said card from him. He denied the suggestion that the said ATM card was recovered at the time of arrest of Neeraj in FIR No.30/15 of PS Special Cell or that was why he was lying that it was taken by police from him when he was called for his statement at Special Cell as his statement was recorded much later than the arrest of accused Neeraj Bawania. He identified the accused Rambeer Shokeen. Thus, PW31 had identified the accused Rambeer Shokeen but he had denied the suggestion that he had given his debit card to the accused Rambeer Shokeen who had in turn given it to the accused Neeraj and that Rambeer Shokeen would deposit the money in the account of PW31 and accused Neeraj would use

the same. At the same time, the story put forth by PW31 of giving the debit card to Shakti appears unbelievable as it does not stand to reason that he would agree to share a room with a person who had only purchased some articles from him and he would also hand over his debit card to him to use it for State Vs. Pankaj Sehrawat and Ors. Page No.291 of 385 withdrawal of money but in the absence of any cogent evidence, not much reliance can be placed on the same. The record shows that other than the transaction about which PW18 and PW41 had deposed, the prosecution has not brought on record specific evidence to show that the accused Rambeer Shokeen had deposited money in the account of PW31 and even in respect of the transaction deposed about by PW18 and PW41, there is nothing to establish the connection of the accused Rambeer Shokeen with the same. The prosecution had relied on the details of account No.068510-00028163 of PW31 Jasbir Singh to contend that the same was used by accused Neeraj Sehrawat and the said documents were admitted by the accused persons on 09.09.2022 but a perusal of the same also does not show that the money was deposited therein by the accused Rambeer Shokeen or that the said account was used by the accused Neeraj Sehrawat. As such, there is nothing to show that the accused Rambeer Shokeen had facilitated the accused Neeraj Bawana or provided funds to him.

271. The Ld. Addl. PP had argued that PW31 had shared the room with Neeraj though in a different name and that he had admitted his statement under Section 164 Cr.P.C. and that he had stated that the accused Neeraj used to foot the bill for dinner and had also identified the accused Rambeer Shokeen. However, merely identifying the accused Rambeer Shokeen is of no relevance when PW31 denied handing over this debit card to him and also denied the other suggestions that were put to him regarding the alleged role of PW31. Further, PW31 had himself State Vs. Pankaj Sehrawat and Ors. Page No.292 of 385 stated about staying with two persons in Kolkata, name of one of whom he later came to know as Neeraj but that does not show any complicity of the accused Rambeer Shokeen. As regards the contention that PW31 had admitted his statement under Section 164 Cr.P.C., he had stated that he had stated what he had been instructed to state by the police before the Ld. Magistrate. During cross-examination by the Ld. Addl. PP, PW31 admitted that whenever they would go out in Kolkata in night for dinner or at pubs or parties, Neeraj would foot the bill but nothing turns on the same. He stated that he did not know, therefore he could not admit or deny that during the said period Neeraj was in touch with Rambeer Shokeen through Whatsapp. As such, nothing has come out in the testimony of PW31 to establish that the accused Rambeer Shokeen was harboring or concealing or facilitating the accused Neeraj.

272. The prosecution had also relied on the testimony of PW15 who had deposed about giving CCTV footage of two ATMs of HDFC bank in Kolkata of 01.01.2015 having ID number S1ANCC71 and S1AWSIO4 and also handing over the printouts of screenshots of CCTV footage to the police which he proved as Ex.PW15/4 to Ex.PW15/12. The Ld. Addl. PP had submitted that the said witness had shown that the accused Neeraj had used the debit card of someone to withdraw money from the bank in Kolkata which money was deposited in Delhi and OTP was received on the mobile of the relative of Neeraj in Delhi. However, while the CCTV footage at the most shows the accused Neeraj using a debit card to withdraw money, it does not show State Vs. Pankaj Sehrawat and Ors. Page No.293 of 385 whose debit card was used, nor does it establish that the money withdrawn was the same money which was deposited in Delhi. Nothing material had come out in the cross-examination of the said witness and even otherwise nothing much turns on the examination of the said witness as

his testimony does not show the connection of the accused Neeraj to the other accused persons.

273. PW31 had also deposed that he had taken an apartment on rent in Kolkata. However, the tenancy did not materialize and neither him nor anybody on his behalf ever stayed in that apartment. He had stated that he had decided to take an apartment on rent as he wanted to shift his family to Kolkata. He had paid around Rs.15,000/- to Rs.20,000/- as an advance for the said apartment. During cross-examination by the Ld. Addl. PP for State, he denied the suggestion that the apartment in Kolkata was taken on rent on being asked by Neeraj or that the payment of Rs.21,000/- for the said flat was also made by Neeraj or that he had stated the said facts to the police in his statement under Section 161 Cr.P.C and similar facts to the Ld. Magistrate in his statement under Section 164 Cr.P.C. He was confronted with the statement under Section 161 Cr.P.C Mark PW31/A and the statement under Section 164 Cr.P.C Ex.PW31/1 but nothing much turns on the same once before the Court, he had denied that the apartment was taken on being asked by Neeraj or that the payment for the flat was made by Neeraj. PW32 had deposed about receiving a phone call from Jasbir Singh who wanted to rent a flat in Kolkata and a rent agreement was also executed State Vs. Pankaj Sehrawat and Ors. Page No.294 of 385 between him and the owner of the property but the prosecution has failed to establish the connection of the said deal with the accused persons in the present case. Further, during cross- examination PW74 stated that till the time the investigation remained with him, he could not gather any CCTV footage to show that the accused Rambeer Shokeen was harboring the other accused persons of the present case. He did not recall if any lawfully intercepted call was available to connect accused Rambeer Shokeen with the other co-accused in this case. As such, even as per the IO, there was no CCTV footage or intercepted call which could connect the accused Rambeer Shokeen with the other accused persons in the case. Further, PW74 did not recall having come across any verifiable money trail between the accused Rambeer Shokeen and the other co- accused persons. During cross-examination PW77 did not remember if, after perusing the bank transactions, he came across any transaction between the accused Rambeer Shokeen and any co-accused in the case. He could not admit or deny the suggestion that there was no transaction between the accused Rambeer Shokeen and any co-accused in the case. He did not find any CCTV footage or any forensic evidence to show that the accused Rambeer Shokeen was harboring the other accused persons. Thus, both PW74 and PW77 had not found any forensic evidence to show that the accused Rambeer Shokeen was harboring the other accused persons or which could connect the accused Rambeer Shokeen to the other accused persons.

274. It is further the case of the prosecution that the accused State Vs. Pankaj Sehrawat and Ors. Page No.295 of 385 Rambeer Shokeen was in possession of properties which he could not account for. The prosecution had placed on record the certified copy of Form 26 filed by the accused Rambeer Shokeen in Delhi Legislative Assembly for AC-08 for the year 2013 containing expenditure/ asset details; certified copy of Form 26 filed by Ms. Rita Shokeen w/o Rambeer Shokeen in Delhi Legislative Assembly for AC-08 for the year 2015 containing expenditure/ asset details; Income Tax Return and PAN Card details of the accused Rambeer Shokeen and his wife Ms. Rita Shokeen and details of account No.62309088497 of the accused Rambeer Shokeen and of account No.62315772594 of Ms. Rita Shokeen and of account No.05832010001120 of the accused Rambeer Shokeen and of account No.05832010049800 of Ms. Rita Shokeen obtained on

02.03.2017. PW74 was extensively cross-examined in this regard and he stated that he had sent notices to the concerned Revenue Authorities inquiring about any ownership of property in the name of the accused Rambeer Shokeen. He stated that no such property on record was reported by the said authorities. Till the time the investigation remained with him, no record pertaining to ownership of any property or asset in the name of accused Rambeer Shokeen had come on record. He did not remember if he had collected the expenditure register submitted by accused Rambeer Shokeen in terms of provisions of Representation of People's Act, after the elections contested by him in the year 2013 to the Election Commission of India and volunteered the affidavit of income and assets is on record and he had asked for the expenditure of election and assets declared by the accused Rambeer Shokeen from the Chief State Vs. Pankaj Sehrawat and Ors. Page No.296 of 385 Electoral Officer (CEO) vide his notice Ex.PW74/H. He denied the suggestion that the expenditure register was withheld by him to implicate the accused Rambeer Shokeen in the present case as the same would have demolished the entire case set up by the Investigating agency. He could only say after checking the record whether any investigation was done regarding the ancestral properties of the accused Rambeer Shokeen and volunteered he was not arrested by him in the present case. Thus, PW74 had stated that till the time the investigation remained with him, no record pertaining to ownership of any property or asset in the name of accused Rambeer Shokeen had come on record.

275. PW77 was also likewise cross-examined and he stated that he did not investigate with regard to the properties and assets owned by the accused Rambeer Shokeen either from the office of concerned SDM, Patwari, Sub-Registrar or any other authority except Bank details and Income Tax Return along with PAN Card details and volunteered the other IO must have investigated the same. The only Income Tax Return that was filed by accused Rambeer Shokeen was in 2005 but neither he nor his wife filed any Income Tax return thereafter although there were huge transactions in their account even after 2005. He did not remember whether he investigated the trail of transactions as shown in the bank statement which is Ex.C-65 and Ex.C-66 (colly), pages 179 to 217. He denied the suggestion that the trails of the said transactions were duly investigated by him and since nothing incriminating was found against Rambeer Shokeen, the same were not placed on record by him and he was intentionally State Vs. Pankaj Sehrawat and Ors. Page No.297 of 385 giving evasive reply to hide his malafide acts. He denied the suggestion that merely on account of non-filing of Income Tax returns, accused Rambeer Shokeen could not have been made an accused in the present case and at the most, the same could have been a non-compliance of the provisions of Income Tax Act. PW77 further stated that he did not investigate qua the ancestral property owned by the accused Rambeer Shokeen in his native Village Kamruddin Nagar and volunteered the previous IO must have done it. Thus, PW77 had not investigated with regard to the properties and assets owned by the accused Rambeer Shokeen nor with regard to the ancestral property owned by the accused Rambeer Shokeen and he did not remember if he had investigated the trail of transactions as shown in the bank statement.

276. The Ld. Counsel for the accused Rambeer Shokeen had submitted that as per the prosecution, the accused Rambeer Shokeen and his wife were allegedly having assets beyond their financial capacity and they had not filed their ITR between 2006 to 2016 but there was not even a single document in the entire charge sheet which could even remotely indicate that the accused Rambeer Shokeen was holding any property on behalf of an organized crime syndicate as was required in

terms of the provisions of MCOC Act. There is clearly merit in the said contention and from the testimony of PW74 and PW77 it is evident that no such document has been produced which could substantiate the allegations levelled against the accused Rambeer Shokeen in this regard and as submitted by the Ld. Counsel, there State Vs. Pankaj Sehrawat and Ors. Page No.298 of 385 is even no transaction in the bank account statements which could connect the accused with any other co-accused person. It was also submitted that the assets mentioned by the accused Rambeer Shokeen and his wife Rita Shokeen in the affidavits filed before the Election Commission were duly accounted for and even the prosecution has failed to show that the assets so referred to were not accounted for in any manner and it was also submitted that the same were a result of family arrangements and a part of ancestral properties barring one or two assets. While the accused Rambeer Shokeen has also not produced any evidence in this regard, the prosecution itself has failed to discharge its burden to prove that the assets were not accounted for and PW74 and PW77 had stated that they had not done any investigation with regard to the ancestral properties of the accused Rambeer Shokeen.

277. Further, PW74 did not recall having obtained the CDR of accused Rambeer Shokeen and bringing it on record. Upon checking of the case file, he stated that the CDR of the mobile number subscribed in the name of accused Rambeer Shokeen was not placed on record. He denied the suggestion that CDR of accused Rambeer Shokeen was requisitioned by him and had been suppressed and withheld since placing it on record would have demolished the entire case of the investigating agency as there was nothing incriminating against the accused Rambeer Shokeen. He also denied the suggestion that confession under Section 18 of MCOC Act was not recorded since the same would have demolished the entire case set up by him.

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278. It was further put to PW74 that in the final report, a finding had been recorded by him that the accused Rambeer Shokeen was found involved in the disposal of robbed police weapons and what evidence did he find to arrive at the said finding against Rambeer Shokeen to which he responded that the information that accused Rambeer Shokeen was involved in the said act came from the disclosure of accused Neeraj Sehrawat. Since accused Rambeer Shokeen could not be arrested till the time the investigation remained with him, he could not get a first-hand corroboration of the same. He did not recall if the accused Rambeer Shokeen was made an accused in any FIR pertaining to the disposal of robbed police weapons. He denied the suggestion that accused Rambeer Shokeen was not involved in any such act with respect to robbed police weapons and the entire theory was concocted and was made only to malign the political image and rising career of accused Rambeer Shokeen and the same concocted information was supplied to the media personnel towards the same end. He did not recall as to who all were present in the room while recording the disclosure statements of accused Neeraj Sehrawat and Pankaj Sehrawat and other accused persons. He denied the suggestion that subsequent repeated disclosure statements were recorded only to falsely implicate the accused Rambeer Shokeen in the present case. As per the settled law, the disclosure of the accused Neeraj would be irrelevant for pointing towards the guilt of the accused Rambeer Shokeen regarding disposal of robbed police weapons. Thus, there is nothing on record to show that the accused Rambeer Shokeen was found involved in disposal of robbed police weapons.

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279. During further cross-examination PW74 denied the suggestion that the accused Rambeer Shokeen had never sheltered or harbored any co-accused or any other criminal at any given point of time or that the accused Rambeer Shokeen had never taken any advantage or gained undue economic advantage or pecuniary benefit either for himself or any other person pursuant to the alleged organized crime syndicate or that the accused Rambeer Shokeen had never conspired or advocated or abetted or facilitated the commission of any organized crime or that the accused Rambeer Shokeen either himself or on behalf of any other person at any given point of time had been in possession of any movable or immovable property which he could not account for. He denied the suggestion that he being the complainant of the case was interested in the success of the case and to reach the desired goal hence, he carried out the investigation in a biased manner or that he had manipulated the statements of witnesses and had not recorded the correct version of witnesses or that he forced the witnesses to depose according to their wish before the Ld. Magistrate in their statements under Section 164 Cr.P.C. Though PW74 had denied the suggestions put to him in this regard, it is seen that the prosecution has not produced any reliable evidence to establish any of the allegations against the accused Rambeer Shokeen.

280. PW77 also denied the suggestion that false statements were recorded by him during the investigation of this case to falsely implicate Rambeer Shokeen. Thus, PW74 and PW77 were extensively cross-examined on behalf of the accused Rambeer State Vs. Pankaj Sehrawat and Ors. Page No.301 of 385 Shokeen and specifically in respect of the offences for which he was charged but the prosecution has not brought forth any cogent material to support the allegations against the accused Rambeer Shokeen. It is also seen that as per the record, the accused Rambeer Shokeen had been convicted in FIR No.308/2007 PS Nangloi but it was submitted by the Ld. Counsel for the accused that the accused Rambeer Shokeen had been falsely implicated in different FIRs and that FIR No.308/2007, PS Nangloi had been registered out of political rivalry and vide order dated 21.01.2011 fine of Rs.100 each was imposed upon the accused and his family members. Even otherwise, the said case has not been relied upon to show any connection with any crime syndicate. The prosecution had relied on FIR No.575/2014 Crime No.1072/2014 PS Baghpat but the accused Rambeer Shokeen has already been acquitted in the said case vide judgment dated 13.09.2022. Reference was also made to FIR No.35/2015 PS Special Cell which was registered after the registration of the present case but the accused Rambeer Shokeen has already been discharged in the said case as noted above and PW9 who had been examined in the present case had testified that no threat whatsoever was ever given to him by anybody and no alleged incident ever took place. FIR No.65/2016 PS Special Cell is pending against the accused Rambeer Shokeen but that does not show any connection with any other accused person. The Ld. Counsel for the accused Rambeer Shokeen had submitted that there was another FIR pending against the accused Rambeer Shokeen in Saket Court but that was stated to be in relation to his escape from custody. Thus, the prosecution has failed to establish State Vs. Pankaj Sehrawat and Ors. Page No.302 of 385 the connection of the accused Rambeer Shokeen with any crime syndicate, much less any crime syndicate run by the accused Neeraj or even to show that he had any connection with the other accused persons except that it has come on record that the accused Rambeer Shokeen was the maternal uncle of the accused Neeraj and Pankaj.

281. It was submitted by the Ld. Counsel for the accused Rambeer Shokeen that a perusal of the application dated 20.04.2015 filed by the investigating officer during investigation would make it evident that initially the accused Rambeer Shokeen was summoned as a witness under Section 160 Cr.P.C. but the entire charge sheet was silent as to the fact which led the investigating officer to shift his status from that of a witness to that of an accused. During cross-examination PW77 stated that he did not remember if the first notice was issued to accused Rambeer under Section 160 Cr.P.C. as a witness and volunteered the other IO might have served a notice. He did not interrogate or inquire from Rita Shokeen in the present case. While it is true that a notice under Section 160 Cr.P.C. had been issued to the accused Rambeer Shokeen initially and not as an accused, however, it is the prerogative of the IO to array anyone as an accused against whom material comes on record. It was also argued that not even a single incriminating evidence had come on record against the accused Rambeer Shokeen and there is merit in the said submission of the Ld. Counsel in view of what has been discussed above and there is also merit in the contention that there is nothing to show that the accused Rambeer Shokeen State Vs. Pankaj Sehrawat and Ors. Page No.303 of 385 was involved in the alleged harboring of any other accused or providing assistance to them by any means or even in the transaction of the property.

282. A perusal of the record further shows that several of the witnesses who were examined by the prosecution were only formal witnesses in that PW1 had deposed about issuing an order for award of Rs.1 lakh for giving information/ clue to trace the accused Neeraj Bawania who was involved in FIR No.180/2012, PS Samaypur Badli. She had stated that he was also involved in 16 other cases. During cross-examination PW1 admitted that there was no reference of order of the Commissioner of Police in Ex.PW1/A and volunteered the order of the Commissioner of Police was on the note-sheet which is on record. She stated that Ex.PW1/A was a formal order of the approval given by the Commissioner of Police. She could produce the same, if required. She admitted that the stamp of diary number and the endorsement in hand made at the bottom in Ex.PW1/A were not the original order brought by her and volunteered after issuance of the order, a copy goes to various addressees and diary number as well as endorsements are made on the same, which are appearing in the copy Ex.PW1/A. However, the actual order and the copy Ex.PW1/A are the same. She also stated that she had not handed over Ex.PW1/A to the IO. She had only issued the formal order pursuant to the approval of the Commissioner of Police on the note-sheet. She was not aware of the cases referred to in the order Ex.PW1/A. She denied the suggestion that the order Ex.PW1/A was passed in a mechanical manner without any State Vs. Pankaj Sehrawat and Ors. Page No.304 of 385 supporting documents. Thus, nothing material came out in the testimony of PW1, even otherwise, she had deposed only about issuing an order for award of Rs.1 lakh for giving information/ clue to trace the accused Neeraj Bawania who was stated to be involved in FIR No.180/2012, PS Samaypur Badli.

283. PW4 had deposed about taking the accused Gurpreet, who has since been discharged to CFSL CBI for recording of sample voice and since the said accused stands discharged, testimony of this witness is not of much relevance in the present case. PW5 had deposed about giving a flat to Nitin Singh through a broker whose original name he came to know as Amit Malik @ Bhura. However, Amit @ Bhura has already been discharged in the present case. PW20 had proved the FIR in the present case as well as the endorsement on the rukka. Nothing material came out in his cross-examination to doubt the registration of FIR which was registered after taking approval

Ex.PW73/A (it may be mentioned that the Ld. Counsels for the accused persons had contended that the approval had been given without application of mind which aspect shall be adverted to later). PW30 had deposed about collecting exhibits of the case from Malkhana and depositing them in FSL. PW39 had provided recharge details of various mobile numbers. In this regard the prosecution had also relied on recharge and bill payment details as per replies dated 28.11.2015, 16.11.2015, 16.11.2015, 16.09.2015, 07.12.2015 but nothing much turns on the same. PW51 had deposed about arresting the accused Amit Malik @ Bhura and recovery of SIM card at the instance of the accused Gurpreet Singh. He had also State Vs. Pankaj Sehrawat and Ors. Page No.305 of 385 filed charge sheet in FIR No.839/2015 PS Rajouri Garden in respect of Amit Malik @ Bhura and Naveen Huda @ Bhanja. However, the said accused persons have already been discharged in the present case. Besides that, he had stated about execution of proceedings under Section 82 Cr.P.C. against the accused Rambeer Shokeen on 03.06.2015 i.e. when the accused Rambeer Shokeen was declared a proclaimed offender during the pendency of investigation in the present case.

284. PW62 had deposed about arresting the accused Neeraj Bawana and Rashid in FIR No.30/2015 PS Special Cell and stated that in the said case SI Sohan Lal had recovered one AK- 47 and SLR which were recovered at the instance of Neeraj Bawania from near Vijay Colony Mundka on 09.04.2015. He had also filed the charge sheet in FIR No.30/2015 PS Special Cell in which accused Neeraj was sentenced to 7 years imprisonment after trial. However, during cross-examination he had stated that there was no other accused apart from Neeraj and Rashid in FIR No.30/2015 and the accused Rambeer Shokeen had no relation with the said FIR. PW75 had proved the record of FIR No.30/2015 PS Special Cell. However, there is nothing on record to show that the accused Rashid was a member of the crime syndicate allegedly run by the accused Neeraj Bawana.

285. PW64 had deposed about the arrest of the accused persons.

During cross-examination he had denied the suggestion that the accused persons had not made the disclosure statements and nothing material had come out in his cross-examination. PW66 had deposed about being asked by the IO to obtain specimen State Vs. Pankaj Sehrawat and Ors. Page No.306 of 385 signatures of the accused Neeraj Sehrawat after taking permission from the Court and he had taken the specimen handwriting of the accused Neeraj Sehrawat on 10 sheets and further obtained his specimen handwriting on 15 sheets. PW67 had stated about according sanction in respect of the accused Rambeer Shokeen and his testimony would be referred to later. PW68 had deposed about arresting the accused Pankaj Sehrawat in the present case and accused Naveen @ Bali and Rahul @ Kala. PW70 had also stated about the arrest of accused Pankaj Sehrawat under Section 41.1 Cr.P.C. and thereafter the accused Pankaj Sehrawat was handed over to Special Cell. Nothing material had come out during his cross-examination.

286. PW72 was the MHCM and he had deposed about deposit of various articles in the Malkhana. PW73 had deposed about grant of approval and sanction and his testimony would be referred to later. PW76 had proved the record in respect of FIR No.7/2015 PS Special Cell. PW77 was also an IO of the present case and he had deposed about collecting attested copies of documents pertaining to various FIRs and other documents and obtaining sanction under Section 23 (2) of MCOC Act against the accused Rambeer Shokeen.

287. The prosecution has referred to several other FIRs which allegedly show the involvement of the accused Neeraj and Naveen @ Bali in different crimes but none of the said FIRs point to any connection between the accused persons or their linkage to an organized crime syndicate.

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288. From what has been discussed above, the following points emerge:

1) In the FIRs which were referred to by the investigating agency and by the prosecution to show that a crime syndicate was being run and to show continuing unlawful activity, FIR No.69/10, PS Hari Nagar could not be relied upon; FIR No.179/2012 PS Bawana resulted in acquittal and FIR No.77/2012 PS Bawana resulted in discharge of the accused persons; in FIR No.53/2012 PS Bawana, accused Naveen @ Bali and Rahul @ Kala were discharged and the matter is pending against only accused Neeraj Bawana; in FIR No.98/2012 PS Prashant Vihar, accused Neeraj and Naveen @ Bali had been discharged and the other accused had been convicted; in FIR No.575/2014 PS Baghpat Crime No.1072/2014, the accused Rambeer Shokeen had been acquitted vide judgment dated 13.09.2022, though the matter is stated to be pending against the accused Neeraj and others; in FIR No. 99/2012 PS Bawana charge had been framed against the accused Neeraj and Pankaj and the other accused Deepak Dabas had been discharged.

2) In FIR No.764/2014 PS Subhash Place charge sheet had not been filed at the time approval for registration of FIR was sought but in the said case charge has been framed against the accused Neeraj and Pankaj. In FIR No.40/2013 PS Crime Branch, the accused Neeraj was discharged on 24.09.2013 and the other FIRs referred to only the involvement of the accused Neeraj except FIR No.437/2011 PS Jhajjar in which the accused Neeraj was discharged on 18.10.2022. As such, the said cases do not show any connection of the accused Rambeer Shokeen with the other accused persons or that he was part of any crime syndicate. The matters which were pending and relied upon by the investigating agency could at the most indicate that a crime syndicate was being run but whether it could be called an organized crime syndicate is the moot question. The Ld. Additional PP for State would argue that acquittal or discharge was of no relevance, once cognizance had been taken on the charge sheets and as such the conditions required for applicability of MCOC Act were fulfilled but this argument would be State Vs. Pankaj Sehrawat and Ors. Page No.308 of 385 adverted to later. The other FIRs which have been referred to by the investigating agency and the prosecution are in respect of involvement of the accused persons individually and not qua the organized crime syndicate though it was stated that the accused persons had acted singly or jointly on behalf of the organized crime syndicate.

3) A number of witnesses had been examined in respect of FIR No. 42/2015 PS Special Cell regarding the land deal of Khasra No.38/24 Village Shahbad Daulatpur,

Shiv Vihar, Delhi but they also, at the most prove that the land deal was done under the fear of the accused Neeraj but they had failed to establish any connection of the accused Pankaj with the said land deal or that the money was received by the accused Rambeer Shokeen or that the accused Rambeer Shokeen had facilitated the encashment of cheques or even that the accused Neeraj had direct involvement in the said deal.

4) The witnesses who were examined regarding the threats being extended by the accused persons had mostly turned hostile and some of them at the most proved the registration of FIRs but in some of the cases, it was not even shown that they had got FIRs registered and the said cases do not point to the existence of any crime syndicate.

5) The other set of witnesses who were examined to show that the accused Rambeer Shokeen was harboring the other accused persons by providing necessary assistance and illegal means have also failed to point out any instance which could show that the accused Rambeer Shokeen was allegedly harboring, concealing or attempting to harbor or conceal members of alleged organized crime syndicate or was involved in any conspiracy, abetment or facilitating organized crime or that he was holding property derived or obtained from the commission of organized crime. The prosecution has also not been able to show that the accused Pankaj was holding any property derived or obtained from the commission of organized crime though he was not even charged for the said offence.

289. It was contended on behalf of the accused persons that the State Vs. Pankaj Sehrawat and Ors. Page No.309 of 385 prosecution had miserably failed to prove the ingredients of Section 3 MCOC Act in the present case while the Ld. Addl. PP for State had submitted that there existed more than one charge sheet against the accused persons on which cognizance had been taken, hence MCOC Act was applicable in the present case and the accused persons were liable to be convicted. At the outset, it was the contention of the accused persons that it must be shown by the prosecution that there was more than one charge sheet filed against each of the accused on which cognizance was taken to attract the provisions of MCOC Act. However, in the case of Leena Paulose v. State of Delhi Bail Appln.4262/2021 decided on 11.07.2023, it was observed by the Hon'ble High Court as under:

"38. The MCOCA was made applicable to the National Capital Territory of Delhi by Ministry of Home Affairs by virtue of a order dated 02.01.2002. It is a matter of record that MCOCA Rules, 1999 were not brought in force.

39. The plea on behalf of B.Mohanraj and Kamlesh Kothari is that there is requirement of more than one chargesheets as defined under Section 2(1) (d) of MCOCA. The reading of Section 2(1) (d) indicates that an activity prohibited by law for the time being in force, which is a cognizable offence punishable with imprisonment of three years or more, undertaken either singly or jointly, as a member of an organized crime syndicate or on behalf of such syndicate is a

continuing unlawful activity, if in respect of such offence more than one charge-sheets have been filed before a competent Court within the preceding period of ten years and that Court has taken cognizance of such offence. However, this question has come up for consideration before the Supreme court in Kavitha Lankesh (supra) wherein it was held that requirement of more than one charge-sheets is in reference to the continuing State Vs. Pankaj Sehrawat and Ors. Page No.310 of 385 unlawful activities of the organized crime syndicate and not qua individual member thereof.

40. Similarly, in Zakir Abdul Mirajkar (supra) the Supreme court has inter alia held that it is settled law that that more than one charge sheet is required to be filed in respect of the organized crime syndicate and not in respect of each person who is alleged to be a member of such a syndicate.

41. Similarly in Govind Sakharam Ubhe v. State of Maharashtra; (2009) SCC Online Bom 770, it was inter alia held that if within a period of preceding ten years, one charge-sheet has been filed in respect of organized crime committed by the members of a particular crime syndicate, the said charge-sheet can be taken against a member of the said crime syndicate for the purpose of application of the MCOCA against him even if he is involved in one case.

42. In fact dealing with all these judgments makes it clear that the salient point in the nexus or link with the "organized crime syndicate" is basically the foundation and a person can be prosecuted if the link is established. It is not necessary that the persons who are alleged to be members of organized crime syndicate have more than one charge-sheets filed against them in an individual capacity. The prerequisite condition is that charge-sheet should have been filed against the syndicate. Thus, second proposition seems to be that the charge-sheet in respect to the organized crime syndicate is sufficient to fulfill the conditions under Section 2(1) (d) of MCOCA. A provision of MCOCA can be attributed if a person is found to be a facilitator or of an abettor as referred to in Sections 3 (2), 3 (3), 3 (4) or 3 (5) of MCOCA.

43. In Digvijay Saroha v. State; 2019 SCC Online Del 10324, it has inter- alia been held as under:

" I have heard the learned counsel for the petitioner and the learned APP for the State and am of the opinion that there is no merit in the bail application as there is sufficient material available on record to, prima facie, indicate the involvement of the petitioner in abetting, conspiring and knowingly State Vs. Pankaj Sehrawat and Ors. Page No.311 of 385 facilitating the commission of organized crime alleged to have been carried out by Jitender @ Gogi and his associates. The judgments cited by Ld. Counsel for the petitioner on sanction are not relevant for the reason that prosecution has categorically submitted that all relevant material was placed before Sanctioning Authority before grant of sanction and moreover at the stage of bail, the Court is not

required to go into the facts in detail and give a finding that sanction is in accordance with law or not. This issue will be decided by the Ld. Trial Court at appropriate stage during the trial. So far as contention of Ld. Counsel that since two chargesheets were not in existence against the petitioner at the time of invocation of provisions of MCOCA and, therefore, requirement of Sec. 2(d) of the MCOC Act is not fulfilled, is concerned, there are two judgments to refute the said submission. One is that of Bombay High Court and another one is of Hon'ble Supreme Court. The Hon'ble Division Bench of Bombay High Court in a case titled, Govind Sakharam Ubhe v. State of Maharashtra, 2009 SCC OnLine Bom 770, has interpreted the words "in respect of which more than one charge-sheet have been filed" used in Section 2(d) of the Act and has held as follows:

"35. It is now necessary to go to the definition of "continuing unlawful activity" . Section 2(1)(d) defines "continuing unlawful activity" to mean an activity prohibited by law for the time being in force, which is a cognizable offence punishable with imprisonment of three years or more, undertaken either singly or jointly as a member of an organized crime syndicate or on behalf of such syndicate in respect of which more than one charge-sheet have been filed before a competent court within the preceding ten years and that court have taken cognizance of such offence. Thus, for an activity to be a "continuing unlawful activity"-

a) the activity must be prohibited by law;

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b) it must be a cognizable offence punishable with imprisonment of three years or more;

c) it must be undertaken singly or jointly;

d) it must be undertaken as a member of an organized crime syndicate or on behalf of such syndicate

e) in respect of which more than one charge-sheet have been filed before a competent court.

36. The words "in respect of which more than one charge-sheet have been filed" cannot go with the words "a member of a crime syndicate" because in that case, these words would have read as "in respect of whom more than one charge-sheet have been filed".

37. A person may be a part of the module which jointly undertakes an organized crime or he may singly as a member of the organized crime syndicate or on behalf of such syndicate undertake an organized crime. In both the situations, the MCOCA can be applied. It is the membership of

organized crime syndicate which makes a person liable under the MCOCA. This is evident from section 3(4) of the MCOCA which states that any person who is a member of an organized crime syndicate shall be punished with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life and shall also be liable to fine, subject to a minimum of fine of Rs. 5 lakhs. The charge under the MCOCA ropes in a person who as a member of the organized crime syndicate commits organized crime i.e. acts of extortion by giving threats, etc. to gain economic advantage or supremacy, as a member of the crime syndicate singly or jointly. Charge is in respect of unlawful activities of the organized crime syndicate.

38. In order to substantiate our construction of Section 2(1)(d) of the MCOCA, we will take hypothetical example of accused 1(A), accused 2(B), accused 3(C) and accused 4(D), who are members of the organized crime syndicate and State Vs. Pankaj Sehrawat and Ors. Page No.313 of 385 who have committed crimes within preceding ten years. Insofar as accused A is concerned, it is alleged that he has committed an offence resulting in the death of any person which is punishable with death or imprisonment for life as described in Section 3(1) of the MCOCA.

Accordingly, one charge-sheet is filed against him. Insofar as accused B is concerned, it is alleged that he has committed an offence resulting in the death of any person which is punishable with death or imprisonment for life as described in Section 3(2) of the MCOCA.

Accordingly, one charge-sheet is filed against him. Likewise, insofar as accused C is concerned, it is alleged that he has committed an offence resulting in the death of any person which is punishable with death or imprisonment for life as described in Section 3(3) of the MCOCA. Accordingly, one charge-

sheet is filed against him. Finally, it is alleged that accused D is a member of organized crime syndicate as described in Section 3(4) of the MCOCA and as such has indulged in organized crime and against whom also one charge-sheet is filed.

39. The submission on behalf of the appellant is that even though all the four accused namely, A, B, C and D may be members of the organized crime syndicate since against each of the accused not more than one chargesheet is filed, it cannot be held that they are engaged in continuing unlawful activity as contemplated under Section 2(1)(d) of the MCOCA. Apart from the reasons which we have given hereinabove as to why such a construction is not possible, having regard to the object with which the MCOCA was enacted, namely to make special provisions for prevention and control of organized crime syndicate and for coping with criminal activity by organized crime syndicate, in our opinion, Section 2(1)(d) cannot be so construed. Such a construction will defeat the object of the MCOCA. What is contemplated under Section 2(1)(d) of the MCOCA is that activities prohibited by law for the time being in force which are punishable as described therein have been undertaken either singly or jointly State Vs. Pankaj Sehrawat and Ors. Page No.314 of 385 as a member of organized crime syndicate and in respect of which more than one charge-

sheets have been filed. Stress is on the unlawful activities committed by the organized crime syndicate. Requirement of one or more charge-sheet is qua the unlawful activities of the organized

crime syndicate."

(Emphasis supplied)

44. In *Mujahid S/o Ibrahim v. The State of Maharashtra*; (2014) SCC Online Bom 4048, it has inter-alia been held as under:

"10. From the above referred fact what is established before this Court is, against the said gang leader more than one charge-sheets are pending and in most of the charge-sheets offences alleged, are punishable with more than three years of imprisonment. It is also required to be taken note of the fact that the offences alleged to have been committed by the gang leader of which present applicants are alleged to be members are for financial gain. It is also required to be taken note of the fact that the investigation in the matter is incomplete and same is under progress. In view of above, the invocation of the provisions of MCOCA, in our opinion, at this stage, prima facie appears to be justified as the requirement of clause (d) of section 2 of MCOCA is very much justified. What is contemplated under said section is a situation where a group of persons as members of organized crimes syndicate indulge in organized crime who use the violent means to gain pecuniary benefit or un-due economic or other advantage for themselves or any other persons. The clause which defines the 'continuing unlawful act' which is prohibited by law and must be cognizable offence punishable with imprisonment for three years or more. Such unlawful activity can be undertaken by singly or jointly as a member of an organized crime syndicate or on behalf of such syndicate in respect of which more than one charge-sheets have been filed before a competent Court. The words "in respect of which more than one charge-sheets have been State Vs. Pankaj Sehrawat and Ors. Page No.315 of 385 filed", in our opinion, cannot be stretched to the extent that minimum one charge-sheet is required to be pending against each member of the crime syndicate. A reading of the entire scheme of the Act reflects that pendency of more than one charge-sheets within a period of ten years is enough qualification for invoking the provisions of the MCOCA, provided same is pending against the members of the crime syndicate, who operates as individually or jointly in commission of organized crime. What is required to be taken note of is the very involvement, attachment, nexus or the link of such member/person with the organized crime syndicate while commission of the offence, the very link of such member of the crime syndicate is considered to be the crux of the term "continuing unlawful activity". It is also required to be taken note of the fact that if the contention of the learned Counsel for the applicants i.e. the requirement of the statute, in their submission, is the pendency of the minimum two charge-sheets for an offence punishable with more than three years imprisonment in the last period of ten years is to be accepted, the same shall take the very object and intention of the statute to illogical end. What is contemplated under section 2(1)

(d) of MCOCA is the activities prohibited by the law have been undertaken either singly or jointly, as a member of an organized crime syndicate and as such the requirement of one or more charge-sheets is in relation to the unlawful activity of the unlawful crime syndicate and not of each and every member of such syndicate."

45. Thus, from the discussion made herein above, it is no longer *res integra* that it is not necessary that such charge-sheet should be against an individual. If the charge sheet is filed against the syndicate that would be sufficient compliance of Section 2 (1) (d) of MCOCA.

46. It is also a settled proposition that it is not necessary that each member of the syndicate should have a similar role. The individual members can have different roles in the commission of the crime.

State Vs. Pankaj Sehrawat and Ors. Page No.316 of 385 The petitioners herein have argued that there are no allegations which would link them to the foundational allegation of extortion and therefore there is no *prima facie* case to invoke the provisions of the MCOCA as against them. This court considers that there is no merit in the said contention. The allegations as being made by the investigating agency is that these accused persons were in fact channelizing the ill- gotten money received through foundational crime of extortion. Their role is in fact facilitating the continuing commission of the crime by or on behalf of the syndicate. The provisions of MCOCA can be attributed to an individual if his role amounts to any assistance to organized crime or organized crime syndicate or to a person involved in either of them.

47. It is settled proposition that mere membership/nexus with the organized crime syndicate is sufficient to prosecute under MCOCA. In *Sachin Bansilal Ghaiwal v. State of Maharashtra*; (2014) SCC OnLine Bom 725, "38. Thus, according to us and in our humble opinion and our earnest consideration, the expression 'member' as has been termed in Section 2(1)(d) of the MCOC Act can be interpreted and defined as, a person who participates in the crime either actively or passively or a person who facilitates the commission of the crime committed by the organized crime syndicate or on behalf of the organized crime syndicate, automatically becomes the member of the said crime syndicate which commits the offence or on whose behalf the offence in question is committed, as contemplated under Sec. (2)(1)(d), 2(1)(e), Section 3 and other provisions of the MCOCA."

48. Therefore, I consider that the arguments of the learned defence counsel that in absence of more than one charge-sheet having been filed against Petitioners B. Mohanraj and Kamlesh Kothari the MCOCA could not have been attributed against them is liable to be rejected."

The Hon'ble Supreme Court in *Zakir Abdul Mirajkar v. The State of Maharashtra & Ors.* 2022 LiveLaw (SC) 707 had held that persons who were alleged to be members of an organized State Vs. Pankaj Sehrawat and Ors. Page No.317 of 385 crime syndicate need not have more than one charge sheet filed against them in an individual capacity; rather, charge sheets with respect to the organized crime syndicate are sufficient to fulfil the condition in Section 2(1)(d) MCOC Act. Thus, it has been categorically laid down that the requirement of one or more charge sheets is in relation to the unlawful activity of the organized crime syndicate and not of each and every member of such syndicate and as such, there is no merit in this contention raised on behalf of the accused persons.

290. It is then the case of the accused persons that the prosecution had failed to establish continuing unlawful activity which was the sine qua non for applicability of the provisions of MCOC Act and in fact even the approval for registration of FIR and the sanction that were accorded in the present case were not proper and the entire proceedings stood vitiated and further that the sanction had been accorded only for the offence under Section 3(4) MCOC Act. It would be material to refer to Section 23 of MCOC Act which reads as under:

"23. Cognizance of, and investigation into, an offence. - (1) Notwithstanding anything contained in the Code, -

(a) no information about the commission of an offence of organized crime under this Act, shall be recorded by a police officer without the prior approval of the police officer not below the rank of the Deputy Inspector General of Police;

(b) no investigation of an offence under the provisions of this Act shall be carried out by a police officer below the rank of the Deputy Superintendent of Police.

(2) No Special Court shall take cognizance of any State Vs. Pankaj Sehrawat and Ors. Page No.318 of 385 offence under this Act without the previous sanction of the police officer not below the rank of Additional Director General of Police."

Thus, for recording of information about an offence or the registration of even the FIR, there has to be prior approval of the police officer not below the rank of the Deputy Inspector General of Police and further for taking cognizance of any offence under the Act by the Special Court, there has to be previous sanction of the police officer not below the rank of Additional Director General of Police.

291. The Ld. Counsel for the accused persons had submitted at length, that the law on the point of reading and understanding a statutory provision which contains a non-obstante clause as well as the provision which is clothed with negative words is well settled. A non-obstante clause is a legislative device which is usually employed to give overriding effect to certain provisions over some contrary provisions, that may be found either in the same enactment or some other enactment. Reference in this regard was made to the judgment in *Union of India and Anr. v. G.M. Kokil and Ors.* (supra); *Maru Ram v. Union of India and Ors.* (supra) and *A.G. Varadarajulu and Anr. v. State of T.N. and Ors.* (supra). It was highlighted that it was well settled that the mode of showing a clear intention of the legislature that the provision enacted was a mandatory one was by clothing the command in a negative form and that negative words are ordinarily used as a legislative device to make a statute imperative and reliance in this regard was placed on the judgments in *Mannalal Khetan v. Kedar Nath Khetan and State Vs. Pankaj Sehrawat and Ors.* Page No.319 of 385 Ors. (supra) and in *M. Pentiah and Ors. v. Muddala Veeramallappa and Ors.* (supra). It was submitted that it was also the well-settled principle of law that when the law requires a thing to be done in a particular manner, it should be done in that manner and not in any other manner, and the said principle would have to be followed more strictly when an action is accompanied by serious consequences. It was asservated that Section 23 of the MCOC Act which opens with a non-obstante clause and is further clothed with negative words clearly discloses the mandate of the legislature that the cognizance of the offences

under the MCOC Act should not be in a routine course, but only upon the facts disclosing the applicability thereof and satisfaction of the officer of a high rank, the minimum being of the rank of Deputy Inspector General of Police in that regard. In fact, the officer of such a high rank was required to decide about the approval even for the recording of FIR in relation to any offence under the MCOC Act. There is clearly merit in the said submissions made by the Ld. Counsel for the accused persons and a perusal of Section 23 MCOC Act shows that it not only begins with a non-obstante clause but is also clothed in negative words. The significance of Section 23 of MCOC Act was also highlighted by the Hon'ble Supreme Court in Jamiruddin Ansari v. Central Bureau of Investigation and Anr. SLP (Crl.) No.5677 of 2007 dated 06.05.2009 wherein, though in the context of a private complaint, it was held that "the provisions of Section 23 are the safeguards provided against the invocation of the provisions of the Act which are extremely stringent and far removed from the provisions of the general criminal law."

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292. The Ld. Counsel for the accused persons had, in this regard placed reliance on the judgment in Ashraf Khan v. State of Gujarat (supra) wherein it was observed as under:

"37. The plea of the State is that the Commissioner of Police having granted the sanction under Section 20-A(2) of TADA, the conviction of the accused cannot be held to be bad only on the ground of absence of approval under Section 20-A(1) by the Deputy Commissioner. As observed earlier, the provisions of TADA are stringent and consequences are serious and in order to prevent persecution, the legislature in its wisdom had given various safeguards at different stages. It has mandated that no information about the commission of an offence under TADA shall be recorded by the police without the prior approval of the District Superintendent of Police. Not only this, further safeguard has been provided and restriction has been put on the court not to take cognizance of any offence without the previous sanction of the Inspector-General of Police or as the case may be, the Commissioner of Police. Both operate in different and distinct stages and, therefore, for successful prosecution both the requirements have to be complied with. We have not come across any principle nor we are inclined to lay down that in a case in which different safeguards have been provided at different stages, the adherence to the last safeguard would only be relevant and breach of other safeguards shall have no bearing on the trial. Therefore, we reject the contention of the State that the accused cannot assail their conviction on the ground of absence of approval under Section 20-A(1) of TADA by the Deputy Commissioner, when the Commissioner of Police had granted sanction under Section 20-A(2) of TADA."

Thus, the provisions of Section 23 of MCOC Act have to be construed as mandatory in nature and all the requirements laid down by the said section have to be fulfilled. Reliance was also placed on the judgment in Ismail Sheikh v. State of Maharashtra (supra) wherein it was observed as under:

State Vs. Pankaj Sehrawat and Ors. Page No.321 of 385 "24. The Section 23 of the MCOC Act which opens with non-obstante clause and further clothed with negative words clearly discloses the mandate of the legislature that the cognizance of the offences under the MCOC Act should not be in routine course, but only upon the facts disclosing the applicability thereof and satisfaction of the officer of the high rank, the minimum being of the rank of Deputy Inspector General of Police in that regard. In fact, the officer of such high rank is required to decide about the approval even for recording of FIR in relation to any offence under the MCOC Act. This obviously discloses that the approving authority has to apply its mind about the applicability of the provisions of the MCOC Act to the facts disclosed in a matter before allowing the recording of FIR and for that purpose, he must be, prima facie, satisfied about the commission of offence of organized crime under the MCOC Act by the person or persons against whom the FIR is to be recorded. Obviously, for prima facie satisfaction regarding the commission of the offence of organized crime or of participation therein in whatever manner, the approving authority must have some materials before it disclosing the activities of the person or the persons to be of the nature of offence under the MCOC Act and having committed such activities on or after 24th February, 1999. In other words, the activities of a person to be termed as the offence under the MCOC Act, the same should inevitably disclose to have been committed on or after 24 th February, 1999. If the activity of the person is relating to the period prior to 24 th February, 1999, obviously, it cannot be said to be an offence under MCOC Act, even though the activity may be an offence under THE provisions of some other statute in force at the relevant time. For the same reason, when the approval is granted for recording of FIR and the FIR is recorded, then such FIR should apparently disclose the activities constituting offence under the MCOC Act having been committed on or after 24th February, 1999. When the FIR does not disclose on the face of it that the offence was committed on or after 24th February, 1999, obviously, the concerned authority must be able to establish the said fact, at least, by referring to the records which were available and placed before the concerned authority before granting approval and before recording FIR. It should not be State Vs. Pankaj Sehrawat and Ors. Page No.322 of 385 understood that the power vested in the authority under Section 23(1) of the MCOC Act can be exercised either as automaton or as autocrat. The power should be exercised on application of mind to the facts of the case and with necessary prudence and circumspection."

Thus, it was laid down that the power to grant approval for recording FIR should be exercised on application of mind to the facts of the case and with necessary prudence and circumspection.

293. In the instant case, PW73 had given both the approval and sanction (while PW67 had also given sanction in respect of the accused Rambeer Shokeen) and deposed that during his posting as Special Commissioner Special Cell in Delhi Police, on 16.02.2015, he received a proposal from Shri Manishi Chandra, the then ACP, Special Cell, for approval under Section 23 (1) of MCOC Act, to register a case under Sections of MCOC Act against Neeraj Bawania and the seven other criminal syndicate members namely Naveen, Rahul, Pankaj, Amit Malik, Sunil Rathi, Naveen Bhanja and

Rambeer Shokeen. On 20.02.2015, he accorded approval for registration and investigation of case under Sections 3 and 4 of MCOC Act against seven accused persons vide Ex.PW73/A. On 29.08.2015, he received a request of the IO, Additional DCP Manishi Chandra, to grant sanction under Section 23 (2) of MCOC Act against 10 accused persons namely Neeraj Sehrawat, Naveen Dabas, Rahul Dabas, Pankaj, Amit Malik, Sunil Rathi, Naveen Hooda, Gurpreet Singh, Deepak Dabas and Rambeer Shokeen for offences under Sections 3 and 4 of MCOC Act. After satisfying himself, he accorded sanction State Vs. Pankaj Sehrawat and Ors. Page No.323 of 385 against the said 10 accused persons for offences punishable under Section 3 (4) of MCOC Act vide sanction order dated 09.09.2015 Ex.PW73/B. PW74 had also deposed that he had prepared a proposal for registration of the case under MCOC Act which was forwarded through proper channel for seeking approval of the competent authority as defined under Section 23 (1) (a) of the Act which is Ex.PW74/A and the competent authority i.e. the then Special Commissioner of Police, Special Cell had granted approval for the registration of the FIR Ex.PW73/A and consequent to this, the present FIR was registered at PS Special Cell on the basis of his complaint dated 23.02.2015 which is Ex.PW20/2. He had also stated that after receipt of the sanction the main police report under Section 173 Cr.P.C. and two subsequent supplementary police reports under Section 173 (8) Cr.P.C. were submitted by him. In the instant case, there is no dispute as to the rank of the officer who granted approval and sanction and conducted investigation, rather it is the case that the approval and sanction were granted without application of mind and on behalf of the accused Rambeer Shokeen, it is the further argument that his name did not figure in the approval or even the FIR.

294. As regards the contention that the name of the accused Rambeer Shokeen did not figure in the approval or even the FIR, PW73 was cross-examined at length by the Ld. Counsel for the accused Rambeer Shokeen and he stated that he did not have copy of approval dated 20.02.2015. He admitted that no approval vide the approval dated 20.02.2015 was accorded in respect of State Vs. Pankaj Sehrawat and Ors. Page No.324 of 385 the accused Rambeer Shokeen and volunteered the name of Rambeer Shokeen was there in the proposal which was put up before him; after going through the material, he found that there was insufficient material evidence against Rambeer Shokeen and he directed registration of case with further direction that during the investigation of the case if material evidence was found against him, sanction under Section 23 (2) of MCOC Act may be sought before filing the charge sheet. He admitted that no such direction was contained in the approval dated 20.02.2015 or any other document on the case file and volunteered the said direction was recorded in the note-sheet of the file through which approval was sought. Thus, PW73 had stated that he found that there was insufficient material evidence against the accused Rambeer Shokeen and he did not grant specific approval qua him. PW73 had volunteered that he had directed registration of the case with further direction that during the investigation of the case if material evidence was found against him, sanction under Section 23 (2) of MCOC Act may be sought before filing the charge sheet but admittedly no such direction was contained in the approval dated 20.02.2015 or any other document on the case file and the note-sheet of the file through which approval was sought was not produced though it is on record that sanction was sought separately as well qua the accused Rambeer Shokeen before filing the charge sheet.

295. PW73 had stated that there was no separate approval for registration accorded with respect to Rambeer Shokeen prior to sanction dated 09.09.2015 and volunteered after investigation of State

Vs. Pankaj Sehrawat and Ors. Page No.325 of 385 the case and on the request of the IO, sanction was accorded in respect of few more accused. During cross-examination PW74 also admitted that there was not even a whisper of the name of Rambeer Shokeen in the present FIR. He admitted that there was no approval under Section 23 of MCOC Act against the accused Rambeer Shokeen and volunteered when the FIR was registered. Even PW73 had stated about not granting approval qua the accused Rambeer Shokeen. Further, PW74 stated that he could say only after checking the record if there was any FIR in which Rambeer Shokeen was a co-accused with accused Neeraj Sehrawat, Pankaj Sehrawat, Rahul Dabas, Naveen Dabas till the registration of the present FIR. After going through the record, he stated that there was no previous common criminal involvement of accused Rambeer Shokeen with the other named accused persons prior to registration of the present FIR. He denied the suggestion that till the registration of the present FIR there was no evidence against the accused Rambeer Shokeen to connect him to the offence under MCOC Act. He admitted that there was no document on record to show or connect the accused Rambeer Shokeen with the offences under MCOC Act till the registration of the present FIR. He denied the suggestion that the accused Rambeer Shokeen was falsely implicated in FIR No.35/2015 and FIR No.65/2016 both registered at PS Special Cell and FIR No.1072/2014 PS Baghpat by the concerned police officials only to improve the present case and to tarnish the political image and hamper the political career of accused Rambeer Shokeen.

296. PW74 did not recall the exact date when he had got to State Vs. Pankaj Sehrawat and Ors. Page No.326 of 385 know about FIR No.1072/2014 of PS Baghpat. He stated that the accused Rambeer Shokeen was not named as an accused in FIR No.1072/2014 of PS Baghpat when it was registered. He stated that he came to know regarding involvement of accused Rambeer Shokeen in the Baghpat case when accused Neeraj Sehrawat was initially arrested in case FIR No.30/2015 PS Special Cell since he was the supervisory officer of the IO who had arrested accused Neeraj Sehrawat in that particular case. He denied the suggestion that the accused Rambeer Shokeen was falsely implicated in FIR No.1072/14 PS Baghpat to connect him to the present case at his behest. He stated that he was aware of the role of accused Rambeer Shokeen in the episode involving escape of Amit @ Bhura from the custody of Baghpat police which was the subject matter of the FIR at Baghpat. He stated that the accused Rambeer Shokeen was the facilitator of the crime and had also facilitated the disposal of the police weapons looted during the escape. He denied the suggestion that neither Rambeer Shokeen was the facilitator in the alleged offence at Baghpat nor he was involved in the disposal of any police weapon. He could not admit or deny the suggestion that this was not even the case of the prosecution in the FIR at Baghpat. He was not aware whether the accused Rambeer Shokeen had already been acquitted in the FIR at Baghpat vide judgment dated 13.09.2022. He denied the suggestion that the proceedings qua FIR No.1072/14 PS Baghpat did not have any bearing in the present case since the provisions of MCOC Act are not applicable to the State of Uttar Pradesh and the same could not have been considered in the present case.

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297. PW77 was also cross-examined by the Ld. Counsel for accused Rambeer Shokeen in this regard and he stated that he did not remember if during the course of investigation he found any evidence which connected the accused Rambeer Shokeen with the other accused persons. He did not

remember the exact date on which the role of the accused Rambeer Shokeen in FIR No.1072/2014 of PS Bagpat was revealed. He collected the documents of FIR No.1072/2014 as when he perused the case file, it revealed the role of accused Rambeer Shokeen and other gang members in the present case. He did not remember exactly which documents revealed the role of the accused Rambeer Shokeen. He denied the suggestion that the accused Rambeer Shokeen was falsely implicated in the present case at the behest of the senior police officials to tarnish the political image of the accused Rambeer and hamper his political career. He denied the suggestion that the proceedings with respect to FIR No.1072/2014 PS Baghpat had no bearing with respect to the present case since the provisions of MCOC Act are not applicable to the State of Uttar Pradesh and the same could not have been considered to implicate the accused Rambeer Shokeen in the present case. The Ld. Counsel for the accused Rambeer Shokeen had submitted that besides the fact that no notice was received by the accused Rambeer Shokeen in the FIR at Baghpat till the registration of the present case and that his name came up in the said case only when the charge sheet was filed in the said case after the registration of the present FIR, the said FIR could not be considered in the present case being of a State to which MCOC Act did not extend as per the settled law. However, the State Vs. Pankaj Sehrawat and Ors. Page No.328 of 385 Hon'ble Supreme Court in State (NCT of Delhi) v. Brijesh Singh @ Arun Kumar and Anr. Criminal Appeal No.1750 of 2017 decided on 09.10.2017 negated the contention raised therein that the charge sheets filed in the State of Uttar Pradesh could not be taken into account by the Special Court in Delhi observing as under:

"24. In the present case, it is sufficient to examine whether there is a territorial nexus between the charge sheets filed in competent Courts within the State of Uttar Pradesh and the State of NCT of Delhi where the Respondents are being prosecuted. The prosecution of the Respondents under MCOCA cannot be said to be invalid on the ground of extra territoriality in case the nexus is sufficiently established.

25. Organized crime which is an offence punishable under Section 3 of MCOCA means a continuing unlawful activity committed by the use of force or violence for economic gain. One relevant pre- condition which has to be satisfied before any activity can be considered as a continuing unlawful activity is that there should be at least two charge sheets filed against the members of an organized crime syndicate within the previous 10 years and a 'competent Court' has taken cognizance of such charge sheets. In the instant case, there are eight charge sheets filed against the Respondents, six out of which are in the State of Uttar Pradesh. The submission of the Respondents, which was accepted by the Courts below, is that such charge sheets which are filed in the State of Uttar Pradesh are not relevant for the purpose of determining whether the Respondents have indulged in a continuing unlawful activity. The Courts below held that only charge sheets filed in competent Courts within Delhi have to be taken into account. We are not in agreement with the Courts below.

26. Organized crime is not an activity restricted to a particular State which is apparent from a perusal of the Statement of Objects and Reasons. A restrictive reading of the words "competent Court" appearing State Vs. Pankaj Sehrawat and

Ors. Page No.329 of 385 in Section 2(1)(d) of MCOCA will stultify the object of the Act. We disagree with the learned senior counsel for the Respondents that it is impermissible for the Special Courts to take into account charge sheets filed outside the National Capital Territory of Delhi as that would result in giving extra territorial operation to MCOCA. A perusal of the charge sheets filed against the Respondents in the State of Uttar Pradesh which are relied upon by the prosecution to prove that organized crime was being committed by them shows clear nexus between those charge sheets and the National Capital Territory of Delhi where prosecution was launched under MCOCA. The twin conditions to establish territorial nexus in RMD Chamarbaugwala's case (supra) are fulfilled. If members of an organized crime syndicate indulge in continuing unlawful activity across the country, it cannot by any stretch of imagination said, that there is no nexus between the charge sheets filed in Courts in States other than Delhi and the offence under MCOCA registered in Delhi. In such view, we are unable to accept the submission of the Respondents that charge sheets filed in competent Courts in the State of Uttar Pradesh should be excluded from consideration. We hold that 'competent Courts' in the definition of 'continuing unlawful activity' is not restricted to Courts in Delhi alone. CRIME IS LOCAL

27. The learned senior counsel for the Respondents relied upon the judgment of a full Bench of the High Court of Bombay in Narayandas Mangilal Dayame case (supra) wherein the constitutional validity of Section 4 of Bombay Prevention of Hindu Bigamous Marriage Act was considered. A second marriage contracted outside the State was a bigamous marriage and void as per Section 4 of the said Act and was also made punishable under Section 5 with an imprisonment which may extend to seven years. The Petitioner was tried for contracting a second marriage at Bikaner and was found guilty for committing an offence of bigamy. Chief Justice Chagla following Macleod's case (supra) held that crime is local and that Section 4 was ultra vires the Bombay legislature as it suffered from the vice of extraterritoriality. It was further held that the principle of territorial nexus is not applicable to cases of marriage or crime.

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32. However, we are in agreement with the submission of the learned Senior Counsel for the Respondents that an activity of organized crime in Delhi is a sine qua non for registration of a crime under MCOCA. In the absence of an organized crime being committed in Delhi, the accused cannot be prosecuted on the basis of charge sheets filed outside Delhi."

Thus, it stands settled that even the charge sheets filed outside the territories to which MCOC Act extends can be taken into consideration for the purpose of applicability of MCOC Act, though an activity of organized crime in Delhi is a sine qua non for registration of a crime under MCOC Act and merely on the basis of charge sheets filed outside Delhi, an accused cannot be be prosecuted in Delhi in the absence of an organized crime being committed in Delhi.

298. During further cross-examination PW74 stated that when the proposal seeking approval under Section 23 of MCOC Act was prepared by him, he was working as ACP, Special Cell and as such he had supervised several cases and operations during the course of which he had learnt about the involvement of accused Rambeer Shokeen with the criminal syndicate of accused Neeraj Sehrawat. However, there was no primary evidence available at that point of time with him which could be reduced or reproduced in the proposal seeking approval as mentioned. He denied the suggestion that no such operations were carried out by him which surfaced the involvement of accused Rambeer Shokeen with the alleged criminal syndicate or that accused Rambeer Shokeen was falsely implicated by him being the Supervisor of Special Cell at the behest of his political masters.

State Vs. Pankaj Sehrawat and Ors. Page No.331 of 385 He admitted that in the proposal dated 14.02.2015 there was no mention of any FIR then existing against accused Rambeer Shokeen and that in all the 14 FIRs referred to in the proposal, accused Rambeer Shokeen was not mentioned as an accused or as an associate of the other accused persons. As such, even PW74 had stated that there was no primary evidence with him qua the accused Rambeer Shokeen at the time the proposal for approval was put up and the accused Rambeer Shokeen was not mentioned as an accused or as an associate of the other accused persons in the 14 FIRs referred to in the proposal.

299. During further cross-examination PW73 admitted that in the approval order dated 20.02.2015 there was no mention of Proprietors of Nursing home, shops, small scale industries, property dealers and the other business men spread over Delhi who were threatened by Neeraj Bawana or his associates or the details of accumulated huge amount of money by extorting people by use of violence or threat or intimidation and volunteered the proposal contained the list of involvement of the accused persons which contained the said information which he did not recall due to passage of time, the said information was contained in the case file of the case. This is also as per the record and it cannot be gainsaid that every small particular should have been mentioned in the approval which was granted. A question was put to PW73 that he had no knowledge of the exact role of the accused persons at the time of approval and as such the same did not find mention in the approval dated 20.02.2015 to which he responded that he had the proposal for State Vs. Pankaj Sehrawat and Ors. Page No.332 of 385 seeking approval which listed out the accused persons who singly and jointly carried out continued unlawful activity in a general sense which was required to be investigated after the registration of the case. At that point of time, he did not recall the roles of each accused person due to lapse of time. He admitted that no specific role of the accused persons was mentioned in the approval order dated 20.02.2015. It is pertinent that even from the language of Section 23(1) of MCOC Act, the approval is needed for recording information about the commission of an offence of organized crime and there is no requirement that the role of each accused person has to be specifically spelt out therein. Further, there is legally no bar for proceeding against a person if evidence is found against the person whose name was not there in the approval and thereafter sanction can be obtained qua the said person. It has been held in *Pradip Madgaonkar @ Bandyama v. State of Maharashtra* 2006 All MR (Cri) 3496 that approval under Section 23(1) of the MCOC Act is not a pre-condition for grant of sanction under Section 23(2) of the Act to prosecute a newly added accused. It is the settled law that approval for recording information under Section 23 MCOC Act would not restrict the scope of investigation and would not exclude filing of charge sheet in respect of incidents or involvement of persons disclosed during the course of

investigation.

300. The issue also came up before the Hon'ble Supreme Court in Vinod G. Asrani v. State of Maharashtra (2007) 3 SCC 633 wherein the Hon'ble Supreme Court observed as under:

State Vs. Pankaj Sehrawat and Ors. Page No.333 of 385 "9.... The scheme of the Code of Criminal Procedure makes it clear that once the information of the commission of an offence is received under Section 154 of the Code of Criminal Procedure, the investigating authorities take up the investigation and file charge-sheet against whoever is found during the investigation to have been involved in the commission of such offence. There is no hard-and-

fast rule that the first information report must always contain the names of all persons who were involved in the commission of an offence. Very often the names of the culprits are not even mentioned in the FIR and they surface only at the stage of the investigation. The scheme under Section 23 of MCOCA is similar and Section 23(1)(a) provides a safeguard that no investigation into an offence under MCOCA should be commenced without the approval of the authorities concerned. Once such approval is obtained, an investigation is commenced. Those who are subsequently found to be involved in the commission of the organized crime can very well be proceeded against once sanction is obtained against them under Section 23(2) of MCOCA.

10. As to whether any offence has at all been made out against the petitioner for prosecution under MCOCA, the High Court has rightly pointed out that the accused will have sufficient opportunity to contest the same before the Special Court."

Further, in Kavita Lankesh v. State of Karnataka & Ors. (2021) SCC OnLine 956, the Hon'ble Supreme Court, in context of similar provisions of Karnataka Control of Organized Crime Act, 2000 observed as under:

"21. What is crucial in this provision is the factum of recording of offence of organized crime and not of recording of a crime against an offender as such. Further, the right question to be posed at this stage is : whether prior approval accorded by the competent authority under Section 24(1)(a) is valid? In that, whether there was discernible information about commission of an offence of organized crime by known and unknown persons as being members of the organized crime syndicate? Resultantly, what State Vs. Pankaj Sehrawat and Ors. Page No.334 of 385 needed to be enquired into by the appropriate authority (in the present case, Commissioner of Police) is : whether the factum of commission of offence of organized crime by an organized crime syndicate can be culled out from the material placed before him for grant of prior approval? That alone is the question to be enquired into even by the Court at this stage. It is cardinal to observe that only after registration of FIR, investigation for the concerned offence would proceed -- in which the details about the specific role and the identity of the persons involved in such offence can be unravelled and referred to in the charge-sheet to be filed before the competent Court.

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27. At the stage of granting prior approval under Section 24(1)(a) of the 2000 Act, therefore, the competent authority is not required to wade through the material placed by the Investigating Agency before him along with the proposal for grant of prior approval to ascertain the specific role of each accused. The competent authority has to focus essentially on the factum whether the information/material reveals the commission of a crime which is an organized crime committed by the organized crime syndicate. In that, the prior approval is qua offence and not the offender as such. As long as the incidents referred to in earlier crimes are committed by a group of persons and one common individual was involved in all the incidents, the offence under the 2000 Act can be invoked..."

Thus, it was held by the Hon'ble Supreme Court that at the stage of granting approval, the competent authority has to focus essentially on the factum whether the information/ material reveals the commission of a crime which is an organized crime committed by the organized crime syndicate and that prior approval is qua the offence and not the offender. The same view was endorsed by the Hon'ble Supreme Court in a recent decision in *Abhishek v. State of Maharashtra & Ors.* Criminal Appeal No.869 of 2022 decided on 20.05.2022. Further in *Zakir Abdul State Vs. Pankaj Sehrawat and Ors.* Page No.335 of 385 *Mirajkar v. The State of Maharashtra and Ors.* (supra), the Hon'ble Supreme Court observed as under:

"72. The order of approval under Section 23(1)(a) MCOCA need not name every accused person at the outset. Often, limited information is available to the investigating authorities at the time of recording information about the commission of an offence. The involvement of persons other than those named initially may come to light during the course of investigation by the police. In fact, the very purpose of an investigation is to determine whether a crime has been committed and if so, to shed light on the details of the crime including the identity of the perpetrators. This is true of every crime but especially true in the case of organized crime, where an organized crime syndicate may consist of scores of persons involved in unlawful activities in different capacities. Section 23(1)(a) MCOCA speaks of recording information about the commission of an offence of organized crime, and not of recording information about the offender. The competent authority may record information under Section 23(1)(a) once it is satisfied that an organized crime has been committed by an organized crime syndicate."

The Ld. Counsel for the accused persons had relied on the judgment in *John D'Souza v. Assistant Commissioner of Police, B-1/Special, DCB, CID and Ors.* (supra) to contend that if there is no valid sanction, the Special Court gets no jurisdiction to try a case against any person mentioned in the report as the Court is forbidden from taking cognizance of the offence without such sanction. While the said proposition of law is well-established, the observations of the Hon'ble High Court of Bombay in this case regarding 'approval' are also pertinent and it was observed as under:

"9. It is clear that granting "prior approval" is an act which the officer competent under Section 23(1)

(a) has to perform whereas carrying out an State Vs. Pankaj Sehrawat and Ors. Page No.336 of 385 investigation is an act which the competent officer under Section 23(1)(b) has to perform. Without prior approval further acts contemplated under Section 23(2) cannot be performed. Similarly, sanction contemplated in Sub-section(2) of Section 23 is a condition precedent for prosecuting a particular person for the offence under MCOCA.

The sanction is not granted to the Special Court to take cognizance of the offence, but it is granted to the prosecuting agency to approach the court concerned for enabling it to take cognizance of the offence and to proceed to trial. Thus a valid sanction is sine-qua-non for enabling the prosecuting agency to approach the Court in order to enable the court to take cognizance of the offence under MCOCA as disclosed in the report. The corollary is that, if there is no valid sanction the Special Court gets no jurisdiction to try a case against any person mentioned in the report as the Court is forbidden from taking cognizance of the offence without such sanction. It is thus clear that every act in this section depends upon the other and even if one act is not performed, as provided for in this section, the court would not have jurisdiction to take cognizance, and any proceeding adopted thereunder would also be without jurisdiction and would vitiate the trial. We have to, therefore, see in the present case, whether all the three acts have been performed in the manner aforestated and the sanction is valid or not.

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13. ... In other words, the non obstante clause in Section 23, in our opinion, does not put any impediment in assigning the meaning to the words and expressions in Section 23 and which have not been defined in MCOCA, as assigned in the Code. The non-obstante clause, as observed by the Division Bench in Altaf Ismail Shaik v. State of Maharashtra in MANU/MH/0173/2005 clearly discloses the mandate of the legislature that the cognizance of the offences under the MCOCA should not be in routine course, but only upon the facts disclosing the applicability thereof and satisfaction of the officer of the high rank. In short, the non-obstante clause employed in Section 23 of MCOCA overrides the procedure contemplated under the provisions of the Code in respect of State Vs. Pankaj Sehrawat and Ors. Page No.337 of 385 recording of FIR, investigation, submitting a report under Section 173 etc, however, it does not put any impediment in assigning the meaning to the word "information" as assigned under Section 154 of the Code.

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24. A conjoint reading of all the three definitions clearly demonstrate that seeking prior approval of the competent police officer for recording information about the commission of an offence of "organized crime" under MCOCA is a condition precedent and it is mandatory in nature. It does not provide for the prior approval in relation to any single act of crime constituting an offence but the approval is in relation to "organized crime and continuing unlawful activity of organized crime

syndicate". Merely because a police officer approaching the competent police officer seeking prior approval under Section 23(1)(a) making reference to a particular crime does not mean that the prior approval pertains to only that crime. In our opinion, an act of making reference to only one crime is with a view to seek the approval for registering the commission of an offence of "organized crime" by a particular organized crime syndicate and in respect of continuing unlawful activity under MCOCA and to set the criminal law in motion and marks the commencement of investigation. In the course of investigation if the investigating officer comes across any other offence of similar nature or which, in the opinion of the investigating officer, also constitutes an offence of "organized crime" under MCOCA and if it is committed by the very same organized crime syndicate, we find no reason as to why he cannot make it a part of the same offence of "organized crime" to which the prior approval has been granted. We do not find any provision in MCOCA which prohibits or put any fetter on the powers of the investigating officer from doing so. No separate approval under Section 23(1)(a) to every such offence is necessary. The investigating officer under Section 23(1)(a), in our opinion, has every right to investigate an offence of organized crime of the organized crime syndicate and not only an offence in relation to which the prior approval has been granted.

State Vs. Pankaj Sehrawat and Ors. Page No.338 of 385 In other words, once having granted the approval the investigating officer after recording/registering an offence under MCOCA has every right, in the course of investigation, to club any other offence committed by the same organized crime syndicate disclosing the offence of organized crime under MCOCA. With every new offence of organized crime, being disclosed after the approval is accorded in connection with a particular crime, there need not be a fresh procedure for a police officer to follow starting with fresh approval in relation thereof. In our opinion, once the approval is granted, until the stage of seeking sanction reaches, there is no prohibition or fetter on the powers of such investigating officer to club other offence/s committed by the very same organized crime syndicate and which, in the opinion of the investigating agency, is a part of organized crime, namely, continuing unlawful activity of the very same organized crime syndicate.

25. In short, on receipt of an "information" about the commission of an offence of organized crime under MCOCA or having realised in the course of investigation of the offence registered under ordinary law, that the provisions of MCOCA are attracted a police officer can seek approval under Section 23(1)(a) of the police officer not below the rank of the Deputy Inspector General of Police. Then the competent police officer under Section 23(1)(b) has to investigate not merely the offence/crime registered for which the approval has been sought but also other offences/crimes found to have been committed in the course of investigation by the same "organized crime syndicate" as a part of their "continuing unlawful activity". Such offence/s could be clubbed and treated as one single offence of "organized crime" under MCOCA. No separate approval under Section 23(1)(a) is necessary in such a situation to either club or investigate such offences and try them as one single offence under MCOCA after seeking sanction under Section 23(2). The last filter, that is, according a sanction under Section 23(2) is sufficient enough to take care of any wrong or illegality committed by the investigating officer in the course of investigation."

The law is thus well settled that the approval under Section 23(1) State Vs. Pankaj Sehrawat and Ors. Page No.339 of 385

(a) MCOC Act need not name every accused person at the outset and the approval is with respect to the offence and not with respect to the offender. In fact, it has been held that even the offences/ crimes found to have been committed in the course of investigation by the same "organized crime syndicate" as a part of their continuing unlawful activity are to be investigated by the competent police officer and not just the offence committed prior to grant of approval. As such, this contention of the Ld. Counsel for the accused Rambeer Shokeen does not hold any water and the investigating agency was within its rights to have proceeded against the accused Rambeer Shokeen even if no approval was there in his respect or his name was not there in the FIR, if any material attracting the provisions of MCOC Act was found against him.

301. PW73 was then cross-examined regarding sanction in respect of the accused Rambeer Shokeen and he did not recall the evidences due to lapse of time, which were put up before him after 20.02.2015 and prior to 09.09.2015 which prompted him to grant sanction against Rambeer Shokeen and volunteered the IO would be in the best position to answer the question. He denied the suggestion that no new evidences were put up before him after 20.02.2015 and before 09.09.2015 or that the sanction order accorded by him was without due application of mind and merely at the oral request of the IO and at the behest of the other police officials in order to falsely implicate the accused Rambeer Shokeen in the present case. PW73 stated that as far as he recalled accused Rambeer Shokeen was not in custody on the State Vs. Pankaj Sehrawat and Ors. Page No.340 of 385 date sanction was accorded i.e. 09.09.2015. He denied the suggestion that he did not have the power to accord sanction against Rambeer Shokeen since he was not even arrested in the present case till 09.09.2015 or that the sanction accorded by him was not as per law and volunteered it was a question of law. It may be mentioned that Section 23(2) MCOC Act speaks of there being previous sanction for taking cognizance of an offence and not of the offender. Further, it is there on record that a separate sanction was also obtained qua the accused Rambeer Shokeen about which PW67 had deposed.

302. PW73 further stated that in the proposal which was made seeking approval for registration of the case there was no criminal case mentioned against Rambeer Shokeen. However, at the time of sanction, other material evidence was brought on record on the basis of which sanction was accorded. He did not recall the material evidence at this point due to passage of time. He did not recall if there was any FIR at the time of grant of sanction in which the accused Rambeer Shokeen was an accused along with Neeraj Sehrawat, Pankaj Sehrawat, Naveen and Rahul and volunteered it was not necessary. He denied the suggestion that the accused Rambeer Shokeen was falsely implicated in fresh FIRs after 20.02.2015 with the other co-accused persons to falsely implicate the accused Rambeer Shokeen in the present case.

303. PW67 had deposed that on 19.01.2017 he received a case file for prosecution sanction under Section 23 (2) MCOC Act, along with the request of DCP Special Cell and after satisfying State Vs. Pankaj Sehrawat and Ors. Page No.341 of 385 himself, he accorded sanction on 10.02.2017 against the accused Rambeer Shokeen for offence under Section 3(4) of MCOC Act 1999 vide sanction order Ex.PW67/A. During cross-examination by the Ld. Counsel for accused Rambeer Shokeen PW67 stated that the words 'sufficient evidence' mentioned in para 3 of the sanction order Ex.PW67/A which justified the application of Section 3(4) of MCOC Act included the statements of witnesses

and documents placed on the file. He had gone through the request for sanction moved by the IO through DCP, Special Cell before granting sanction. The request letter was not part of the record and volunteered it was not required and was part of Staff Officer Branch of the Office of Joint CP, Special Cell. Thus, PW67 had stated about going through the statements of witnesses and also the documents before granting the sanction. He was shown the proposal for approval under Section 23 (1) (a) of the MCOC Act dated 14.02.2015 and he stated that the same was not before him and volunteered that the same pertained to other accused persons and was not against Rambeer Shokeen. He was shown approval under Section 23 (1) (a) of the MCOC Act dated 20.02.2015 and he stated that the same was not before him and volunteered the same pertained to other accused persons and was not against Rambeer Shokeen. Thus, the proposal for approval and approval dated 20.02.2015 were not put up before PW67 but nothing much turns on the same in light of the settled position that the matter can be proceeded against those accused whose name is not there in the approval or even in the FIR.

304. PW67 further stated that no proposal for approval under State Vs. Pankaj Sehrawat and Ors. Page No.342 of 385 Section 23 (1) (a) of the MCOC Act qua Rambeer Shokeen was put up before him but again nothing much turns on the same as the FIR was already registered and approval is needed only for recording of information about the commission of an offence and it is not the case that any fresh FIR under MCOC Act was registered against the accused Rambeer Shokeen. PW67 stated that he did not personally verify the veracity of the statements and accusations against accused Rambeer Shokeen but there is no requirement for the same. He admitted that the sanction was accorded by him after duly going through the case file and records and after applying his mind and after being fully satisfied and convinced only under Section 3 (4) of the MCOC Act and not under any other provision of the MCOC Act. He admitted that there was no mention of Rambeer Shokeen in para 1 of the sanction Ex.PW67/A. Thus, PW67 stated that the sanction was accorded only under Section 3(4) of the MCOC Act against the accused Rambeer Shokeen and even PW73 had stated about sanction being accorded only under Section 3(4) of MCOC Act. During cross-examination PW74 denied the suggestion that false statements were recorded by him and at his behest by the officials of PS Special Cell of witnesses to falsely implicate the accused Rambeer Shokeen after registration of the present FIR in order to create false evidence. He denied the suggestion that FIR No.35/15 was registered at PS Special Cell against accused Rambeer Shokeen and Neeraj Sehrawat to fulfill the ingredients of MCOC Act by falsely implicating the accused Rambeer Shokeen after registration of the present FIR. He admitted that FIR No.35/15 and FIR No.65/2016 PS Special Cell were State Vs. Pankaj Sehrawat and Ors. Page No.343 of 385 registered after the registration of the present FIR. Even during cross-examination on behalf of the accused persons except the accused Rambeer Shokeen, PW74 admitted that FIR No.35/2015, FIR No.42/2015 PS Special Cell and FIR No.1683/2015 PS Mangolpuri and FIR No.246/2015 PS Samaypur Badli were registered after registration of the present FIR.

305. During cross-examination PW77 did not remember exactly if prior to obtaining sanction, he came across any FIR in which the accused Rambeer Shokeen was co-accused with the other accused of the present case. He denied the suggestion that the accused Rambeer Shokeen was falsely implicated by him and other police officials after registration of the FIR in question i.e. FIR No.10/2015 PS Special Cell in FIR No.35/2015 and 65/2016 both registered at PS Special Cell to

create false evidence and to falsely implicate the accused Rambeer in the present case by planting arms upon the accused Rambeer Shokeen at the behest of senior police officials. As such, it is seen that several FIRs were registered against the accused persons even after the registration of the present FIR though nothing much turns on the same in view of the settled position of law. It is thus seen that the name of the accused Rambeer Shokeen was not there in the approval which was granted for registration of FIR and it has come on record through the testimony of witnesses that at that point there was no FIR in which the accused Rambeer Shokeen was co-accused with the other accused of the present case (though FIR No.575/2014 PS Baghpat was there, the name of the accused Rambeer Shokeen had cropped up in the same only State Vs. Pankaj Sehrawat and Ors. Page No.344 of 385 later). Subsequently, the name of the accused Rambeer Shokeen came up in FIR No.575/2014 PS Baghpat and other FIRs were also registered against him and eventually sanction was granted qua the accused Rambeer Shokeen both by PW73 and by PW67. As regards the other accused persons facing trial in the present case, their names were there in the approval accorded for registration of FIR, the FIR and also sanction was granted qua them.

306. The main contention of the Ld. Counsels for the accused persons is that besides the past charge sheets, there has to be an activity which indicates continuity of offence or in other words organized crime has to be continuing unlawful activity and therefore, unless there is an act or omission indicating continuation of unlawful activity there would be no question of commission of organized crime and as such, in the present case, there was nothing to show any continuing unlawful activity and thereby organized crime and organized crime syndicate and thus, the approval and sanction that were granted were bad in law as no offence under MCOC Act could be said to have been made out. It was contended that mere proof of filing a charge sheet was not enough and it was only one of its requisites for constituting the offence of organized crime. If proof of filing two charge sheets was enough to establish an offence of organized crime, there may be no occasion to carry out any investigation, other than collecting copies of charge sheets. It was contended that reference to "such offence" in Section 3 (1) implied a specific act or omission. In the present case, it was argued that as conceded State Vs. Pankaj Sehrawat and Ors. Page No.345 of 385 by the Investigating Officer PW74, the FIR did not disclose the commission of a fresh act/ offence by the accused persons, rather the IO in his discretion had got the present case registered and the accused had been charge sheeted and prosecuted only on the basis of previous charge sheets.

307. The Ld. Counsel had relied on the judgment of the Hon'ble High Court of Bombay in Prafulla & Ors. v. State of Maharashtra (supra) to argue that mere proof of filing charge sheets in the past was not enough and there had to be indulgence in any crime which could be said to be a continuation of past criminal activity, in other words, there had to be a fresh act/ omission. In fact even in the judgment in John D'Souza v. Assistant Commissioner of Police, B-1/Special, DCB, CID and Ors. (supra) which was relied upon by the Ld. Counsel for the accused persons, it was observed "In short, on receipt of an "information" about the commission of an offence of organized crime under MCOCA or having realised in the course of investigation of the offence registered under ordinary law, that the provisions of MCOCA are attracted a police officer can seek approval under Section 23(1)(a) of the police officer not below the rank of the Deputy Inspector General of Police". In the judgment in Prafulla & Ors. v. State of Maharashtra (supra), it was laid down as to what was needed to be proved for charging a person of committing an organized crime or being a member of an

organized crime syndicate and it was observed as under:

"29. Since the definitions, though intertwined in a cyclic order, are clear and unambiguous, it would follow that each ingredient in the definitions, or the State Vs. Pankaj Sehrawat and Ors. Page No.346 of 385 alternative thereof provided by the definitions themselves, would have to be proved. Viewed thus, for charging a person of organized crime or being a member of organized crime syndicate, it would be necessary to prove that the persons concerned have indulged in:

- (i) an activity,
- (ii) which is prohibited by law,
- (iii) which is a cognizable offence punishable with imprisonment for three years or more,
- (iv) undertaken either singly or jointly,
- (v) as a member of organized crime syndicate i.e. acting as a syndicate or a gang, or on behalf of such syndicate,
- (vi) (a) in respect of similar activities (in the past) more than one charge sheets have been filed in competent court within the preceding period of ten years,
(b) and the court has taken cognizance of such offence.
- (vii) the activity is undertaken by:
 - (a) violence, or
 - (b) threat of violence, or intimidation or
 - (c) coercion or
 - (d) other unlawful means.
- (viii) (a) with the object of gaining pecuniary benefits or gaining undue or other advantage for himself or any other person, or
(b) with the object of promoting insurgency."

It was further reiterated as held in Shabbir Mohd. v. State 2006 ALL MR (Cri.) 2751 that every ingredient of the offence has to be established by the prosecution and past criminal activities are State Vs. Pankaj Sehrawat and Ors. Page No.347 of 385 only one of the requisites for constituting

offence under Section 3 of MCOC Act. The Hon'ble High Court had considered various judgments and observed that apart from previous charge sheets, there has to be a continuation, an activity to which MCOC Act is applied. It was observed as under:

"43. This fortifies the conclusion that mere proof of filing charge-sheets in the past is not enough. It is only one of the requisites for constituting offence of organized crime. If only the past charge sheets were to be enough to constitute offence of organized crime, it could have offended the requirement of Article 20(1) of the Constitution and possibly Article 20(2) as well, (and in any case Section 300 Cr. P.C.). Had these judgments of the Supreme Court and Division Benches of this Court been cited before the learned Single Judge deciding Amarsingh Vs. State, 2006 ALL MR (Cri.) 407 the learned Single Judge, without doubt, would not have held that the matter was simply one of an arithmetical equation. The said judgment cannot be reconciled with the judgments of division benches in Jai Singh v. State 2003 ALL MR (Cri.) 1506 and Bharat Shah v. State, 2003, ALL Mr. (Cri.) 1061, which I am bound to follow.

44. It is not necessary to go into the implications of the expression "prosecuted and punished" used in Article 20(2) of the Constitution. Section 300 Cr.P.C. itself clearly bars a fresh trial for the same offence. Section 21 of MCOCA which prescribes modified applications of the Code to offences under MCOCA does not make provisions of Section 300 Cr.P.C. inapplicable. Therefore, since the previous criminal history of the applicants denotes that they had been or are being separately charged/ tried for those offence before competent courts, there is no question of such offences constituting offence of organized crime.

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46. While offences committed prior to 24.02.1999 cannot amount to "organized crime", since this offence was not on statute book then, even post 24.02.1999 crimes could be tried as 'organized State Vs. Pankaj Sehrawat and Ors. Page No.348 of 385 crime' only if information in respect of these crimes is permitted to be registered as organized crime and sanction is accorded for prosecution for such crime under Section 23 of MCOCA. Such are not the facts in the present cases. There is no substantive crime which is allowed to be registered under MCOCA. Offences in Crime Nos. 37/01 and 38/01, for which approval was sought are not subject matter of these trials. When Crime Nos. 3007/2001 and 3008/2001 were registered, upon receiving approval, there was no crime reported. Seizure of weapons is subsequent to registration of these crimes, for which the concerned accused persons have been acquitted. Consequently without there being a substantive offence indicating continuity, there would be no continuation of the unlawful activity and as a corollary no "continuing unlawful activity."

47. A look at provisions of the punishment, Section 3 of the MCOCA would fortify this conclusion.

Clauses (i) and (ji) of Sub-section (1) would show that "if such offence has resulted in death of any person", the offence of organized crime would attract death sentence or life imprisonment with a fine of Rs. One Lakh. Now, if only old charge-sheets should be held as enough, a person acquitted of a murder charge in the past would be liable to be sent for a life term, in spite of acquittal, simply because a chargesheet had been filed in the past. Had this been contemplated, the learned Judge, Special Court, would have charged Accused No.1/1 Shiva of offence punishable under Section 3(1)(i) of MCOCA and not one punishable under Section 3(1)(ii) of the MCOCA, since Shiva had been charged once of murder (Sr.No.9 in the chart) and acquitted. Same would hold good about the other gangsters.

Advocate Tiwari, the learned counsel for Mehmood and others relying on judgment of the Supreme Court in Dilip Singh v. State of Punjab, reported at 1997(3) Current Criminal Journal 223, that charge- sheets cannot be made the basis of guilt or innocence of an accused. Therefore, it is clear that the offences referred to in various charge-sheets are not "such offence(s)" and consequently an offence, punishable under Section 3 of the MCOCA has to be different from those for which such accused had been charge-sheeted in the past. Past criminal activity only aggravates the continued activity amounting to an offence and State Vs. Pankaj Sehrawat and Ors. Page No.349 of 385 attracts provisions of MCOCA.

48. In view of this, since the appellants are not shown to have indulged in any crime which can be said to be continuation of past criminal activity provisions of Section 3(1) of the MCOCA are not attracted. It cannot be said that the appellants have committed the offence of organized crime.

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57. The contention of the learned A.P.P. that the provisions of MCOCA are applied to the members of the organized crime syndicate and then, what-ever offences they committed attract the provisions of the Act, is not supported by any provision of law or judicial pronouncement. Section 23 of MCOCA refers to recording information about commission of offence of organized crime. It does not refer to getting approval for invoking provisions of MCOCA in respect of the activities of any individual. It is not the case that any of the appellants have been previously held guilty of offences punishable under Section 3 of the MCOCA, and therefore, already held to be members of the organized crime syndicate. Had it been so, it would have been possible to argue that their continuing unlawful activities would amount to organized crime, though even such argument would have to be tested with reference to other requirements of the offence contained in Sections 2(d), (e) and (f) of MCOCA. Such is not the present case. Therefore, the proposal for approval for recording information, recording information itself, conduct of investigation and filing of chargesheet do not relate to any actually continuing unlawful activity. The learned counsel for the appellants, therefore, cannot be said to have made a wild allegation that neither approval for recording information, nor sanction for filing chargesheet under Section 23 of the Act were accorded after applying mind to the requirements of law and the facts unfolded.

58. To sum up, in these cases, conviction of the appellants is based upon only filing of charge-sheets in the past. There is no overt act or omission, which would amount to continuation of unlawful

activity carried out by use of force for the purpose of pecuniary gain, with which the appellants are State Vs. Pankaj Sehrawat and Ors. Page No.350 of 385 charged. The only overt acts attributed to, and only to, the gang leaders, is possession of arms at their houses, when they were in custody, and after offences were registered under MCOCA. For these offences the learned Judge, Special Court has acquitted them. Crime Nos. 37 and 38 of 2001 in which MCOCA was sought to be applied, ended up in filing charge sheets without applying MCOCA and eventual acquittal of the accused therein. This leaves a big question mark or rather question marks, not only about application of mind while granting approval and sanction under Section 23, but also about mindlessness in pursuing the whole matter. Conviction of the appellants cannot therefore be sustained."

(Emphasis supplied) It was thus laid down that an offence, punishable under Section 3 of the MCOCA has to be different from those for which the accused had been charge sheeted in the past and past criminal activity only aggravates the continued activity amounting to an offence and attracts provisions of MCOCA. The Ld. Counsel for the accused persons had submitted that the ratio in Prafulla & Ors. v. State of Maharashtra (supra) had been approved and confirmed by the Hon'ble Supreme Court in State of Maharashtra v. Shiva @ Shivaji Ramji Sonawane & Ors. (supra) wherein the Hon'ble Supreme Court had observed as under:

"1. The High Court of Bombay has, by a common order dated 18.11.2008, impugned in these appeals, set aside orders passed by the Special Court under Maharashtra Control of Organized Crime Act, 1999 and acquitted the respondents of the charges framed against them. The High Court has relying upon several earlier pronouncements on the subject, held that mere proof of filing of charge-sheets in the past was not enough to hold the persons accused in such State Vs. Pankaj Sehrawat and Ors. Page No.351 of 385 charge-sheets to be guilty of the offences of committing organized crime punishable under Section 3 of MCOCA for such charge-sheets satisfy but one of the requirements under the said Act. What is according to the High Court equally important is to prove that the accused were guilty of committing the offence of organized crime by reason of their continuing unlawful activities. The High Court further held that any such unlawful activity should be by use of threat of violence, intimidation, coercion or other unlawful means with the objective of "gaining pecuniary or other advantages", and that the provisions of MCOCA can be invoked only by strictly complying with the provisions of Section 23 of the Act. The competent authority was, declared the High Court, duty bound to apply its mind to the attendant facts while permitting registration of an FIR under MCOCA or granting sanction for prosecution. The High Court held that the competent authority, in the case at hand, had not applied its mind properly which rendered the registration of the cases and the filing of the charge-sheets against the respondents legally unsustainable. The High Court further held that the respondents were, in the facts of the cases before it, not shown to have committed any offence for pecuniary, economic or similar other advantage which was one of the requirements to be satisfied before they could be held guilty of an organized crime. The orders of conviction recorded by the Special Court, and the sentences awarded to the respondents were on those findings set aside.

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9. It was in the above backdrop that the High Court held that once the respondents had been acquitted for the offences punishable under IPC and the Arms Act in Crimes No.37 and 38 of 2001 and once the trial court had recorded an acquittal even for the offence punishable under Section 4 read with Section 25 of the Arms Act in MCOCA Crimes No.1 and 2 of 2002, all that remained incriminating was the filing of charge-sheets against the respondents in the past and taking of cognizance by the competent court over a period of ten years prior to the enforcement of MCOCA. The filing of charge-sheets or taking of the cognizance in the same did not, declared the High Court, by itself constitute an offence punishable under Section 3 of MCOCA. That State Vs. Pankaj Sehrawat and Ors. Page No.352 of 385 is because the involvement of the respondents in previous offences was just about one requirement but by no means the only requirement which the prosecution has to satisfy to secure a conviction under MCOCA. What was equally, if not more important was the commission of an offence by the respondents that would constitute "continuing unlawful activity". So long as that requirement failed, as was the position in the instant case, there was no question of convicting the respondents under Section 3 of MCOCA. That reasoning does not, in our opinion, suffer from any infirmity.

10. The very fact that more than one charge-sheets had been filed against the respondents alleging offences punishable with more than three years' imprisonment is not enough. As rightly pointed out by the High Court commission of offences prior to the enactment of MCOCA does not by itself constitute an offence under MCOCA. Registration of cases, filing of charge-sheets and taking of cognizance by the competent court in relation to the offence alleged to have been committed by the respondents in the past is but one of the requirements for invocation of Section 3 of MCOCA. Continuation of unlawful activities is the second and equally important requirement that ought to be satisfied. It is only if an organized crime is committed by the accused after the promulgation of MCOCA that he may, seen in the light of the previous charge-sheets and the cognizance taken by the competent court, be said to have committed an offence under Section 3 of the Act.

11. In the case at hand, the offences which the respondents are alleged to have committed after the promulgation of MCOCA were not proved against them. The acquittal of the respondents in Crimes Nos.37 and 38 of 2001 signified that they were not involved in the commission of the offences with which they were charged. Not only that the respondents were acquitted of the charge under the Arms Act even in Crime Cases Nos.1 and 2 of 2002. No appeal against that acquittal had been filed by the State. This implied that the prosecution had failed to prove the second ingredient required for completion of an offence under MCOCA. The High Court was, therefore, right in holding that Section 3 of MCOCA could not be invoked only on the basis of State Vs. Pankaj Sehrawat and Ors. Page No.353 of 385 the previous charge-sheets for Section would come into play only if the respondents were proved to have

committed an offence for gain or any pecuniary benefit or undue economic or other advantage after the promulgation of MCOCA. Such being the case, the High Court was, in our opinion, justified in allowing the appeal and setting aside the order passed by the trial court."

(Emphasis supplied) Though this case was essentially on the point whether the charge sheets filed before the promulgation of MCOC Act could be considered for the purpose of and be the sole basis for invoking MCOC Act after the Act was promulgated, the Hon'ble Supreme Court upheld the order of the Hon'ble High Court holding that continuation of unlawful activities was the second and equally important requirement that ought to have been satisfied and that Section 3 MCOC Act could not be invoked merely on the basis of previous pre-MCOC Act charge sheets as Section 3 would come into play only if the accused were proved to have committed an offence for gain or any pecuniary benefit or undue economic or other advantage after promulgation of MCOC Act.

308. The judgment of the Hon'ble Supreme Court in State of Maharashtra v. Shiva @ Shivaji Ramji Sonawane & Ors. (supra) came up for consideration by the Hon'ble Supreme Court in a recent case The State of Gujarat v. Sandip Omprakash Gupta Criminal Appeal No.2291 of 2022 decided on 15.12.2022 wherein also the question arose whether the charge sheets filed before the promulgation of the Gujarat Control of Organized Crime Act could be the sole basis for convicting the accused under the said Act and it was observed as under:

State Vs. Pankaj Sehrawat and Ors. Page No.354 of 385 "23. For charging a person of organized crime or being a member of organized crime syndicate, it would be necessary to prove that the persons concerned have indulged in:

- (i) an activity,
- (ii) which is prohibited by law,
- (iii) which is a cognizable offence punishable with imprisonment for three years or more,
- (iv) undertaken either singly or jointly,
- (v) as a member of organized crime syndicate i.e. acting as a syndicate or a gang, or on behalf of such syndicate,
- (vi) (a) in respect of similar activities (in the past) more than one charge- sheets have been filed in competent court within the preceding period of ten years,
- (b) and the court has taken cognizance of such offence.
- (vii) the activity is undertaken by :

(a) violence, or

(b) threat of violence, or intimidation or

(c) coercion or

(d) other unlawful means

(viii) (a) with the object of gaining pecuniary benefits or gaining undue or other advantage for himself or any other person, or

(b) with the object of promoting insurgency.

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43. Thus, in Shiva alias Shivaji Ramaji Sonawane (supra), this Court took the view that there are two essential ingredients to constitute an offence under MCOCA. First, the registration of cases, filing of chargesheets and taking of cognizance by the competent court in relation to the offences alleged to have been committed by the accused in the past and secondly, continuation of unlawful activities. In other words, it is only if an organized crime is committed by the accused after the promulgation of the MCOCA that he may, on the basis of the previous chargesheets and the cognizance taken by the competent court, be said to have committed an offence under Section 3 of the MCOCA.

44. Indisputably, in Shiva alias Shivaji Ramaji Sonawane (supra), the accused persons stood acquitted in connection with two of the crimes and considering the same, this Court took the view that State Vs. Pankaj Sehrawat and Ors. Page No.355 of 385 the accused persons could not be said to have committed the alleged crime after the promulgation of MCOCA, as the allegations could not be proved against them. However, this Court, in no uncertain terms, has observed that what is important is the commission of an offence by the accused that would constitute 'continuing unlawful activity' and the unlawful activities could be said to have continued only if the accused are found to have indulged in an organized crime after the promulgation of the MCOCA.

45. The learned counsel appearing for the respondent- accused is right in his submission that having regard to the stringent provisions of the 2015 Act, its provisions should be very strictly interpreted and the authorities concerned would be obliged in law to strictly observe the said provisions. There need not be any debate on the fact that the provisions of the 2015 Act have been enacted to deal with organized criminal activity in relation to offence, which are likely to create terror and endanger and unsettle the economy of the country for which stringent measures have been adopted. The provisions of the 2015 Act seek to deprive a citizen of his right to freedom at the very initial stage of the investigation, making it extremely difficult for him to obtain bail. Other provisions relating to the admission of evidence and electronic media have also been provided for. In such a situation, it has to be ensured whether the investigation from its very inception has been conducted strictly in accordance with the provisions of the 2015 Act. (See: State of Maharashtra and Others v. Lalit Somdatta Nagpal and Another reported in (2007) 4 SCC 171).

46. It is a sound rule of construction that the substantive law should be construed strictly so as to give effect and protection to the substantive rights unless the statute otherwise intends. Strict construction is one which limits the application of the statute by the words used. According to Sutherland, 'strict construction refuses to extend the import of words used in a statute so as to embrace cases or acts which the words do not clearly describe'.

48. We are of the view and the same would be in tune with the dictum as laid in Shiva alias Shivaji Ramaji Sonawane (supra) that there would have to be some State Vs. Pankaj Sehrawat and Ors. Page No.356 of 385 act or omission which amounts to organized crime after the 2015 Act came into force i.e., 01.12.2019 in respect of which, the accused is sought to be tried for the first time in the special court.

49. We are in agreement with the view taken by the High Court of Judicature at Bombay in the case of Jaisingh (supra) that neither the definition of the term 'organized crime' nor of the term 'continuing unlawful activity' nor any other provision therein declares any activity performed prior to the enactment of the MCOCA to be an offence under the 1999 Act nor the provision relating to punishment relates to any offence prior to the date of enforcement of the 1999 Act, i.e., 24.02.1999. However, by referring to the expression 'preceding period of ten years' in Section 2(1)(d), which is a definition clause of the term 'continuing unlawful activity' inference is sought to be drawn that in fact, it takes into its ambit the acts done prior to the enforcement of the 1999 Act as being an offence under the 1999 Act. The same analogy will apply to the 2015 Act.

50. There is a vast difference between the act or activity, which is being termed or called as an offence under a statute and such act or activity being taken into consideration as one of the requisites for taking action under the statute. For the purpose of organized crime, there has to be a continuing unlawful activity. There cannot be continuing unlawful activity unless at least two chargesheets are found to have been lodged in relation to the offence punishable with three years' imprisonment during the period of ten years. Indisputably, the period of ten years may relate to the period prior to 01.12.2019 or thereafter. In other words, it provides that the activities, which were offences under the law in force at the relevant time and in respect of which two chargesheets have been filed and the Court has taken cognizance thereof, during the period of preceding ten years, then it will be considered as continuing unlawful activity on 01.12.2019 or thereafter. It nowhere by itself declares any activity to be an offence under the said 2015 Act prior to 01.12.2019. It also does not convert any activity done prior to 01.12.2019 to be an offence under the said 2015 Act. It merely considers two charge-sheets in relation to the acts State Vs. Pankaj Sehrawat and Ors. Page No.357 of 385 which were already declared as offences under the law in force to be one of the requisites for the purpose of identifying continuing unlawful activity and/or for the purpose of an action under the said 2015 Act.

51. If the decision of the coordinate Bench of this Court in the case of Shiva alias Shivaji Ramaji Sonawane (supra) is looked into closely along with other provisions of the Act, the same would indicate that the offence of 'organized crime' could be said to have been constituted by at least one instance of continuation, apart from continuing unlawful activity evidenced by more than one chargesheets in the preceding ten years. We say so keeping in mind the following:

(a) If 'organized crime' was synonymous with 'continuing unlawful activity', two separate definitions were not necessary.

(b) The definitions themselves indicate that the ingredients of use of violence in such activity with the objective of gaining pecuniary benefit are not included in the definition of 'continuing unlawful activity', but find place only in the definition of 'organized crime'.

(c) What is made punishable under Section 3 is 'organized crime' and not 'continuing unlawful activity'.

(d) If 'organized crime' were to refer to only more than one charge-sheets filed, the classification of crime in Section 3(1)(i) and 3(1)(ii) respaly on the basis of consequence of resulting in death or otherwise would have been phrased differently, namely, by providing that 'if any one of such offence has resulted in the death', since continuing unlawful activity requires more than one offence. Reference to 'such offence' in Section 3(1) implies a specific act or omission.

(e) As held by this Court in State of Maharashtra v. Bharat Shanti Lal Shah (supra) continuing unlawful activity evidenced by more than one charge-sheets is one of the ingredients of the State Vs. Pankaj Sehrawat and Ors. Page No.358 of 385 offence of organized crime and the purpose thereof is to see the antecedents and not to convict, without proof of other facts which constitute the ingredients of Section 2(1)(e) and Section 3, which respectively define commission of offence of organized crime and prescribe punishment.

(f) There would have to be some act or omission which amounts to organized crime after the Act came into force, in respect of which the accused is sought to be tried for the first time, in the Special Court (i.e. has not been or is not being tried elsewhere).

(g) However, we need to clarify something important. Shiva alias Shivaji Ramaji Sonawane (supra) dealt with the situation, where a person commits no unlawful activity after the invocation of the MCOCA. In such circumstances, the person cannot be arrested under the said Act on account of the offences committed by him before coming into force of the said Act, even if, he is found guilty of the same. However, if the person continues with the unlawful activities and is arrested, after the promulgation of the said Act, then, such person can be tried for the offence under the said Act. If a person ceases to indulge in any unlawful act after the said Act, then, he is absolved of the prosecution under the said Act.

But, if he continues with the unlawful activity, it cannot be said that the State has to wait till, he commits two acts of which cognizance is taken by the Court after coming into force.

The same principle would apply, even in the case of the 2015 Act, with which we are concerned.

52. In the overall view of the matter, we are convinced that the dictum as laid by this Court in Shiva alias Shivaji Ramaji Sonawane (supra) does not require any relook. The dictum in Shiva alias Shivaji Ramaji Sonawane (supra) is the correct exposition of law."

(Emphasis supplied) State Vs. Pankaj Sehrawat and Ors. Page No.359 of 385 Thus, these judgments, though pronounced in light of the peculiar facts of the cases wherein there were charge sheets pertaining to offences prior to coming into force of the relevant Acts which were considered for invoking the said Acts, categorically laid down that continuing unlawful activity required something further, i.e. a substantive offence thereafter which would lead to invocation of MCOC Act and the previous charge sheets were only one of the ingredients of the offence of organized crime. Reference in this regard may also be made to the judgment of the Hon'ble High Court of Bombay, Bench at Aurangabad in Darasing @ Maruti Vakilya, Bhosale and Others v. The State of Maharashtra Criminal Appeal No.901 of 2018 decided on 03.08.2021 wherein the accused persons were not charged and tried for any substantive crime but only for the offences punishable under MCOC Act which is also the position in the present case. The question that was posed was whether a person could be convicted for the offence of organized crime without there being a substantive offence and it was observed as under:

"8. I have considered the rival submissions and perused the record. There is no dispute about the fact that as the matter stands, the appellants have been charged, tried and convicted only for the offences punishable under Section 3(1)(ii) and 3(4) of the MCOC Act and have not been simultaneously charged and tried for any substantive crime. The issue therefore which arises for determination and which in fact is no longer res integra is as to if a person can be convicted for the offence of organized crime without there being a substantive offence. A similar argument was canvassed before the Division Bench in the case of Madan Ramkisan Gangwani¹ Madan S/o. Ramkisan Gangwani v. State of Maharashtra Criminal State Vs. Pankaj Sehrawat and Ors. Page No.360 of 385 (supra). Referring to the separate views taken by the esteemed members of the Division Bench sitting single on earlier occasion. The Division Bench referred to the following observations from the case of Bharat Shantilal Shah² (supra):

"25. In our opinion, there is no violation of Article 14 by this definition. If we read the definition again, what has been defined as continuing unlawful activity is a member of organized crime syndicate in respect of which any activity prohibited by law and done repeatedly i.e. more than once for which charge-sheet has been filed in the Court of competent jurisdiction in the past ten years. The purpose of definition is to define what continuing unlawful activity is and it is for the purposes of defining what is continued unlawful activity that those charges are to be taken into consideration. Mere taking into consideration of such charges cannot result in discrimination of the kind alleged by Shri Manohar. The activity must be continuing unlawful activity and to define it with clarity it is provided that any person who in the past was charge-sheeted for more than one charge of such activity or crime the cognizance of which has been taken and imprisonment for which is more than three years should

be taken into account. The fact of the person having been charge-sheeted in such cognizable offences in the past makes the unlawful activity, continuing unlawful activity. This section only defines what the activity is. It does not itself provide for any punishment for that activity. Had punishment been provided the submission that it treats while punishing unequals as equals may carry weightage. That being not the case in the challenge to section 2(1)(d) of the Act we see no vagueness or violation of Article 14 by the definition. We find that the provision treats all those covered by it in a like manner and does not suffer from the vice of class legislation.

27. We also do not find substance in the Appeal No.308/2002 dated 26.03.2009 (DB). 2 Bharat Shantilal Shah v. State of Maharashtra 2003 ALL MR (Cri) 1061 (DB).

State Vs. Pankaj Sehrawat and Ors. Page No.361 of 385 challenge that the equality clause in the Constitution is violated because the definition ropes in anyone charged more than once, irrespective of whether the charge resulted in an acquittal or conviction. The circumstances that followed the charge are not material. The provision only defines what is continued unlawful activities and refers to whether a person has been charged over a period of ten years for the purpose of seeing whether the person is charged for the first time or has been charged often. The circumstance of conviction or acquittal that followed the charge are not material. The limited purpose is to see antecedents of the person. Not to convict." (emphasis supplied) xxx

107. It was contended that the observations in Bharat Shah's case by this Court have to be read in context of the fact that Section 2 is a definition clause which just defines the offence and, therefore, could not have prescribed punishment, which Section 3 prescribes. It is truly said that Section 2 merely defines, not only the offence of "organized crime" but also other terms used in the Act. What is material is the definition of offence of "organized crime" and not the definitions of other terms included in Section

2. Had the term "continuing unlawful activity" been synonymous with "organized crime", it would not have been necessary for the Legislature to include two definitions. It would have been sufficient to provide for only one definition of continuing unlawful activity and make that activity punishable. The definitions in clauses (d) and (e) clearly show that one of the components of organized crime is continuing unlawful activity and, therefore, organized crime is something more than mere continuing unlawful activity.

108. Thus the fact of more than one chargesheet having been filed in competent Court in preceding period of ten years and such Court having taken cognizance of such offence, is merely one of the ingredients of the offence of organized crime. Therefore, it State Vs. Pankaj Sehrawat and Ors. Page No.362 of 385 cannot be contended that the offence of organized crime is completed by collection of previous criminal activities."

(emphasis supplied).

Again in paragraph No.109 the observations of the Division Bench in the case of Jaisingh Ashrfilal Yadav and Ors v. State of Maharashtra and Anr.; 2003 ALL MR (Cri) 1506 where quoted with a conclusion that even these observations would substantiate the submission that for establishing offence of organized crime something more than mere continuing unlawful activity is necessary. It is pertinent to note that even the observation and conclusion of a Single Judge in the case of Dinesh Mahadev Bhondwe v. State of Maharashtra; 2007 (2) Mh.L.J. (Cri) 718 to the contrary was held to be incorrect.

Summarizing the conclusion in paragraph No.115 it has been observed as under:

"115. If the provisions of the Act are read in entirety, in the light of foregoing discussion, they will show that offence of "organized crime" is constituted by at least one instance of continuation, apart from continuing unlawful activity evidenced by more than one chargesheets in preceding ten years : This is so because :

(a) If "organized crime" was synonymous with "continuing unlawful activity", two separate definitions were not necessary.

(b) The definitions themselves show that ingredients of use of violence in such activity with the objective of gaining pecuniary benefit are not included in definition of "continuing unlawful activity", but find place only in definition of "organized crime".

(c) What is made punishable under Section 3 is "organized crime" and not "continuing unlawful activity".

(d) If "organized crime" were to refer to only more than one chargesheet filed, State Vs. Pankaj Sehrawat and Ors. Page No.363 of 385 the classification of crime in Section 3(1)(i) and 3 (1) (ii) on the basis of consequence of resulting in death or otherwise would have been phrased differently, namely, by providing that "if any one of such offence has resulted in the death", since continuing unlawful activity requires more than one offence. Reference to "such offence" in Section 3(1) implies a specific act or omission.

(e) If the offence of organized crime itself is comprised of previous offences in respect of which chargesheets have been filed, or in other words such chargesheets are a component of the offence of organized crime, all such offences referred to in such chargesheets could be tried at one trial, and the rider in Section 7 about triability of the accused under the Code at the same trial would be redundant.

(f) Entire Section 18 of the Act would become redundant if "continuing unlawful activity" evidenced by proof of filing of two chargesheets is equal to organized crime,

since question of recording confessions would not arise. Certified copies of chargesheets, with certified copy of order thereon by the Court taking cognizance, would be admissible without formal proof and if this itself was enough to constitute offence, no other evidence would be required to be tendered.

(g) For the same reason, there may be no need to examine any witnesses and consequently Section 19 would be redundant.

(h) If proof of filing two chargesheets is enough to establish offence of organized crime, there may be no occasion to carry out any investigation, other than collecting copies of charge sheets.

Consequently, it would be unnecessary for high ranking police officers to wield State Vs. Pankaj Sehrawat and Ors. Page No.364 of 385 the power to allow recording information or to sanction prosecution after such chargesheets are collected.

9. Recently the learned Judge of this Court in the matter of Pundlik Ukla Pawar³ (supra) has taken a similar view albeit without reference to the Division Bench judgment in the case of Madan Ramkisan Gangwani (supra)....

10. The upshot of the above discussion is that the appellants were merely charged and tried for the offence punishable under Section 3 (1) (ii) and 3 (4) without any substantive crime. Merely being involved in several crimes without being involved in any other crime to elevate the continuing unlawful activity to the case of organized crime as defined under Section 2 (1) (e) would not be sufficient. Therefore the appellants could not have been convicted and sentence only for the offence punishable under Section 3 (1) (ii) and 3 (4) in the absence of any substantive crime so as to constitute an organized crime. The learned Judge of the Special Court has not considered all these aspects and has convicted and sentenced the appellants merely for being involved in continuing unlawful activity which in itself is not an offence which is made punishable under the MCOC Act."

(Emphasis supplied).

Thus, it was held that the provisions of MCOC Act would show that the offence of "organized crime" was constituted by at least one instance of continuation, apart from continuing unlawful activity evidenced by more than one chargesheets in the preceding ten years and why it would be so was also stated. It was held that merely being involved in several crimes without being involved in any other crime to elevate the continuing unlawful activity to the case of organized crime as defined in Section 2(1)(e) of MCOC Act would not be sufficient and there 3 Pundlik So. Ukla Pawar and Ors. v. State of Maharashtra Criminal Appeal No.184/2015 decided on 14.07.2020.

State Vs. Pankaj Sehrawat and Ors. Page No.365 of 385 had to be a substantive crime so as to constitute an organized crime, such as during the investigation of an offence, the investigation

agency may seek to invoke MCOC Act, if the other conditions for invoking MCOC Act are satisfied. That was the position in *Abhishek v. The State of Maharashtra* (supra) wherein a complaint was filed on 08.05.2020 alleging kidnapping and intimidation and demand of ransom on the basis of which Crime No.251 of 2020 came to be registered for offences under Sections 363, 364A, 384, 386, 387, 397 and 504 IPC. In the said case, the provisions of MCOC Act were added after taking approval of the competent authority.

309. In the instant case, it is the admitted position that there was no substantive offence and the FIR was registered only on the basis of the previous charge sheets filed against the accused persons during the previous ten years after taking approval for the same. There is merit in the submission on behalf of the accused persons that the proposal for invoking Section 3 MCOC Act sent by the IO on 14.02.2015 (Ex.PW74/A) did not contain or disclose any overt act or omission which would amount to a continuation of unlawful activity carried out by use of force for the purpose of pecuniary gain. As submitted, the proposal contained the list of various cases ranging from the years 2010 to 2014 against the accused Neeraj Sehrawat; from 2011 to 2014 against the accused Naveen Bali; from 2012 to 2014 against the accused Rahul Kala and from 2010 to 2012 against the accused Pankaj Sehrawat. It has not been disputed that charge sheets were filed in the said cases and cognizance was taken in all the said State Vs. Pankaj Sehrawat and Ors. Page No.366 of 385 cases. It may be mentioned that as per the settled law, if the incidents referred to in the earlier crimes are committed by a group of persons and one common individual is involved in all the incidents, the offence under MCOC Act could be invoked. As noted above, 14 FIRs were relied upon by the investigating agency while moving the proposal and by the prosecution to show the existence of an organized crime syndicate in which the accused Neeraj Bawana was common and as such the said condition was satisfied (though in some of the cases he had been discharged or was subsequently discharged or acquitted). However, it is also necessary to refer to the fact that in *State of Maharashtra v. Shiva @ Shivaji Ramji Sonawane & Ors.* (supra), the Hon'ble Supreme Court had not considered the cases for attracting provisions of MCOCA, in which the accused had been acquitted [though there are earlier judgments to the effect that what is to be seen is that the person has been charged for the first time or has been charged often and the circumstance of conviction or acquittal that followed the charge are not material- see *Bharat Shantilal Shah v. State of Maharashtra* 2003 ALL MR (Cri) 1061 (DB)]. The Ld. Addl. PP for State would also argue that what is material is that more than one charge sheets had been filed on which cognizance had been taken by the competent Court in the previous ten years and the result would be immaterial and even otherwise, what happened subsequently in the said cases could not have been before the competent authority at the time of grant of approval. While there is merit in the latter part of the argument that whether the matters subsequently resulted in acquittal or conviction or discharge would not be State Vs. Pankaj Sehrawat and Ors. Page No.367 of 385 before the competent authority at the time of grant of approval, the first part of the argument would be in teeth of the settled legal position.

310. In the present case well, it is seen that FIR No.69/2010 PS Hari Nagar could not be relied upon and quite clearly, the competent authority could have considered the said aspect. In FIR No.180/12 PS Samaypur Badli, only the accused Neeraj Bawana out of the present accused persons was named; similar was the position with regard to FIR No.192/2012 PS Sadar Panipat, Haryana, FIR No.194/2012 PS Sadar Panipat, Haryana, FIR No.234/2012 PS Prashant Vihar and FIR No.40/2013

PS Crime Branch, Delhi (in this case Rahul @ Kala was also stated to be involved but the accused Neeraj Bawana already stood discharged vide order dated 24.09.2013 i.e. prior to the proposal being moved). In FIR No.437/2011 PS Jhajjar, Haryana the accused Naveen @ Bali was also stated to be involved though the accused Neeraj had subsequently been discharged on 18.10.2022. Out of the remaining FIRs, the accused had been discharged in FIR No.77/2012 PS Bawana on 29.07.2013 which would also have been before the competent authority and in FIR No.98/2012 PS Prashant Vihar, the accused Neeraj and Naveen @ Bali had been discharged on 13.09.2013 which would also have been before the competent authority. In FIR No.575/2014 PS Baghpat, charge sheet had not been filed on the day the proposal was moved and subsequently the accused Rambeer Shokeen had been acquitted while the matter is stated to be pending against the accused Neeraj and even in FIR No.764/2014 PS Subhash Place, State Vs. Pankaj Sehrawat and Ors. Page No.368 of 385 charge sheet had not been filed on the day the proposal was moved and subsequently the accused Rambeer Shokeen had been acquitted while the matter is stated to be pending against the accused Neeraj and even in FIR No.764/2014 PS Subhash Place, charge sheet had not been filed on the day of the proposal was moved. As such the only cases which could be considered were FIR No.437/2011 PS Jhajjar; FIR No.53/2012 PS Bawana in which the accused Naveen @ Bali and Rahul @ Kala had been discharged vide order dated 01.07.2023 and the matter is stated to be continuing only against the accused Neeraj; FIR No.179/2012 PS Bawana in which the accused were acquitted vide judgment dated 24.07.2019 and FIR No.99/2012 PS Bawana in which charge had been framed against the accused persons vide order dated 01.07.2016. Even the first three of the said four FIRs have resulted in discharge or acquittal. In respect of some of the FIRs there is nothing to show that the offences were undertaken on or behalf of any organized syndicate and no such nexus has been shown. At the same time, the existence of the said FIRs/ charge sheets would at the most satisfy only one of the requirements for invoking the provisions of MCOCA. The other requirement was of there being a substantive offence to elevate continuing unlawful activity to the case of organized crime but it is seen that in respect of all the said cases, the accused persons were being separately charged/ tried for the offences before the competent courts and as such there was no question of such offences constituting the offence of organized crime. There being no substantive offence indicating continuity, there could be no continuation of the unlawful activity and as a corollary no continuing unlawful activity and no organized crime. Further, there being no organized crime, there could be nothing to show State Vs. Pankaj Sehrawat and Ors. Page No.369 of 385 the existence of any organized crime syndicate.

311. As has been held, continuing unlawful activity evidenced by more than one charge sheets is one of the ingredients of the offence of organized crime and the purpose thereof is to see the antecedents and not to convict, without proof of other facts which constitute the ingredients of Section 2(1)(e) and Section 3 MCOC Act, which respectively define commission of offence of organized crime and prescribe punishment. In the present case, even if more than one charge sheet was taken to exist on which cognizance had been taken, there is nothing to show any act or omission which amounted to organized crime in respect of which the accused were sought to be tried for the first time, in the Special Court (i.e. had not been or were not being tried elsewhere). All the cases that have been referred to are being tried separately and the prosecution has not shown any act or omission which amounts to organized crime in respect of which the accused persons were sought to be tried for the first time. Clearly the proposal was based only on past criminal activity without there being a fresh

act in continuation of the previous unlawful activity. There is merit in the submission of the Ld. Counsel for the accused persons that the proposal dated 14.02.2015 for approval for recording information (Ex.PW74/A), the approval order dated 20.02.2015 (Ex.PW73/A), and recording of first information (Ex.PW20/2) did not relate to any actual continuing unlawful activity once PW74 himself had admitted during cross-examination that the proposal dated 14.02.2015 did not disclose any act or commission after the last case in respect of which the FIR was registered qua any of the said 4 accused persons.

312. During cross-examination on behalf of the accused persons except accused Rambeer Shokeen, PW74, on a perusal of the State Vs. Pankaj Sehrawat and Ors. Page No.370 of 385 record stated that the proposal contained a list of 14 criminal cases against Neeraj Sehrawat and as per the records, charge sheets were filed in all cases except FIR No.764/14 and FIR No.1072/2014 of PS Subhash Place, Delhi and PS Kotwali, Bagpat, UP respectively. He stated that in none of the said cases, he was the investigator or involved in the investigation at any point of time. He further stated that the proposal contained a list of 7 criminal cases against Naveen @ Bali and as per the records, charge sheets were filed in all cases except FIR No.120/14 of PS Sadar Ballabhgarh. In none of the said cases, he was the investigator or involved in the investigation at any point of time. The proposal contained a list of 4 criminal cases against Rahul @ Kala and as per the records, charge sheets were filed in all the cases. In none of the said cases, he was the investigator or involved in the investigation at any point of time. The proposal contained a list of 3 criminal cases against Pankaj Sehrawat and as per the records, charge sheets were filed in all the cases except in FIR No.206/12, PS South Rohini. In none of the said cases, he was the investigator or involved in the investigation at any point of time. He admitted that the proposal dated 14.02.2015 did not disclose any act or commission after the last case in respect of which FIR was registered qua any of the said four accused persons which is also borne out by the record. He admitted that he sought separate registration of FIR under Sections 3 and 4 of MCOC Act and volunteered in his discretion. He admitted that the FIR per se did not disclose the commission of any fresh offence except those mentioned in the proposal and was a verbatim reproduction of the contents of the proposal. FIR State Vs. Pankaj Sehrawat and Ors. Page No.371 of 385 No.42/2015 PS Special Cell was not a subject matter of investigation of the present FIR and volunteered both the FIRs were investigated separately. Thus, PW74 was cross-examined extensively and he admitted that he had sought separate registration of FIR under Sections 3 and 4 of MCOC Act and volunteered in his discretion and further that the proposal dated 14.02.2015 did not disclose any act or commission after the last case in respect of which FIR was registered qua any of the four accused persons. As per the settled law, the offence punishable under Section 3 MCOC Act has to be different from those for which the accused had been charge sheeted in the past which was not so in the instant case. In the present case, in absence of any fresh act, there could not be said to any continuing unlawful activity and consequently organized crime nor could it be said that any of the accused persons were members of any organized crime syndicate when the necessary ingredients of the same were not fulfilled as for an organized crime syndicate, there must be a group of two or more persons who, acting either singly or collectively, as a syndicate or gang indulge in activities of organized crime.

313. It is settled law that the approval for recording information required under Section 23 of MCOC Act is not an empty formality and provisions of Section 23 of the MCOC Act have to be strictly

complied with. However, in the instant case, the competent authority i.e. PW73 failed to consider that mere filing of charge sheets in the past was not sufficient to register fresh FIR under MCOC Act against any of the accused persons and a State Vs. Pankaj Sehrawat and Ors. Page No.372 of 385 fresh act or omission had to be there which was not so in the present case and had thus failed to satisfy itself about the commission of organized crime before giving the approval. PW73 who had passed the approval order dated 20.02.2015 had himself stated during his cross-examination that he did not recall if any fresh unlawful act was committed by the accused persons due to passage of time. He did not recall the date on which the criminal case was last registered against Neeraj Bawana, Naveen @ Bali, Rahul @ Kala, Amit @ Bhura and Pankaj Sehrawat prior to registration of the MCOC Act and volunteered the cases were registered within the previous 10 years of the registration of the MCOCA case. This is also borne out by the record as the FIRs on which reliance has been placed by the prosecution qua the aforesaid accused persons were all registered within the previous 10 years of the registration of the present case but PW73 did not recall the date on which the criminal case was last registered against the accused persons. A further question was put to PW73 if it was correct that at the time of approval order dated 20.02.2015 and sanction order dated 09.09.2015, no fresh act attributable to the accused persons other than the previous involvements was brought to his knowledge to which he stated that he did not recall if any fresh unlawful act was committed by the accused persons due to passage of time and the same was a matter of record. He denied the suggestion that the approval order was passed without application of mind or in a mechanical manner without there being any organized crime or that the sanction order was passed without application of mind or in a mechanical manner or that the approval order and sanction order State Vs. Pankaj Sehrawat and Ors. Page No.373 of 385 were passed merely on the basis of previous involvements of the accused persons. However, the grant of approval Ex.PW73/A was without there being any continuing unlawful activity and thus organized crime, hence the same cannot be regarded as having been granted after due application of mind, consequently, the approval itself stands vitiated and no case could have been registered or investigated against the accused persons.

314. It is further the settled law that the provisions regarding sanction contained in MCOC Act are mandatory and have to be given a strict interpretation. A perusal of the language of Section 23(2) MCOC Act makes it evident that the Court cannot take cognizance of an offence under MCOC Act without previous sanction from the officer as provided in the section. On a perusal of the sanction orders Ex.PW67/A and Ex.PW73/B, it is evident that the IO had sought sanction for prosecuting the accused persons only under Section 3(4) MCOC Act and not under any other section and even sanction was granted only for the offence under Section 3(4) MCOC Act. During cross-examination PW73 stated that as there are five sub sections of Section 3 of MCOC Act, he had granted sanction under the specific sub-section of Section 3 of MCOC Act while approval was granted under Sections 3 and 4 of MCOC Act. He also stated that since the sanction was accorded under Section 3(4) of MCOC Act it would be safe to assume that only the offence under the said section was made out against the accused Rambeer Shokeen. Even PW67 admitted that the sanction was accorded by him after duly going through the case file and records and after applying his mind and State Vs. Pankaj Sehrawat and Ors. Page No.374 of 385 after being fully satisfied and convinced only under Section 3 (4) of the MCOC Act and not under any other provision of the MCOC Act. Thus, both PW73 and PW67 had granted sanction only under Section 3(4) of MCOC Act and not under any other

sub-sections of Section 3 MCOC Act or Section 4 MCOC Act.

315. A perusal of the charge which was framed against the accused Rambeer Shokeen shows that no charge was framed against him for the offence under Section 3(4) MCOC Act while charge was framed against him for the offences under Sections 3(2), 3(3), 3(5) and Section 4 of MCOC Act though no cogent evidence has come on record to show that he was a member of any organized crime syndicate or even to establish any of the other offences for which he was charged. As regards the accused Neeraj Bawana, Naveen @ Bali, Rahul @ Kala and Pankaj Sehrawat, it is seen that the sanction was accorded only for the offence under Section 3(4) MCOC Act and the charge had been framed for the offence under Section 3 MCOC Act without specifying the sub-sections. From the language of the charge, it is evident that the said accused persons had been charged for committing organized crime and for being members of an organized crime syndicate i.e. under Section 3(1) and Section 3(4) MCOC Act. However, in light of what has been discussed above, the sanction that was granted was also without application of mind, as such, as per the settled law the case could not have proceeded against the accused persons and the entire proceedings stood vitiated, besides the fact that there was nothing to show State Vs. Pankaj Sehrawat and Ors. Page No.375 of 385 continuing unlawful activity and organized crime committed by the accused persons or that they were members of an organized crime syndicate. Once the approval for recording of information and the sanction are held to be without application of mind, the entire proceedings in the case stand vitiated. Even otherwise, no cogent evidence has come on record in respect of the accused persons qua any of the offences with which they have been charged under MCOC Act.

SECTION	174A	IPC	AGAINST	THE	ACCUSED
RAMBEER SHOKEEN					

316. It is the case of the prosecution that the accused Rambeer Shokeen was declared an absconder on 23.02.2019 as he failed to appear in the Court as required by the proclamation published under Section 82 (1) of Cr.P.C. and charge was also framed against the accused Rambeer Shokeen for the offence under Section 174A IPC vide order dated 02.03.2021 of my Ld. Predecessor. A perusal of the record shows that the accused Rambeer Shokeen was earlier declared proclaimed offender vide order dated 26.08.2015 of my Ld. Predecessor during the investigation of the case but subsequently he was arrested and remained in custody. The witnesses were cross-examined in this respect and during cross-examination by the Ld. Counsel for the accused Rambeer Shokeen PW51 stated that he had not placed on record any photographs regarding affixation of process under Section 82 Cr.P.C. at any place. He denied the suggestion that no notice was affixed at any place. He stated that he had done the State Vs. Pankaj Sehrawat and Ors. Page No.376 of 385 announcement by beating of drums at the time of affixation of process under Section 82 Cr.P.C. He denied the suggestion that the beating of drums was not done while affixing the process. PW74 admitted that NBWs were obtained against Jagdev Shokeen and the application for the same along with Court order are Ex.PW74/P1 bearing his signature at point X and that notice under Section 160 Cr.P.C. was issued against Jagdev Shokeen. He could not recall under what section the first notice was issued to the accused Rambeer Shokeen. After perusing the case file, he stated that as per the application for issuance of NBWs against the accused Rambeer Shokeen, the first notice dated 14.04.2015 sent to accused Rambeer Shokeen was issued under Section 160 Cr.P.C. He did not recall at present what is the relation

between accused Rambeer Shokeen and Jagdev Shokeen. He could not admit or deny the suggestion that the accused Rambeer Shokeen and Jagdev Shokeen are real brothers. He had not interrogated Rita Shokeen in the present case and volunteered he had interacted with her when she had come with the application Ex.PW74/X. He denied the suggestion that the accused Rambeer Shokeen was always willing to join the investigation of the present case and no notice was ever served upon him or that the accused Rambeer Shokeen was neither a part of any crime syndicate nor was involved in any criminal activity at any given point of time. Thus, PW51 and PW74 were cross-examined on behalf of the accused Rambeer Shokeen being declared a proclaimed offender vide order 26.08.2015 of my Ld. Predecessor but the charge that has been framed against the accused Rambeer Shokeen is in respect of his being declared State Vs. Pankaj Sehrawat and Ors. Page No.377 of 385 absconder vide order dated 23.02.2019 and not earlier.

317. The accused Rambeer Shokeen was subsequently apprehended in the present case on 01.12.2016 after his apprehension in FIR No.65/2016 PS Special Cell and he remained in custody. Thereafter, it was reported by the Ld. Counsel for the accused Rambeer Shokeen that the accused Rambeer Shokeen, who was granted interim bail till 05.10.2018 had escaped from the custody of U.P. Police, when he was produced before Safdarjung Hospital Delhi and the IO had submitted that on 26.09.2018, the accused Rambeer Shokeen had escaped from the custody of U.P. Police escort from Safdarjung Hospital New Delhi and FIR No.242 dated 27.09.2018 under Sections 223/224 IPC PS Safdarjung Enclave had been registered in that regard. Thereafter notice was issued to the accused Rambeer Shokeen as well as his sureties vide order dated 28.09.2018 of my Ld. Predecessor for 01.10.2018. The notice issued to accused Rambeer Shokeen was received back unserved on 01.10.2018 with the report that both the premises were found locked and on inquiry the neighbors stated that they were not aware about the accused and nobody was staying at the given address. Accordingly, NBWs were issued against the accused Rambeer Shokeen for 05.10.2018 and both the sureties also sought time to produce the accused.

318. On 05.10.2018, the NBWs issued against the accused Rambeer Shokeen were received back unexecuted and fresh NBWs were directed to be issued against him for 23.10.2018. The sureties again sought time for tracing the accused. On State Vs. Pankaj Sehrawat and Ors. Page No.378 of 385 23.10.2018, it was recorded that the NBWs issued against the accused Rambeer Shokeen had been received back unexecuted and the Ld. Additional PP had submitted that the accused Rambeer Shokeen was absconding and concealing himself. It was noted that the accused Rambeer Shokeen was granted interim bail till 05.10.2018 vide order dated 20.09.2018. However, he was also in custody in some other cases in UP and had escaped from custody of U.P. police; NBWs issued against the accused on 01.10.2018 and 05.10.2018 could not be executed and as such, there appeared to be sufficient grounds to believe that the accused was absconding and concealing himself to avoid execution of warrants against him. Accordingly, process under Section 82 Cr.P.C. was directed to be issued against the accused Rambeer Shokeen for 05.12.2018 with the direction that the copy of the proclamation may also be published in one national daily newspaper, each in English and Hindi. The sureties again sought time to produce the accused Rambeer Shokeen. On 05.12.2018, HC Parvesh Kumar was present and had filed the report regarding the process under Section 82 Cr.P.C. in respect of the accused Rambeer Shokeen, which was executed on 15.11.2018 but as 30 days' time was not given to the accused after publication of the proclamation for his

appearance in the Court, fresh process under Section 82 Cr.P.C. was directed to be issued against the accused Rambeer Shokeen for 30.01.2019.

319. On 30.01.2019, HC Parvesh Kumar Rathi had filed the report on the process under Section 82 Cr.P.C. in respect of the accused Rambeer Shokeen. On 23.02.2019, statement of Process State Vs. Pankaj Sehrawat and Ors. Page No.379 of 385 Server HC Pravesh Kumar, who had executed the process under Section 82 Cr.P.C. was recorded. It was noted in the order sheet dated 23.02.2019 as under:

"He has stated that on 10.12.2018, proclamation under Section 82 Cr.P.C, against accused Rambeer Shokeen S/o Shri Naval Singh R/o House No. 151, Extension-IV, Kamuruddin Nagar, Nangloi, New Delhi, issued by this Court was handed over to him for execution. Accordingly, he visited the above said address of the accused on 10.12.2018 and affixed a copy of the process under Section 82 Cr.P.C. at the aforesaid address of the accused. He further stated that he also visited another house of accused Rambeer Shokeen, situated in Village Kamuruddin Nagar, falling in the area of PS Nihal Vihar and affixed a copy of the process under Section 82 Cr.P.C. on the aforesaid house. He further stated that he made announcement in both the localities, where the two houses of the accused were situated, by beating of drum and affixed a copy of process under Section 82 Cr.P.C. on the notice board of the court outside the Court on the same day. He prepared the report on the process under Section 82 Cr.P.C., Ex.CW1/A. Heard and perused the record.

The proclamation was made on 10.12.2018 and accused was required to appear in the Court on 30.01.2019. As per HC Parvesh Kumar, the proclamation has been made by affixing a copy of the same at both the addresses of the accused Rambeer Shokeen, by making announcement, by beating of drum and affixing a copy of the process on the Notice Board of the Court. From the aforesaid, it appears that proclamation under Section 82 Cr.P.C. issued against the accused Rambeer Shokeen was duly published on 10.12.2018. In view of the aforesaid, accused Rambeer Shokeen is declared as 'Absconder'."

Thus, vide order dated 23.02.2019 of my Ld. Predecessor, the accused Rambeer Shokeen was declared absconder as the proclamation was made on 10.12.2018 requiring him to appear in State Vs. Pankaj Sehrawat and Ors. Page No.380 of 385 the Court on 30.01.2019 which he failed to do. The Ld. Counsel for the accused Rambeer Shokeen had tried to contend that the notice was not received by the accused Rambeer Shokeen but as recorded in the order sheet by which NBWs had been issued against him, the notice issued to the accused Rambeer Shokeen was received back unserved with the report that both the premises were found locked and on inquiries the neighbors had stated that they were not aware about the accused and nobody was staying at the given address. It is not the case of the accused that the said addresses were not his nor he had furnished any other address during the pendency of the case. Even the NBWs, which were issued against the accused Rambeer Shokeen twice had been received back unexecuted. As such there is no merit in this contention.

320. The Ld. Counsel for the accused Rambeer Shokeen had then argued that he had escaped on account of his medical condition as he was unaware of the consequences of his act. The Ld. Counsel had also submitted that the accused Rambeer Shokeen had been granted interim bail vide order dated 20.09.2018 till 05.10.2018 and if he was aware about the consequences of his act, he would not have escaped when he had already been granted interim bail. The Ld. Counsel had also referred to the medical documents and order sheets which point to the fact that the accused was under medical treatment and in fact the accused Rambeer Shokeen had escaped when he was taken to Safdarjung Hospital. It was urged that the order sheets would show that the accused was suffering from various ailments State Vs. Pankaj Sehrawat and Ors. Page No.381 of 385 and mental issues and since April 2017 he had been going regularly to AIIMS and other hospitals for treatment and was on medication for various ailments and was still under treatment. Reference was made to the order dated 19.04.2017 which was in context of the application for interim bail filed by the accused on ground of medical illness of his wife. Reference was made to the order dated 12.04.2018 by which extension of earlier interim bail was sought and it was noted in the order sheet that the medical documents of the accused had been verified and had been found to be genuine. It had also been recorded that the behaviour of the accused had been found to be abnormal and he had been referred to IHBAS which was the only Government Institute to take care of mental illness. Further the medical documents showed that he had suicidal tendencies and he was suffering from severe depression which was also recorded in the order of 15.05.2018 for extension of interim bail and that the documents stood verified. It was pointed out that the documents showed that the accused had been continuously referred to IHBAS from the jail itself. It was contended that the accused was of unsound mind and on the day of the escape, he was unable to understand the consequences of his act.

321. While there are order sheets which record that the medical documents of the accused had been verified and by which he had been referred to IBHAS and it would also not stand to reason that a person who had been admitted to interim bail would escape, however, there is difference between suffering mental problems and being of unsound mind and in the instant case, there is State Vs. Pankaj Sehrawat and Ors. Page No.382 of 385 nothing to show that the accused was of unsound mind on the date that he escaped. It was submitted that it was not the case that the accused was again arrested but he had himself surrendered in December 2020 which was mentioned in the order sheet dated 21.01.2021 or that during the period that he had escaped from custody, he had committed another crime after escape or that he escaped with the assistance of any other accused and in fact he had himself surrendered but the said argument is neither here nor there as it cannot be disputed that the accused had not appeared in Court as required by the proclamation issued under Section 82(1) Cr.P.C. and was thereafter declared an 'absconder'. It may also be mentioned that there was no document of treatment of the accused after he had escaped till he surrendered though even after the accused had surrendered, he had been under medical treatment in AIIMS.

322. The Ld. Counsel had then submitted that when the accused had escaped, a separate FIR was also registered being FIR No.242/18 under Sections 223 and 224 IPC PS Safdarjung Enclave which was pending trial at Saket Court as the accused had escaped from Safdarjung Hospital. However, the present accusation against the accused is in respect of not appearing before the Court as per the proclamation issued under Section 82(1) Cr.P.C. It was submitted that the circumstances were on

record which substantiated the fact that in the present case mens rea was absent and for every offence there should be mens rea. However, the requirement of Section 174A IPC is clear, if a person fails to appear as required by the proclamation published State Vs. Pankaj Sehrawat and Ors. Page No.383 of 385 under sub-section (1) of Section 82 of Cr.P.C. and is declared absconder, he is liable for the offence under Section 174A IPC. Section 174A IPC reads as under:

"Section 174A. Non-appearance in response to a proclamation under section 82 of Act 2 of 1974.- Whoever fails to appear at the specified place and the specified time as required by a proclamation published under sub-section (1) of section 82 of the Code of Criminal Procedure, 1973 shall be punished with imprisonment for a term which may extend to three years or with fine or with both, and where a declaration has been made under sub-section (4) of that section pronouncing him as a proclaimed offender, he shall be punished with imprisonment for a term which may extend to seven years and shall also be liable to fine."

Thus, a reading of Section would make it clear that failing to appear at the specified place and at specified time as required by the proclamation published under Section 82 (1) Cr.P.C. is sufficient to attract the offence under Section 174A IPC. In the instant case, the Ld. Counsel for the accused may have submitted that the accused was not aware of the consequences of his act so he had escaped when he was already admitted to interim bail but no cogent explanation has been furnished for his failure to appear at the specified place and specified time as required by the proclamation published under Section 82 (1) of Cr.P.C. and it is not in dispute that he had failed to appear in Court on 30.01.2019 in response to the proclamation and was thereafter declared an absconder vide order dated 23.02.2019 of my Ld. Predecessor. In view of the same, the prosecution has proved the guilt of the accused Rambeer Shokeen for the offence under Section 174A IPC beyond reasonable doubt and he is held guilty of committing State Vs. Pankaj Sehrawat and Ors. Page No.384 of 385 the offence punishable under Section 174A IPC.

CONCLUSION

323. From the aforesaid discussion, it is evident that the prosecution has failed to prove the charge under MCOCA against the accused persons beyond reasonable doubt. Accordingly, the accused Neeraj Sehrawat @ Neeraj Bawana @ Neetu, Pankaj Sehrawat, Naveen Dabas @ Bali and Rahul Dabas are acquitted of the offences under Section 3 of Maharashtra Control of Organized Crime Act, 1999. The accused persons are in custody. They be released forthwith, if not wanted in any other case. The accused persons are also directed to furnish a bond under the provisions of Section 437A Cr.P.C.

324. The accused Rambeer Shokeen is acquitted of the offences under Sections 3(2), 3(3), 3(5) and 4 of Maharashtra Control of Organized Crime Act, 1999. However, the prosecution has proved his guilt for the offence under Section 174A IPC beyond reasonable doubt and he is convicted for the same. Put up for arguments on the point of sentence on behalf of the convict Rambeer Shokeen on 26.08.2023.

ANNOUNCED IN THE OPEN COURT (GEETANJLI GOEL) ON 23rd day of August, 2023 ASJ/SPL.
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